TITLE (YEAR)

Topic | Subtopic		**GR No. & Ponente**	
Petitioner/s		**Respondent/s**	
Doctrine			

FACTS

ISSUE 1

Main – Procedural **Main – Substantive** **Side – Procedural** **Side – Substantive**		**YES/NO/UNDECIDED**

PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**

RULING and RATIO DECIDENDI:

LEGAL BASES

ISSUE 2

Main – Procedural **Main – Substantive** **Side – Procedural** **Side – Substantive**		**YES/NO/UNDECIDED**

PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**

RULING and RATIO DECIDENDI:

LEGAL BASES

FINAL DECISION	

SEPARATE OPINION/S

SURNAME, *CJ/J*, *dissenting/concurring*	
SURNAME, *CJ/J*, *dissenting/concurring*	
SURNAME, *CJ/J*, *dissenting/concurring*	

REYES COMMENTARY - ARTICLE 4

IMPOSSIBLE CRIMES:

- person is a *potential* criminal — positivist thinking ensures that community is protected from anti-social activities, actual or potential, as the man is “socially dangerous”
- there are 4 requisites to impossible crime:
    1. *Performing act which would be an **offense against persons or property***
        1. Offender *intends* to commit felony, act *would have been* offense
        2. Felony *should not be actually committed* — otherwise, liable for that felony. no impossible crime.
        3. If an act is an offense other than a felony against persons or property, then **no impossible crime.**
    2. The act is done with ***evil intent.***
        - Offender *intended* to commit — **must be shown** that there was evil intent, that there was intent to do injury on another
    3. *Were it not for the **inherent impossibility of its accomplishment** or on account of the employment of **inadequate means.***
        1. INHERENT IMPOSSIBILITY
            - by its nature, it is impossible to accomplish. there are two types:
                a. LEGAL AND PHYSICAL IMPOSSIBILITY — e.g. shooting a dead person; a dead person cannot be killed or injured, but if b were alive and shot, and as a consequence died, crime WOULD HAVE BEEN murder.
                b. PHYSICAL IMPOSSIBILITY — e.g. trying to steal from a pocket but there was nothing inside — physically impossible to steal something.
                c. LEGAL IMPOSSIBILITY — e.g. a, with intent to gain, took watch from pocket of B. He found out it was his watch that he lost a week before — how can you steal something that you own?
        2. EMPLOYMENT OF INADEQUATE MEANS
            - e.g. a, determined to poison b, uses small quantity of arsenic — thought it was enough, but found it was NOT SUFFICIENT.
            - *if it is adequate, but injury is not produced — it is a FRUSTRATED felony. — e.g.* adequate means to kill, but b had poison resistance
        3. EMPLOYMENT OF INEFFECTUAL MEANS
            - e.g. a, determined to poison b, thought he was pouring arsenic but it was sugar.
            - e.g. a, with intent to kill, aimed with a revolver NOT KNOWING IT WAS EMPTY. When he pressed the trigger, did not fire.
    4. *Should **not constitute*** a violation of **another provision** of the Code
        - see reyes book for example — but the idea is that it shouldn’t fall under attempted, frustrated, consummated, or even crime of grave threats (book 2) of rpc. if it does, it is NOT AN IMPOSSIBLE CRIME

PEOPLE V. BALMORES Y CAYA

Topic | Subtopic	Criminal Liability: Impossible Crime	GR No. & Ponente	G.R. No. L-1896
Petitioner/s	People of the Philippines	Respondent/s	Rafael Balmores Y Caya
Doctrine	An act does not constitute an impossible crime merely because of recklessness or clumsiness. An impossible crime requires that the act be inherently impossible of accomplishment or that the means employed are essentially inadequate or ineffectual to produce the desired result.		

FACTS

- Rafael Balmores y Caya (defendant), waiving the right to be assisted by counsel, plead guilty to the following information filed against him in the Court of First Instance of Manila
    - Sept. 22, 1947 → Defendant tore off at the bottom in a cross-wise direction a portion of a genuine ⅛ unit Philippine Charity Sweepstakes ticket
    - He removed the true number of the ticket, substituting and writing in ink at the bottom of the left side the number 074000 – the prize-winning number in the draw last June 29, 1947
- Sept. 22, 1947 → Defendant presented the falsified ticket to exchange it for the corresponding cash price of P1,359.55, pretending that the said ⅛ unit of the ticket is genuine
    - Bayani Miller, an employee to whom the defendant presented the said ticket to, discovered that it was falsified and immediately called for a policeman thereafter
- Judge Emilio Pefia sentenced the defendant to suffer not less than 10 years and 1 day of prison mayor and not more than 12 years and 1 day of reclusion temporal, and to pay a fine of P100 and the costs
    - Defendant appealed to the court with two contentions: that the facts charged in the information did not constitute an offense and that the trial court lacked jurisdiction to convict him because he was illiterate and was not assisted by counsel

ISSUE 1

Main – Substantive	W/N the facts charged in the information against the defendant did not constitute an offense	NO

DEFENDANT'S ARGUMENTS:

- There could be no genuine ⅛ unit Philippine Charity Sweepstakes ticket for the June 29 draw since they only issued four ¼ units for each ticket for the said draw on that date
- Information does not show that the true and real unidentified number of the ticket alleged to have been torn could not be 074000, making the substitution not falsification

RULING and RATIO DECIDENDI:

- If it is true that PCSO did not issue ⅛ but only ¼ unit of tickets for the June 29 draw, that would only strengthen the theory that the ticket which defendant presented to the PCSO was spurious
- The true and real unidentified number of the ticket alleged to have been torn was the winning number 074000 is not supported by the record
    - There would have been no need of removal and substitution if the original number of the ticket was the same

ISSUE 2

Main – Substantive	W/N the defendant cannot be convicted on a plea of guilty because he was illiterate and not assisted by counsel	NO

DEFENDANT'S ARGUMENTS:

- The trial court is deprived of jurisdiction to convict the defendant since he was illiterate and was not assisted by counsel

RULING and RATIO DECIDENDI:
● Defendant waived the right to be assisted by counsel, and there is no law against such waiver. ● The recklessness and clumsiness of the falsification did not make the crime impossible. ○ In purview of Paragraph 2, Article 4 in relation to Article 59 of the RPC ● Judging from the appearance of the falsified ticket, the Court cannot say that it would have been impossible for the defendant to consummate the crime of estafa if the clerk had not exercised due care.
LEGAL BASES
ART. 4. Criminal liability — Criminal liability shall be incurred: 1. By any person committing a felony (delito) although the wrongful act done be different from that which he intended. 2. By any person performing an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or on account of the employment of inadequate or ineffectual means. **ART. 59. Penalty to be imposed in case of failure to commit the crime because the means employed or the aims sought are impossible.** ● When the person intending to commit an offense has already performed the acts for the execution of the same but nevertheless the crime was not produced by reason of the fact that the act intended was by its nature one of impossible accomplishment or because the means employed by such person are essentially inadequate to produce the result desired by him, the court, having in mind the social danger and the degree of criminality shown by the offender, shall impose upon him the penalty of *arresto mayor* or a fine ranging from 200 to 500 pesos.

FINAL DECISION	We are constrained to affirm the sentence appealed from, with costs against the appellant.

SEPARATE OPINION/S

PARAS, J., *dissenting*	● The accused-appellant, instead of being the victimizer, has become the victim. ○ The appellant is admittedly an illiterate and, in my opinion, had committed only an impossible crime now punishable under paragraph 2, article 4, in relation to article 59, of the Revised Penal Code. ○ In the way the alleged falsification was done, it was inherently inadequate or ineffective and accordingly certain to be detected. Stated otherwise, the appellant could not have succeeded in cashing the ticket. ● If appellant was assisted by competent counsel in the trial court, the fact might have been duly proven. ○ It is true that the appellant waived his right to be assisted by counsel, but we cannot help pointing out that a miscarriage of justice may sometimes result by force of circumstances.

Intod v. CA (1992)

Topic | Subtopic	Art. 4: Criminal Liability | Impossible Crime	GR No. & Ponente	G.R. No. 103119 | CAMPOS, JR.,
Petitioner/s	SULPICIO INTOD	Respondent/s	HONORABLE CA AND PEOPLE OF THE PHILIPPINES
Doctrine	Impossibility of accomplishing the criminal intent is not merely a defense but an act penalized by itself.		

FACTS

1. In the morning of February 4, 1979, Sulpicio Intod, Jorge Pangasian, Santos Tubio and Avelino Daligdig went to Salvador Mandaya's house in Katugasan, Lopez Jaena, Misamis Occidental and asked him to go with them to the house of Bernadina Palangpangan.
   a. The five had a meeting with Ancieto Damalagan, who told Mandaya that he wanted them to kill Bernadina due to a land dispute and that Mandaya should join the four men, or else he would be killed.
2. Later 10PM, the five arrived with firearms at Bernadina's house (in Katugasan as well). Mandaya pointed at Bernadina's bedroom and the other four fired at the room.
   a. However, Bernadina was in another city while her son-in-law and his family occupied her home then. No one was in the room or shot when the accused fired the shots.
   b. They were identified by witnesses, with one stating that before they left, they shouted "We will kill you (the witness) and especially Bernardina Palangpangan and we will come back if you were not injured."
3. The RTC and CA both convicted Intod of attempted murder. He submitted his petition to the SC, stating he should only be liable for an impossible crime.

Main – Substantive	**W/N they performed an impossible crime, not attempted murder**	**YES**
PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**	
Bernadina's absence made the crime inherently impossible.	Crime not consummated, not because of impossibility of its accomplishment (Art. 4(2), RPC) but due to a cause or accident other than petitioner's and co-accused own spontaneous desistance (Art. 3), thus making it attempted murder.	

RULING and RATIO DECIDENDI:

Factual impossibility applies to the crime.

- Petitioner shot the place where he thought his victim would be, although in reality, the victim was not present in said place and thus, the petitioner failed to accomplish the goal.
- American cases, which respondent relies upon, cannot be used to resolve the issues since they have different laws regarding the concept and appreciation of impossible crimes
  - PH - Article 4(2), RPC expressly provides for impossible crimes and made them punishable
  - US - Code is silent on matter (just enumerates attempts of crimes), impossibility of committing offense is deemed merely a defense to an attempt charge, diff between convictions for factual or legal impossibility (FI - criminal liability, LI - no criminal liability)
- Impossibility of accomplishing the criminal intent is not merely a defense but an act penalized by itself.
  - Furthermore, the phrase "inherent impossibility" that is found in Article 4(2) of the Revised Penal Code makes no distinction between factual or physical impossibility and legal impossibility. ***Ubi lex non distinguit nec nos distinguere debemos.***

LEGAL BASES

Legal impossibility vs Factual Impossibility

- *LI: Intended acts, even if completed, would not amount to a crime*
- *FI: Extraneous circumstances unknown to the actor or beyond his control prevent the consummation of the intended crime*

FINAL DECISION	WHEREFORE, PREMISES CONSIDERED, the petition is hereby GRANTED, the decision of respondent Court of Appeals holding Petitioner guilty of Attempted Murder is hereby MODIFIED. WE hereby hold Petitioner guilty of an impossible crime as defined and penalized in Articles 4, paragraph 2, and 59 of the Revised Penal Code, respectively. Having in mind the social danger and degree of criminality shown by Petitioner, this Court sentences him to suffer the penalty of six (6) months of arresto mayor, together with the accessory penalties provided by the law, and to pay the costs.

PEOPLE V. DOMASIAN (1993)

Topic | Subtopic	Art. 4: Criminal Liability | Impossible Crime	GR No. & Ponente	G.R. No. 95322 | Cruz, J
Petitioner/s	People of the Philippines	Respondent/s	Pablito Domasian and Dr. Samson Tan
Doctrine	Delivery of ransom note after rescue of victim cannot be considered an impossible crime because the offense of kidnapping was already consummated when the victim was deprived of his liberty.		

FACTS

- In the morning of March 11, 1982, 8 year-old Enrico Paulo Agra was walking with his classmate (Tirso Ferreras) along Roque Street in Lopez, Quezon.
- He was approached by Pablito Domasian, who asked for his assistance in getting his father's signature on a medical certificate.
- He agreed to help and rode with him in a tricycle to Calantipayan where he waited outside a building while Domasian went inside to get the certificate.
- However, instead of going to the hospital, Domasian forced Enrico inside a minibus while holding him firmly. Domasian told Enrico to stop crying or he will not be returned to his father.
- They went to Gumaca, then to a municipal building, then to the market where Domasian talked to a jeepney driver and gave him an envelope addressed to Dr. Agra, boy's father.
- They rode another tricycle to San Vicente (Domasian was still holding Enrico firmly as he continued crying).
- The driver, Alexander Grate, found it suspicious and asked the man about his relationship to the boy.
    - He said they were brothers -> Grate found it more suspicious because of their physical differences and wide age gap.
    - He immediately reported it to 2 barangay tanods
- The 3 went after them and saw Domasian dragging Enrico.
    - Domasian noticed and told Enrico to run fast as the pursuers might behead them
- Domasian escaped. Enrico was reunited with his parents.
- At 1:45 in the afternoon, Dr. Agra received an envelope containing a ransom note demanding P1 million for the release of Enrico and warned that he would be killed if the amount was not paid off.
- Dr. Agra recognized the handwriting and compared it with hospital records then gave it to the police.
- NBI test showed that it was written by Dr. Samson Tan
- Enrico also identified Domasian from a folder of pictures at the police station
- Domasian and Tan were charged with kidnapping with serious illegal detention in the RTC of Quezon.
    - Defense: denial and alibi
    - Domasian: was at a friend's house and later went to an optical clinic; Tan: was not in Manila
- The judge found them guilty; Penalty - reclusion perpetua, accessory penalties, P200,000 moral damages and attorney's fees

Other facts:

- Motive: 6 days before the incident, Tan approached Agra and requested a loan of at least P15,000. Agra said he had no funds. Tan did not believe him, said he could raise a million pesos if he truly wanted to help
- Enrico was only detained for 3 hours & was released before his parents received the ransom note.

ISSUE 1

Side – Substantive	W/N the witnesses are credible	

RULING and RATIO DECIDENDI:

The Court respects the Trial Court's findings

- Enrico was straight-forward, natural, and consistent in his narration despite his young age.
- His classmate and tricycle driver also positively identified Domasian. No ill motive, no prior encounter.

- Defense's witness had known Domasian for 3 yrs. His eye doctor also made contradictions.
- Tan's alibi (in Manila) does not prove that he could not have written the ransom note.

ISSUE 2

Side – Substantive	**W/N the handwriting analysis is credible**	**YES**

RULING and RATIO DECIDENDI:

- NBI findings - ransom & note written by the same person
- PC/INP - not the same person
- The Trial court believed the NBI's findings because the examination was more comprehensive.
    - Opinion was also based on Agra's testimony - believed that it was Tan because he recognized the handwriting from working with him for 4 years and seeing his prescriptions and reports.
- There was an effort to disguise the penmanship to prevent his discovery.

LEGAL BASES

Rule 132, Section 22, of the Rules of Court
The handwriting of a person may be proved by any witness who believes it to be the handwriting of such person and has seen the person write, or has seen writing purporting to be his upon which the witness has acted or been charged and has thus acquired knowledge of the handwriting of such person. Evidence respecting the handwriting may also be given by a comparison, made by the witness or the court, with writings admitted or treated as genuine by the party against whom the evidence is offered or proved to be genuine to the satisfaction of the judge.

ISSUE 3

Side – Substantive	**W/N the crime is kidnapping with serious illegal detention or merely grave coercion**	

RULING and RATIO DECIDENDI:

- Kidnapping/illegal detention may consist not only in placing a person in an enclosure but also in detaining him or depriving him in any manner of his liberty
    - Enrico was restrained from going home and dragged into the minibus; he was also a minor

LEGAL BASES

Art. 267 of the RPC
Kidnapping and serious illegal detention. — Any private individual who shall kidnap or detain another, or in any manner **deprive him of his liberty**, shall suffer the penalty of reclusion perpetua to death:

1. If the kidnapping or detention shall have lasted more than five days.
2. If it shall have been committed simulating public authority.
3. If any serious physical injuries shall have been inflicted upon the person kidnapped or detained; or if **threats to kill him** shall have been made.
4. If the person kidnapped or detained shall be a **minor**, female or a public officer.

ISSUE 4 (ONLY ISSUE RELEVANT TO THE TOPIC)

Main – Substantive	**W/N The delivery of the ransom note after the rescue of the victim constitutes an impossible crime.**	**NO**

RESPONDENT/S ARGUMENTS:

Alleged that the crime is not against persons or property but against liberty -> not covered by Art. 4 of the RPC & not punishable since it was an impossible crime

RULING and RATIO DECIDENDI:

- Even before the note was received, the crime of kidnapping with serious illegal detention had already been committed.
- It cannot be considered an impossible crime - no inherent improbability of its accomplishment or the employment of adequate or ineffective means.
- The offense of depriving Enrico of his liberty was not extinguished when the note was delivered after the rescue.

LEGAL BASES

Article 4.
Criminal liability. - Criminal liability shall be incurred:

1. By any person committing a felony (delito) although the wrongful act done be different from that which he intended.
2. By any person performing an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or on account of the employment of inadequate or ineffectual means.

ISSUE 5

Side – Substantive	**W/N there was conspiracy between Domasian and Tan**	**YES**

RULING and RATIO DECIDENDI:

Conspiracy exists when two or more persons come to an agreement concerning the commission of a felony and decide to commit it. The acts of the accused were complementary and geared towards a shared goal of extorting P1 million in exchange for Enrico's life.

ISSUE 6

Side – Substantive	**W/N the arrest was constitutional w/o a warrant**	

RESPONDENT/S ARGUMENTS:

Domasian: arrested without warrant, tortured, held incommunicado to extort confession
Tan: seizure of documents used for analysis w/o search warrant

RULING and RATIO DECIDENDI:

<u>The constitutional issues do not affect the decision.</u>
Domasian did not give any confession.
The documents were taken by Agra. The Bill of Rights cannot be invoked against acts of private individuals.

FINAL DECISION	We are satisfied that Tan and Domasian, in conspiracy with each other, committed the crime of kidnapping as defined and penalized under Article 267 of the Revised Penal Code and so deserve the penalty imposed upon them by the trial court. **WHEREFORE**, the appealed decision is **AFFIRMED**, with costs against the accused-appellants.

JACINTO V. PEOPLE (2009)

Topic | Subtopic	Art. IV - Criminal Liability | Impossible Crimes	GR No. & Ponente	G.R.. No. 162540
Petitioner/s	Gemma T. Jacinto	Respondent/s	People of the Philippines
Doctrine	In order for there to be theft, the property stolen must have some value. Nevertheless, the commission of the act with evil intent, while inherently impossible or legally impossible as there is no stealing something that does not exist, constitutes for an offense of ***impossible crime.***		

FACTS ****included all of them because sir gets very particular with it. Please skim thru ahead of time!*

June 1997 – Isabelita Aquino Milabo "***Baby Aquino***" hands petitioner, **Gemma Jacinto**, a P10,000 BDO Check.

- The check was for purchases from Mega Foam Int'l, Inc, which Jacinto was a collector for.
- The check was *somehow* deposited in the Land Bank account of **Generoso** Capitle – husband of **Jacqueline** Capitle, who is the sister of Jacinto.

Rowena ***Ricablanca***, another employee (the snitch), received a phone call from one of the customers, asking if she could *issue checks payable to the account of Mega Foam*, instead of issuing the checks payable to CASH.

- Customer had received instructions from **Jacqueline**
- Also received another phone call – from Land Bank employee, looking for a **Generoso Capitle;** the check deposited in his account *had been dishonored* (meaning, insufficient funds)
    - She phoned **Anita Valencia,** who asked to inform Jacqueline Capitle about the phone call on the bounced check.
        - **Valencia** was a former employee of Mega Foam and the neighbor of Jacqueline, who did not have a phone.
    - Valencia told Ricablanca that the check came from Baby Aquino – told ***Ricablanca*** to ***replace the check with cash.*** Then telling her a plan to *divide it equally among the four of them:* ***Ricablanca***, Valencia, Jacinto, and Jacqueline.
    - ***Ricablanca***, advised by the accountant of Mega Foam, reports it to the owner of Mega Foam, ***Joseph Dyhengco***.

Owner talks with **Baby Aquino** – confirms that she *did in fact hand the petitioner a check for 10,000 PHP*.

- **Baby Aquino** also mentions: she was called later on in July 1997 to tell her that the check had bounced, paying Mega Foam in P10,000 cash in August 1997 as a replacement for the bounced check.

Generoso had claimed he'd gotten the check through *some unknown woman giving the check at his house* in July 1997, having the check rediscounted. He exchanged it with cash and the woman left. After exchanging it with the bank, the bank told him that it had bounced: he didn't do anything after that because there was no way to contact the woman again.

BACK TO THE OWNER: Filed a complaint and worked out an *entrapment operation* with the NBI – 10 pieces of P10,000 that were marked and dusted with fluorescent powder. The owner gave these marked bills to Ricablanca (the snitch) and told her to go along with Valencia's plan.

- August 15, 2007 – ***Ricablanca*** and **Jacinto** meet at Jacinto's house. **Jacinto** hands the bounced check to Ricablanca, intending to go to Baby Aquino's place to have the check replaced with cash – didn't follow through.
- August 21, 2007 – Went to Jacinto's house where she met **Jacinto** and **Jacqueline**. **Jacinto, Generoso,** and ***Ricablanca*** went to the house of Valencia, who then boarded the jeep to go to Baby Aquino's factory.
    - **Jacqueline** didn't come because she went shopping instead.
    - Upon arrival, **Ricablanca** went out acting like she was getting cash from *Baby Aquino* – she brought the marked cash. **Ricablanca** divided the money and gave the P5,000 to **Valencia** and **Jacinto**.
        - Arrested by NBI agents, who had been watching the whole time.

NBI would file a case for qualified theft, including Jacqueline Capitle even if she went shopping.

TESTIMONIES OF ACCUSED:
For Jacinto: she stopped collecting payments from Aquino for quite some time before resignation (June 30, 1997) from Mega Foam. Moreover, she only joined Ricablanca because she needed a ride for a pre-natal check-up at Chinese Generational Hospital. *Allegedly* had no idea why Ricablanca asked to wait there in the jeep but was just surprised when Ricablanca placed the money on her lap and NBI agents arrested them.

From Valencia: Was a cashier only until June 30, 1997 – was never her job to collect payments from customers. She just joined because Ricablanca asked to accompany Jacinto & her to Baby Aquino's house. After waiting in the jeep, Ricablanca came out and gave her money – Valencia asked "What is this?" and then NBI agents arrested them.

INITIAL RTC RULING: Gemma Jacinto, Anita Valencia, Jacqueline Capitle GUILTY of the crime of QUALIFIED THEFT.

CA RULING: MODIFIED:
1. Sentence against Gemma Jacinto stands
2. Sentence against Anita Valencia *reduced to 4 months arresto mayor medium*
3. Accused Jacqueline Capitle (shopping girl) is acquitted.

The current petition is only for Gemma Jacinto.

ISSUE 1

Main – Substantive	**Whether or not Gemma Jacinto is liable for the crime of qualified theft?** 1. W/N petitioner can be convicted of crime not charged in information? 2. W/N a worthless check can be an object of theft? 3. W/N the prosecution has proved the petitioner's guilt *beyond reasonable doubt?*	**NO** *1. No* *2. No* *3. Yes, but not for qualified theft.*

RULING and RATIO DECIDENDI:

GEMMA JACINTO IS GUILTY, BUT NOT UNDER QUALIFIED THEFT. SHE IS GUILTY of an IMPOSSIBLE CRIME.

While all other elements of qualified theft were fulfilled, personal property subject of theft **must have some value, as the intent is to gain from the thing stolen.** As the check was bounced/dishonored and thus had no value, qualified theft **was not actually produced.**

1. *Taking of personal property* – NOT FULFILLED. No property was actually taken – a worthless check is like an empty pocket; there is nothing to steal from an empty pocket.
2. *Property belonged to another* – NOT FULFILLED. While check belonged to Baby Aquino, no property was taken.
3. *Taking was done with intent to gain* – INTENT WAS PRESENT. But again, nothing was taken or gained.
4. *It was done without the owner's consent* – YES (Baby Aquino did not know about it), BUT again nothing was taken or gained.
5. *ACCOMPLISHED WITHOUT USE OF VIOLENCE OR INTIMIDATION* – YES, check was handed to petitioner, as she was known as collector.
6. *Done with grave abuse of confidence* – YES, the petitioner was entrusted with the check.

<u>The situation, rather, better fills out the **qualifications of impossible crime**</u>

1. **ACT PERFORMED WOULD BE AN OFFENSE AGAINST PERSONS OR PROPERTY** – yes, had the check been processed and not dishonored, there would have been an offense against property. Petitioner

performed **all the acts to consummate <u>the crime of qualified theft,</u>** which is a crime against property.

2. **WITH EVIL INTENT** – yes, there was intent to gain the P10,000 issued by the check. **This cannot be denied.**
3. **ACCOMPLISHMENT WAS INHERENTLY IMPOSSIBLE, OR MEANS EMPLOYED WAS EITHER INADEQUATE OR INEFFECTUAL** – yes, it is impossible to "steal" money from an account that has no money or insufficient funds (the check was bounced). It is also legally impossible to accuse someone of theft when they did not steal something at all. Such extraneous cause was *unknown to the petitioner at the time,* which <u>prevented the crime from being reduced.</u>

Just because she was entrapped in receiving the P5,000 marked money, does **not mean she is guilty of qualified theft.** There is one operative act in qualified theft: **the taking of a personal property of another** – she didn't take the P 5,000.00, but was just given it *after consummation of act*.

- Circumstance was *no longer necessary for the consummation of the crime of qualified theft*. Crime of theft is *not a continuing offense*, thus the cash replacement is *not considered a continuation of theft*.
- Such was only *corroborating evidence* to strengthen proof of intent to gain (used to support testimony of a witness)

LEGAL BASES

Elements of Qualified Theft, Art. 310 RPC:

1. Taking of personal property
2. Said property belonged to another
3. Taking was done with intent to gain
4. Done without the owner's consent
5. Accomplished without the use of violence or intimidation against persons, nor of force upon things
6. Grave abuse of confidence

EXAMPLE GIVEN BY THE CASE [Intod]*:* "A man puts his hand in the coat pocket of another with the intention to steal the latter's wallet, but gets nothing since the pocket is empty."

FACTUAL IMPOSSIBILITY: occurs when extraneous circumstances unknown to the actor or beyond his control prevent the consummation of the intended crime.

FINAL DECISION (rephrased)	In view of the foregoing, **PETITION IS GRANTED.** Decision of CA is modified, finding Jacinto **GUILTY OF IMPOSSIBLE MURDER** as defined and penalized in Article 4 (2) and Article 59 of the RPC, respectively. Petitioner is sentenced to suffer a penalty of six months of arresto mayor, and to pay the costs.

Reyes Commentary | Article 5

The basic idea behind article 5 is that, while judges are required to uphold the penalties supplied by the RPC or the rulings that the Supreme Court makes in regards to interpretation of the law, there are still methods to *recommend to legislature if certain* or *appeal for executive clemency if the situation of the case should demand for it*.

"*In connection with acts which should be repressed but which are not covered by law*"

- BASIS: **nullum crimen, nulla poena sine lege,** there is no crime if there is no law that punishes the act.
    - If the court finds that (1) it is not punishable but (2) deems it proper to repress the act, the court can (3) render proper decision by dismissing case and acquitting accused and in doing so (4) make a report to the Chief Executive, through Secretary of Justice, stating *why* the act should be made the subject of penal legislation.
- Judges still must uphold the law, but they can make recommendations to the Chief Executive why a certain act should be penalized.

"In case of excessive penalties"

- While the court may find one guilty, penalties may appear to be **clearly excessive** as (1) accused acted with **lesser degree of malice,** and (2) **there is no injury/injury is of lesser degree.** Despite this, the court shouldn't suspend execution and instead *submit a statement to Chief Executive* to **recommend executive clemency**
    - **LESSER DEGREE OF MALICE:** Maltreatment of a wife caused her death. Because it wasn't the husband's intention to kill, they found the penalty of reclusion perpetua *to be excessive*.
    - **LESSER GRAVITY:** A four-year-old child was kidnapped. But, upon finding the victim, she was dressed and smiling – application of Article 267 might be too harsh, so they asked to change sentence from *prison correccional* to *prision mayor* or even *grant executive clemency* (can go as far as pardon them of the crime)
    - **TOTAL ABSENCE OF INJURY:** Chief of police altered records saying that a person was arrested and gave bond, when they were actually released. The falsification was done to meet pending administrative charges against him. There was apparent lack of malice and total absence of injury.
- It can also depend on the issues of the case.
    - The wife who killed her husband as the husband had been abusing her for 3 years, coming home drunk, would lay his hands on her, strike her in the stomach until she fainted. Granted her conviction was from her own confession, they said that **appellant is deserving of executive clemency.**
    - For simple (attempted) rape: if the accused served a term of imprisonment with retributive justice, then executive clemency should be granted.
- But, the same same **does not apply with public policies** – penalties here are up to legislature discretion.

Judges who do not agree with the law.

- They are still held to comply with it – they cannot refuse to impose death penalty if it is what is written, or mention that such was applied "*in view of the attitude of Chief Executive on death penalty*" – the reason is laid out by the law, thus they must use it.
- This applies even with Supreme Court rulings – consider that if they go against the penalty or law, it will just be appealed anyway and increase costs, inconveniences, and delays to the case.
    - *DURA LEX SED LEX* – the remedy is elsewhere. Either clemency from executive or amendment of law by legislative. The court can only apply the law.
- **They can recommend amendments to the legislature –** we see this in People v. Agao, wherein judges ***recommend legislature to revisit the law and change penalties due to discrepancies*** (e.g. stealing a smaller amount will give one a longer penalty than if they were to steal a larger amount, or the penalties of rape towards minors/acts of lasciviousness, which should be a lesser crime, vary between different laws)

In regards to special laws

- Writing of letters for executive clemency can be applied to special laws – e.g. if violating Social Security Act failing to pay, but they end up paying back the unremitted amount during appeal, then judges can write for executive clemency, asking to reduce the sentence that the accused received.

Reyes Commentary | Article 6

The execution stages of a felony are as follows:

ATTEMPTED	FRUSTRATED	CONSUMMATED
[*No consummation of crime*] The act *would have been* a crime, had there not been **an outside cause intervening the consummation of the act,** outside of the accused's spontaneous desistance.	[No injury due to independent forces] All acts of execution have been performed and *would have* produced felony, but are not **produced due to reasons *independent of the will of the perpetrator.***	**All** the elements necessary for its execution and accomplishment are present.

There are two stages in felonies:

1. **Internal acts -** are not punishable even if, had they been carried out, would constitute a crime. **There must be an effect present.**
2. **External Acts**
    a. **Preparatory acts** – ordinarily, these are not punishable. Any proposals or conspiracies to commit a felony, unless they are punishable by law, aren't.
        i. e.g. buying poison with intent to kill the victim (what if you use that poison for rats instead?)
    b. **Acts of Execution** – punishable by the RPC.
        i. These are where *attempted, frustrated, and consummated* acts fall.

ATTEMPTED FELONY:

1. **Offender commences commission by *directly overt acts.*** The offender themselves must execute the act. An overt act is a *physical activity or deed* that indicates an **intention** to commit a particular crime. These acts must have **direct connection with the crime intended to be committed.**
    a. Examples of acts which are *not directly overt:*
        i. Drawing or trying to draw a pistol – not an overt act of homicide → If they can still voluntarily desist from shooting, then there is *no attempt yet.* There is only an attempt when they *try* to shoot or *have shot* at someone.
        ii. Raising a bolo as if to strike a party – it would only be attempted homicide *had the bolo been struck.*
    b. It is not always physical activity – some acts are consummated upon agreement or proposal, such as *making an offer of money to a public officer* (crime of corruption of a public officer.)
    c. They must have a **direct connection with the crime intended to be committed:**
        i. Indeterminate offense – if one is unsure what the intent is from the acts, then there will be **no justification to find the offender guilty of *theft* or *murder,*** which requires intent.
        ii. It is important that courts and lawyers are able to **establish the objective** in order to serve as *ground for designation* of offense.
        iii. If there might be multiple interpretations on what crime his intentions/actions indicate, then it **cannot be an attempted crime.**
        iv. Generally, one should **look at the actions and the situation a case presents** to infer if the acts have a *direct connection* with the crime one intends to commit.
2. **He does not perform all the acts of execution which *should* produce the felony.**
    a. If anything remains for him to do, then he would be guilty of an attempted crime.
        i. E.g. People v. Lamahang – accused broke one board and unfastened another to the wall – only guilty of *attempted trespass* as a policeman stopped him from continuing/finishing the act, which would only be consummated *when he entered the premises.*
3. **The offender's act is not stopped by his own spontaneous desistance.**
    a. If he deliberately desisted from the act, then **there is no attempted felony.**
        i. Doesn't have to be through good motive – it follows even if they desist through fear or remorse. As long as ***the person willingly stops it*** (not, for example, another person intervenes for one to stop).
    b. The distance should be made **before all acts of execution are performed.**
        i. If A steals a chicken from B, but then returns it later, he is **still liable for consummated theft** – theft only requires that property has been stolen away.

    c. If there is another crime that has already been consummated, while it may not have been the intended crime to commit, then they are still liable for said consummated crime.
        i. If A, with intent to kill, fires a pistol at B but does not hit the latter. Then later on, he desists when B pleads for his life – A will still be **liable for grave threats.**
        ii. If he desists after already making an injury – **such falls under attempted homicide,** no matter how small the injury he may have caused (as an injury already occurred)
4. **The non-performance of all acts of execution was due to cause or accident other than his spontaneous desistance.**
    a. E.g. A aimed his pistol at B to kill the latter – but the gun jammed after pressing the trigger and no bullet was fired.

In attempted felony, the subjective phase (which is when the offender begins the commission, then completes all acts required to execute the act) is **never passed.**

- There is a cause *outside of his own voluntary desistance* that **stops the act.**
- If it does pass the subjective phase, then it would either be **frustrated or consummated murder.**

FRUSTRATED FELONY:

1. The offender performs **all the acts of execution.**
    a. Nothing more is left to be done by the offender – he has performed **the last act necessary** to produce the crime.
        i. In attempted murder, he only **commences the crime,** but never reaches the last act.
        ii. In consummated murder, **the victim dies.** In a frustrated murder, the victim *survives.*
    b. There is **no need** to look at the belief of the accused – what one must consider is that **all the acts of execution *would have* produced the felony as a consequence.**
    c. Another factor that courts consider is if **the wound is found to be mortal.**
        i. If it isn't mortal or there is no wound present, then they can hold that the stage of execution ***is only attempted;*** e.g. A stab wound is considered superficial and thus, not life-threatening, as well as that no vital organ was hit.
2. All the acts performed ***would have produced the felony*** as a consequence.
    a. In People v. Kalalo – if it is a crime against a person, it is necessary that a **moral wound is inflicted** for it to be a frustrated crime.
3. But the felony **is not produced.**
    a. If it was, it would be *consummated.*
4. By reason of causes **independent of the will of the perpetrator.**
    a. Intervention of third persons who prevented the consummation falls under here.
    b. BUT if the crime did not consummate due to the perpetrator's own and exclusive will, then this element is not present.
        i. E.g. A doctor mixed arsenic with the soup of his wife, intending to kill her. But immediately after his wife took the soup, he gave her the antidote. **Because the doctor performed all the acts of executions, it cannot be attempted parricide.** It is likely he will get charged with *physical injuries* – not attempted or frustrated parricide as ***the intent disappeared as soon as he prevented poison from killing her.***

ATTEMPTED	FRUSTRATED
1. Offender *merely commences* the commission by overt acts, not performing *all* acts of execution. 2. Reason for non-fulfillment is **cause or accident other than offender's own spontaneous desistance.** 3. Did not pass the subjective phase.	1. Has performed **all the acts of execution** which should produce felony as a consequence. 2. Reason for non-accomplishment of crime is **cause independent of the will of the perpetrator.** 3. Passed the subjective, now in the objective phase.
In both, the offender **does not accomplish his criminal purpose.**	

If inadequate or ineffectual means – falls under impossible attempt. What are their differences?

	FRUSTRATED/ATTEMPTED	***IMPOSSIBLE CRIME***
Evil Intent	While in both the evil intent is not accomplished, it ***could have been accomplished.*** There was a possibility.	The evil intent was not and **cannot/could never be accomplished.**
Means Used	What stopped the accomplishment of the crime is the **intervention of a certain cause or accident** that the offender had no part in.	What stopped the accomplishment was its **inherent impossibility, its inadequate means,** or **ineffectual means**

CONSUMMATED FELONY. *All the elements* necessary for its execution and accomplishment *are present.*

- Not all elements are proved when the felony is (1) not consummated, (2) not committed, (3) another felony is shown to have been committed.
- It is best to look at the **nature, elements, and manner** of the crime to determine if it is a *consummated, frustrated, or attempted* felony.

EXAMPLES APPLYING NATURE, ELEMENTS, and MANNER to find the stage of execution.
**if it says "x" then it wasn't mentioned in Reyes*

CRIME	CONSUMMATED when….	FRUSTRATED when…	ATTEMPTED when…
Arson **(***RPC 320-326***)**	Even only a *portion* of the wall or any other part of the house is burned.	If there was a blaze, but no part of the house was burned.	If they poured gasoline and were about to strike a match *when he was apprehended.*
Theft (*RPC 308***)**	The thief, with intent to gain, is able to get hold and **gain possession** of the property, even if he wasn't able to dispose of it.	**NO FRUSTRATED THEFT** (Dino was overruled – being able to freely dispose property is *not a constitutive element* of theft)	If they *attempted* to steal but it **never fell into their possession.** If it would have been frustrated, it falls under attempted.
Estafa	Fulfills elements: 1. Abuse of confidence 2. Damage to the offended party must occur	The person had gained money/been paid but no damage occurred, perhaps as the perpetrator was caught.	If they attempted to pose as an officer, but the person *did not pay them.*
Robbery by use of force upon things (Arts. 299, 302**)**	Fulfills elements; 1. Removal of personal property 2. Able to carry it out of the building	Removal of personal property *but* they were caught before they carried it out.	x
Robbery with violence against or intimidation of persons (Art. 294)	The moment an offender **gets hold of the thing taken** and/or is in a position to **dispose of it freely.**	x	x
Murder/Homicide	They died.	Inflicted major injuries, but	If injuries incurred *did not*

(Intent to Kill, also known as material crimes)		did not die due to other events outside the perpetrator's will, such as medical assistance.	*affect any vital organs*, thus not able to pinpoint a **proximate cause** that injury leads to murder.
Rape	**Any** penetration of the female organ by the male organ is sufficient, even just the *entry* of the labia or lips.	**NO FRUSTRATED RAPE** (People v. Orita)	If there was no penetration, perhaps only touching of erect penis with the skin outside the vulva.
Crimes requiring intervention of two persons to commit them	Such crimes are **consummated by mere agreement –** such as betting in sports contests or corruption of public officers.	If the money is given but then the public officer *returns* the money given, then crime is **frustrated bribery.**	If an offer is made by one of the parties and the offer is rejected, it is an **attempted felony.**
The crimes below only have a consummated *stage/no attempt*.			
Formal Crimes (consummated in ONE attempt)	*Slander, false testimony* – no chain of events that can sever the link *Sale of marijuana/prohibited drugs* – mere act of selling or acting as broker **NO ATTEMPT** in formal crimes – one instant, no attempt.		
Mere attempt or proposal	*Flight to the enemy's country* – mere attempt is a consummated felony. *Corruption of minors* – mere proposal to satisfy one's lust is a consummated offense. *Crime of Treason* - overt act itself consummates the crime.		
Felony by Omission	**may have frustrated, doesn't mention* No attempted stage as the offender *does not execute acts* in omissions. He omits to *perform* an act which the law requires him to do.		
Impossible Crime	*Counterintuitive.* An impossible crime has **already performed all of the acts for execution of the crime.** No attempted impossible crime, as they *would not have performed all the acts.* No frustrated impossible crime, because it's already considered as *consummated.*		

U.S. v. EDUAVE (1917)

Topic | Subtopic	Part I: The Basics | Stages of Commission	GR No. & Ponente	Moreland, J. G.R. No. 12155
Petitioner/s	The United States (The People)	Respondent/s	Prostasio Eduave
Doctrine	If there was no intervening cause which stopped the injury that would have occurred from the crime and had completed all acts required to conduct commission of the crime, but death did not result from the act, the accused is guilty of **frustrated murder,** not attempted murder.		

FACTS

Prostasio rushed upon a girl suddenly and struck her from behind with a sharp bolo, producing a gash in the lumbar region (lower back, between chest and lower spine) AND to the side, 8 ½ inches long and 2 inches deep, severing all the muscles and tissues of that part.

Accused's motive: angry at the girl because she had charged him for raping her and making her pregnant. He was the girl's *querido* (lover/darling) and was living with her at such time.

Accused stated his purpose to kill, *thought he had killed*, and threw the body into the bushes. He gave himself up and declared he had killed the girl.

The girl didn't die, assuming that she lived because she was saved but it was not stated in the case – thus, why the case must debate if attempted or frustrated murder. Cannot be a consummated murder as the girl did not end up dying.

ISSUE 1

Main – Substantive	**W/N the accused guilty of murder?** (Is it murder or homicide?)	**YES**

RULING and RATIO DECIDENDI:

While there is no question that the accused is guilty of *some crime* (there is *alevosia* – deliberate use of stealth), the court needed to determine the precise crime being committed.

IT IS MURDER – the crime would have been murder if she was killed. It is known that such an act was done treacherously, having struck her from behind and on the back/side with a bolo. If death had resulted, it would be murder with qualifying circumstances of treachery.

LEGAL BASES

Article 248 – *Murder*. Any person who shall kill another if committed with any of the following attendant circumstances (1) Treachery

Main – Substantive	**W/N the accused guilty of frustrated murder?** (what is the precise crime that the accused committed?)	**YES, FRUSTRATED.**

RULING and RATIO DECIDENDI:

Now, the court must determine what kind of murder.

FRUSTRATED v. ATTEMPTED MURDER *in simplest of words.*

1. **FRUSTRATED:** If the accused performed all of the acts that *should have* resulted in consummated crime

and voluntarily desisted from further acts.

- He was not prevented by some outside force and performed *all* acts to consummate the crime. **There is no intervention** by some *foreign or extraneous cause or agency* **from the beginning to the end of the crime.**

2. **ATTEMPTED:** If the offender, after beginning commission of crime, is **prevented,** against his will, **by some outside cause from performing *all* the acts to result in a consummated crime.**
    - He was prevented by some outside force to consummate the crime. **There IS an intervention** and the offender does **not arrive at the point of performing all acts** which should produce a crime.

FRUSTRATED v. ATTEMPTED MURDER *using subjective & objective phases.*

- **SUBJECTIVE PHASE** – acts constituting crime included between act beginning commission of crime and last act which *should result in consummated crime.*
    - IF in between these points the offender is stopped by any cause *outside* of his own voluntary desistance, **subjective phase is not passed and such is an attempt.**
    - If the subjective phase is completed but injury intended is not incurred, **the act falls under frustrated crime.**
- **OBJECTIVE PHASE** – acts in which he has control – where he begins till where he voluntary desists
    - IF the accused is not stopped and continues until he performs the last act to consummate the crime, BUT injury did not occur because of acts independent to the will of the offender (saved by ambulance, for example), the act falls under **frustrated charge**.
    - IF he is stopped by any cause outside his voluntary desistance, **then it's only an attempt** (not all actions required present to consummate the crime).
    - IF he voluntarily desists and there is no injury, then there is no crime (objective phase not passed because of voluntary desistance).

The accused had performed **all the acts** which *should have resulted* in the consummated crime. Thus, the crime is of **frustrated murder.**

LEGAL BASES

Article 3 of Old Spanish Penal Code (now found in Art. 6 of RPC) – *Consummated, Frustrated, and Attempted.*
It is frustrated when the offender performs all the acts of execution which *should produce the felony* as a consequence, but which, nevertheless, do not produce it by reasons of causes independent of the will of the perpetrator.

There is an attempt when the offender commences the commission of the felony directly by overt acts, and does not perform all the acts of execution which constitute the felony by reason of some cause or accident other than his own voluntary desistance.

FINAL DECISION *(rephrased)*	The judgement is affirmed with modifications: penalty modified to *thirteen years of cadena temporal* with *no aggravating or mitigating circumstances.* So ordered.

People v Orita (1990)

Topic | Subtopic	Art. 6 Rape	GR No. & Ponente	88724, Medialdea
Petitioner/s	People (Cristina S Abayan, victim)	Respondent/s	Ceilito Orita alias Lito
Doctrine	Perfect penetration is not essential for the consummation of rape, any penetration to the lip or labia is enough.		

FACTS

In the early morning of March 20, 1983, Cristina S. Abayan[1], with her classmate, arrived at her boarding house from a party (*her classmates left immediately*). As she knocked at the door of her boarding house, out of nowhere, Ceilito Orita[2] held her and poked a knife to her neck, and ordered her to go upstairs with him.

The door which led to the first floor was locked, hence, the accused forced the victim to use the back door leading to the second floor with his left arm wrapped around her neck and his right hand poking a "balisong" to her neck, and commanded her to look for a room.

Upon entering the room, the accused ordered the complainant to take off her clothes, and abused the victim. At one time, the accused lay down on his back and commanded her to mount him. At this stage, the appellant had both his hands flat on the floor, leaving the victim a moment to escape.

She dashed out to the next room and locked herself in. The accused pursued her until the victim fled to a room where she jumped out through a window.

Still naked, she ran to the municipal building[3], and knocked on the doors until the policemen opened and found the victim naked sitting on the stairs crying[4]. When they discovered what happened, Pat. Donceras and two other policemen rushed to the boarding house. They heard a sound on the second floor and saw somebody running away. However, due to darkness, they failed to arrest the accused.

Meanwhile, the policemen brought the victim to the Eastern Samar Provincial Hospital where she was physically examined. Dr. Ma. Luisa Abude, provided the following result: 1) Physical Examination — Patient is fairly built, came in with loose clothing with no under-clothes; appears in state of shock, per unambulatory. 2) PE Findings — Pertinent Findings only. 3) Neck- — Circumscribed hematoma at Ant. neck. 4) Breast — Well developed, conical in shape with prominent nipples; linear abrasions below (L) breast. 5) Back — Multiple pinpoint marks. 6) Extremities — Abrasions at (R) and (L) knees. 7) Vulva — No visible abrasions or marks at the perineal area or over the vulva, *erythematous* (*sic*) *areas noted surrounding vaginal orifice, tender,* hymen intact; no laceration fresh and old noted; examining finger can barely enter and with difficulty; vaginal canal tight; no discharges noted.

The defense opted not to present any exculpatory evidence and instead filed a Motion to Dismiss. Eventually, the trial court convicted the accused of frustrated rape. CA modified and convicted the accused of rape. However, the CA through a resolution set aside its ruling and forwarded the case into the Supreme Court.

ISSUE 1

Side – Substantive	**W/N** the trial court erred in disregarding the substantial inconsistencies in the testimonies of the witnesses	**NO**

RESPONDENT/S ARGUMENTS:

The testimonies of the accused and Pat. Donceras show remarkable and vital inconsistencies and its incredibility amounting to fabrication and therefore cast doubt to its candor, truth and validity.

RULING and RATIO DECIDENDI:

No. The inconsistencies only refer to trivial inconsistencies that do not significantly affect the credibility of testimonies. Far from being badges of fabrication, the inconsistencies in their testimonies may in fact be justifiably considered as manifestations of truthfulness on material points. As a matter of fact, complete uniformity in details would be a strong indication of untruthfulness and lack of spontaneity (*People v Bazar*).

Moreover, Dr. Reinerio Zamora (Dr. Abude is unavailable) declared that the results of the physical examination are conclusive proof of struggle against force and violence exerted on the victim. The trial court even inspected the boarding house and was fully satisfied that the narration of the scene of the incident and the conditions therein is true.

LEGAL BASES

Judicial Precedents:

People v Cabato
The little deviations also confirm that the witnesses had not been rehearsed. The most candid witnesses may make mistakes sometimes but such honest lapses do not necessarily impair their intrinsic credibility.

Aportadera et. al v CA
Rather than discredit the testimonies of the prosecution witnesses, discrepancies on minor details must be viewed as adding credence and veracity to such spontaneous testimonies.

People v. Samson
The trial court ruling on the credibility of witnesses should be accorded the highest respect because it has the advantage of observing the demeanor of witnesses and can discern if a witness is telling the truth.

ISSUE 2

Main – Substantive	**W/N the accused committed either frustrated rape or rape?**	**YES, RAPE**

RESPONDENT/S ARGUMENTS:

RULING and RATIO DECIDENDI:

Yes. The accused is guilty of rape (not frustrated rape). The Court set the uniform rule that for the consummation of rape, perfect penetration is not essential. Any penetration of the female organ by the male organ is sufficient. Entry of the labia or lips of the female organ, without rupture of the hymen or laceration of the vagina is sufficient to warrant conviction.

In the crime of rape, from the moment the offender has carnal knowledge[5] of his victim he actually attains his purpose and, from that moment also all the essential elements of the offense have been accomplished. Nothing more is left to be done by the offender, because he has performed the last act necessary to produce the crime. Thus, the felony is consummated.

LEGAL BASES

Art. 335. *When and how rape is committed.* — Rape is committed by having carnal knowledge of a woman under any of the following circumstances:
1. By using force or intimidation;
2. When the woman is deprived of reason or otherwise unconscious and

3. When the woman is under twelve years of age, even though neither of the circumstances mentioned in the two next preceding paragraphs shall be present.
Art. 6. *Consummated, frustrated, and attempted felonies.* — Consummated felonies as well as those which are frustrated and attempted, are punishable.

A felony is consummated when all the elements necessary for its execution and accomplishment are present; and it is frustrated when the offender performs all the acts of execution which would produce the felony as a consequence but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator.

There is an attempt when the offender commences the commission of a felony directly by overt acts, and does not perform all the acts of execution which should produce the felony by reason of some cause or accident other than his own spontaneous desistance.

FINAL DECISION	ACCORDINGLY, the decision of the Regional Trial Court is hereby MODIFIED. The accused Ceilito Orita is hereby found guilty beyond reasonable doubt of the crime of rape and sentenced to reclusion perpetua as well as to indemnify the victim in the amount of P30,000.00. SO ORDERED.

Notes:
1 Cristina S. Abayan is a 19-year old, 1st year student at the St. Joseph's College at Borongan, Eastern Samar.
2 Ceilito Orita was a Philippine Constabulary (PC) soldier.
3 The municipal building was just 18 meters away from the boarding house
4 Abayan knocked on the front door, but received no response. She ran around the building and knocked on the back door, where Pat. Donceras noticed her.
5 Carnal knowledge is the act of a man in having sexual bodily connections with a woman (Black's Law Dictionary. Fifth Edition, p. 193).

PEOPLE v. CAMPUHAN

Topic | Subtopic	Art. 6 Stages of Commission (Rape)	GR No. & Ponente	GR 129433, Bellosillo, J.
Plaintiff-appellee	Republic of the Philippines	Accused-appellant	Primo Campuhan Y Bello
Doctrine	There is an **attempt** when the offender (1) commences the commission of a felony directly by overt acts, and (2) does not perform all the acts of execution which should produce the felony (3) by reason of some cause or accident other than his own spontaneous desistance.		

FACTS

Primo Campuhan y Bello was found **guilty of statutory rape** and sentenced by the court to the extreme penalty of death.

At around 4 o'clock in the afternoon, Ma. Corazon Pamintuan, mother of 4-year old Crysthel Pamintuan, went down from the second floor of their house to prepare Milo for her two children. At the ground floor, she met Primo Capuhan (a helper of her brother's) who was filling plastic bags to be frozen into ice.

While Corazon was busy, she heard one of her daughters crying "Ayo'ko, ayo'ko!" from upstairs, which prompted her to run towards the cries. Upon entering the room, she sees Primo inside the children's room kneeling before Crysthel whose pajamas and panty were already removed. Primo's shorts were also down to his knees.

Accdg to Corazon, she saw Primo forcing his penis into Crysthel's vagina. She cursed at him (Putangina mo, anak ko yan!!!) and boxed him several times. He dodged her blows and pulled up his pants, pushing Corazon aside when she tried to block him. Corazon ran out and shouted for help. Her brother, a cousin, and an uncle who were living in their compound came to chase the accused. They apprehended Primo and held him in their compound until the barangay officials were called.

Physical examination of the victim was negative. No sign of extra-genital physical injury was noted by the medico-legal officer on Crysthel's body as her hymen was intact and its orifice was only 0.5 cm in diameter.

Primo's defense

Said the charge was a scheme of Corazon's who harbored ill will against him for his refusal to run an errand for her.Said Crysthel was in a playful mood and wanted to ride on his back when she pulled him down, causing them both to fall on the floor. When they were on the ground, Corazon found them and became hysterical, hitting him and accusing him of raping her child.

Primo contends that it would have been inconceivable for him to commit the rape with Crysthel's younger sister in the room and Corazon just downstairs. Their presence and the location being in the family compound would have been enough to deter him from committing the crime. Additionally, he says that from where Corazon was, she could not possibly have seen the alleged **touching** of the sexual organs. Also asserts that absence of any external physical injuries or penetration of Crysthel's private parts bolsters his innocence.

ISSUE 1

Main – Substantive	W/N Primo Campuhan is consummated the statutory rape and can be convicted for the same?	NO

RULING and RATIO DECIDENDI:

In concluding that carnal knowledge took place, full penetration of the vaginal orifice is not an essential ingredient, nor is the rupture of the hymen necessary– the ***mere touching of external genitalia by the penis is sufficient to constitute carnal knowledge***. However, the act of *touching* here should be read as inherently part of

the entry of the penis into the labias (underneath the mons or pudendum) and not mere touching of the external parts of the genitalia. [[Editor's note: *the Court called touching of the external parts "a mere strafing the citadel of passion"*]]

Jurisprudence dictates that the *labia majora* must be *entered* for the rape to be consummated. **Absent any showing of the slightest penetration of the female organ, there can be no consummated rape; at most, it can only be attempted rape, if not acts of lasciviousness.**

Prosecution failed to prove that Primo's penis was able to penetrate Crysthel's vagina however slight. Assuming arguendo Corazon witnessed Primo in the act of molesting her daughter, she still would not have been likely to see the inter-genital contact proving the fact of penetration. Described below:

Q: How was Primo holding your daughter?
A: (The witness is demonstrating in such a way that the chest of the accused is pinning down the victim, while his right hand is holding his penis and his left hand is spreading the legs of the victim).

Vantage point would not have been clear enough to show inter-genital contact and penetration. Upon questioning, Crysthel says that Primo's penis touched her organ, but did not penetrate it. Crystal also asserted that she resisted Primo by putting her legs close together and did not feel any intense pain during the event (used in other jurisprudence to prove that penetration had occurred).

Medico-legal's findings also showed no external signs of physical injuries on the victim's body to conclude that penetration had taken place.

WRT Art. 6, in relation to Art. 335 of the RPC:

Rape is **attempted** when the offender commences the commission of rape directly by overt acts, and does not perform all the acts of execution which should produce the crime of rape by reason of some cause or accident other than his own spontaneous desistance.

IN THIS CASE:
- Primo commenced the execution of rape by overt acts (pinning down Crysthel and removing her clothing)
- Does not perform all the acts of execution (was not consummated b/c there was no touching of penis to labia majora)
- By reason of some cause or accident other than his own spontaneous desistance (stopped the act when Corazon walked in on them)

LEGAL BASES

Art. 6 (3), Revised Penal Code:

There is an attempt when the offender commences the commission of a felony directly by overt acts, and does not perform all the acts of execution which should produce the felony by reason of some cause or accident other than his own spontaneous desistance.

FINAL DECISION	WHEREFORE, the Decision of the court *a quo* finding accused PRIMO "SONNY" CAMPUHAN Y BELLO guilty of statutory rape and sentencing him to death and to pay damages is MODIFIED. He is instead found guilty of ATTEMPTED RAPE and sentenced to an indeterminate prison term of eight (8) years four (4) months and ten (10) days of prision mayor medium as minimum, to fourteen (14) years ten (10) months and twenty (20) days of reclusion temporal medium as maximum. SO ORDERED.

PEOPLE V. AGAO (2022)

Topic | Subtopic	**Article 6 | Stages of Commission - Rape**	**GR No. & Ponente**	**G.R. 248049 - CAGUIOA, J.**
Petitioner/s	People of the Philippines	**Respondent/s**	EFREN AGAO y ANONUEVO
Doctrine	While previous jurisprudence (Campuhan) has stated that rape against a minor is only consummated if an object or the penis has proven to have touched the *labia* or the *pudendum,* the Court *en banc* has stated that rape against a minor would be considered consummated if there is a clear physical indication of the *inevitability* that the above situation would have been met, had it not been for the immaturity and underdevelopment of the minor victim's vagina. Such includes a *repeated touching* of the accused's erect penis on the minor's vagina or other acts of penetration.		

FACTS

AAA was the child of BBB and CCC, who were not married and separated when AAA was still a baby. BBB then lived with Efren Agao, the accused, whom AAA identified as her stepfather.

Prior to the events highlighted in these charges, she testified she actually fell first victim to the abuse sometime in 2009, when she was 10 years old. Efren Agao started touching her private parts while he was bathing her, but she did not tell her mother because the victim didn't think her mother would believe her.

There were two charges of statutory rape:

1. July 2010, when the minor victim AAA was only 10 years old.
   AAA was sleeping, to find the accused touching her breasts and vagina, later trying to insert his penis to the vagina. AAA testified that the accused undressed her then mounted her. **She alleged that she felt and saw the hard penis of the accused, who kept trying to insert it into her vagina, managing to introduce it to the *labia majora* of the vagina.** Appellant was unable to fully penetrate AAA's vagina because she kept fighting back.

2. January 2012, when the victim AAA was now 13 years old.
   AAA alleged that the stepfather raped her when she was sleeping, waking up to find the stepfather touching her breast and trying to insert his penis into her vagina. **Still, he was unable to fully penetrate because she put up a fight.**

AAA did not tell anyone until 2014, as she and her mother had left Agao in June 2014, two years after the assault took place. AAA mustered the courage to tell her aunt about the assaults, who then told her friend who was a police officer. AAA had also told her father CCC, who accompanied her to the police station, and AAA had finally lodged a complaint against the appellant.

Police Chief Inspector Cruz, upon examining the genitalia of AAA, found there to be no evident injury or lacerations on the vagina. She stated that an erect penis, if it merely touches the labia, would *not* cause hymnal laceration. BUT, had it penetrated the vagina, it is possible that while there may have been injuries or lacerations then, the same may have already healed by the time they examined her.

RTC RULING: Guilty on **two counts of statutory rape**, suffer penalty of reclusion perpetua. The court did not appreciate the qualifying circumstances of the stepdaughter-stepfather relationship (no proof that BBB and Agao were married).

CA RULING: Affirmed the ruling of the RTC and increased the damages (moral, civil, and exemplary to P75,000), again not appreciating the qualifying circumstances of stepdaughter-stepfather relationship. Also dismissed the complaint of the appellant re: the 2 year delay from reporting, finding that it was reasonable to not tell anyone until they had left the appellant.

NOT AN ISSUE - Setting Standards

Main - Substantive	**What is considered as statutory rape/consummated rape and thus attempted <u>rape against minors</u>?** *(The court set standards)*	**See highlighted portion.**

HISTORY & STANDARDS SET:

Before this case, the accused would only be guilty of attempted rape because of the absence of the clear operative definition: **penile penetration that qualifies as consummated rape** (see People v. Besmonte, as well as Article 266-A of the RPC).

In People v. Orita, it was deemed that commission of the frustrated stage was *inconceivable* – thus why there is only **consummated rape** and **attempted rape.**

IN SUM OF HISTORY OF RAPE CASES: Consummated rape is found upon prosecution's proof that **erect penis of the accused was introduced to the labia majora of the victim's vagina as a precursor for vaginal penetration.** But, the court also found that the ***paglapat* or nudging or pressing upon the vagina by the penis is enough to consider it as consummated.** Some courts would **dismiss that rape was consummated** stating that there was *not enough proof* ***<u>to say that the erect penis had penetrated or touched the vagina.</u>***

In analysis of past cases, the court found there to be discrepancies in the operative definition used by the courts regarding threshold of *genital contact* required to consider rape as consummated, rather than failure on the victims to testify. Thus, they clarify:

WHAT DOES SLIGHTEST PENTRATION MEAN (FOR ALL): The ***mere introduction,*** however slight, ***into the cleft of the labia majora*** by a penis that is capable of penetration, **<u>regardless of whether such penile penetration is thereafter fully achieved,</u> consummates the crime of rape**. Again, it is not the mere surface touch of the fleshy portion or skin contact around it (only attempted), but the **<u>slightest penetration (or introduction) of the penis to the vulval or pudendal cleft, however minimum in degree.</u>** There are no *half* or *quarter measures* – partial penile penetration is **as serious as full penetration:** deemed consummated in either case. (Non-scientific terms – if the penis so as much TOUCHES ANY PART OF THE VULVA or IS IN the vulva (hole), no matter how *partial* or *slight* it might be, then the act of rape is **consummated**)

FOR PRE-PUBERTY VICTIMS: If it is proven by the prosecution that there is a **clear physical indication of the inevitability that the penis would have penetrated the minor victim's vagina, had the vagina not been physically immature or underdeveloped,** then **<u>it would be considered as consummated.</u>**

It is also found in **<u>previous cases that may serve as guideposts</u>** to determine if a child was penetrated. Thus, the court can find that they have **sufficient basis for consummation** (a child normally would not be able to describe in explicit detail how they were raped):

1. **Victim testifies pain in their genitals**
2. Bleeding in genitals
3. Labia minora is observed to be gaping or redness, or discolored
4. When hymenal tags are no longer visible
5. Sex organ of the victim has sustained any other type of injury.

APPRECIATION OF CHILD TESTIMONIES IN THE CONTEXT OF RAPE: CHILDREN WOULD NOT KNOW what the parts of the vagina are, courts need to afford leniency to the children. Appreciate their entire testimony, use jurisprudence guideposts to help dictate if what is mentioned in the testimony *counts as consummated rape*, pardon the child for not having linguistic accuracy despite them being required to do so in the past.

Court also asks that Congress revisits and examines inconsistence in scale of penalties regarding rape, sexual assault, acts of lasciviousness, and lascivious conduct. If act of rape against minors were only considered as

attempted, the sentence would be *two degrees lower* than the perscribed reclusion perpetua (prision mayor)

LEGAL BASES

People v. Besmonte – Carnal knowledge, as an element of rape, does not require full penile penetration of the organ. Consummation occurs once the penis of the accused, capable of consummating the sexual act, touches either the labia or the pudendum.

Article 266-A: Rape; When and How Committed:

1. By a man who shall have carnal knowledge of a woman under any of the following circumstances:
    a. Through force, threat, or intimidation
    b. When the offended party is deprived of reason or otherwise unconscious
    c. By means of fraudulent machination or grave abuse of authority; and
    d. When the offended party is under twelve (12) years of age or is demented, even though none of the circumstances mentioned above be present.
2. By any person who, under any of the circumstances mentioned in paragraph 1 hereof, shall commit an act of sexual assault by **inserting his penis into another person's mouth or anal orifice, or any instrument or object, into the genital or anal orifice of another person.**

HISTORY OF RAPE CASES, AND WHAT IS CONSIDERED CONSUMMATED/ATTEMPTED:

CONSUMMATED *And the history of cases*	ORITA: It is not necessary that perfect penetration and hymenal rupture are necessary for consummation: **any penetration of the female organ by the male organ, however slight, is sufficient to warrant conviction.** DELA PENA: **Mere touching of a vagina by a penis capable of penetration is considered consummated rape.** Even if it only touches the *external portions* of the genitalia, it would be considered consummated granted that in its presence was a fully erect penis *capable of full penetration*. ESCOBER & CASTROMERO: **The entrance, or the introduction, of the penis to the labia of the pudendum is enough to consider rape as consummated.** "Appellant's manhood legally invaded, however slightly, the lips of her private organ." QUINANOLA**:** CONFIRMED: Genital contact has to be either of the two scenarios: **The penis** (hard or soft) **which merely enters the labia or lips of the vagina,** and penis capable of consummation **merely touches the external genitalia.** OMBRESO, COMANDA: If any part of the vagina(upper vaginal opening, pudendum or labia) is touched by an erect penis, it shall constitute as **consummated rape.**
ATTEMPTED *Which is to be changed later on in this case*	CAMPUHAN**: Because the penis was flaccid** and there was **no showing of the female organ being penetrated** (i.e. touching of the labia of the pudendum by the penis), **there can be no consummated rape.** At most, it can only be **attempted rape, or acts of lasciviousness.** **Grazing of the surface of the female organ or touching the pudendum/vulva is not sufficient to constitute consummated rape.** FRANCISCO: There must be proof that the penis **touched the *labias majora or minora* or slid into the female organ, and not *merely stroked the external surface* in order to be consummated rape.** Otherwise, attempted rape of acts of lasciviousness only.

ISSUE 1

Main – Substantive	**W/N the CA correctly affirmed the RTC decision which found appellant guilty of two counts of rape?**	**YES but…**

APPELLANTS (AGAO's) ARGUMENTS:

No consummated rape, AAA's testimony marked with incredibility and consistency, CA erred to appreciate the *belated reporting* of incidents. (He sent the SC the appeal he sent to the CA)

RULING and RATIO DECIDENDI:

The court found no reason to overturn the guilt handed down by the RTC and the CA, but it finds proper to modify the finding of **two counts of statutory rape,** with the second one *only being simple rape.*

In the first case, it was testified by AAA that, while unable to penetrate her full vagina, she was **able to point out where the penis had entered and touched her vulval cleft (the pelvic area, the middle)** using a female doll given to her. He hadn't been able to fully insert his penis as she was fighting. Thus, the CA ruled correctly in **appreciating that the first case, when AAA was 10 years old, is a cause of consummated rape.**

However, the CA **erred in its appreciation of the second case, when AAA was 13 years old, with the Court saying that such was was only of attempted/simple rape**, with no evidence to show that it actually touched the vulva.

LEGAL BASES

Principles followed by court for review of rape cases:

1. An accusation of rape, while easy to make, **is difficult to prove** and even **harder for the person accused, though innocent, to disprove.**
2. Because rape, by its very nature, involves two persons, the testimony of the complainant should be scrutinized **with the greatest caution.**
3. Evidence for the prosecution **must stand or fall on its own merits** and **must not be allowed to draw strengths from** weakness of evidence from the defense.
4. The complainant's credibility assumed **paramount importance** because her testimony, if credible, would be sufficient to support the conviction of the accused.

FINAL DECISION	WHEREFORE, the court **DISMISSES** the appeal and **ADOPTS** with **MODIFICATION,** the findings of the RTC which were affirmed by the CA, **AFFIRMING** that Efren Agao is **GUILTY of (1) count of Statutory Rape,** and **(1) count of Simple Rape,** for which he is sentenced to suffer the penalty of *reclusion perpetua* for each count. Court **AFFIRMS** the award of damages pursuant to prevailing jurisprudence.

SEPARATE OPINION/S

LEONEN, *J.* Concurring & Dissenting (why is he based all of a sudden)	He concurs with the result, but does not agree with the doctrine of the ponencia. **RAPE IS RAPE. THERE IS NO ATTEMPTED RAPE.** It is *irrelevant* to talk about the finer points of the parts of the vagina touched by the penis. The *ponencia* claims that such is *progressive* – Leonen says it's not. Sure, it is admirable to distinguish what constitutes as consummated or attempted rape, but this shapes the notion of what rape is and how it can be committed. It goes against the obligations of the state under COnvention on the Elimination of All Forms of Discrimination Against Women (CEDAW) – Philippines is **obliged to take all**

	appropriate measures to modify or abolish existing laws, regulations, customs, and practices which constitute discrimination against women. Rape must be interpreted not as an **honor-based offense, but as a consent-offense. <u>It's an exercise of power over a person, rather than a purely sexual act.</u>** It's more than just *unwanted penile penetration*. Just because in one rape case the penis did not penetrate does not make it less heinous than others. **Rape is a crime because it is a violation of a person's consent to intimacy and sexual relations. Rape is a crime because it is a violation of a person's human dignity. No amount of anatomical discourse should *ever* erase the heinousness of this crime.**

U.S. V. ADIAO (1918)

Topic | Subtopic	Art. 6 Stages of Commission | Theft	GR No. & Ponente	G.R. No. 13785 | J. Malcolm
Petitioner/s	THE UNITED STATES, plaintiff-appellee	Respondent/s	TOMAS ADIAO, defendant appellant
Doctrine			

FACTS

- Adiao (defendant) was charged in the Municipal Court of the City of Manila with the crime of frustrated theft.
- **Defendant (customs inspector) abstracted a leather belt valued at P.080 from the baggage of a Japanese (T. Murakami), and secreted the belt in his desk in the Custom House where it was found by other employees.**
- Defendant appealed to the Court of first instance -> charged with frustrated theft.

ISSUE 1

Main – Substantive	W/N Adiao should be charged with frustrated theft	NO

RULING and RATIO DECIDENDI:

No. The crime cannot be properly charged as frustrated (as defined by art 3 of the PC) since defendant performed all of the acts of execution necessary for the accomplishment of the felony (consummated theft).

The act of taking the object, despite getting caught, already consummates theft.

LEGAL BASES

Spain Supreme Court Decision (Oct 14, 1898): Crime was consummated instead of frustrated as there was no record showing that the policeman who saw the accused take the fruit from the adjoining land arrested him in the act and thus preventing him from taking full possession of the thing stolen and even its utilization for an interval of time.

Spain Supreme Court Decision (Dec 1, 1897): Defendant picked the pocket of offended party at the church; the latter noticed but did not do anything. However the offended party, while still inside the church, got back the money. Crime still consummated since defendant performed all the acts of execution of theft.

Spain Supreme Court Decision (June 13, 1882): Defendant penetrated into a room of a house, opened up a case and took a purse with money. Two guards caught him. The Court ruled that this is still consummated robbery as taking the money from where it had been with intent to appropriate the same. Only the utilization of the object was frustrated, but defendant already executed all the acts necessary to constitute the crime produced.

FINAL DECISION	There exists the aggravating circumstance that advantage was taken by the offender of his public position. Wherefore, in view of the provisions of articles 517 and 518, No. 5, of the Penal Code, and there being present one aggravating circumstance compensated by no mitigating circumstance, the penalty must be imposed in the maximum degree. Judgment is reversed and the defendant and appellant is sentenced to three months and one day of arresto mayor, with the costs of all instances against him. The merchandise in question, attached to the record as Exhibit A, shall be returned to the lawful owner, T. Murakami. So ordered

VALENZUELA V. PEOPLE (2007)

Topic | Subtopic	**The Basics | Stages of Commission (Theft)**	GR No. & Ponente	**[G.R. No. 160188] Tinga, J.**
Petitioner/s	**ARISTOTEL VALENZUELA** y NATIVIDAD	Respondent/s	**PEOPLE** OF THE PHILIPPINES and HON. COURT OF APPEALS,
Doctrine	***Theft cannot have a frustrated stage. Theft can only be attempted or consummated.*** The crime of **theft is produced when all the elements of theft are executed**. Unlawful taking, or apoderamiento, is **deemed complete from the moment the offender gains possession of the thing**. It is immaterial to the product of this felony that the offender, once having committed all the acts of execution for theft, is able or unable to freely dispose of the property stolen since the deprivation from the owner alone has already ensued from such acts of execution. *(i.e.* ***theft is theft the moment you steal, regardless if you were apprehended immediately or if you return it the second after****)*		

FACTS

May 19, 1994 (4:30 PM): Aristotel Valenzuela and Jovy Calderon were spotted outside the Super Sale Club, a supermarket inside the ShoeMart (SM) North EDSA complex, by Lorenzo Lago, a security guard stationed at the parking area.

Valenzuela, wearing a company ID marked "Receiving Dispatching Unit (RDU)", was seen hauling a pushcart loaded with several cases of Tide brand detergent. He unloaded these cases in an open parking space where Calderon was waiting.

Valenzuela went back inside the supermarket and, five minutes later, emerged with more boxes of Tide Ultramatic detergent, unloading them in the same spot.

Valenzuela left the parking space, hailed a taxicab, and directed it toward the parking space where Calderon was waiting. Calderon loaded all the boxes of detergent inside the taxi and then boarded the vehicle.

Security guard Lago, who had been watching the entire sequence of events, intercepted the taxi before it could exit the open parking lot. He demanded to see a receipt for the merchandise.

Valenzuela and Calderon did not produce a receipt; instead, they got out of the taxi and fled on foot. Lago fired a warning shot to alert his fellow security guards, who assisted in chasing and apprehending both men.

The confiscated boxes consisted of **four (4) cases of Tide Ultramatic, one (1) case of Ultra 25 grams, and three (3) additional cases of detergent,** with an aggregate value of P12,090.00.

Valenzuela and Calderon were charged with the crime of Theft in an Information prepared on May 20, 1994. Both accused pleaded not guilty, claiming to be innocent bystanders who were swept up in the commotion. On February 1, 2000, the RTC found their defense incredible, convicted both of consummated theft, and sentenced them to an indeterminate term of 2 years of prision correccional (as minimum) to 7 years of prision mayor (as maximum). Valenzuela appealed, but on June 19, 2003, **the CA rejected his argument to downgrade to "frustrated theft"** and affirmed his conviction for consummated theft.

ISSUE 1

Main – Substantive	**Whether the crime of frustrated theft exists under the Revised Penal Code?**	**NO**

PETITIONER/S ARGUMENTS:

Argued that he could not be convicted of consummated theft because at the time of his arrest, the stolen items

were still inside the SM parking compound, meaning he was never placed in a position to freely dispose of the stolen goods.

Cited the decades-old CA decisions of **People v. Diño (1949)** and **People v. Flores (1964)**, which **modified convictions from consummated to frustrated theft** under similar factual circumstances (where goods were intercepted before exiting a checkpoint or compound).

RULING and RATIO DECIDENDI:

NO. There is no crime of frustrated theft under the Revised Penal Code. Theft can only be attempted or consummated.

- *Under Article 308 of the RPC, the crime of theft is fully "produced" or completed upon the "taking of personal property of another without the latter's consent" (apoderamiento).*
    - *Taking (apoderamiento) is an act of deprivation of the owner's property.*
    - *The moment the offender obtains physical control and possession over the property with intent to gain (animo lucrandi), the owner is deprived of possession and the crime is fully produced.*
    - *The subsequent failure of the offender to make use of, enjoy, sell, or benefit from the stolen items is a frustration of his expected utility, not a failure of the crime's physical execution.*
- *The Court emphasized that it is the exclusive prerogative of the Legislature (Congress) to define crimes. To introduce "ability to freely dispose of the property" as a requirement for consummation would be to arrogate the power to write a new element into the law that is completely absent from the statutory text of Article 308.*
- *The Court of Appeals in Diño and Flores erroneously created the "free disposal" doctrine by misinterpreting Spanish commentators (specifically Viada) and a few inconsistent Spanish Supreme Court decisions.*
    - *These appellate court rulings created a muddled state of law that contradicted the Supreme Court's own early precedents like U.S. v. Adiao (1918) and People v. Sobrevilla (1929), which held that physical possession, no matter how momentary, consummates the crime.*

Attempted Theft: *The offender starts to lay hands on the property or commences the act of taking, but is physically interrupted before establishing complete physical control or custody over it.*
Consummated Theft: *The offender obtains physical, material control and possession of the property with intent to gain (animo lucrandi), even if only for a brief or momentary interval, and even if they are caught immediately afterward.*

LEGAL BASES

Elements of Theft (Art. 308, RPC):

- *That there be taking of personal property;*
- *That said property belongs to another;*
- *That the taking be done with intent to gain (animo lucrandi);*
- *That the taking be done without the consent of the owner; and*
- *That the taking be accomplished without the use of violence or intimidation against persons or force upon things.*

FINAL DECISION	The Petition is **DENIED**, and the decision of the Court of Appeals affirming Aristotel **Valenzuela's conviction for consummated theft is AFFIRMED** in toto.

PEOPLE V. LAMAHANG (YEAR)

Topic | Subtopic	Art. 6: Stages of Commission (Robbery)	GR No. & Ponente	G.R. No. 43530 | Recto
Petitioner/s	People of the Philippine Islands	Respondent/s	Aurelio Lamahang
Doctrine	**In the case of robbery, it is insufficient that the simple act of entering by means of force or violence be considered an attempt to commit the offense, it must be shown that the offender clearly intended to take possession, for the purposes of gain, of some personal property belonging to another.**		

FACTS

- Aurelio Lamahang was found guilty of attempted robbery by the Court of First Instance of Iloilo; sentenced to suffer two years and four months of prison correctional and ten years and one day of prison mayor for being an habitual delinquent.

- Dawn, March 2, 1935; policeman Jose Tomambing was patrolling Delgado and C.R. Fuentes (Iloilo City) when he caught Lamahang in the act of opening with an iron bar on the wall of a store of cheap goods located on the last named street. Lamahang had only succeeded in breaking one board and unfastening another from the wall when he was arrested and placed him under custody.
- Tan Yu, owner, was inside with another Chinaman.
- Lamahang was charged with ***attempted robbery.***

ISSUE 1

Main – Substantive	WON Lamahang should be charged with attempted robbery	NO

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:

RULING and RATIO DECIDENDI:

No. The attempt to commit an indeterminate offense is not a juridical fact from the standpoint of the Penal Code.

- While it is true that Lamahang's intention was to enter Tan Yu's store by means of violence (from the hole in the wall made) to commit an offense, it did not develop beyond the first steps of its execution.
- It is necessary to establish its unavoidable connection with the deed which will develop into one of the offenses defined and punished by the Code.
- It must be proven that the said beginning of execution, if carried to its complete termination following its natural course, without external obstacles nor voluntary desistance of the perpetrator, will logically and necessarily ripen into a concrete offense.
- **In the case of robbery, it is insufficient that the simple act of entering by means of force or violence be considered an attempt to commit the offense, it must be shown that the offender clearly intended to take possession, for the purposes of gain, of some personal property belonging to another.**

- In the case, there is nothing in the record where the purpose of the accused may reasonably be inferred.
- Case does not constitute attempted robbery but ***attempted trespass to dwelling***.

- Aggravating circumstance: nighttime and former convictions (former records showing that several final judgements for robbery and theft have been rendered against him.
    - Breaking of the wall not an aggravating circumstance because this is what constitute to the offense of attempted trespass to dwelling.
- Mitigating circumstance: lack of instruction.

Penalty: Arresto mayor (at the maximum period); accused not entitled to credit for one-hald of his preventive imprisonment (Art 29, PC).
LEGAL BASES
Article 280 of the Revised Penal Code: **Attempted trespass** is committed when a private person shall enter the dwelling of another against the latter's will.

FINAL DECISION	Wherefore, the sentence appealed from is revoked and the accused is hereby held guilty of attempted trespass to dwelling, committed by means of force, with the aforesaid aggravating and mitigating circumstances and sentenced to three months and one day of arresto mayor, with the accessory penalties thereof and to pay the costs.

PEOPLE V. SALVILLA (1990)

Topic | Subtopic	Art. 6: Stages of Commission (Robbery)	GR No. & Ponente	86163 | Melencio-Herrera, J.
Petitioner/s	People of the Philippines	Respondent/s	Bienvenido Salvilla, Reynaldo Canasares, Ronaldo Canasares, dan Simplicio Canasares, Bienvenido Salvilla
Doctrine	From the moment the offender gained possession of the thing, even if the culprit **had no opportunity to dispose** of the same, the unlawful taking is complete		

FACTS

Accused:

1. Bienvenido Salvilla
2. Reynaldo Canasares
3. Ronaldo Canasares
4. Simplicio Canasares

Victims:

1. Severino Choco (owner/ proprietor of New Iloilo Lumber Company)
2. Mary Choco (daughter of Severino)
3. Mimie Choco (15 year old daughter of Severino)
4. Rodita Hablero (salesgirl at lumber co.)

Station Commander of the INP

1. Major Mequiades Sequio

OIC Mayor of Iloilo City

1. Rosa Caram

The accused, Bienvenido Salvilla, and his other co-accused Reynaldo, Ronaldo, and Simplicio all guilty of the crime "**Robbery with Serious Physical Injuries and Serious Illegal Detention**"

- Reclusion perpetua - penalty

April 12, 1986— noon time

The accused, armed with handguns and hand grenades, all conspired and worked together to take and carry away, with intent of gain, :

- P20,000 in cash
- 2 Men's wrist watches
- 1 Lady's Seiko Quartz wrist watch
- 1 Lady's Citizen wrist watch
- Assorted jewelries
- All valued at P50,000

The accused used violence and intimidation on the victims.

Mary Choco suffered serious physical injuries

Likewise, Bienvenido Salvilla suffered serious physical injuries

Reynaldo Canasares suffered physical injuries

The said accused also illegally detained Severino Choco, Mary Choco, Mimie Choco, and Rodita Hablero. They were detained at the compound of the **New Iloilo Lumber Company, Iznart Street, Iloilo City**.

On the occasion of the robbery, the accused asked and were given a r**ansom money of P50,000**.
Crime had **aggravating circumstances** of band, and **illegal possession of firearms and explosives**

The following were recovered from the accused

- P20,000
- 2 Men's wrist watches
- 2 lady's wrist watches
- One .38 caliber revolver
- 1 live grenade

Narration of events in order:

The robbery plan was hatched two days before it happened. The accused were armed with homemade guns and a hand grenade.

At noon time, they entered the establishment and met Rodita who was an employee on her way out for her meal break. They announced that it was a hold-up, and was forced back inside the office.

Salvilla pointed his gun at Severino and his two daughters. Salvilla told them that all he needed was money. Severino then told Mary to get a paper bag to place P20,000 inside. Severino handed the money to the accused. Severino pleaded with the robbers to leave the premises. The robbers did not leave.

Simplicio then took the wallet and wristwatch of Severino— the robbers then herded the three girls to the office as hostages.
2:00PM— the hostages were allowed to eat.

The Appellant told Severino to produce P100,000 for the release of the hostages.

- Severino couldn't daw cos Saturday and banks were closed

In the meantime, police and military authorities surrounded the lumber yard.

- Station commander of the INP of Iloilo negotiated with the accused thru a loud speaker
    - Appealed to the robbers to surrender with the assurance that no harm would befall the.
- Robbers refused to surrender or release hostages

OIC Mayor of Iloilo joined the negotiations.

- Dialogue with accused lasted 4 hrs
- Appellant demanded P100K with raincoats
- She offered 50K instead
    - Saturday kasi and hard to raise the rest
- Accused agreed to receive 50K and to release Rodita and Mary

When Rodita and Mary were out the door, one of the accused had his face covered by a handkerchief and gave a key to Mayor Caram

- Mayor Caram then unlocked the padlocked door and handed to Rodita the 50K.
    - Rodita then gave the 50k to the accused

Rodita was set free. Mary was brought back inside the office.

Police and military decided to launch an offensive.

- Resulted in injuries to Mary and Mimie
- Also resulted in injuries to Ronaldo and Reynaldo

Mary Injuries:

- Macerated right lower extremity below the knee
    - Had to be amputated
- Med Cert described her condition: state of hemorrhagic shock... had to undergo several major operations"

SALVILLA'S VERSION OF THE STORY:
He demanded 100k but he was **only given P5,000**

He claims he actually stopped his co-accused from getting the wallet and wristwatch of Severino

He says also that the 5K was untouched by them

He claims that they NEVER fired on the military— they intended to surrender daw

Severino's daughter stood up during the gunfire and went outside

- Salvilla tried to stopper her daw but he was hit by a bullet and couldn't

ISSUE 1

Main – Substantive	**W/N the lower court erred in holding that the crime charged was consummated and in not holding that it was merely attempted**	**NO**

PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**
Severino put the P20K inside a paper bag and HANDED it to the Appellant The accused Simplicio Canasares took the wallet and wristwatch of Severino. When Rodita got the 50k from the mayor, Rodita thereafter GAVE it to one of the holduppers The taking was therefore PROVED and COMPLETED	the crime of robbery/theft has three consecutive stages: 1) the giving 2) the taking and 3) the carrying away or asportation— > without asportation the crime committed is only attempted The "giving" has been proven, the "taking" has not. ● neither he nor his three co-accused touched the P5,000.00 given by Severino nor the latter's wallet or watch during the entire incident

RULING and RATIO DECIDENDI:

No, the lower court did not err in holding that the crime charged was consummated.

A conviction for **consummated** and not merely attempted Robbery is in order for this crime.

In robbery, it is required that there be a taking of personal property belonging to another
Element of Asportation

- The taking of a thing out of the possession of the owner without consent and without intention to return

If there is no actual taking, there can be no robbery.

The unlawful taking of personal property is an essential part of robbery.

Severance of the goods from the possession of the owner and absolute control of the property by the taker, *even for an instant*, constitutes asportation

From the moment the offender gained possession of the thing, even if the culprit **had no opportunity to dispose** of the same, the unlawful taking is complete

“The crime is consummated when the robber acquires possession of the property, even if for a short time…”

Rodita’s testimony that the accused had taken hold of the items are enough to constitute a consummation of robbery.

Rodita’s credibility in testifying is not questioned nor lessened as the defense has not proven that she was actuated by any improper motive in testifying against the accused

LEGAL BASES

ISSUE 2

Main – Procedural	**W/N the lower court erred in not appreciating the mitigating circumstance of voluntary surrender**	**NO**

PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**
N/A	N/A

RULING and RATIO DECIDENDI:

No. The “surrender” of the accused cannot be considered in their favor to mitigate liability.

For a surrender to have a mitigating effect, the following requisites must be present:

1. The offender had not been actually arrested
2. The offender surrendered himself to a person in authority/ his agent
3. The surrender was voluntary

The surrender of the accused group does NOT meet these requirements.

They refused to surrender to the police and military until only much later when they knew they were completely surrounded and had no chance to escape.

Their surrender was not spontaneous as it was motivated by an intent to insure their own safety.

The fact is, they did not surrender at first despite several opportunities to do so.

There is no voluntary surrender in this case

LEGAL BASES

ISSUE 3

Main – Procedural	**W/N the lower court erred in ruling this a complex crime**	**NO**

PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**
N/A	N/A

RULING and RATIO DECIDENDI:

No, the case at hand involved a complex crime.

A complex crime arises "when an offense is a necessary means for committing the other."

Necessary means

- one crime is committed to facilitate and insure the commission of the other

In this case, the crime of Serious Illegal Detention was such a "necessary means" as it was selected by Appellant

and his co-accused to facilitate and carry out more effectively their evil design to stage a robbery.

The detention of the victims was deliberate as a means of extortion for an additional amount

- Not because the accused were trapped by the police as the authorities had arrived only after several hours of detention.

The elements of the offense of Serious Illegal Detention are present in this case

- The victims were illegally deprived of their liberty

The detention in this case was not merely incidental to the robbery but a necessary means employed to facilitate it, the penalty imposed by the Trial Court is proper.

LEGAL BASES

FINAL DECISION	WHEREFORE, the judgment appealed from is hereby AFFIRMED. Proportionate costs SO ORDERED.

PEOPLE V. BORINGA (1930)

Topic | Subtopic	Art. 6 - Stages of Commission - Murder	GR No. & Ponente	[G.R. No. 33463. December 18, 1930.] First Division MALCOLM
Plaintiff-Appellee	THE PEOPLE OF THE PHILIPPINE ISLANDS	Defendant-Appellant	BASILIO BORINAGA
Doctrine	For frustrated murder - 1) the attacker did everything necessary to carry out the crime, 2) they completed their plan to harm the victim, 3) the only reason the crime failed was because of something outside the attacker's control; 4) the attacker stopped not because they changed their mind.		

FACTS

Events

- Prior to March 4, 1929 - Harry H. Mooney (American and a resident of Calubian, Leyte) contracted Juan Lawaan for the construction of a fish corral. → Basilio Borinaga was associated with Lawaan in this construction
- March 4, 1929 Morning - Lawaan, w/ some of his men, went to Mooney's shop to collect payment → Mooney refused to pay since only about ⅔ of the fish corral construction was finished
- Lawaan threatened Mooney that if he does not pay, something will happen to him. Mooney said do it after breakfast, since he hasn't eaten yet
- Evening same date - Mooney was in the store of a neighbor by the name of Perpetua Najarro. He had taken a seat on a chair in front of Perpetua, his back being to the window. → Perpetua saw Basilio Borinaga from the window
- Basilio struck a knife at Mooney, but fortunately for the latter, the knife lodged in the back of the chair on which Mooney was seated. Mooney fell from the chair as a result of the force of the blow, but was not injured.
- Borinaga ran away towards the market place.
- **Before** this occurred, it should be stated that Borinaga had been heard to tell a companion: "I will stab this Mooney, who is an American brute."
- **After** the attack, Borinaga was also heard to say that he did not hit the back of Mooney but only the back of the chair.
- Borinaga was persistent in his endeavor, and hardly ten minutes after the first attack, he returned, knife in hand, to renew it, but was unable to do so because Mooney and Perpetua were then on their guard and turned a flashlight on Borinaga, frightening him away.
- Again that same night, Borinaga was overheard stating that he had missed his mark and was unable to give another blow because of the flashlight. The knife was still imbedded on the chair, upon examination

CFI Leyte Ruling - convicted for the crime of frustrated murder. sentenced him to fourteen years, eight months, and one day of imprisonment, reclusion temporal, with the accessory penalties and the costs.

ISSUE 1

Main – Substantive	W/N the facts constitute frustrated murder or attempted murder within the meaning of Art 3 of the Penal Code?	Frustrated Murder

RULING and RATIO DECIDENDI:

In Establishing Murder:

The homicidal **intent** of the accused was plainly evidenced. The attendant circumstances conclusively establish that murder was in the heart and mind of the accused. More than mere menaces took place.

The aggressor stated his purpose, which was to kill, and apologized to his friends for not accomplishing that purpose. A deadly weapon was used. The blow was directed treacherously toward the vital organs of the victim. The means used were entirely suitable for accomplishment. The crime should, therefore, be qualified as murder

because of the presence of the circumstance of treachery.

Frustrated Murder or Attempted Murder?
Majority of the Court deemed that the crime committed was **frustrated murder**. – This is true even if Mooney was not injured.

Essentials (as per case): That the author performed all the acts of execution, attended the attack. Nothing remained to be done to accomplish the work of the assailant completely. The cause resulting in the failure of the attack arose by reason of forces independent of the will of the perpetrator. The assailant voluntarily desisted from further acts. What is known as the subjective phase of the criminal act was passed.

Layman's Term: 1) the attacker did everything necessary to carry out the crime, 2) they completed their plan to harm the victim, 3) the only reason the crime failed was because of something outside the attacker's control; 4) the attacker stopped **not** because they changed their mind.
"Subjective phase" is the period where the criminal still has control over whether the crime succeeds or fails. Once they exhaust everything, this phase will pass.

FINAL DECISION	Based on the foregoing considerations, the judgment appealed from will be affirmed, with the costs of this instance against the appellant.

SEPARATE OPINION/S

VILLA-REAL, J., with whom concur JOHNSON and STREET, JJ., *dissenting + concurring*	Defendant is guilty of **attempted** murder. Article 3 of the Penal Code provides as follows: "ART. 3. Frustrated felonies and attempts to commit felonies are punishable, as well as those which are consummated. A felony is frustrated when the offender performs all the acts of execution which should produce the felony as a consequence, but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator. There is an attempt when the offender commences the commission of the felony directly by overt acts, and does not perform all the acts of execution which constitute the felony by reason of some cause or accident other than his own voluntary desistance. " Examining the facts on the lens of frustrated felony ● The blow landed on the back of Mooney's chair, and did not cause any injury on the latter. → The acts of execution performed by the defendant-appellant did not produce the death of Mooney as a consequence nor could they have produced it because the blow did not reach his body; therefore the culprit did not perform all the acts of execution which should produce the felony. There was lacking the infliction of the deadly wound upon a vital spot of the body of Mooney ● Had Mooney been wounded, the wound would be on his back, but it would not guarantee his death. ● The interference of the frame of the back of the chair, which prevented the defendant-appellant from wounding Mooney in the back with a deadly knife, made his acts constitute an **attempt** to commit, murder; for he had commenced the commission of the felony directly by overt acts, and did not perform all the acts of execution which constitute the felony by reason of a cause or accident other than his own voluntary desistance. The foregoing consideration force us to the conclusion that the facts alleged in the information and proved during the trial are not sufficient to constitute the crime of frustrated murder, but simply the crime of an attempt to commit murder.

People v. Sy Pio (April 30, 1954)

Topic | Subtopic	Part I: The Basics | Art. 6: Stages of Commission (Murder)	GR No. & Ponente	G.R. No. L-5848; Labrador, J
Plaintiff-Appellee	THE PEOPLE OF THE PHILIPPINES	Defendant-Appellant	SY PIO, alias POLICARPIO
Doctrine	Under Philippine criminal law, a crime of murder or homicide is frustrated only when the subjective phase of the execution has fully passed—meaning the assailant has performed all acts of execution with the complete belief that they have done everything necessary to cause the death of the victim.		

FACTS

- Early morning of Sept. 3, 1949: Sy Pio entered a store at 511 Misericordia, Sta. Cruz, Manila, armed with a **.45 caliber pistol** and began shooting. He first shot **Jose Sy**. Then, **Tan Siong Kiap**, who was inside the store and witnessed the shooting, asked Sy Pio, ***"What is the idea?"***. In response, Sy Pio turned around and shot directly at Tan Siong Kiap. The bullet entered Tan's **right shoulder** and exited his back. *[According to Tan's testimony]*
  - Tan Siong Kiap immediately **ran to a back room** to hide. Sy Pio fired more shots and then **fled**. Tan Siong Kiap was treated at the Chinese General Hospital, where he remained for nine days and returned five more times for follow-up treatments until his wound healed. He spent a total of **P300** on medical and hospital fees.
- Prior to this shooting, Sy Pio had also shot and wounded another victim, **Ong Pian**, on the same morning.
- Sept. 5, 1949: Manila Police Captain Daniel V. Lomotan took custody of Sy Pio from the Constabulary in Tarlac, where Sy Pio **verbally admitted** to shooting Tan Siong Kiap, Jose Sy, and Ong Pian, and **surrendered** the pistol.
- In Manila, Sy Pio signed a **written confession (Exhibit D)** detailing his grudges. His **resentment** arose because:
  - **Ong Pian**: Months prior to the incident, Sy Pio worked as an attendant in Ong Pian's restaurant, while Sy Pio's wife, Vicenta, worked for Ong Pian's business partner (Eng Cheng Suy). When Vicenta's father fell ill, the family desperately needed financial help. Sy Pio asked Ong Pian for a loan, but Ong Pian only gave him ₱1. His wife eventually had to borrow ₱20 from her own employer.
    - Then, Sy Pio was dismissed from his job at the restaurant and had to work as a peddler. Ong Pian then produced a **list of alleged debts** that Sy Pio had supposedly borrowed and began deducting these amounts directly from Vicenta's salary. Sy Pio vehemently denied that he owed this money.
  - **Tan Siong Kiap and Jose Sy**: Days prior to the incident, Sy Pio earned ₱70 from peddling medicine and left it in his room. The next morning, the money had disappeared. Tan Siong Kiap and Jose Sy, upon the discovery of the loss of the money, asserted that nobody had stolen the money and that he must've given it to his wife.
    - Sy Pio repeatedly overheard Tan Siong Kiap, Jose Sy and other Chinamen say that the money had not been actually stolen, but that he lost it in gambling.
- At the trial, Sy Pio claiming he ***signed Exhibit D without reading***. He asserted that he had merely connived with a man named "Chua Tone," who was the actual shooter. He introduced no witnesses to support this defense.
  - The **Court of First Instance of Manila** found Sy Pio **guilty of frustrated murder** against the person of Tan Siong Kiap, and sentencing him to suffer an **indeterminate sentence** of 6 years, 1 month, and 11 days of *prisión mayor*, to 14 years, 8 months, and 1 day of *reclusión temporal*, to indemnify the offended party Tan Siong Kiap in the sum of **P350**, without subsidiary imprisonment in case of insolvency, and to pay the costs.
    - Sy Pio appealed the decision. The appeal went directly to the SC because, AT THAT TIME (no longer applicable today), the Court of Appeals certified and elevated the case under Section 17 of the Judiciary Act of 1948. Under this law, lesser crimes arising from the same incident as a capital offense (in this case, a separate murder charge against Sy Pio) fell under the exclusive appellate jurisdiction of the highest court.

ISSUE 1

Main – Substantive	W/N the defendant-appellant performed all the acts of execution necessary to produce the death of his victim (to qualify as frustrated murder)	NO

PLAINTIFF-APPELLEE ARGUMENTS:	DEFENDANT-APPELLANT ARGUMENTS:
The crime was frustrated murder because the appellant fired a highly lethal firearm directly at the victim with clear intent to kill (he also had a grudge),	Because the wound was not fatal (right shoulder; it did not touch any of the vital organs of the body) and healed within thirty days, he should only be held liable for less

doing everything necessary to achieve that end.	serious physical injuries rather than frustrated murder.

RULING and RATIO DECIDENDI:

*The crime committed was **Attempted Murder**, not frustrated murder.*
Unlike People v. Dagman (where the victim feigned death and the attackers desisted believing he was dead), Sy Pio shot Tan Siong Kiap and saw Tan successfully run away to hide in another room. The defendant-appellant saw/knew that he had not actually performed all the acts of execution necessary to kill his victim. Thus, it cannot be said that the subjective phase of the acts of execution had been completed. Because Sy Pio did not pursue the victim but instead ran away, a **reasonable doubt** existed that he had actually believed that he had committed all the acts of execution or passed the subjective phase of the said acts.

LEGAL BASES

Article 6 of the Revised Penal Code (Stages of Execution): A felony is **frustrated** when the offender performs all the acts of execution which should produce the felony as a consequence, but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator. A felony is **attempted** when the offender does not perform all acts of execution by reason of some cause or accident other than his own spontaneous desistance.
The "Subjective Phase" Test (U.S. v. Eduave, People v. Dagman, and People v. Borinaga): These cases establish that for a crime to be frustrated, the subjective phase must have passed. This means the assailant must **believe** they have executed every act necessary to cause death.

- The subjective phase refers to the portion of the execution of the felony starting from the commencement of overt acts up to the point where the offender still has control over the execution of the acts.

ISSUE 2

Side – Substantive	**W/N Tan Siong Kiap was shot accidentally (bullet went through Jose Sy).**	**NO**

PLAINTIFF-APPELLEE ARGUMENTS:	**DEFENDANT-APPELLANT ARGUMENTS:**
The shooting was a separate act (direct testimony of the victim).	The trial court erred in finding him guilty of a separate offense, claiming that Tan Siong Kiap was hit accidentally by the same bullet aimed at Jose Sy.

RULING and RATIO DECIDENDI:

The shooting of Tan Siong Kiap was **not accidental**; it was a distinct and separate intentional crime.
The Court relied on the uncontradicted testimony of the victim, Tan Siong Kiap, who established that when he asked Sy Pio why he was firing, Sy Pio turned around and shot directly at him. This proved a separate, independent intent and action, defeating the claim of an accidental ricochet.

ISSUE 3

Main – Procedural	**W/N the evidence presented is sufficient to sustain a criminal conviction.**	**Yes**

P-A ARGUMENTS:	**DEFENDANT-APPELLANT ARGUMENTS:**
There is sufficient evidence.	He argued his confession (Exhibit D) was inadmissible because he signed it without reading it, and that the real perpetrator was "Chua Tone".

RULING and RATIO DECIDENDI:

The evidence is sufficient to sustain the conviction. The conviction was proven beyond reasonable doubt based on:

- The direct testimony of the victim.
- The verbal admissions made by Sy Pio to Captain Lomotan in Tarlac.
- The possession of the crime weapon (the .45 caliber pistol) and his flight to Tarlac.
- The Court noted that the confession (Exhibit D) contained specific personal details of his domestic disputes and precise grudges that nobody but Sy Pio himself could have known or supplied.

FINAL	The judgment appealed from should be, as it is hereby, **modified**, and the defendant-appellant is found

DECISION	**guilty of the crime of attempted murder**, and the sentence imposed upon him **reduced** to an indeterminate penalty of from 4 years, 2 months, and 1 day of prisión correccional, to 10 years of prisión mayor. In all other respects the judgment is affirmed. With costs against the defendant-appellant

PEOPLE V. RAVELO (1991)

Topic | Subtopic		GR No. & Ponente	[G.R. No. 78781 - 82] Gutierrez, Jr., J
Plaintiff-appellee	People of the Philippines	Accused accused -appellants	Pedro Ravelo, Jerry Ravelo, Bonifacio "Patyong" Padilla, Romeo Aspirin, Nicolas Guadalupe, Hermie Pahit, Jose Ravelo Pedro Ravelo, Bonifacio "Patyong" Padilla, Romeo Aspirin, Nicolas Guadalupe, Hermie Pahit
Doctrine	Frustration of Murder requires a proven intent to kill among other acts overtly committed that, if consummated, would result in the crime of murder, the frustration of the murder would be an unexpected result/cause independent from the acts of the offender. In this case, restriction of liberty is not an overt action to conclude the intent to murder.		

FACTS

(I am so sorry, there's 11 witnesses to keep track of...but only 5 or so are important to note?)

- The Accused Pedro Ravelo (P. Ravelo), Padilla, Aspirin, Guadalupe, and Pahit appeal the 2 judgements of the RTC of Tandag, Surigao del Sur, convicting them of **murder of Reynaldo Cabrera Gaurano** and the **frustrated murder of Joey Lugatiman.** Jose Ravelo and Jerry Ravelo are still at large.
    - In the murder case (Criminal Case no. 1187), each of the accused was sentenced to serve the penalty of reclusion perpetua and pay an indemnity of 25,000; in the frustrated murder case (no. 1194), each was sentenced to serve the penalty of imprisonment (8 years 1 day - 10 years max)

- The present petition originally sought the issuance of a writ of Habeas Corpus, the court treated it as an appeal due to the near capital nature of the crimes.
- All the accused are members of the Civilian Home Defense Force (CHDF) stationed near the airport at Awasian in Mabua, Tandag, Surigao del Sur. The 2 victims were allegedly stopped and questioned under suspicion of being NPA members

Criminal Case No. 1187 (murder of Reynaldo Cabrera Gaurano)

- 6:30pm, May 21, 1984, in Barangay Dawis, San Agustin Sur, Municipality of Tandag, Province of Surigao del Sur
    - Accused conspired, confederated, and mutually helped each other did, willfully, unlawfully, and feloniously take/kidnap Reynaldo Cabrera Gaurano
    - Gaurano was a minor walking along Tandag bridge when the accused carried him away and detained him in the house of P. Ravelo (in brgy. Awasian) from **7pm, May 21, 1984, to 4am, May 22, 1984** (10 hours)
    - Gaurano was abused and maltreated, and finally on 4:00 o'clock dawn, May 22, 1984, the Accused, armed with a pistol, armalites, and carbines, with intent to kill, with treachery, and with premeditation, assault, attack, cut, clash, and burn Gaurano.
    - Gaurano sustained the ff. Injuries
        - Blisters all over the body containing clear fluids with hemorrhagic reaction beneath the blisters (burn injuries)
        - Swollen face with contusion and hematoma formation; loosening hair notes; right ear missing with circular incised wound around
        - Incised wound 24cm around the neck, cutting up to the 2nd cervical bone in depth
        - Contusions and hematomas on the anterior chest wall, abdomen, and back

Criminal Case no. 1194 (frustrated murder of Joey Lugatiman)

- 1am, May 22, 1984, in Barangay Awasian, Municipality of Tandag, Province of Surigao del Sur
    - Accused conspired, confederated, and mutually helped each other, now armed, point and stopped a hauler truck of the South Sea Merchant Company (heading towards Tandag, Surigao del Sur,

from sitio Lumbayagan, brgy. Maticdom, municipality of Tandag, Surigao del Sur).
- Upon stopping the truck, they forcibly took Joey Lugatiman who was on board the truck to P. Ravelo's house then to the Airborne Headquarters at Mabua, Tandag, Surigao del Sur.
- At the Airborne Headquarters, Accused inflicted upon Joey the ff. Injuries
    - Small abrasion and hematoma on the wrists and left ankle
    - Small abrasions on the chest, right neck and right ankle
    - Small abrasions and small hematoma on the back
    - Abrasion on the upper left lips

<u>The trial court in their investigation and judgement gathered the ff. Witnesses for prosecution in the Murder case</u>

- **Edilberto Salazar,** 17 y/o, student and resident of Tandag, **knew the accused** and **witnessed them approach him, Gaurano, and 1 other on Tandag bridge.** The accused pointed their guns and Salazar ran and hid, from his hiding spot he **saw the accused chasing Gaurano. He witnessed Gaurano getting caught and forcibly taken away on a pick up truck,** which then proceeded towards the Tandag airport. Salazar and the other went to the police to report
    - He was with the group that exhumed the body of Gaurano under a mango tree near Tandag airport and identified that it was Gaurano

- **Francisco Villasis**, 48 y/o, farmer and resident of Awasian, **knew the accused very well, that he personally saw them in the early dawn of May 22**. He was nearby at Awasian creek catching crabs where **he saw from 20 metres away a man hanging from a mango tree over a fire (he did not recognise the hanging man). The accused were seen gathering around the hanging man and burning him; the hanging man was moaning and the accused were laughing**. After watching for 5 minutes he ran home

- **Joey Lugatiman,** 22 y/o, resident of Dawis, Tandag, **testified that he knew the accused for a long time and identified that they were part of the CHDF. On May 21, 1984,** he was with companions at Maticdum, Tandag, **past midnight** he and his companions **left for Tandag on a logging truck. When they passed the airport they were stopped by the accused for questioning**.
    - **He was brought to the house of P. Ravelo where he was questioned** on whether he was Joey Lugatiman and if he knew Gaurano. He was then brought to the HQ at Mabua where he was questioned if he was NPA, **during his 1 hour stay there he was physically abused by the accused.**
    - He was then brought back to the airport, then back to the house of P. Ravelo, then to the house of Padilla. **Before going to the house of Padilla, Lugatiman saw his friend Gaurano** bruised, bleeding, weak, gagged, and tied up.
    - **At the house of Padilla he was chained and tied to a wall, he peered through the window and, from 30 metres away, witnessed Gaurano being hanged on the mango tree** with a fire burning beneath. He said Gaurano was burned at 5am, May 22, and he was gagged and blindfolded and **overheard that the accused planned to kill Lugatiman at 9pm at Awasian bridge**.
    - **Lugatiman was able to untie himself and escape**, reporting what he saw to the authorities

- **Zosima Gaurano,** 46 y/o, market vendor and a native of Tandag, said she is **Gaurano's mother.** Gaurano left Cebu city on April 12, 1984, for Tandag. She received a telegram on May 22 from her sister Remedios Fernandez saying that her son is dead. She left for Tandag and went to Mata Funeral Parlor, identifying Gaurano's body covered in burns

- **Remedios Cabrera Fernandez,** widow, meat vendor, native of Tandag, and sister of Zosima, testified that **Gaurano is her nephew.** She said that Gaurano was in Tandag for vacation, that on May 20, 1984, Gaurano did not come home to her. She was informed by Atty. Buenaflor and Col. Jesus Hermosa around 6pm, May 22 that Gaurano was kidnapped. On May 23, she was asked to identify an exhumed body found at the back of P. Ravelo's house near a mango tree which she identified to be Gaurano

- **Dr. Romeo delos Reyes,** senior resident physician of Tandag Provincial hospital, **testified that he conducted the autopsy of Gaurano,** that he found various injuries indicating burns and wounds inflicted 36-48 hours before the autopsy

- **Roberto Awa,** a photographer of Similar Studio and for 15 years a photographer of Tandag, took photos of a dead man in a hold under the orders of Col. Hermosa

- **Cresenciano Rulona,** police investigator of the Tandag Police Force, testified that at 8am in the morning of May 23, 1984, him and a group went to Tambacan, Awasion to look for Gaurano. **They found Gaurano under a mango tree 25 metres away from the house of Padilla and 150 metres away from the house of P. Ravelo.** They recovered a P.25 coin, a small comb, 2 zippers, burnt cloth, and burned coconut leaves. Gaurano was buried 1m under the Mango tree. A Photographer was called to picture the body.

The trial court in their investigation and judgement gathered the ff. Witnesses for prosecution in the Frustrated murder case

- **The testimony of Joey Lugatiman** and his medical certificate attesting to the injuries he sustained. He further adds that **he escaped via the nipa palm grove.**

- **Dr. Petronila Montero,** resident physician of the Provincial hospital, testified that on May 22, 1984, she **examined Joey Lugatiman and issued a medical certificate**

- **Emilio Espinoza,** 68 y/o, farmer and resident of Awasian, Tandag. Testifying that **while he was tending to his carabao near Padilla's house, he saw Lugaitman jump out of the window** and run towards the Nipa palm then towards the Airport. He recognised Lugatiman because during the barrio fiesta Lugatiman stayed at his house

- **Bernardo Frias**, 21 y/o, farmer and resident of Awasian, **testified that on May 22, 1984, he was among the companions with Lugatiman that night. He corroborated that the truck they were on was stopped by the accused and Lugatiman was dragged away**.

Accused-appellants were absent from the trial, did not present evidence on their behalf, nor did they confront the prosecution's witnesses.

- They were only represented by counsel de oficio appointed, namely Atty. Pretextato Montenegro and Atty. Florito Cuartero. Atty. Cuartero was there in place of their original defense lawyer, Atty. Eliseo Cruz, who repeatedly requested postponements, it was Cruz' absence that supposedly led to the refusal of the accused to be present at the trial.
- Accused-appellants maintain that they did not waive their right to be present during the trial because the trial was done against their free will and they were not properly informed

After multiple petitions and motions, the accused-appellants' 2nd petition for Habeas Corpus was granted and treated as an appeal, hence this present petition.

ISSUE 1

Main – Substantive	**W/N Accused-Appellants are guilty of Frustrated Murder**	**NO**
Plaintiff ARGUMENTS:	**Accused-Appellants' ARGUMENTS:**	
	- No frustrated murder because there's no proof of intent to kill - Trial court erroneously concluded that Lugatiman's	

	testimony/statement proved intent to kill - Injuries sustained by Lugatiman were not fatal, hence no frustrated murder

RULING and RATIO DECIDENDI:

Accused-Appellants are **NOT guilty of frustrated murder** but instead of the **crime of slight physical injuries** since no intent to kill could be proven

- A Frustrated murder requires that the offender have the intent to kill (manifested by external acts), that all acts that would produce the felony be performed, but the result/felony is not produced due to causes independent of the will of the offender.
    - A verbal claim by Lugatiman and his injuries from acts that RESTRAINED his liberty do not amount to intent to kill
    - Worthy to note that the trial court only considered the manhandling of Lugatiman was for the purpose of extracting a confession
    - During the 5 hours between Lugatiman's overhearing that he will be killed at 5am and his escape at 10am, it is not certain if the appellants really decided to kill him
    - Under the circumstances, there was no commencement of the criminal act by overt acts connected to the crime of murder intended to be committed

ISSUE 2

Main – Procedural	**W/N there was a deliberate waiver of the right to be present at the trial**	**YES**

PETITIONER/S ARGUMENTS:	**Accused-Appellants' ARGUMENTS:**
	- The judge should have explained to them the meaning of not appearing at the trial and the consequence of their decision to not appear - They did not refuse to present evidence on their behalf, but rather they did do so because of the misplaced trust and instruction of Atty. Cruz

RULING and RATIO DECIDENDI:

YES, the Accused-Appellants waived their right to be present at the trial because they squandered the generous amount of time and opportunities to exercise their constitutional rights

- May 30, 1985 is the first day of the trial proper after 5 postponements from the appellants' counsel (Atty. Cruz). The court was skeptical on the claims of Cruz and did not entertain further requests for postponement
- On the day of the trial, the Court appointed 2 counsel de oficio for the accused-appellants as a sign of recognising the right of the accused to a speedy trial and rights of public justice, Accused-appellants still refused to appear without Atty. Cruz (they feared they will get harassed by NPA)
    - At this point, the court informed them of 1.) the importance of the appointment of counsel de oficio because of the near capital nature of their crimes and 2.) there is no legal obstacle to proceeding with the reception of prosecution's evidence
- Absence from the trial only deprived the accused-appellants the right to personally confront the prosecution's witnesses
- Desire of the accused-appellants to actually testify and produce evidence did not manifest in the records. If they did then they would have taken the opportunity especially considering their opportunities granted to them

FINAL DECISION	WHEREFORE, the appealed judgments in Criminal Cases Nos. 1187 and 1194 are hereby, respectively, affirmed and modified as to the crime proven. The accused- appellants PEDRO RAVELO, BONIFACIO "PATYONG" PADILLA, ROMEO ASPIRIN, NICOLAS GUADALUPE and HERMIE PAHIT are hereby sentenced: 1. To serve the penalty of reclusion perpetua and to pay the increased indemnity of FIFTY THOUSAND PESOS (P50,000.00) in Criminal Case No. 1187 solidarily; and 2. To serve the penalty of arresto menor in Criminal Case No. 1194 . SO ORDERED.

PEOPLE V. KALALO (1934)

Topic | Subtopic	Art. 6: Stages of Commission (Homicide)	GR No. & Ponente	GR No's. 39303-39305 || DIAZ, J.
Petitioner/s	THE PEOPLE OF THE PHILIPPINE ISLANDS (plaintiff-appellee)	**Respondent/s**	FELIPE KALALO, et al. (defendants); FELIPE KALALO, MARCELO KALALO, JUAN KALALO, and GREGORIO RAMOS (appellants)
Doctrine	If "Abuse of Superior Strength" in a MURDER is to be proven, one side of the altercation must be clearly better armed and/or more plentiful than the other side. Otherwise, should their weaponry and numbers factors be balanced (or, almost so) with one another, it's just SIMPLE HOMICIDE.		

FACTS

BEFORE Oct. 1, 1932:

- Marcelo Kalalo (Marcelo) and Isabela Holgado (Isabela) had a legal dispute over a parcel of land in Barrio Calumpang, San Luis, Batangas
    - Marcelo filed a complaint on Sept. 28 and Dec. 8 of 1931 against Isabela in Batangas CFI. This is because, whenever Marcelo would cultivate the land, Isabela would reap what he sowed. Both complaints were dismissed.

OCTOBER 1, 1932:

- Part 1: EARLY AM
    - Isabela and her brother Arcadio decided to plow the land, so they got several laborers to do so. Arcadio and the laborers went to the land early in the day.
    - However, Marcelo was informed of the Holgados' plan, so he got his brother(s?) Felipe and Juan, his brother(s?)-in-law Gregorio Ramos (Gregorio) and Alejandro Garcia (Alejandro) to join him. They were later followed by Marcelo's mom, Fausta Abrencia (Fausta), and his aunt, Alipia Abrenica (Alipia).
        - Note: all the brothers and in-laws brought BOLOS.
    - Upon arrival, Marcelo et al. threateningly ordered those who were plowing the field to stop, and they did.
- Part 2: NINE AM
    - Isabela, Maria Gutierrez (Maria), and Hilarion Holgado (Hilarion) got to the land with food to feed the laborers. Before going back to work, the men got their food.
    - Long after the laborers finished eating, the cousin of Isabela and Arcadio named Marcelino Panaligan (Marcelino) arrived.
    - Marcelino ordered Arcadio and the laborers to get back to work.
- Part 3: DEATHS of ARCADIO and MARCELINO
    - Marcelo approached Arcadio. Felipe, Juan, and Ramos approached Marcelino.
    - Fausta asked "What is detaining you?" (Note: maybe "What's stopping you?" is more apt)
    - The Kalalos and Ramos simultaneously SLASHED at Arcadio and Marcelino
        - Marcelino v. Arcadio, and Felipe, Juan, and Gregorio v. Marcelino
    - Arcadio and Marcelino died INSTANTLY from the wounds (6 on Arcadio, 14 on Marcelino), all while in the presence of Isabela and Maria. The laborers hired by the Holgados ran away.
- Encore: SHOTS FIRED at HILARION
    - Once Arcadio and Marcelino had fallen dead, Marcelo took Marcelino's revolver from his holster and fired 4 shots at a fleeing Hilarion. All his shots MISSED and Hilarion was uninjured.

ISSUE 1

Side – Substantive	**W/N the fight was provoked by Marcelino.**	**NO**

RESPONDENT/S ARGUMENTS:

- Marcelino fired at Marcelo upon seeing his determination to stop Arcadio and his laborers.

RULING and RATIO DECIDENDI:

SC's 4 Reasons why Marcelino couldn't have shot at all:

1. **Maria and Isabela's testimonies** line up in that Marcelino was already dead when Marcelo took his revolver to fire at Hilarion.
2. **Marcelo's aggression was directed at Arcadio** and not at Marcelino.
    a. If Marcelo's claim were true, Marcelo would've directed his attack at Marcelino instead of Arcadio
3. **Marcelino was an expert shot**, but none of the perpetrators were wounded by bullets.
4. **Marcelo et al.** were armed with BOLOS, showing their **violent (or lethal) intent** w/o need for provocation.

ISSUE 2

Side – Substantive	**W/N Marcelo fought Marcelino and Arcadio alone.**	**NO**

RESPONDENT/S ARGUMENTS:

- Marcelo acted in self-defense as he was attacked by Marcelino with 3 shots from his revolver and Arcadio with his bolo.

RULING and RATIO DECIDENDI:

SC ruled that one man ALONE couldn't have inflicted the many wounds suffered by the deceased, particularly when considering that one was (a) better armed, (b) a better shot, and (c) was barely 2 arm-lengths from Marcelo (distance provided by Marcelo's own testimony).

- Even Marcelo's defense witnesses said it was Marcelo v. Arcadio and Felipe-Juan-Gregorio v. Marcelino

While Arcadio used his bolo to fend off Marcelo's attack, SC notes that Marcelino had wounds on the back of his head, neck, and back. SC notes that Marcelo's wounds are only on his front. Thus, SC said it's unlikely that the revolver-armed Marcelino would turn his back to his aggressor.

- Maria and Isabela's testimonies show that Felipe, Juan, and Gregorio attacked Marcelino just as Marcelo attacked Arcadio, showing COMMON INTENT to eliminate them at any cost.

Finally, if Marcelo really acted in self-defense, Marcelino would've wounded one of the perpetrators, but he didn't.

SC, just like the lower court, also doesn't believe that the Felipe-Juan-Gregorio trio went there unarmed, given the quantity and placement of the wounds on each of the deceased.

- The fact that all 4 attackers went into hiding after the incident "is corroborative evidence of their guilt"
- Felipe, Juan, and Gregorio in particular weren't arrested for several days since they'd been hiding or otherwise avoiding returning home.

Thus, all four should be held liable for Arcadio and Marcelino's deaths; they came with the same motive to drive the Holgados and their men away, armed and instigated by Fausta's "What is detaining you?" remark.

ISSUE 3

Main – Substantive	**Whether the Three Kalalos and Gregorio are guilty of MURDER or of SIMPLE HOMICIDE.**	**SIMPLE HOMICIDE**

ATTORNEY-GENERAL's View:	**TRIAL COURT's View:**
- Murder, with qualifying circumstance of "abuse of superior strength"	- Simple Homicide, with aggravating circumstance of "abuse of superior strength"

RULING and RATIO DECIDENDI:

SC notes that Arcadio and Marcelino were BOTH ARMED as well (former w/ bolo, latter w/ revolver).

- To the SC, this means that "[t]he risk was even for the contending parties and their strength was almost balanced… a revolver is as effective as, if not more than, three bolos"

LEGAL BASES

RPC Art. 248: "Abuse of Superior Strength" circumstance, if proven, raises Homicide to the category of Murder

ISSUE 4

Main – Substantive	**Whether Marcelo firing at Hilarion is ATTEMPTED HOMICIDE.**	**YES**

RULING and RATIO DECIDENDI:

Marcelo firing four shots at a fleeing Hilarion, right after Marcelo had killed Hilarion's cousin and brother-in-law, shows that he had murderous intent and done everything to bring harm upon Hilarion.

However, due to reasons independent of his will (either he had bad aim or his target successfully dodged the bullets), he missed all his shots.

"The acts thus committed by the said appellant Marcelo Kalalo constitute attempted homicide with no modifying circumstance to be taken into consideration, because none has been established."

FINAL DECISION	GRs 39303 (Death of Marcelino) and 39304 (Death of Arcadio): - The crime committed is HOMICIDE - 14y 8mo 1d of *reclusion temporal* for the Three Kalalos and Gregorio - Act No. 4103: minimum penalty of *reclusion temporal* fixed at 9y - Jointly and severally indemnify their heirs with a sum of Php1,000 - Pay the proportionate part of the costs of the proceedings GR 39305 (Marcelo shooting at Hilarion): - The crime committed is ATTEMPTED HOMICIDE - 2y 4mo 1d of *prision correccional* - Act No. 4103: minimum penalty fixed at 6mo - Pay the costs of appeal in this case So ordered.

ART 7. WHEN LIGHT FELONIES ARE PUNISHABLE

CODAL & COMMENTARY PROVISION

Codal.

Article 7. *When light felonies are punishable.* - Light felonies are punishable **only when they have been consummated**, with the **EXCEPTION** of those *committed against person or property*.

Reyes.

Light Felonies - infarctions of la which the penalty of **arresto menor** or a fine **not exceeding P40K, or both,** is provided.

List of Light Felonies:

- Slight physical injuries
- Theft
- Alteration of boundary marks
- Malicious mischief
- Intriguing against honor
- Disobediance to an agent of a person in authority
- Alarms and scandals
- Concealing true name
- Prostitution
- Other forms of trespass
- Other light threats
- Light coercion
- Destroying and damaging paintings
- Slander by deed, not serious

Important Words Re: Art. 7:

- *With the exception of those committed against persons or property.*
    - **General Rule:** Light felonies are punishable **only** when they have been **consummated**.
        - If they are not consummated ,the wrong done is so slight that ther is **no need of providing a penalty**
        - Light felonies = produce light, insignificant material injuries, such that a light penalty is necessary.
    - **Exception:** Light felonies **committed against persons or property** are punishable **even if attempted or frustrated.**
        - Felonies against persons / property = **presupposes offender's moral depravity**. Therefore, **even attempted or frustrated felonies** of this kind are **punishable.**
            - **Ex:**
            - Against Person: Slight physical injuries
            - Agaisnt Property:
                - Theft by hunting or fishing upon a closed estate
                - Theft where value of property is <500 pesos and accused is motivated by hunger, poerty, or the difficulty of livelihood
                - Alteration of boundary marks
                - Malicious mischief where damage is <40K.

ART 8. Conspiracy and Proposal to Commit Felony.

Article 8. *Conspiracy and proposal to commit felony.*

- Conspiracy and proposal to commit felony **are punishable** *only in the cases in which the* ***law specially provides*** *a penalty therefor*.
- A conspiracy exists **when two or more persons come to an agreement** concerning the commission of a felony **AND decide to commit it**.
- There is proposal **when the person who has decided to commit a felony PROPOSES** its **EXECUTION** to *some other person or persons*.

Reyes.

Important Words and Phrases

- *Conspiracy and proposal to commit felony.*
  - Two different acts: **(1) conspiracy to commit a felony & (2) proposal to commit a felony**
- *Only in the cases in which the law specially provides a penalty therefore*
  - UNLESS there is a specific provision in the RPC providing a **penalty** for conspiracy or proposal to commit a felony, **mere conspiracy or proposal is NOT a felony.**

Conspiracy is not a crime except when a law specifically provides a penalty.

- **CONSPIRACY = 2 OR MORE PEOPLE** come to an AGREEMENT concerning the commission of a felony **AND DECIDE TO COMMIT IT.**
- **CONSPIRACY IS NOT A CRIME *EXCEPT* WHEN THE LAW PROVIDES FOR PENALTY THEREFORE.**
  - Ex: Treason, coup d'etat, rebellion, insurrection, sedition.

General Rule: Conspiracy and proposal to commit a felony are **not punishable EXCEPT when a law provides a penalty therefore.**

- REASON: conspiracy and proposal = mere **preparatory acts, THEREFORE,** the law **regards them as innocent or permissible except** in rare cases.

Re: Penalties for mere conspiracy:

- Art 115 - conspiracy to commit treason = minimum prison mayor and fine <2M
- Art 136 - conspiracy to commit coup = minimum prison mayor and fine <1M
- Art 136 - prision correccional in max and fine <1M
- Art 141 - conspiracy to commit sedition = prison mayor in medium perid and fine <400K

Re: Treason, Coup, Rebellion, Sedition

- The four mentioned crimes **need not be actually committed**
  - It is sufficient that two or more persons agree and decide to commit them.
  - If they do decide to commit treason, the conspiracy before is only a manner of incurring criminal liability - not a separate offense.

Conspiracy as Felony vs Conspiracy as Crime-

- When a conspiracy **relates to a crime actually committed**, it is only a manner of incurring criminal liability - **when there is conspiracy, the act of one = act of all.**
- When the conspiracy is only a manner of incurring criminal liability, it is not punishable as a separate offense.

Illustrations of Conspiracy

- A & B decided to rebel. They execute hte rebellion. -> the crime is rebellion. The conspiracy is only a manner of incurring criminal liability = conspiracy is not a separate offense.
- A, B, C conspired and proposed to Kill D. Say the group failed to execute the plan. They are not liable for having conspired against D.
  - But if they carried out the plan and personally took park in execution, **if it kills D, ALL are liable even if A was just a guard / driver. Accordingly the conspiracy is not a separate offense: it is only the manner in which it was committed.**

Indications of conspiracy. Conspiracy may be inferred when:

- The accused **share a common unlawful objective**.
- Each performs a **different part of the plan**, but their acts are **coordinated and cooperative** toward the same goal.
- Their conduct shows **unity of purpose, concerted action, and concurrence of intent**, even if their individual acts appear independent.

- **Key rule:** Once conspiracy is established, **the act of one conspirator in furtherance of the common design is generally attributable to all**. Thus, even if only one accused actually stabbed or killed the victim, all may be held responsible if they acted in concert to accomplish the common plan,

- **Examples:**
    - **People v. Cantuba:** Knowledge of the assassination plot, recruiting someone to carry it out, and knowing the place and time of the attack indicated participation in the conspiracy.
    - **People v. Hernandez:** All accused acted together in the attack; although only one stabbed the victim, the stabbing was considered the act of all because it was done pursuant to their common design.

Acts of defendants must show a common design.

Conspiracy requires proof of a common design, specifically:

- **Unity of purpose** — the accused shared the same unlawful objective.
- **Unity in execution** — their acts were coordinated toward accomplishing that objective.

Important: Mere **joint, simultaneous, or related acts do not automatically establish conspiracy**. Conspiracy must be proved **as clearly and convincingly as the crime itself**. Even obedience to another person's command does not necessarily establish conspiracy; **the accused's own acts must demonstrate the common design.**

People v. Dorico

Although the accused were **relatives** and attacked the victim **simultaneously**, these circumstances alone did not prove conspiracy. There must be evidence that their acts reflected a **shared criminal purpose**.

People v. Pugay — Application

Pugay poured gasoline on Miranda, and Samson subsequently set Miranda on fire. **But there was no evidence of a prior agreement or unity of criminal purpose.** They were merely making fun of Miranda, and their respective acts were separate.

Result: No conspiracy. Each accused was **individually liable only for his own act**, rather than being collectively responsible for the other's act.

Period of time to afford opportunity for meditation and reflection: not required in conspiracy.

Unlike **evident premeditation**, conspiracy **does not require a period of time for meditation or reflection**.

- **Conspiracy ARISES the MOMENT the parties AGREE**, expressly or impliedly, to commit the felony and decide to pursue it.
- Once this **agreement/assent** is established, **all conspirators become criminally liable** for the crime committed by any one of them in furtherance of the conspiracy.

Re: REQUISITES OF CONSPIRACY
- There must be **2 OR MORE PERSONS** that **CAME to an agreement**.
    - Presupposes the **meeting of the minds of 2 or more persons.**
- That the agreement *concerned* **the commission of a felony.**
    - Agreement must **refer to the commission of a crime.** It must be **an agreement to aact, to effect, to bring about** what was already *been conceived and determined.*
- That the **execution is decided upon.**
    - Conspirators have made up their minds to commit the crime.

DIRECT PROOF: not essential to establish conspiracy.

- It may be inferred from the collective acts of the accused before, during, and after the commission of the crime.
- Can be presumed from teh proven acts fo the accused esp. If the acts point ot a comon goal / purpose.

QUANTUM of PROOF: Required to establish conspiracy
- Elements of conspiracy must be proven beyond reasonable doubt.
- Must be established by positive and conclusive evidence.
- It must be shown to exist as clearly and convincingly as the commission of hte crime itself.

RE: PROPOSALS

RPC provides penalty for mere proposal"
- Art 115 - proposal to commit treason : prison correccional and fine of <1M
- Art 136 - proposal for a coup = prison mayor in minimum period and fine <1M.
- **Treason or rebellion need not be committed**: in proposal to commit treason or rebellion, the crime of treason or rebellion = should not be committed by reason of the proposal.
    - If it was committed, then,the proposal is not a felony.

Requisites of Proposal
- Person has **DECIDED to COMMIT a FELONY**
- Person **PROPOSES ITS EXECUTION** to some other person / persons

There is no criminal proposal when:
- *Person who proposes is not determined to commit the felony.*
    - A decides to overthrow the govt. A suggests overthrowing of government to those who will do it.A is not liable for proposal because A has not decided to commit it
- *There is no decided, concrete, and formal proposal.*
    - Suggestion = not a proposa.
    - It needs to be concrete and formal and decided.
- *It is not the execution of a felony that is proposed.*
    - For **criminal proposal**, what is proposed must be the **actual execution of the felony**, not merely preparatory acts

Problem: Desistance after proposal (ex: rebellion)

- Proposal is consummated upon making the proposal.
- Later desistance ≠ exemption from liability.

Itis not necessary that the person to whom hte proposal is made agrees to commit treason or rebellion.
- Felony = making of proposal.
- Proposal is not required by law to be accepted to whom it was made.
- If accepted, it may be conspiracy, because there was a decision to commit it.

Proposal as an overt act of corruption of public officer:
- Attempted bribery when someone offers money to a public officer to compel him to do something other than his duey.

Crimes in which conspiracy and proposals are punishable are against the security of the state or economic security -> e.g. treason, coup, rebellion, and sedition

Reason why conspiracy and proposal to commit a crime is punishable in crimes against external and internal security of the state.
- If one succeeds, he would gain the power and therefore impunity for the crime committed. Say treason.

ART 9. Grave Felonies, Less Grave Felonies, and Light Felonies.

Article 9. *Grave felonies, less grave felonies and light felonies.*

- Grave felonies are those to which the **law attaches the capital punishment or penalties which in any of their periods are afflictive**, in accordance with article 25 of this Code.
- Less grave felonies are those which the **law punishes with penalties which in their maximum period are correctional**, in accordance with the above-mentioned article.
- Light felonies are those infractions of law for the commission **of which the penalty of arresto menor or a fine not exceeding 200 pesos** or both, is provided.

Classification of felonies according to their gravity.

IMPORTANT WORDS AND PHRASES

- **1. To which the law attaches capital punishment** > Death penalty => **Grave felony**
- **2. Or penalties in any of their periods are afflictive. => Grave felonies**
  - A felony is **grave** when the **highest penalty prescribed is afflictive**, even if the offense carries multiple penalties or periods.
  - **Rules:**
    - **Two or more distinct penalties:** Look at the **higher/highest penalty**.
      - *Prision correccional → prision mayor* = **grave felony**, because *prision mayor* is afflictive.
    - **Different periods of divisible penalties:** Look at the **highest period**
      - *Prision correccional maximum → prision mayor minimum* = **grave felony**, because the highest period is *prision mayor minimum*, which is afflictive.
    - **Two periods of afflictive penalties:** Still a **grave felony**.
      - *Prision mayor medium → maximum* = grave.
      - *Prision mayor maximum → reclusion temporal minimum* = grave.
  - **Afflictive penalties under Art. 25**
    - **Reclusion perpetua**
    - **Reclusion temporal**
    - **Prision mayor**
    - **Perpetual/temporary absolute disqualification**
    - **Perpetual/temporary special disqualification**

- **3. Penalties in which their maximum period are correctional = Less Grave Felony**

  A felony is **less grave** when the **highest penalty prescribed is a correctional penalty**.

  The trick is simple: **look at the highest penalty in the range.**

  1. Different penalties

  Arresto menor → Destierro

  - Arresto menor = light
  - Destierro = correctional
  - Highest = **correctional → LESS GRAVE**

  2. Different periods

  Arresto menor maximum → Destierro minimum

  The higher end is **destierro minimum**, which is correctional. → **LESS GRAVE**

  3. Both are correctional

  Destierro → Arresto mayor

Both are correctional penalties. → **LESS GRAVE**

Correctional penalties to memorize

Prision correccional
Arresto mayor
Suspension
Destierro

- **4. Penalty of arresto menor or a fine not exceeding P40K or both is provided = Light Felony.**

When a felony is punishable by a **fine**, classify it according to the amount:

- **Fine not exceeding ₱40,000 → Light felony**
- **Fine exceeding ₱40,000 but within the correctional range → Less grave felony**
- **Fine exceeding the correctional range → Grave felony**

Important: When there appears to be a conflict between **Art. 9** and **Art. 26**, **Art. 9 governs the classification of the felony** because Art. 9 specifically classifies **felonies according to gravity**, while Art. 26 generally classifies **penalties according to their amount**.

Example: A felony punishable by a **fine not exceeding ₱40,000** is a **light felony**, even if Art. 26's general classification of fines might suggest otherwise.

The afflictive penalties in accordance with Article 25 of this Code are:

Reclusion perpetua, 20y 1d - 40y

Reclusion temporal, 12y 1d - 20y

Perpetual or temporary absolute disqualification,

Perpetual or temporary special disqualification,

Prision mayor. 6y 1d - 12y

3. *"Penalties which in their maximum period are correctional."*

Less grave felonies

When the penalty prescribed for the offense is composed of two or more distinct penalties, the higher or highest of the penalties must be a correctional penalty.

Example: A felony punishable by *arresto menor* to *destierro* (banishment) is a less grave felony, because the higher of the two penalties prescribed, which is *destierro*, is a correctional penalty. *Arresto menor* is a light penalty.

If the penalty prescribed is composed of two or more periods corresponding to different divisible penalties, the higher or maximum period must be that of correctional penalty.

Example: A felony punishable by *arresto menor* in its maximum period to *destierro* in its minimum period is a less grave felony, because the higher is a period of a correctional penalty.

If the penalty is composed of two periods of a correctional penalty or of two periods corresponding to different correctional penalties, like *destierro* and *arresto mayor*, the offense for which it is prescribed is a less grave felony.

The following are *correctional penalties*:

Prision correccional, 6m 1d - 6y

Arresto mayor, 1m 1d - 6m

Suspension,

Destierro. - banishment

ART 10. Offenses not subject to the provisions of this code.

Article 10. *Offenses not subject to the provisions of this Code.* - Offenses which are or in the future may be punishable under special laws are not subject to the provisions of this Code. This Code shall be supplementary to such laws, unless the latter should specially provide the contrary.

Q: Are offenses under special laws subject to the Revised Penal Code?

A: Yes, but only in a supplementary sense.

Article 10 has **two clauses**:

1. **First clause : Special law controls**
    - Offenses specifically punished by a **special law are not governed primarily by the RPC**.
    - The special law controls because **special provisions prevail over general provisions**.
    - The RPC does **not supersede** the special law.
2. **Second clause : RPC supplements**
    - The RPC may **fill gaps** in the special law.
    - This applies **unless the special law expressly provides otherwise**.

The reconciliation: There is no real contradiction between the two clauses:

> Special law = controlling law in cases penalties are provided
> RPC = supplementary law

Art. 10 does not mean the RPC is irrelevant to special-law offenses. It means the RPC cannot override / supplant the special law, but its provisions may be used to supplement matters that the special law does not address / cover (See next pages for further notes)

Art. 9: Grave felonies, less grave felonies, and light felonies

Grave felonies — capital punishment, or penalties which are afflictive (Art. 25)
Less grave felonies — penalties in their maximum period are correctional (Art. 25)
Light felonies — penalty of arresto menor (1-30 days) or fine not exceeding ₱40,000 or both

RA 9346 — law revoking death penalty (capital punishment) → reclusion perpetua

★ when considering level of penalty, look at the HIGHEST penalty to describe it. (or if both are afflictive, then obviously still grave)

GRAVE: AFFLICTIVE PENALTIES:
1. Reclusion perpetua
2. Reclusion temporal
3. Perpetual or temporary absolute disqualification → included in afflictive/grave is a fine of ₱1,200,000
4. Perpetual or temporary special disqualification
5. Prision mayors

LESS GRAVE PENALTY: CORRECTIONAL PENALTIES:
1. Prision correccional
2. Arresto mayor
3. Suspension
4. Destierro

LIGHT FELONIES:
NOT EXCEEDING: ₱40,000 (can be exactly this!)
↳ if it is more, then less grave felony.

ART 10: Offense not subject to the provisions of this code

1. "Offenses under special laws are not subject to the provisions of this Code."
   Lex specialis derogant generali: special legal provisions prevail over general ones

2. "the code shall be supplementary" → soul of the article.
   ↳ unless the special law provides the contrary

Special Laws: Any laws not part, defined, or amended by the RPC but penal in character
↳ if penalty is different in special law, the RPC cannot be suppletory
★ EVEN IF the indeterminate sentence is exactly the same, if it does NOT refer to the RPC → RPC CANNOT supplement it.
↳ CANNOT claim "frustrated" or "attempted" under special laws → you get the full sentence unless it is provided by the special law
↳ CANNOT use mitigating/aggravating circumstances because there are no "three periods" provided by the law. The sentence is INDETERMINATE.
↳ NO ACCESSORY PENALTIES
↳ IF the law uses the same technical nomenclature in RPC, then RPC's Indeterminate Sentence Law can be applied (i.e. min/med/max)

SUPPLEMENTARY: provide what is lacking i.e.
→ RETROACTIVE effect (RPC 22), participation of principals (Art. 17), indemnity to heirs (Art. 39), subsidiary imprisonment (Art. 100)
• SUBSIDIARY IMPRISONMENT — e.g. if unable to pay fine for violating BP Blg. 22 (bounced checks) → can penalize with imprisonment instead

IF the Special Law amends the RPC → subject to provisions of such

ARTICLES 7-10 : RPC Reyes Commentary

Art. 7 → LIGHT FELONIES only when consummated EXCEPT if crimes against persons and property (attempted / frustrated)
↳ WHY: wrong is so slight there is no need for a penalty at all if not consummated
→ E.g. slight physical injuries, theft, prostitution, concealing true name, light coercion

Art. 8. Conspiracy and proposal to commit a felony.
↳ only punishable if the law provides for it (e.g. treason, coup de'tat, rebellion)
CONSPIRACY: → two or more persons enter an agreement [&/decide] to commit a [felony]
PROPOSAL: → when person who decides to commit a felony PROPOSES its execution to another person.
↳ follows that preparatory acts CANNOT be punished → innocent / permissible
↳ recall: ONLY DIRECTLY OVERT ACTS can prove the INTENT TO KILL
⇒ nevertheless, existence of a conspiracy acts when the felony is committed by two or more malefactors → even if only one did the killing (aided w/ consummation)
↳ helps determine criminal liability
↳ IF THEY COMMIT TREASON: liable for treason. Conspiracy WILL NOT be a separate offense
↳ in such case: must show unity of purpose and unity in execution of unlawful objective.

Elements of conspiracy
① two/more persons enter an agreement — documents DO NOT prove conspiracy, needs to show the other party received and ACCEPTED the commission
② refers to commission of crime — complaints / discontent is NOT SUFFICIENT
③ made up their minds / decided to COMMIT THE CRIME.
↳ "the act of one conspirator is the act of all" People v. Buntag
☆ BUT: mere presence & relationship ≠ NOT CONSPIRACY — must commit acts for the furtherance of the crime

Elements of proposal (or when there is no proposal)
① Person who proposes is not determined to commit a felony — IF JUST A SUGGESTION, NOT a proposal & A decides NOT to do felony
② There is no decided, concrete, formal proposal — JUST A SUGGESTION
③ It is not the execution of the felony that is proposed — IF A PROPOSAL IS just for the preparatory acts — NOT THE CRIME ITSELF.

EVEN IF rebellion desists — crime of proposal to rebellion ALREADY EXISTS / CONSUMMATED
↳ moreover, DOES NOT MATTER if the person DISAGREES →
• if accepted, may be liable for conspiracy to start a rebellion

☆ CORRUPTION OF PUBLIC OFFICER — proposal ALREADY MAKES ONE LIABLE for at least attempted → act has already begun.

⇒ GENERALLY → crimes that conspiracy & proposal are punishable after: against NATIONAL / STATE SECURITY
• Treason — internal
• Coup de'tat, rebellion, sedition (incite rebellion) — external

Art. 9: Grave felonies, less grave felonies, and light felonies

Grave felonies — capital punishment, or penalties which are afflictive (Art. 25)
Less grave felonies — penalties in their maximum period are correctional (Art. 25)
Light felonies — penalty of arresto menor (1-30 days) or fine not exceeding ₱40,000 or both
RA 9346 — law revoking death penalty (capital punishment) → reclusion perpetua

☆ When considering level of penalty, look at the HIGHEST penalty to describe it. (or if both are afflictive, then obviously still grave)
GRAVE: AFFLICTIVE PENALTIES:
① Reclusion perpetua
② Reclusion temporal
③ Perpetual or temporary absolute disqualification → included in afflictive/grave is a fine of ₱1,200,000
④ Perpetual or temporary special disqualification
⑤ Prision mayors

LESS GRAVE PENALTY: CORRECTIONAL PENALTIES:
① Prision correccional
② Arresto mayor
③ Suspension
④ Destierro

LIGHT FELONIES: (can be exactly this!)
NOT EXCEEDING: ₱40,000
(if it is more, then less grave felony.

ART 10: Offense not subject to the provisions of this code
① "offenses under special laws are not subject to the provisions of this Code."
Lex specialis derogant generali: special legal provisions prevail over general ones
② "the code shall be supplementary" → soul of the article.
Gunless the special law provides the contrary

Special Laws: Any laws not part, defined, or amended by the RPC but penal in character
(if penalty is different in special law, the RPC cannot be suppletory
☆ EVEN IF the indeterminate sentence is exactly the same, if it does NOT refer to the RPC → RPC CANNOT supplement it.
↳ CANNOT claim "frustrated" or "attempted" under special laws → you get the full sentence unless it is provided by the special law
↳ CANNOT use mitigating / aggravating circumstances because there are no "three periods" provided by the law. The sentence is INDETERMINATE.
↳ NO ACCESSORY PENALTIES
↳ IF the law uses the same technical nomenclature in RPC, then RPC's indeterminate Sentence Law can be applied (i.e. min/med/max)

SUPPLEMENTARY: provide what is lacking i.e.
→ RETROACTIVE effect (RPC 22), participation of principals (Art. 17), indemnity to heirs (Art. 39), subsidiary imprisonment (Art. 100)
• SUBSIDIARY IMPRISONMENT — e.g. if unable to pay fine for violating BP Blg. 22 (bounced checks) → can penalize with imprisonment instead

IF the Special Law amends the RPC → subject to provisions of such

REYES COMMENTARY - ARTICLE 11. Par. 1.

CODAL PROVISION.

Article 11. *Justifying circumstances.* - The following do not incur any criminal liability:

1. [PAR 1] Anyone who acts in defense of his person or rights, provided that the following circumstances concur;
    a. First. *Unlawful aggression*;
    b. Second. *Reasonable necessity* of the **means employed to prevent or repel it;**
    c. Third. *Lack of sufficient provocation on the part of the person* **defending himself**.

2. [PAR 2] Any one who **acts in defense** of the *person or rights of his spouse, ascendants, descendants, or legitimate, natural or adopted brothers or sisters, or of his relatives by affinity in the same degrees, and those by consanguinity within the fourth civil degree,* provided that the first and second requisites prescribed in the next preceding circumstance **are present**, and the further requisite, in case the provocation was given by the person attacked, **that the one making defense had no part therein**.

3. [PAR 3] **Anyone who acts in defense of the person or rights of a stranger**, *provided that the first and second requisites mentioned in the first circumstance of this article are present* and that the person defending be not induced by revenge, resentment, or other evil motive.

4. [PAR 4] Any person who, **in order to avoid an evil or injury**, does an act which causes damage to another, *provided that the following requisites are present*;
    a. First. That the *evil sought to be avoided* **actually exists**;
    b. Second. That *the injury feared be greater* than **that done to avoid** it;
    c. Third. That *there be no other practical and less harmful means* of preventing it.

5. [PAR 5] Any person who acts **in the fulfillment of a duty or in the lawful exercise** of a right or office.

6. [PAR 6] Any person who acts **in obedience to an order issued by a superior** for *some lawful purpose*.

REYES COMMENTARY.

Preliminaries.

- There is no crime committed, if the **act is justified.**
- **Burden of Proof**: the person invoking self defense **must prove in court that his acts were justified.**
    - Should an accused admit to the act (justifying circumstance) but nonetheless fail to justify/prove it, he risks being convicted for a crime.
- **Self Defense:** must be proved with certainty and convincingly; **must show evidence of no criminal aggression** on the part of hte person invoking it.
- **How is criminal liability eliminated under circumstances of Justifying Circumstances?**
    - **An act which would be ordinarily considered a felony is now a lawful act.**
    - **Justifying circumstances renders a criminal act into an act which is lawful**
    -

I. PAR. 1. SELF DEFENSE.

Preliminaries.

- Self Defense includes not only the defense of one's life person and body but also of his rights, which are protected by law, such as those to property and honor.
- Self defense is inherent in one's natural instinct to protect oneself from imminent danger.

First Requisite of Self Defense: UNLAWFUL AGGRESSION:

- ***There must be unlawful aggression on the part of the person injured / killed by the accused. (accused = person defending himself)***
    - No unlawful aggression = nothing to prevent = no basis for self defense.
    - It is necessary that the person defending himself is attacked, or at least be threatened with an attack in an *immediate and imminent* matter.

- Types of Aggression.
    - Lawful = the fulfillment of a duty or exercise of a right in a more or less violent manner is a lawful aggression.
        - Ex: Police fired warning shots at an escaped detainee, and then pointed the gun at the detainee because he feared that hte detainee would escape.
        - Ex: Civil code: a person may use force or violence to protect his proprety.
        - Ex: a Kabit surprised in the act of adultery cannot invoke self defense if he killed the offended husband who assaulted him.
    - Unlawful aggression. (See next bullet points.)

- **Meaning of Unlawful Aggression.** The following shows the meaning of unlawful aggression.
    - Unlawful Aggression = **actual assault or threatened assault of an imminent and immediate kind**.
    - There is an unlawful aggression when teh peril against one's life or limb or right is **either actual or imminent.**
    - It cannot consist of oral threats, or merely a threatening stance or posture.
    - In case of threats, it must be offensive and positively strong, showing the wrongful **intent** to cause an injury.
    - Unlawful aggression presupposes actual, sudden, imminent, or unexpected danger, not merely threatening or intimidating action.
    - Unlawful aggression = must come from teh person who was attacked by the the person invoking self defense.

- **Re: Peril.**
    - **Peril to one's life.**
        - Actual - danger must be present and actual in existence.
            - Ex: US v Jose Laurel - Laurel was confronted by Exequiel Castillo after Laurel had kissed Concepcion Lat, and Castillo attacked Laurel with a cane. Laurel defended himself with a pocketknife, causing injuries to Castillo. The Court acquitted Laurel, finding **complete self-defense** because Castillo committed **unlawful aggression**, the knife was a **reasonably necessary means of defense**, and Laurel had given **no sufficient provocation** for the assault.

        - Imminent: danger is in **the point of happening / materializing. It is NOT REQUIRED that hte attack already begins**, for it may be too late.
            - Ex: People v Cabungcal - During a boat ride, Juan Loquenario repeatedly rocked the boat despite warnings, endangering the passengers, including Cabungcal's wife, child, and a nursing infant. Cabungcal struck Loquenario twice with an oar to stop him, and Loquenario ultimately drowned when the boat capsized. The Court acquitted Cabungcal, holding that he acted in **lawful defense of the lives of the passengers**, and the means employed were reasonably necessary given the **immediate danger of the boat capsizing**.
    - **Peril to one's limb.**
        - The "Peril" is directed to other parts of the body which may not necessarily cause death, but only injury. In this case, the perils is also actual or imminent peril.
        - Includes peril to safety of one's person from physical injuries.
            - Ex: An attack with fist blows, although may not be necessarily fatal, may imperil on'e safety from physical injuries, thus is an unlawful aggression.

- **Any person defending himself must have been attacked with ACTUAL PHYSICAL FORCE or with ACTUAL USE of WEAPON.**
    - Insulting someone = not an unlawful aggression, since there is no physical assault
    - Light push on the head with a hand = not an unlawful aggression
    - Mere push / shove, not followed by other acts = not an unlawful aggression
    - Foot kick greeting = not an unlawful aggression.
    - **Slap on the face = unlawful aggression.**
    - Act of pulling something out of jacket = no unlawful aggression
    - Strong retaliation for an injury or threat = **may amount to unlawful aggression.**
        - When a person who was insulted, slightly injured or threatened makes **a strong retaliation,** that person becomes the offender.

- **Note: RETALIATION IS NOT SELF DEFENSE. IT IS NOT A JUSTIFYING CIRCUMSTANCE**
    - **Retaliation =** aggression that was begun by the injured party had **already ceased to exist**.
        - If A merely inflicts **slight physical injuries** on B, without intending further harm, and **B later attacks A in retaliation**, B is the **unlawful aggressor**. A's earlier act is already over; B's response is retaliation, not self-defense.

- **Self Defense =** aggression **WAS STILL EXISTING/ONGOING/** when the aggressor was injured or disabled by the person making a defense.
    - If A is **about to punch** B, that fist attack constitutes **unlawful aggression**. B may use a knife to stop or repel the attack, even though a knife is much more dangerous than a fist, **provided the knife was reasonably necessary under the circumstances**.
- *If unlawful aggression ceases = defender no longer has right to kill or wound the former aggressor.*

- **Re: Timeline of the self-defense (or retaliation)**
    - **Attack and defensive act must succeed each other without appreciable interval.** (U.S. v. Ferrer)
    - If the accused had **time to deliberate and coolly think**, the killing is **retaliation**, not self-defense.
        - **People v. Arellano:** Gun fell after accused grabbed deceased's hand, but aggression was still considered continuing because the accused had **no time to deliberate** and had to act immediately to save himself.
    - **Key test:** Was there an appreciable opportunity for **cool thinking and deliberation**?
- **Unlawful aggression must come from the person attacked by the accused.** (*People v. Gutierrez*)
    - If the aggression came from **another person**, it cannot satisfy the unlawful-aggression element of self-defense.

- **Re: Circumstances that can belie the claim of self defense**
    - **Nature, location, number, and severity of wounds** may belie self-defense. (*People v. Ganut; Batas*)
    - **Numerous or severe wounds** may indicate the accused was the aggressor rather than merely defending himself. (*Panganiban* — 19 wounds; *Batas* — 21 wounds)
    - **Wound direction/location** may contradict the accused's version of events. (*People v. Labis*)
    - A **small or questionable wound on the accused** is insufficient by itself to prove aggression. (*People v. Mediavilla*)
    - **Improbability of the victim being the aggressor** may also defeat self-defense. Consider the victim's **age, physical condition, weapons, and circumstances**. (*Diaz; Ardisa*
    - Physical fact may determine whether the accused acted in self defense.
        - Ex: accused claims he stabbed the aggressor in the front, but the wounds were on the back. This belies the claim of self defense.

- **Re: If an accused refused to give any statement when he surrenders to teh authorities *is inconsistent with plea of self defense - it should have been in his confession.***

- **Re: When there is, or there is not an unlawful aggression**
    - **Present:**
        - **Unlawful aggression is present** when, even after the aggressor has been disarmed, still posed a threat to the lives of the person invoking self defense.
    - **Not Present:**
        - **Unlawful aggression is not present** when the aggressor flees or runs away.
            - EXCEPT: When the aggressor **retreats to a more advantageous position to carry out the attack.**

        - Unlawful aggression is not present when there is **an agreement to fight. The challenge to the fight must also be accepted.**
            - Each of the parties was at once an assailant and assaulted; neither can invoke self defense. There is no unwarranted and unexpected aggression.
            - **HOWEVER, if the aggression was AHEAD of the stipulated time (aka ahead of the agreed time of the fight), there is lawful aggression.**
                - Ex: A challenged B to a fight outside a station. Both agreed. A got up first, and while on the way to the outside of the station, B struck him with a bolo. B therefore is the unlawful aggressor.
            - **One cannot claim self defense when he voluntarily joins a fight**

- **Re: Rule on 'Stand ground when in the right'**
    - **No duty to retreat** when the accused is **lawfully present** and is being attacked. (*U.S. v. Domen*)
    - The accused may **stand his ground and defend himself** against an advancing assailant with a deadly weapon.
    - Rationale: Retreat may expose the accused to **greater danger**, including being attacked from behind.

- **Re: HOW TO DETERMINE UNLAWFUL AGGRESSOR**
    - **Absent direct evidence**, courts may infer who initiated the aggression from the **circumstances and motives**. (*U.S. v. Laurel*)

- Generally, the person **deeply offended by an insult** may be presumed to have the right to demand an explanation; if dissatisfied, **striking the first blow** makes him the aggressor.
- **Motive can also rebut self-defense:** if circumstances show the accused had the **stronger motive to commit the crime**, his claim of self-defense becomes doubtful. (*People v. Berio*)
- **tldr:** Determine **who actually initiated the unlawful aggression**, using the surrounding circumstances when direct evidence is lacking.

- **Re: Unlawful aggression in defense of other rights.**
  - **Defense of woman's honor**. Attempted rape / rape = constitutes an unlawful aggression. It puts the woman in a state of legitimate self defense. Thus, the woman may kill her offender if that is the only means left for her to protect her honor.
  - **Defense of property.** Art 429 of civil code; the owner or lawful possessor of a thing… may use such force as may be reasonably necessary to repel or prevent an actual or threatened unlawful physical invasion or usurpation of his property.
    - Assault on one's property = unlawful aggression.
  - **Defense of home. Violent entry into a home may constitute unlawful aggression**, especially when the intruder is **armed and forces his way inside**. (*People v. Mirabiles*)
    - The homeowner **need not wait to be struck first** if the circumstances show an immediate danger of serious harm.
    - **Nighttime intrusion + armed intruder + overt aggression** strongly supports the homeowner's claim of self-defense.

- **Re: belief of the accused in Self Defense:**
  - The accused's **reasonable belief of imminent danger** may establish unlawful aggression.
    - **U.S. v. Ah Chong:** A person need not wait to determine whether an apparent weapon is actually loaded before defending himself.
  - **Idea:** Self-defense is judged from the **circumstances as reasonably perceived by the accused at the time**, not solely from what is discovered afterward.'
  - **There is self defense even if the aggressor used a toy pistol *provided the accused believed it was a real gun.***

- **THREAT TO INFLICT REAL INJURY AS UNLAWFUL AGGRESSION**

  - A *mere threatening attitude*, *not preceded by an outward and material aggression*, **is not an unlawful aggression** because it is <u>required that the acct be **offensive** and **positively strong**</u>, **SHOWING THE WRONGFUL INTENT** of the aggressor to cause an injury.

  - Examples of threats to inflict real injury. The threatening attitudes of the aggressor in the examples below is offensively and positively strong, showing the wrongful intent.
    - When one aims a gun at another with the intention of shooting him
    - Act of a person retreating two steps and placing his hand in his pocket indicating his purpose to commit an assault with a weapon
    - Zvt of opening a knife, **and making a motion** as if to make an attack.

  - **When intent to attack is IMMINENT, picking up a weapon = unlawful aggression.** It must be preceded by circumstances indicating the intention of the deceased to use it in attacking the defendant.
    - Ex: **Ex:** B picks up a bolo, raises it, and advances toward A.
      → Shows intent to attack
      → **Unlawful aggression**
      → A may defend himself.
    - **But:** B merely picks up the bolo.
      → No threatening act/intent shown
      → **No unlawful aggression yet.**

- **Re: Aggression (Real / imaginary / expected)**
  - **Aggression must be real not merely imaginary.**
    - Ex: **Real:** B raises a knife and moves toward A → A strikes B → **Self-defense.**
    - **Imaginary:** A thinks B will attack him, but B does nothing → A attacks B → **No self-defense.**
    - **Expected:** B says, "I'll beat you up tomorrow." → A attacks B today → **No self-defense**
  - **Expected aggression can be real** if it is **imminent**.

    - **Ex:** B chases A with a bolo, clearly intending to strike him.
      → A need not wait for the bolo to hit.
      → A may defend himself **before the blow is delivered**.
      → *U.S. v. Batungbacal*

- **A public officer exceeding his authority may become an unlawful aggressor.**

- Ex: A owns a fishing net -> repelled a seizure by a police officer without an order from the court -> police officer acted outside his authority -> police officer is unlawful aggressor (People v Tilos)

Second Requisite of Self Defense: REASONABLE NECESSITY OF THE MEANS EMPLOYED TO PREVENT OR REPEL IT:

- Presupposes that an unlawful aggression exists, whether actual or imminent.
  - Imminent unlawful aggression = Threat of real injury = PREVENT.
  - Actual unlawful aggression = physical assault = REPEL
- **2nd requisite has 2 requirements:**
  - **REQ'T 1. Necessity of the course of action** → Was defense necessary?
  - **REQ'T 2. Necessity of the means used** → Was the method/weapon reasonably necessary?
  - → **Both must be reasonable**, considering the **nature and extent of the aggression**.

- **Doctrine of rational equivalence**
  - **Rational equivalence** → The means of defense need not be **equal** to the means of attack.
  - What matters is whether the means used were **reasonably necessary** to prevent or repel the aggression, considering the **nature, character, and extent of the attack**.
    - **Ex:**
      B attacks A with his fists → A uses a knife.
      → Not literally equivalent.
      → But if necessary under the circumstances to stop the attack → **may be self-defense.**
    - **Key: Reasonable ≠ identical/equal.**

- **Instance of Self Preservation**
  - **Emergency → instinct takes over → person acts to protect life**
    - → Courts recognize that a person under immediate danger **may not act with normal calmness or deliberation**.
    - → If the act is a **reasonable response to the danger**, the law may excuse/justify the resulting harm.

- ***REQ'T 1: NECESSITY OF COURSE OF ACTION TAKEN:***
  - **the place and occasion of the assault and other circumstances are to be considered.**
    - **Place and occasion of assault considered.**
      - Ex: in the dark of night, similar to Ah Chong.
    - Darkness of the night and the surprise which characterized the assault considered.
      - Ex; Accused was walking alone at night in the dark street with a pistol and was suddenly attacked, he was justified in shooting the aggressor in view of the darkness and the surprise of the assault.

  - Example of no necessity of the course of action taken. **Rule:** Defense must stop when the **danger ends**. (Danger exists = defend, else, stop)
    - Aggressor **runs away** → no need to pursue/kill. (*Alconga*)
    - Aggressor **disarmed** → continued stabbing is unnecessary. (*Masangkay*)
    - Aggressor **already incapacitated** → killing is no longer necessary. (*U.S. v. Rivera*)
    - Picking up a weapon to **keep an aggressor at bay** may be justified → striking with it may not be if there is no real danger. (*U.S. v. Pasca*)
    - **Property invasion** may be resisted → but resistance must still be **reasonable**; killing two people by shotgun was disproportionate. (*People v. Narvaez*)

- ***REQ'T 2: NECESSITY OF MEANS USED. =*** *means employed by the person making a defense must be rationally necessary to prevent or repel the aggression.*
  - Court considers nature and quality of the weapon used by the aggressors, physical condition, character size, and other circumstances.
  - **Rational equivalence** is required, not material equality → Consider the **danger faced**, not merely the **harm actually caused**.

    - 1. Nature and Quality of the weapons. **General rule:** Different weapons can still be **rationally equivalent**. Consider the circumstances.
      - **Knife/dagger vs. club/stick/rod** → May be reasonable if:
        - no other available means; **OR**
        - no opportunity to calmly choose a less deadly means. (*Padua; Laurel; Romero*)
      - **Bayonet vs. cane** → **Not reasonable** where simply drawing the bayonet or warding off blows was sufficient. (*Onas*)

- **Dagger vs. wooden pestle** → Reasonable where aggressor was **persistent and known to be violent**. (*Ramilo*)
- **Bolo vs. thrown stones** → May be reasonable if the aggressor is **large, strong, and a skilled fighter**. (*Aguilario*)
- **Revolver vs. bolo** → Reasonable where aggressor is **advancing within striking distance**. (*U.S. v. Mack*)
- **Pistol vs. balisong** → Reasonable where the knife poses a **deadly threat**. (*Maliwanag*)

- 2. Physical Condition, Character, Size. Ex:
  - Middle aged person used a knife in defending himself against 4 men who were stronger.
  - Smaller man attacked a larger, aggressive man (woh used his fistss) with a bolo, thereby killinbg him, it was justified.,
  - A used his gun agasinst B who was drunk and was known to be a bad character in general

- 3. Other circumstances considered.
  - A was chasing B's son with a bolo. B got a shotgun and killed A to prevent thethe aggression that would kill his son.

- **Examples of no reasonable necessity:**
  - **Apego:** Man merely grasped woman's arm -> **no imminent threat to honor** -> knife killing **unreasonable**.
  - **Montalbo:** Attacked with fists -> dagger causing mortal wound **unnecessary** -> should use fists.
  - **Jaurigue:** Man touched woman's thigh in a crowded, well-lit chapel -> could stop him, but **no need to kill with a knife**.

- **Other factors.**
  - **Reasonable necessity of the means employed, when aggressor is disarmed.**
    - **Ex:** A was disarmed by B after A seriously wounded B. B used a bolo to disarm A, which was reasonable, since B was losing strength due to blood losts.
  - **When only minor physical injuries are inflicted after unlawful aggression has ceased to exist, tehre is still self defense IF MORTAL WOUNDS WERE INFLICTED AT TEH TIME THE REQUISITES OF SELF DEFENSE WERE PRESENT.**
    - Ex: A attacked B with a bolo. During the attack, B inflicted mortal wound on A. After the attack had ceased, B inflicted minor wounds on A. The minor wounds should not affect the benefit of complete self defense since the mortal wound were inflicted during A's attack on B.

  - **The person defending is not expected to control his blow.**
    - Defense of a person or rights =/= killing of unlawful aggressor
    - BUT the person defending himself cannot be expected to think clearly to control his blow.
    - The killing of the unlawful aggressor may still be justified as long as the mortal wounds **are inflicted at a time when the elements of complete self sefense are present.**

  - **In repelling or preventing an unlawful aggresion, the one defending mUST AIM AT HIS ASSAILANT and NOT INDISCRIMINANTLY FIRE HIS DEADLY WEAPON.**

  - **Reasonable necessity of means employed to prevent or replel unlawful aggression = should be liberally construed in favor of law abiding citizens.**

- **Necessity of means employed when the one defending himself is a police officer.**
  - A police officer in his performance of his duty must stand his ground and cannot, like a private individua, take refuge in flight. His duty requires him to overcome his opponent. Therefore, the force which hemay exert therefore differs somewhat from the ordinary self defense.
  - Policeman inflicted a fatal gunshot on wounds of a person who attacked him with a bolo used a necessary and reasonable means to repel the attack.
  - Not reasonable for a policeman to kill the assailant who has a harmless weapon.

- **IMPORTANT: THE FIRST TWO REQUISITES ARE COMMON TO SELF DEFENSE, DEFENSE OF A RELATIVE, AN DDEFENSE OF A STRANGER.**
  - **THESE THREE KINDS OF LEGITIMATE DEFENSE *DIFFER ONLY IN THE THIRD REQUISITE.***

Third Requisite of Self Defense: LACK OF SUFFICIENT PROVOCATION ON THE PART OF THE PERSON DEFENDING HIMSELF.

- When a person defending himself from attack from another person **GAVE PROVOCATION TO THE LATTER**, the *former is also to be blamed for having CAUSED the aggression.*
    - Hence, the person defending himself **MUST NOT HAVE GIVEN CAUSE** for the aggression by his *unjust conduct or inciting or provoking the assailant.*

- **Cases in which teh third requisite are considered present:**
    - When **no provocation at all** was given by the person defending himself
        - Ex: A shoots B → B was rushing at A with a dagger intending to stab → **3rd requisite present.**

    - When, *even if a provocation was given, **it was not sufficient***
        - Ex: A asks B why he built a fence on A's land → B gets angry and attacks A → A defends himself → A's question was **not sufficient provocation**. (*U.S. v. Pascua* → **3rd requisite still present.**

    - **When,** even *if the provocation was sufficient, **it was not given by the person defending himself,***
        - **Provocation by a third person** → does **not** defeat self-defense. (*Balansag*)
        - The requirement applies **only to the person claiming self-defense**.
        - If accused is the **aggressor** → cannot claim self-defense. (*Espino*)
        - *Alconga:* Accused was defender in **1st stage**, but became aggressor in **2nd stage** → cannot use the victim's earlier attack as provocation.
        -

    - When, even if the *provocation was given by the person defending himself,* **it was not a proximate and immediate act to the aggression.**
        - **Provocation must be immediate/proximate to the aggression.**
        - Ex: A slaps B **2 days earlier** → B later attacks A → old provocation is disregarded → 3rd requisite present.
        - Ex: *U.S. v. Laurel:* Kissed aggressor's girlfriend. On Dec. 26 → attacked Dec. 28 → too remote → no **sufficient provocation**.

    - TLDR. there must either be: no provocation at all, insufficient provocation, provocation given by another person, or provocation was not a proximate cause to teh aggression.

- **How to determine sufficiency of provocation**
    - Provocation **must be sufficient** which means that it should be **proportionate to the act of aggression and adequate to stir the aggressor to its commission.**
        - Ergo, engaging in verbal argument = NOT sufficient provocation
    - "Is it necessary taht the provocation to be sufficient that the one who gave it must have been guilty of using violence and thus becoming an unlawful aggressor himself" -> NOT NECESSARY.
    - **Rule:** Provocation must be **proportionate to the aggression** and **adequate to provoke the aggressor**. (*Alconga*)
        - **Verbal argument alone** → generally **insufficient**.
        - **Challenge to fight** → sufficient provocation. (*McCray; Valencia*)
        - **Insults/vulgar language** → may be sufficient. (*Sotelo*)
        - **Petty annoyance/pride** → insufficient. (*Dolfo*)
        - **Forcibly attempting to kiss someone's sister** → sufficient provocation. (*Getida*)

- **Example of three requisites of self defense.**
    - **People v. Dolfo: All 3 requisites present → B acquitted.**
        - A threw a piece of wood at B → **unlawful aggression**.
        - B threw it back → A continued attacking B → **aggression continued**
        - B used a screwdriver → **reasonable means under the circumstances**.
        - B's "Why are you calling me?" → annoying, but **not sufficient provocation**.
    - **People v. Boholst-Caballero**
        - Husband choked wife → **unlawful aggression**.
        - Wife stabbed him with a knife within reach → **reasonably necessary given the imminent danger**
        - Wife gave **no sufficient provocation**.

- **Flight is INCOMPATIBLE with self defense.**
- **Battered Woman Syndrome as a defense**
    - Victim-survivors who are found by the courts to be suffering from battered women syndrome do not incur criminal and civl liability, so long as the elements of self defence and its justifyign circumstances are present.

- Definition: Battered woman = a woman who is subjected to repeated physical and psychological abuse by the husband in order to coerce her to do anything he wants without concern for hte wife.
- Cycle of violence;
    - 1. Tension building - Minor battering occurs, whether verbal or slight physical abuse. Woman tries to pacify by staying out of his way / nurturing behavior.
    - 2. Acute battering incident: characterized by brutality, destructiveness, and sometimes death. Wife has no controcl, and only hte batterer may end the violence.
    - 3. Non violent phase. Batterer may show tender nurturing behavior may be due to remors, nad hte battered woman thinks the man will change for hte better,
- Effect on appelant.
    - The battered woman believes that she is somehow responsible for the violent behavior of her partner
    - She believes that he is capable of killing her and that there is no escape
    - Women feel unsafe, suffer from anxiety, nad fail to leave the relationship.

Paragraph 2 – Defense of Relatives

1. Spouses
2. Ascendants
3. Descendants
4. Legitimate, natural or adopted brothers and sisters
5. Relatives by **affinity** in the same degrees
    a. In-laws (by marriage)
    b. The relationship survives the death of either party
6. Relatives by **consanguinity** within the fourth civil degree (**blood relatives**)
    a. 1st civil degree: parents and children + spouses
    b. 2nd civil degree: brothers and sisters + grandparents and grandchildren
    c. 3rd civil degree: uncles, aunts, nephews and nieces
    d. 4th civil degree: first-degree cousins

Requisites

1. Unlawful aggression;
    a. There must have been **an attack or material aggression**, and not mere threat/intimidation.
    b. Unlawful aggression **need not exist as a matter of fact**, it can depend on the **honest belief** of the one making a defense that there was unlawful aggression (a *mistake of fact*).
2. Reasonable necessity of the means employed to prevent or repel it; and
3. In case the **provocation** was given by the person attacked, the one making a defense **had no part in the provocation**.
    a. "In case" = "in the event" **The victim could or could not have given provocation**. Regardless, the one defending their relative **should have NO PART** in the provocation.
    b. The defender must **NOT** have been motivated by revenge, resentment, or other evil motive.

Paragraph 3 – Defense of Strangers

- This includes **close friends** or a **distant relative** (outside of the fourth civil degree).
- Requisites:
    1. Unlawful aggression;
    2. Reasonable necessity of the means employed to prevent or repel it; and
    3. The person defending is *not induced by revenge, resentment, or other evil motive*.
        a. The defender must have a disinterested or generous motive. He must not have been prompted by evil intent, **even if there is a standing grudge**.
- When one provides a **weapon** to the victim (stranger), it is a defense of stranger.
    - ***US v. Subingsubing***: A Japanese hit an old man and shoved him to the ground and attempted to choke him. The **accused** furnished a weapon to the old man, who used it to kill the assailant. **"The accused is justified in furnishing the old man with the gaff, it being in defense of stranger."**

Paragraph 4 – Avoidance of Greater Evil or Injury

1. "*Damage to another*"
    a. It must be damage against **person** or **property**.
2. "*That the evil sought to be avoided actually exists.*"
    a. The evil must actually be real. It cannot be an evil that is expected or anticipated.
    b. Example 1: a person driving a car has two choices when avoiding an incoming truck: 1) swerve to the left and fall into a precipice, or 2) swerve to the right and kill a passerby. **He was forced to choose between losing his life or the life of an innocent bystander. <u>He chose the latter.</u>**
    c. Example 2: the killing of the fetus to save the life of the mother may be held excusable.
3. "*That the **injury feared** be **greater** than the **injury done** to avoid it.*"
    a. The instinct of ***self-preservation***: to save one's self over that of the other.

- The greater evil should not be brought about by the negligence or imprudence of the actor.
- This cannot be used as a justifying circumstance **if there is no avoidance of a greater evil or injury**.
    - ***People v. Ricohermoso***: Pio and Severo attacked Geminiano who was wounded. Jose embraced Marianito, Geminiano's son, who had a gun. Geminiano died. P, S and J were prosecuted for murder. **Juan cannot invoke the justifying circumstance of avoidance of a greater evil or injury** because his grappling of Marianito was designed to ensure the killing of Geminiano without any risk to his assailants. Even if Marianito was about to shoot Pio and Severo, **his act (a defense of relative) is not an evil that could justifiably be avoided by disabling Marianito**.
- The evil done must not result from a violation of the law.
    - Example: an escaped convict who has to **steal clothes** to move about unrecognized **does not act from necessity**.
- Even if there is no criminal liability, **one can still be held civilly liable**.

Paragraph 5 – <u>Fulfillment of Duty</u> or the Lawful Exercise of <u>Right</u> or <u>Office</u>

- Requisites
    1. That the accused acted in the **performance of a duty** or in the **lawful exercise of a right or office**.
    2. That the **injury caused/offense committed** be the **necessary consequence** of the due performance of duty or the lawful exercise of such right or office.
- For the fulfillment of a duty.
    - ***People v. Felipe Delima***: the act of the policeman of killing an escaped convict does not incur him criminal liability in this case because **the killing was done in the performance of a duty** – the deceased was obligated to surrender and had no right to assault the police officer.
- For self-defense, absolute necessity, or when the offender refuses to surrender.

<u>Not included: an illegal performance of the duty.</u>

- Shooting a **thief** who refused to be arrested is **not justified**.
    - ***People v. Bentres***: the security guard did act in the performance of his duty, **but he exceeded the fulfillment of his duty by shooting the deceased**. He fired four shots in the air to scare the thief, but he fired a fifth shot that killed the thief (because the thief continued to flee).
    - ***People v. Oanis***: the act of killing should have been the last resort; unnecessary force was used and there was a resort to dangerous means when the arrest could be effected otherwise (**they did not have to shoot the man immediately; they had the time to check for his identity**).
- ***People v. Tan***: the putting of hands of the deceased in his pockets **does not justify** his killing. The policeman should have not mercilessly shot the deceased upon a **mere suspicion** that he was armed.
- ***People v. Peralta***: the appellant was **not in the performance of his duties** when he shot the girls he was attempting to arrest; they were **not** engaging in prostitution in his presence. **Their fatal injuries were not a necessary consequence of the appellant's performance of duty** (he shot them twice).

<u>Lawful exercise of right.</u>

- If in **protecting his possession** of the property he **injured** (although not seriously) the one trying to get it from him, he is justified under this paragraph.

    - Unlawful aggression is **unnecessary** in this case. If there is unlawful aggression against the person charged with the protection of the property, then Art. 11 par. 1 applies, it being a defense of right to property.
- If it is a **mere disturbance of possession**, force may be used against it at any time as long as it continues, even beyond the prescriptive period for an action of forcible entry.
    - If a ditch is opened by A in the land of B, the latter may close it or cover it by force at any time.
- If the invasion consists of a **real dispossession**, force to regain possession can be used only immediately after the dispossession.
    - If B, without the permission of A, picks up a book belonging to A and runs off with it, A can pursue B and recover the book by force.
- If the **property is immovable**, there should be **no delay** in the use of force to recover it. Once the usurper's possession has become **firm by the lapse of time**, the lawful possessor must resort to the **competent authority** to recover his property.

Lawful exercise of office.

- A **surgeon** who amputates the leg of a patient to **save him from gangrene** is not liable for the crime of mutilation, as he was acting in the **lawful exercise of his office**.

Paragraph 6 – Obedience to an order issued for some lawful purpose.

- Requisites
    1. The **order** was issued by a **superior**.
    2. The order must be **for some lawful purpose**.
    3. The **means** used by the subordinate to carry out the order is **lawful**.
- When the order is **not for a lawful purpose**, the subordinate who obeys it is **criminally liable**.
    - ***People v. Barroga***: one who prepared a **falsified document** with *full knowledge* of its falsity is **not excused** even if he merely acted in obedience to the instruction of his superior, **because the instruction was not for a lawful purpose** (and he **knew** it).
- The subordinate is **NOT LIABLE** for carrying out an illegal order if **he is not aware of the illegality of the order**.
    - ***Tabuena v. Sandiganbayan***: Tabuena acted under the honest belief that the P55 million was a due and demandable debt and that it was just a portion of a bigger liability to PNCC. He was told to disburse the amount under the **MARCOS Memorandum**, which was actually unlawful.

PEOPLE V. BOHOLST-CABALLERO (1974)

Topic | Subtopic	Justifying Circumstances | Self-defense	GR No. & Ponente	G.R. No. L-23249 | MUNOZ PALMA, J.
Petitioner/s	The People of the Philippines	Respondent/s	Cunigunda Boholst-Caballero
Doctrine	Self-defense is a justifiable circumstance and absolves one from criminal liability as long as the three requisites of self defense are present: 1) **unlawful aggression**, 2) **reasonable necessity** of the means employed to prevent or repel it, and 3) a **lack of sufficient provocation** on the part of the person defending himself.		

FACTS (note, there's 3 Franciscos: *the victim, a patrolman, and a policeman*)

Cunigunda Boholst-Caballero seeks a reversal of the judgment of the CFI of Ormoc City finding her guilty of **parricide**, sentencing her to an indeterminate imprisonment from ***prision mayor*** in its medium period to ***reclusion temporal*** in its medium period. She also prays for an **acquittal based on her plea of self-defense**.

PROSECUTION FACTS

June 20, 1956 – **Cunigunda Boholst** and **Francisco Caballero** were **married** in Ormoc City. The marriage **ended before the end of 1957**.

January 2, 1958

- Late evening – Francisco, **Ignacio Barabad** and **Kakong Sacay** were drinking "**tuba**" in a **house** in barrio Ipil, Ormoc City.
- Around midnight – Francisco, Ignacio, and Kakong proceeded home. On the way, they saw **Cunigunda** standing at the corner of the **yard of Igmedio Barabad**. She called out to Francisco, and **suddenly stabbed him**.
- Francisco called for Ignacio and Kakong, who brought him to the **St. Jude Hospital**.
    - **Dr. Cesar Samson** attended to the victim and found a "**punctured wound on the left lumbar region measuring 1 inch externally**."
    - **First aid** was provided, but Dr. Samson suggested he be transported to Cebu City because **he needed a blood transfusion** and the hospital facilities were **inadequate** to provide the needed treatment.
    - Francisco was **interrogated** by **Patrolman Francisco Covero** about who stabbed him. Francisco pointed to Cunigunda. His **answers were written down in a piece of paper and affixed with his thumbmark**. This was done in the presence of his brother, **Cresencio Caballero**, and **Francisco Tomada**, another policeman.
- Cunigunda went to the **Police Department of Ormoc City** to confess she stabbed Francisco.

January 4, 1958 – Francisco Caballero was brought to Cebu City on board the "**MV Ormoc**" but **died at noontime** from the stab wound sustained by him.

APPELLANT FACTS

After their marriage, they lived in barrio Ipil, Ormoc City in the **house of her parents**. They were blessed with a **daughter**, however their marriage was marked by **frequent quarrels** due to Francisco's gambling, drinking, and serenading. There were times he **maltreated and beat her**.

After a year, they **moved to a house of their own**. After less than a month, **Francisco left her and their daughter**, and so she moved back with her parents.

November 1957 – their daughter got **sick** and she went to Francisco to ask for help. Francisco said: "**I don't care if you all would die**" and drove away.

January 2, 1958

- She went out **caroling** with her friend, **Crispina Barabad**. At around 12 midnight, they **divided the proceedings** in Crispina's home.
- Before she could leave the house (when she reached near the banana mill), she met Francisco, and upon seeing her, **held her by the collar of her dress**, and asked:
    - Francisco: "Where have you been prostituting? You are a son of a b*tch."
    - Cunigunda: "What is your business. Anyway you have already left us. You have nothing to do with us."
    - Francisco: "What do you mean by saying I have nothing to do with you. **I will kill you all, I will kill you all.**"
- Francisco then **held her by the hair**, **slapped her face twice** until her nose bled, and **pushed her** towards the ground.
- To keep herself from falling, Cunigunda **held him by the waist (belt)** where his **MORO HUNTING knife** was (inside the belt line on the left side of his body). **She took the knife**.
- As Francisco continued to push her down, she fell to the ground. Francisco **knelt over her (on her right thigh), held her neck, and choked her**, saying: "Now is the time I can do whatever I want. I will kill you."
    - At this time, her hands were released.
    - Francisco's **right hand was holding her hair**, and his **left hand pushed her**.
- Cunigunda had **no other recourse**, so as she was being choked, **she pulled the knife and stabbed him at the left side of his body near the "belt line" just above his left thigh**.
    - When she stabbed him, **she was lying flat on the ground face upward**.
- When she released herself, she ran home and disposed of the knife.

January 3, 1958

- She **surrendered herself** to the police and presented the **bloodstained dress** she wore that night.
- They tried to look for the knife she used, but to no avail. **They marked a random knife as Exhibit C**.

ISSUE 1

Main – Substantive	**W/N the appellant (Boholst-Caballero) stabbed her husband in the legitimate defense of her person.**	**YES**

RULING and RATIO DECIDENDI:

The **Trial Court** found her evidence **unconvincing**, on the grounds:

1) Her testimony was improbable as brought out by her demonstration of the incident during the trial.
2) There was no wound or injury on her body.
3) Her insistence that the weapon was a Moro hunting knife and not Exhibit C is "incredible."
4) She made **contradictory statements** on the fact that she was choked by her husband.
5) Her husband's abandonment of her and their child afforded the motive behind her attack.

However, the **Supreme Court disagrees with the trial court.**

1. They posit that the trial court judge overlooked one piece of evidence: **the location of the wound inflicted on the victim**. This is a **valuable circumstance** which confirms the plea of self-defense.
    a. Dr. Samson notes that the wound was located on the **left lumbar region**. The fact that the blow landed in the **vicinity** from **where the knife was drawn** is a strong indication of the **truth** of appellant's testimony, for as she lay on the ground with her husband bent over her it was quite natural for her **right hand** to get hold of the knife tucked in the left side of the man's belt and thrust it at that section of the body nearest to her hand at the moment.
2. They disagree with the TC's finding that since both of Francisco's knees were on her right thigh, she would have had to put her right elbow towards the ground.
    a. SC: there is **nothing on record showing that her right arm was held, pinned down, or rendered immobile**, or that she pressed her elbow to the ground in such a manner that she couldn't reach the knife.
    b. In Cunigunda's demonstration, she showed that her **right arm was free** to pull out the knife and

strike Francisco with it.

3. The SC ruled that it was **impossible to reenact the scene 100%**, so inaccuracies are possible. In the reenactment, the played the part of Francisco, and the interpreter played her role.
4. The **testimony of Ignacio Barabad** was not credible. He mentioned that Cunigunda called over to Francisco and immediately stabbed him.
    a. If this were the case, **the wound would have been on the front part of his body**, such as his abdomen or chest.
5. Also, there was **no motive**. Even though their marriage was rocky, she still "loved" her husband. There was also nothing that occurred prior to January 2 that could have aroused feelings to kill her husband.
    a. Right in the morning of the next day, **she surrendered herself to the police** – that she stabbed her husband because he manhandled her which rendered her "half-conscious."

The **three elements of self-defense** are present.

1) "Unlawful aggression" – Francisco slapped her until her nose bled, pulled her hair, pushed her to the ground, and strangled her.
2) "Reasonable necessity" – She was half conscious, being strangled and pushed down, the only way she could save herself was the knife she had reached for.
    a) ***US v. Paras***: the reasonable necessity of the means employed in self-defense does not depend upon the harm done but rests upon the **imminent** danger of such injury.
    b) Hence, the fact that appellant has **no injuries** is no grounds for discrediting self-defense.
3) "Lack of sufficient provocation" on the part of the person defending himself – All Cunigunda did was to provoke an imaginary commission of a wrong in the mind of her husband, which is not a sufficient provocation under the law of self-defense. **She did not provoke the attack.**
    a) Provocation is sufficient when it is **proportionate** to the aggression; when it is adequate enough to impel one to attack the person claiming self-defense.

LEGAL BASES

Article 11 (1) of the Revised Penal Code

Article 11. Justifying circumstances. – The following do not incur any criminal liability:

1. Anyone who acts **in defense of his person or rights**, provided that the following circumstances concur;
    a. First. Unlawful aggression;
    b. Second. Reasonable necessity of the means employed to prevent or repel it;
    c. Third. Lack of sufficient provocation on the part of the person defending himself.

People v. Aquino: the plea of self-defense is sustained on the basis of certain "**physical and objective circumstances**" which proved to be of "**decisive importance**." This includes the direction of the bullets fired by the accused, the discovery of bloodstains at the driver's seat, etc.

Latin Maxims

1) "*Quod quisque ob tutelam corporis sui fecerit, jure suo fecisse existimetur*.": What anyone does for the protection of his own body, let it be deemed to have been done by his own right.
2) "*Necessitas Non habet legem*." – **Necessity knows no law**.

Other Info: As per jurisprudence, the **victim has the burden to prove the evidence** that these circumstances were present. TLDR, he has to prove that it was **legitimate self-defense**.

FINAL DECISION	The accused-appellant acted in the **legitimate defense of her person**, and We accordingly set aside the judgment of conviction and ACQUIT her with costs de oficio.

The People of the Philippines vs. Alconga (1947)

Topic | Subtopic	**Article 6** - Self-defense	GR No. & Ponente	**G.R. No. L-162 | Hilado, J.**
Petitioner/s	The People of the Philippines (*plaintiff-appellee)*	**Respondent/s**	Dioscoro Alconga (*Appellant)* Adolfo Bracamonte (*Appellant)* Dioscoro Alconga (*Appellant*)
Doctrine	**Article 11 -** In order for one to be considered not criminally liable due to self-defense, it must be shown that there was (1) unlawful aggression, (2) reasonable necessity of the means employed to prevent or repel it, and (3) lack of sufficient provocation on the part of the person defending himself.		

FACTS

- **STARTING INCIDENT:** May 27, 1943; Location: house of Mauricio Jepes in Municipality of San Dionisio, Province of Iloilo
    - Several persons were playing prohibited games
    - **Deceased Silverio Barion** was the banker in the game of black jack
    - Maria de Raposo, witness for prosecution, was one of the players
    - Upon invitation of Maria de Rapuso, **accused Dioscoro Alconga** joined as her partner, each contributing P5 to a common fund
    - While Maria de Raposo played, Alconga posted himself behind Silverio Barion. Due to their teamwork, Barion suffered losses.
    - The two argued, and had it not been for the intervention of the maintainer of games, the two would have exchanged blows
    - Barion would tell Alconga "**tomorrow morning I will give you breakfast**," which showed intent to inflict bodily harm under such circumstances. Barion would then leave the house.
- **THE DEATH OF BARION**: May 29, 1943 (2 days after the game incident); guardhouse in Barrio Santol
    - Alconga was seated on a bench in the guardhouse.
        - He was performing his duties as "home guard"
    - Barion came along and told him "**Coroy, this is your breakfast**," and followed it with a swing of his **pingahan** (some sort of bamboo weapon).
    - Barion avoided the blow by falling to the ground under the bench, intending to crawl out of the guardhouse
    - A **second blow** was given but it only hit the bench instead
    - Alconga managed to go out of the guardhouse by crawling on his abdomen.
    - While Barion was about to deliver the **third blow**, Alconga, while still in a crawling position, fired at him with his revolver
        - Barion's left breast was hit
        - He staggered and fell to the ground
    - Barion rose to his feet and drew his **dagger**, directing a blow at the accused who parried the blows with his **bolo**
        - Hand-to-hand fight ensued
    - Having sustained several wounds, Barion ran away, but was followed by Alconga
        - After **200 meters**, Alconga overtook him, and another fight took place
        - A mortal bolo blow slashed Barion's cranium, causing Barion to fall to the ground, face downward.
    - Another accused, **Adolfo Bracamonte** (leader of the home guards), arrived and placed Alconga under his custody to turn him into the proper authorities.
- On their way to San Dionisio, they were stopped by Juan Collado (guerrilla soldier), Alconga would be turned over to him. He would then bring him to the headquarters.
- **BARION'S INJURIES** based on Gil G. Estaniel's description
    - Among minor injuries, there were injuries on the ff:
        - Head

        - Arms
        - Hands
        - Lower jaw
        - Front of neck, right side of chest
        - Left side of chest
        - Little finger had been severed
    - The head injury
        - One injury to the parietal region
        - Bruise on crown of head
        - Skull had a wound, causing fracture
    - A bullet wound below the right nipple

**Specific testimonies can be found in the dissenting opinions. Reason for Bracamonte being one of the accused can also be found there.*

ISSUE/S

ISSUE 1

Main - Procedural	**Whether or Not Alconga was acting in self-defense.**	Yes and No
PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**	

RULING and RATIO DECIDENDI:

Alconga's actions on the first stage of the fight was self-defense. However, upon the second stage, after Barion fled, it could no longer be considered self-defense.

ON THE FIRST STAGE OF THE FIGHT

- **Unlawful aggression** - Barion was the **unlawful aggressor** at this stage
- **Reasonable necessity of means employed to prevent/repel it** - By the third blow, Alconga was still in a crawling position, and as **he could not have effectively wielded his bolo,** he instead had to use his **"paltik"** revolver, his only remaining weapon' (Paltik is a homemade firearm)
- **Lack of sufficient provocation** - This commenced when Barion assaulted Alconga **without sufficient provocation** from Alconga.
    - First stage of fight was provoked when the deceased said "**Coroy, this is now the breakfast**" followed by a swing of his pingahan.
    - The utterance alone would have been meaningless and insufficient provocation. It was the attack that effectively constituted provocation

ON THE SECOND STAGE OF THE FIGHT

- Upon pursuit of the deceased, he was no longer acting in self-defense.
- There was no more aggression to defend against
- Alconga inflicted many additional wounds on Barion. Barion was not fatally wounded in the first encounter, as shown by his capability of running 200 meters before being overtaken.

LEGAL BASES

Article 11 - *Justifying circumstances* — the following do not incur any criminal liability

1. Anyone who acts in defense of his person or rights, provided that the following circumstances concur:
   First. **Unlawful aggression**
   Second. **Reasonable necessity of the means employed to prevent or repel it**

Third. **Lack of sufficient provocation** on the part of the person defending himself.

US vs. Dimitillo

- Although the defendant was not the aggressor, he is not exempt from criminal liability because it is shown that he struck several blows, among them the fatal one, after the necessity for defending himself ceased with the assailant's retreat.

US vs. Vitug

- The right to kill in self-defense ceased when the aggression ceased.

ISSUE 2:

Main - Substantive	**Whether or Not Barion's provocation can be considered as mitigating circumstances**	No

PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**

RULING and RATIO DECIDENDI:

No. It could not be considered mitigating circumstances because the minute Barion fled at the first stage of the fight up to the moment he died, there was no longer any provocation for the Alconga to pursue.

- The court holds that Alconga is guilty of the crime of homicide beyond reasonable doubt
- Alconga did not testify nor offer other evidence to show that when he pursued Barion he was still acting under the impulse of the effects of what provocation, be it anger, obfuscation, or the like
- Article 13 of the RPC requires for provocation to be such a mitigating circumstance that it not only immediately precedes the act but that it also be sufficient
- Sufficient provocation should be affirmatively proven by the accused.
- After Barion left, there was clearly neither assault nor a threatened assault of the remotest kind.
    - It was suggested that when pursuing Barion, Alconga thought that Barion was going to his house to fetch another weapon. However, the burden of proof to establish such defense was on Alconga.
    - Alconga did not attempt to introduce evidence for such.

LEGAL BASES

Article 13 - Mitigating circumstances

4. That sufficient provocation or threat on the part of the offended party immediately preceded the act.

FINAL DECISION	WHEREFORE the judgment appealed from is hereby affirmed. SO ORDERED. • Appellant is guilty of aforesaid crime of homicide • Sentenced to an indeterminate penalty from 6 years and 1 day of **prison mayor** to 14 years and 8 months of **reclusion temporal**

	● Indemnify heirs of the deceased Barion in the sum of P2000 and to pay costs

SEPARATE OPINION/S

Paras, *J, dissenting*	● Agrees to the statement of facts of what is called by the majority as the first stage of the fight ● The second stage was not in accordance with the record ● The testimony of **Luis Ballaran** for the prosecution has been completely discarded by the lower court and this Court can do no better in this appeal ○ If it had been given credit, Alconga would appear to have been the aggressor from the beginning, and the facts of the first stage, as testified by Alconga, should not have been accepted by the lower court ● According to Alconga: Whenever he stopped the stabbings, Barion would lunge at him and he had to take steps backwards, just as he was about to deliver a decisive, forceful stab, he fell to the ground due to his own momentum. (DeepL translated) ○ It is thus shown that Alconga never pursued Barion and that instead, it is Barion that tried to continue the assault started during the fight, and Alconga was avoiding the blows by stepping backwards. ● It was during the first stage of the fight that the deceased received a bullet wound just below the right chest. According to the witness of the prosecution, this wound was also fatal. The distance between the guardhouse and where the deceased fell was uncertain. ● The Court is bound by the testiomny of the witnesses for the defense as to what happened, showing that Alconga was acting in self-defense as the witnesses for the prosecution had been deemed by the lower court as unworthy.
Perfecto,*J, dissenting*	**THE FOUR WITNESSES OF THE PROSECUTION** ● Luis Ballaran , uncle of Barion ○ WHile the two accused Dioscoro Alconga and Rodolfo Bracamonte were in search for home guards, Barion passed by ○ Alconga invited him for breakfast ○ Barion ran, Alconga followed him ○ When Barion looked back, Bracamonte hit him with a stick of *bahi* at the left temple ○ Braion fell down and Alconga stabbed him with his bolo and fired with his paltik. ○ Barion rose up and ran toward his house but the two accused pursued him ○ Alconga stabbed him right and left and Bracamonte hit him with his bahi and when Barion breathed no more, the two went to the municipal building of San Dionisio ● Gi G. Estaniel, Police Sergeant of San Dionisio ○ Went in the company of the justice of the peace to the place of the incident ○ Saw the body and examined his wounds ○ Wounds were in the head, arms, hands, lower jaw, neck, chest, and his right hand's small finger was severed. There were other wounds. Cranium

was broken. Right side of chest had a gunshot wound
    - Alconga was arrested but refused to testify
- Ruperto L. Libres, acting clerk of court since May 16, 1943
    - Received one paltik with blank cartridge, one bolo, one cane of bahi, and one dagger
    - He could only produce the plastic while the others had gone missing due to transfers caused by frequent enemy penetration in Dingle
    - The bolo was a rusty working bolo and is 1 ½ feet long
    - Dagger was 6 inches long and made of iron
    - Bahi was a cane of average length (2 inches wide and ¾'s of an inch thick
- Maria de Raposo
    - Was walking following Barion
    - When Barion passed in front of the home guard shed, Bracamonte pursued him and hit him with the bahi
    - Barion fell down, Alconga approached him, and stabbed him with his bolo and shot him with his paltik
    - When Barion saw that the accused were looking at Luis Ballaran, he rose up and ran towards a ricefield where he fell down
    - Accused pursued him and stabbed him left and right.
    - When Barion died, the accused left.
    - Bracamonte shouted he was ready to face the relatives of the deceased who might feel aggrieved
    - De Raposo was about 20 meters from the place of incident and was with her cousin. She passed by the shed but does not know whether Luis Ballaran, who was in the shed, was able to see her

THE WITNESSES OF THE DEFENSE

- Juan Collado, soldier who took part in Alconga's arrest
    - Delivered to Barredo with a revolver, bolo, and a dagger
- Felix Dichosa
    - Witness was in the home guard shed
        - When Bioy (Barion) was about to arrive at the place, witness asked if he had fish, and when Bioy said no, Bioy went his way.
    - Heard Bioy saying 'So you are here, lightning! Your hour has come."
    - Saw that Bioy struck Alconga with the lever he used for carrying fish. Alconga was not hit
    - Bioy tried to strike again, but Alconga sought cover under the bench of the shed. Bench was hit.
    - When Bioy pursued him and gave him a blow with a bolo, witness heard a gunshot and saw Bioy falling down.
    - Upon falling in a sitting position, Bioy took a dagger to stab Alconga
    - Seeing this, Alconga stabbed Barion right and left, while Barion was coming against Alconga
    - Barion fell into the canal and the witness shouted for help
    - BRacamonte and Dalmacio Mendoza came, and when the witness came out of the shed and was at a distance of 10 brazas, he saw Ballaran, and requested him to intervene in the fight as he felt Bioy was about to kill

Alconga
    - Ballaran went into their shed and the witness into his house. Ballaran would later ask him to testify and asked him to testify differently from what actually happened. The witness told him it would be better if Ballaran himself testified, but Ballaran said he could not because he was not present and that Dichosa would better testify as someone being actually present then.
- Dalmacio Mendoza
    - Went to house of Rodolfo Bracamonte to borrow a small saw and one auger
    - While the witness was conversing with Bracamonte, a gunshot was fired. Bracamonte announced that he was going to the home guard and stated "**That Coroy is a fool, because he fired a revolver which has but one bullet**."
    - Witness followed and saw Felix Dichosa at the shed, who then said Bracamonte and the witness hsould hurry because Coroy was to be killed by Bioy
    - Saw Bioy falling and in front of him was Alconga who took a dagger from the ground
    - Dagger was in Barion's hand before he fell
    - Bracamonte asked Alconga "**Coroy, what did you do to Silverio**?" To which Alconga replied "**I killed Bioy, because if I did not he would have killed me. My shirt was pierced by the dagger, and if I did not evade, I would have been hit."**
- Adolfo Bracamonte
    - True name Adolfo, not Rodolfo
    - Belies the testimonies of Ballaran and de Raposo
    - At 7 AM, he went to the home guard shed. When he found it without guards, he called Alconga to mount guard and delivered him a patik
    - Witness returned for breakfast.
    - Mendoza came to borrow a saw and auger as he was also a carpenter
    - He hear a gun shot and he went to the shed, followed by Dalmacio
    - When they were approaching the shed, DIchosa shouted "**Come in a hurry, because Bioy is going to kill Dioscoro Alconga**."
    - Went to the place and saw two persons fighting. ONe fell down, and upon seeing this, he shouted at Alconga "**What happened to you**" and Alconga answered "**Manoy, I stabbed Bioy, because if I did not, he was to kill me**" and showed his shirt
    - WHen Barion fell, he saw him with a dagger.
- Disocoro Alconga
    - Same as events in the facts.

DISSENTING OPINION

- Testimonies of Ballaran and de Raposo are unworthy of credit as both have been contradicted by the witnesses of the defense. By acquitting Bracamonte, it shows that the court believed the theory of the defense that it is not true that

	BRacamonte took active part in the fight. ● Bracamonte did not take part in the fight which resulted in Barion's death, and instead, Barion was already dead by the time he arrived. ● By rejecting the testimonies of Ballaran and de Raposo, the only available version of events is by Alconga, which was supported by other witnesses for the defense. ● It appears that that the fight was continuous and uninterrupted rather than a two-stage affair. ● Considering the psychology of a person engaged in a life or death struggle, driven by self-preservation, anger, and indignation, it would be impossible to ask of a man undergoing such to measure his acts precisely. ● In trying to eliminate an actual danger, Alconga was not able to moderate his efforts to destroy the menace.

US v. MACK (1907)

Topic | Subtopic	Art. 11: Justifying Circumstances (Self-defense)	GR No. & Ponente	G.R. No. L-3515 | Carson, J.
Petitioner/s	The United States	Respondent/s	Anderson Mack
Doctrine	A person unlawfully assailed with a deadly weapon and placed in imminent peril of great bodily harm is not legally obligated to retreat/flee unless there is reasonable assurance that they can do so safely.		

FACTS

On the night of May 4, 1906 - Anderson Mack, a negro solder, shot and killed Estanislao Indic (a municipal policeman).

Before the shooting, Mack was sitting on a bench a few feet back from the street in Tacloban, Leyte. It was in an open space of 3 or 4 feet in width between the *tienda* (store) of Olimpia and another building. Indic and another policeman approached the place and directed Olimpia to close her tienda.

Later, they ordered Mack and another soldier standing nearby to go to their quarters. Mack did not obey the order, and it is probable that some words passed between all the parties involved (the soldiers, policemen, and the woman which angered the deceased). However, evidence maintains Mack's contention that he did and said nothing to provoke or offend Indic, except his failure to obey the order may have had that effect.

Indic was standing 10 or 12 feet from Mack, cursing and abusing him for his failure to obey the order. He dragged himself free from his companion, who was endeavoring to restrain him and take him away, and started toward Mack while drawing his bolo and brandishing it in a threatening manner. Mack then got up and drew his revolver. Indic approached him within 3-6 feet and Mack fired 3 shots, one of which hit the deceased's left breast (just above the nipple) and another in the back of his head.

There was some testimony showing that when the shooting took place, Indic was under the influence of liquor and that he bore resentment against Mack due to a quarrel about a woman. However, these contentions are not satisfactorily sustained by the evidence, nor it is necessary to take them into consideration in deciding the case.

ISSUE 1

Main – Substantive	**W/N it was the duty of the defendant to take refuge in flight or "give ground" before employing deadly force in self-defense**	**YES**

RULING and RATIO DECIDENDI:

There was unprovoked, illegal aggression on the part of the deceased, and there was reasonable necessity for the means employed by the accused to defend himself from such actions. Under the circumstances, the assailed person does not need to attempt to retreat when he does not have reasonable ground to believe that by doing so, he can **safely** avoid the threatened attack.

Mack was sitting on a beach in a narrow alleyway when Indic started advancing upon him from 9-12 feet,

brandishing (holding) a formidable looking bolo. To be able to safely make an escape by flight, he would have had to: rise from his seat, look backward (only to discover that the direction in his rear was blocked by barrels and obstacles), step forward a few feet toward his approaching assailant, and turn to the right/left upon reaching the street. This would expose his unprotected body to the assailant's attack, and finally distance himself from his pursuer in flight. He must do this before the 1-2 seconds required for his assailant to put him within striking distance.

If the deceased was endeavoring to reach Mack and strike him with his bolo, it is very doubtful whether there was time to avoid the blow by instant flight. Hence, the Court held that Mack did not have reasonable grounds to believe that he could not have safely made his escape by flight. Even though he might have found time to dodge the deceased and made an escape, it is too much to ask from one who is in imminent peril of a murderous attack without reasonable grounds to believe that he can safely do so.

LEGAL BASES

On a plea of self-defense under Case 4, Art. 8 of the Penal Code, an accused person is **not entitled to exemption from criminal responsibility** unless each and all the following facts are established to the satisfaction of the court:

1. There was an unlawful aggression
2. There was reasonable necessity for the employment of the means taken to prevent or resist such unlawful aggression
3. There was no sufficient provocation on the part of the accused

ISSUE 2

Main – Substantive	**W/N there was reasonable necessity for his use of the revolver**	**YES**

PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**
Argued that firing a revolver was not reasonably necessary because the deceased was **shorter, possibly under the influence of liquor, and his bolo was "almost blunt through rust and dullness."** (making it unlikely to penetrate clothing with ordinary force) Since the first shot already inflicted a fatal wound, there was no necessity for the firing of the two succeeding shoots in order to prevent or repel the attack.	

RULING and RATIO DECIDENDI:

The Court disagrees that there was no reasonable necessity for Mack's use of the revolver. Mere physical superiority in no protection against a man armed with a large bolo, coupled with the fact that he may have possibly been intoxicated when he made the attack, made him more dangerous (unless he was so drunk as to be physically helpless, which is not suggested in the evidence). Moreover, even if the bolo was later found to be already rusty to penetrate the accused, it still looked like a "formidable looking weapon" in broad daylight, with a blade 14 ½ inches long. Hence, the accused, in apparent imminent danger of his life, could not have taken the chance to be struck by it.

If would also be unreasonable to hold Mack responsible for the failure to take deliberate and careful aim at the deceased's arm or hand that held the bolo or at his legs, since the reasonable and natural thing for him to do under the circumstances was to fire at the body of his opponent and make sure of his own life.

The 3 shots fired were in rapid succession. The Court held that not every wound which proves fatal is sufficient to stop an enemy's attack. Given the close distance between them, it was not until the assailant fell to the ground that the accused was out of danger. Even a wounded man with a drawn bolo in his hand might prove to be no mean antagonist at close quarters.

FINAL DECISION	The judgment of the trial court is reversed and **the appellant acquitted of the crime with which he was charged**, with the costs of both instances de oficio; and if in custody, he will be discharged forthwith, or if a liberty under his bond will be cancelled and his sureties exonerated. ordered.

PEOPLE v. SUMICAD (1932)

Topic | Subtopic	Justifying Circumstances	GR No. & Ponente	G.R. No. 35524, STREET, J.
Petitioner/s	People of the Philippines Islands	Respondent/s	Julian Sumicad
Doctrine			

FACTS

February 23, 1931 [Plaridel Occidental Misamis] – accused, **Sumicad**, a resident of Buenavoluntad, was engaged with others in the gratuitous labor of hauling logs for the construction of a chapel in the barrio.

- At around 5:30 PM when the laborers were resting from work, **Segundo Cubol** passed the place where the accused was sitting. Prior to this date, the accused had rendered 5 ½ days service to Cubol, so when Segundo passed, the accused said to him "*Segundo, pay me for the 5 ½ days work for which you owe me*".
- Cubol replied "*what debt*", an exclamation which was followed by an insulting expression. At the same time he struck the accused with his fist.
- The accused arose from the log where he was sitting, moved backward, trying to escape, but Cubol pursued him and continued striking with his fists. Then the accused found himself cornered by a pile of logs, the wings of which extended out on either side, preventing him from further retreat.
- As Cubol pressed upon him, the accused drew his bolo and delivered a blow on Cubol's right shoulder. Cubol lunged to prevent this and had the intention of wrestling the bolo from the accused.
- Then the accused struck **two other blows with the bolo, inflicting two deep cuts on Cubol's forehead above the left eye. One of the blows broke through the cranium. The other made a cut extending from the left eyebrow to the nose and upper lip.**
- Upon receiving these wounds, Cubol gave down and crawled away and found a set on a nearby log.
- Witness, Francisco Villegas, came up in a moment, after learning something about the matter, asked Cubol whether he had struck the accused blows with his fist. Cubol replied that he had. The witness then turned to the accused, who was standing a short distance away, and told him to put up his bolo and go to the poblacion. Acting upon this suggestion the accused immediately repaired to the office of the justice of the peace and surrendered himself to the authorities.

→ **Cubol lived only an hour or so, and died from the effect of the wounds received.** In one of the pockets of the deceased a knife was found, and the accused testified that, when he struck the deceased with his bolo, the latter was attempting to draw a knife from his pocket.

Other evidence:

- Accused – 25 years old. 5'1 ½ inches. 105 pounds.
- Deceased Cubol – appeared to have been a taller, larger and stronger man. It was shown that he was quarrelsome and in the habit of making frequent trouble by fighting in the places where he happened to be present with others. He has been convicted of inflicting minor physical injuries, being sentenced to imprisonment for one month and one day. He had also been convicted of theft with the same period of imprisonment. It was shown that he was hot-tempered and had a reputation of being a trouble maker

ISSUE 1

Main – Substantive	Whether Sumicad acted in self-defense (Mostly questions the requisite of reasonable necessity of means employed)	YES

RULING and RATIO DECIDENDI:

Two of the elements of self-defense were therefore clearly present, namely, (1) that the deceased was the aggressor and (2) that there was lack of sufficient provocation on the part of the accused.

Question now is whether there was reasonable necessity for the means employed by him to prevent or repel

the aggression to which he was subjected

- It is evident that the quarrel which resulted in the death of Cubol was of his own making, and that the accused was not materially to blame.
    - When the aggression was begun by the deceased, the accused retreated until he was cornered in the pile of logs, and his further retreat was cut off both in the rear and at the sides.
- The accused first delivered a cut on the left shoulder, Sanitary officer reported that this could not have resulted in death. Upon receiving that cut, the deceased should have been met with resistance, but he pressed forward in the attempt to possess himself of the bolo, the only means of defense then at the command of the accused.

→ Under the circumstances, the court said that Sumicad's act was justified in keeping the weapons in his hands, and as an ultimate resort, used it as a means for his own defense (and the fact that he was against a larger, and stronger man than himself). It would have been an act of suicide to permit that weapon to pass into the hands of his assailant.

It is undoubtedly well established in jurisprudence that a man is not, as a rule, justified in taking the life of one who assaults him with his fist only, without the use of a dangerous weapon. The person assaulted must, in such case, either resist with the arms that nature gave him or with other means of defense at his disposal, short of taking life. But that rule contemplates the situation where the contestants are in the open and the person assaulted can exercise the option of running away. It can have no binding force in the case where the person assaulted has retreated to the wall, as the saying is, and uses in a defensive way the only weapon at his disposal.

THUS, court ruled that the accused had the right to resist the aggression with the bolo.

FINAL DECISION	**We are of the opinion that all the elements necessary to constitute justifiable self- defense were present in this case and the accused should have been acquitted**. The judgment appealed from will therefore be reversed and the appellant absolved from the information, with costs of both instances de oficio. So ordered.

SEPARATE OPINION/S

AVANCENA, C.J. Dissenting	→ Dissent. There is but an incomplete self-defense The defendant's act in wounding the deceased with a bolo so as to bring about the latter's death, was not a reasonably necessary means of defending himself against the other's attack, which was but a matter of fisticuffs. <u>Precedent from Spanish SC:</u> → held the doctrine in many cases; e.g., where the deceased attacked the defendant with his fist (November 29, 1883; May 3, 1888; and May 9, 1911); where the deceased, for no particular reason, threw himself upon the defendant, caught him by the throat, and tried to choke him (November 4, 1910); where the deceased boxed the accused, knocking him down, and keeping him underneath (November 28, 1910); and where the deceased attacked the accused with an umbrella (April 22, 1896). In all these cases it was not held that the defendant acted with full justification in self-defense." <u>Precedent from PH jurisprudence</u> → "Our own reports contain rulings of the like tenor; in the earliest case, the deceased attacked the accused with a piece of bamboo (U. S. vs. De Castro, 2 Phil., 67), and in the latest, he attacked the defendant with his fist (G. R. No. 34750). **In neither was it held that a complete case of self-defense had been made out.** He asserts that (1) no complete case of self-defense had been made out, (2) nor is the defendant's case improved by the consideration that he aimed the first blow at the deceased's arm, and delivered the last two blows, which caused death, after the other had attempted to wrench away

	the bolo; for having received the first blow on the arm, **the deceased was justified in acting as he did, in the reasonable belief that the defendant would continue the attack with that weapon.**

People v. Genosa (2004)

Topic | Subtopic	**Art. 11 Justifying Circumstances | Self-Defense**	**GR No. & Ponente**	**GR No. 135981 | Panganiban,** *J.*
Petitioner/s	People of the Philippines	**Respondent/s**	Marivic Genosa
Doctrine	The "battered woman syndrome" (BWS) constitutes self-defense if it satisfies the following: 1. First, each of the phases of the cycle of violence must be proven to have characterized at least two battering episodes between the appellant and her intimate partner. 2. Second, the final acute battering episode preceding the killing of the batterer must have produced in the battered person's mind an actual fear of an imminent harm from her batterer and an honest belief that she needed to use force in order to save her life. 3. Third, at the time of the killing, the batterer must have posed probable — not necessarily immediate and actual — grave harm to the accused, based on the history of violence perpetrated by the former against the latter.		

FACTS

- For review: 1998 Decision the Regional Trial Court (RTC) of Ormoc City finding Marivic Genosa guilty beyond reasonable doubt of parricide
  - RTC's findings: On 15th day of November 1995, at Barangay Bilwang, Isabel, Leyte, Philippines, the above-named accused, with intent to kill, with **treachery** and **evident premeditation**, did then and there wilfully, unlawfully and feloniously attack, assault, hit and wound one BEN GENOSA, her legitimate husband, with the use of a hard deadly weapon, which the accused had provided herself for the purpose, [causing] the following wounds, to wit:
    - *Cadaveric spasm.*
    - *Body on the 2nd stage of decomposition.*
    - *Face, black, blownup & swollen w/ evident post-mortem lividity.*
    - *Eyes protruding from its sockets and tongue slightly protrudes out of the mouth.*
    - *Fracture, open, depressed, circular located at the occipital bone of the head, resulting [in] laceration of the brain, spontaneous rupture of the blood vessels on the posterior surface of the brain, laceration of the dura and meningeal vessels producing severe intracranial hemorrhage.*
    - *Blisters at both extrem[i]ties, anterior chest, posterior chest, trunk w/ shedding of the epidermis. Abdomen distended w/ gas. Trunk bloated.*
  - Appellant pleaded not guilty during her arraignment on March 3, 1997. In due course, she was tried for and convicted of parricide.

- **Version of the Prosecution**
  - Genosas were married on 1983 in Ormoc City. They were renting Steban's house in Bilwang, Leyte, together with their children (John Marben and Earl Pierre).
  - **Nov. 15, 1995:** Ben and Arturo went to a cockfight → both had 2 bottles of beer each → headed home → Ben found out that Marivic went to Isabel, Leyte to look for him → Ben went inside his house; Arturo went to store across it to wait for the *masiao* runner until 9PM → Arturo did not see Marivic arrive but he heard her say 'I won't hesitate to kill you' to which Ben replied 'Why kill me when I am innocent?' when Arturo passed by the side of the Genosas' rented house → last time he saw Ben alive → afterwards, Genosas' house was always closed and seemed uninhabited
  - Nov. 16, 1995:
    - Marivic asked Erlinda Paderog (close friend, neighbor) to look after her pig because she was going to Cebu for a pregnancy check-up and to sell her motorcycle to their neighbor Ronnie Dayandayan
    - 12:15 in the afternoon - Joseph Valida, while waiting for a bus going to Ormoc, saw Marivic going out of

their house with her two kids in tow and went to the waiting are where he was → they all rode the same bus to Ormoc, but they didn't have any conversation

- Nov. 18, 1995: Steban was informed about the odor emanating from the Genosas' house → went there to check but the house was locked → Steban destroyed gate padlock with a borrowed steel saw → went inside through kitchen door after destroying a window to reach a hook that locked it → saw Ben lying on his side, covered with a blanket, in his briefs with injuries at the back of his head → informed Ben's mom (Iluminada) and she later identified him
  - On the same day, SPO3 Leo Acodesin, received a report regarding the foul smell at the Genosas' rented house. Together with SPO1 Millares, SPO1 Colon, and Dr. Refelina Cerillo, SPO3 Acodesin proceeded to the house and went inside the bedroom where they found the dead body of Ben lying on his side wrapped with a bedsheet. There was blood at the nape of Ben. Acodesin found an approx. metal pipe at the side of an aparador about 2m from where Ben was, leaning against a wall. The metal pipe measured three (3) feet and six (6) inches long with a diameter of one and half (1½) inches. It had an open end without a stop valve with a red stain at one end. The bedroom was not in disarray.
    - 10am of same day → cadaver was taken to the back of the house for examination by Dr. Cerillo → Ben was found to be have been dead 2-3 days already → findings are above → concluded that the cause of Ben's death was a **cardiopulmonary arrest** secondary to severe intracranial hemorrhage due to a depressed fracture of the occipital

- **Version of the defense**
  - Marivic admitted to killing her husband
  - on Nov. 15, she went to look for Ben with Ecel (cousin) but he was not there → they found Ben drunk upon their return
    - Ben nagged Marivic for following him but she ignored him and attended to their children → Ben got disappointed, switched off the light, and cut the TV antenna with a bolo
    - Acc. to Marivic, Ben was about to cut her so she ran to the bedroom but he got hold of her hands and whirled her around. She fell on the side of the bed and screamed for help. Ben left.
    - At this point, appellant packed his clothes because she wanted him to leave. Seeing his packed clothes upon his return home, Ben allegedly flew into a rage, dragged appellant outside of the bedroom towards a drawer holding her by the neck, and told her 'You might as well be killed so nobody would nag me.'
    - Appellant testified that she was aware that there was a gun inside the drawer but since Ben did not have the key to it, he got a three-inch long blade cutter from his wallet (which was used to cut her and threaten her once
    - She however, 'smashed' the arm of Ben with a pipe, causing him to drop the blade and his wallet. Appellant then 'smashed' Ben at his nape with the pipe as he was about to pick up the blade and his wallet. After, she ran inside the bedroom.
    - Marivic, however, insisted that she ended the life of her husband by shooting him. She supposedly 'distorted' the drawer where the gun was and shot Ben. He did not die on the spot, though, but in the bedroom.

- **Others**
  - Marivic and Ben → elem schoolmates, neighbors, 3rd degree cousins (Ben was persistent despite this)
    - Had three children (JM, EP and Marie Bianca)
  - They were happy in their first year of marriage but afterwards, the couple would quarrel often and fights would become violent → Ben would provoke her, slap her, pin her down, sometimes beat her → she would run away and seek medical help from Drs. Caing, Lucero, Cerillo
    - Barrientoses (fisherman) that heard Marivic shouting for help, grappling at each other
    - Sarabia (neighbor) → whose house was 50 meters away → Marivic confided in him that Ben would pawn items for gambling → was once asked by Ben to come with him to look for whores
    - Ecel → helped Marivic look for Ben on Nov. 15 → testified that when she left the couple's house, they were still fighting
  - Marivic's testimony
    - She did not provoke her husband because she was afraid for her and her baby

        - She had tried to leave the marriage at least 5 times but they would always reconcile
        - Ben was violent and abusive towards her that night because he was crazy about his recent gf, Lulu
        - She insisted that she shot Ben; Arturo lied; she went to Manila after and did not bother anyone; she was arrested in San Pablo, Laguna
        - She threw the gun away; she doesn't know what happened to the pipe;
        - She was injured by Ben on her wrists with a bolo; Ben kicked her for two hours when he saw that she had packed his things
    - Testimonies as to the couple's relationship / abuse (?)
        - Dr. Caing: testified that from July 6, 1989 until November 9, 1995, there were 6 episodes of physical injuries inflicted upon Marivic.
        - Brgy. Captain Tero: 2 mos. Before Ben died, Marivic went to his office to help settle the family troubles of the Genosas. He told Marivic to return but he did not hear from her again.

- History: RTC found Marivic guilty of parricide, sentencing her to death → elevated to the SC upon automatic review
    - Petitioner filed urgent omnibus motion to reexamine Ben's death and to allow examination of Marivic's state of mind when she killed her husband → partially granted

- **Examination of Battered Woman Syndrome**
    - Dra. Dayan (clinical psychologist)
        - It was her opinion that Marivic fits the profile of a battered woman because 'in spite of her feeling of self-confidence which we can see at times there are really feelings (sic) of loss, such feelings of humiliation which she sees herself as damaged and as a broken person. And at the same time she still has the imprint of all the abuses that she had experienced in the past.
            - Marivic thought of herself as a loving wife and nothing else mattered.
    - Dr. Pajarillo (Psychiatrist)
        - Explained that with 'neurotic anxiety', the victim relives the beating or trauma as if it were real, although she is not actually being beaten at that time. She thinks of nothing but the suffering.
        - That at the time she killed her husband Marivic's mental condition was that she was re-experiencing the trauma. He said that we are trying to explain scientifically that the re-experiencing of the trauma is not controlled by Marivic. It will just come in flashes and probably at that point in time that things happened when the re-experiencing of the trauma flashed in her mind.

ISSUES		
Type	***Issue***	***Ruling***
Side - Substantial	**1. The trial court gravely erred in promulgating an obviously hasty decision without reflecting on the evidence adduced as to self-defense.** **2. The trial court gravely erred in finding as a fact that Ben and Marivic Genosa were legally married and that she was therefore liable for parricide.** **3. The trial court gravely erred finding the cause of death to be by beating with a pipe.** **4. The trial court gravely erred in ignoring and disregarding evidence adduced from impartial and unbiased witnesses that Ben Genosa was a drunk, a gambler, a womanizer and wife-beater; and further gravely erred in concluding that Ben Genosa was a battered husband.** **5. The trial court gravely erred in not requiring testimony from the children of Marivic Genosa.** **6. The trial court gravely erred in concluding that Marivic's flight to**	No for all

	Manila and her subsequent apologies were indicia of guilt, instead of a clear attempt to save the life of her unborn child.	

ANSWER

- All are factual in nature and the findings of the trial court are entitled to a high degree of respect and will not be disturbed in the absence of proof that the judge gravely abused his discretion or misapplied material facts.
- 1st issue:
  - Judge Madrona provided a 3-page discourse assessing the testimony and self-defense theory
  - At least 13 hearings were held for over a year and it took about two months to promulgate the decision after conclusion of trial (not hasty)
- 2nd issue:
  - The key element in parricide is the relationship of the offender with the victim. While this could be proved by the marriage certificate (which Genosa did not present), oral evidence of the fact of marriage is sufficient if not objected to
    - Mother and brother of Ben, appellant attested to marriage
- 3rd issue: The specific or direct cause of Ben's death — whether by a gunshot or by beating with a pipe — has no legal consequence.
- 4th issue: we cannot fault the trial court for not fully appreciating evidence that Ben was a drunk, gambler, womanizer and wife-beater. Appellant had not previously raised the novel defense of "battered woman syndrome," for which such evidence may have been relevant. Her theory of self-defense was then the crucial issue before the trial court.
  - The legal requisites of self-defense under prevailing jurisprudence appear inconsistent with the surrounding facts that led to the death of the victim..
- 5th issue: All criminal actions are prosecuted under the direction of the public prosecutor, who has the discretion to determine which witnesses and evidence are necessary to present. Appellant could have presented her children to testify.
- 6th issue: Merely collateral and this will have little bearing on the final resolution of the case.

Type	*Issue*	*Ruling*
Main - Subst...	Whether appellant acted in self-defense and in defense of her fetus	No

ANSWER

- No, the court finds that Marivic was a severely abused person. While they did establish the violence the appellant experienced, the requisites that would warrant this case as self-defense are incomplete.

LEGAL BASIS

- The Battered Woman Syndrome (new in PH, recognized abroad)
  - Recognized as a form of self-defense
  - A woman "who is repeatedly subjected to any forceful physical or psychological behavior by a man in order to coerce her to do something he wants her to do without concern for her rights.
  - Furthermore, in order to be classified as a battered woman, the couple must go through the battering cycle **at least twice.**
  - Has three phases:
    - (1) the tension-building phase - minor battering (verbal, slight physical abuse); pacification possible
    - (2) the acute battering incident - brutality, destructiveness, death
    - (3) the tranquil, loving (or, at least, nonviolent) phase - batterer tries to make up for his previous behavior
  - A battered woman usually feels responsible for the batterer's well-being (I can fix him mindset ba)

APPLICATION

- In this case, there was **no sufficient proof** establishing that **appellant**, due to the repeated abuse she had

suffered from her spouse over a long period of time, became afflicted with **battered woman syndrome**.

- There is no ample evidence that would confirm the presence of the essential characteristics of BWS.
- Defense fell short of proving all three phases of "cycle of violence"
  - She failed to prove that in at least another battering episode in the past, she had gone through a similar pattern.
  - She did not explain how tension would arise, how she would respond to his minor abuses
  - Third phase was not established. She only mentions that she runs to her parents and eventually, Ben would seek her out.
  - Did not establish whether she felt helpless and trapped in their relationship
- In sum, the defense failed to elicit from appellant herself her factual experiences and thoughts that would clearly and fully demonstrate the essential characteristics of the syndrome.
- Thus, Marivic's killing of Ben was not completely justified under the circumstances but there are mitigating circumstances
  - Trauma is caused by repetitious battering, severity, prolonged administration
    - She was also much more susceptible to trauma because she was pregnant. She was not only worried for herself, but also for her child.
  - BWS → obfuscated her rationality
    - Analogous to an illness that diminished the exercise by appellant of her will power without, however, depriving her of consciousness of her acts.

- To appreciate this circumstance, the following requisites should concur: (1) there is an act, both unlawful and sufficient to produce such a condition of mind; and (2) this act is not far removed from the commission of the crime by a considerable length of time, during which the accused might recover her normal equanimity.
  - Helpful is Dr. Pajarillo's testimony 80 that with "neurotic anxiety" — a psychological effect on a victim of "overwhelming brutality [or] trauma" — **the victim relives the beating or trauma as if it were real**, although she is not actually being beaten at the time.
  - It should be clarified that these two circumstances — psychological paralysis as well as passion and obfuscation — did not arise from the same set of facts.
    - Psychological paralysis (diminishing exercise of will power without depriving of consciousness) - from the cyclical nature and the severity of the battery inflicted by the batterer-spouse upon appellant (repeated beatings over a period of time)
    - Passion and obfuscation - from the violent aggression he had inflicted on her prior to the killing. That the incident occurred when she was eight months pregnant with their child was deemed by her as an attempt not only on her life, but likewise on that of their unborn child. Such perception naturally produced passion and obfuscation on her part.

OTHERS

- History of violence:
  - In the subsequent years of marriage, Ben was abusive and cruel. He was a habitual drinker. He would provoke appellant, slap her, and sometimes pin her down on the bed and beat her (maybe 3 times a week)
  - Happened several times and the appellant goes back to her parents during these times and she seeks medical help from Dr. Dino Caing, Dr. Lucero and Dra. Cerillo. Still, she reconciles with Ben whenever he asks for forgiveness.
    - Dr. Dino was able to present 6 incidents of chronic battery (1990 - 1995) → Marivic told the doctor that her injuries were caused by her husband
      - Dr. Dino was also able to examine the victim on Nov. 6, 1995 → findings: she was 8 mos. Pregnant and she had hypertension headache (from 1989 to 1995, she had 23 consultations for tension headache)
        - Tension headache is more or less stress related and emotional in nature → family trouble can cause elevation of blood pressure
    - Sarabio (neighbor) and Ecel (cousin of M.) - both testify to Ben's behavior towards his wife
- Dr. Dayan's testimony
  - Found Marivic as a BW and the act was really self-defense → she was suffering abuse from husband

        - There was provocation and she was also disoriented because of all the battering
    - She did an objective personality test (Millon Clinical Multiaxial Inventory) → Marivic was an honest person

- BWS formulated by Lenore Walker → the cyclical nature of the violence inflicted upon the battered woman immobilizes the latter's "ability to act decisively in her own interests, making her feel trapped in the relationship with no means of escape." → learned helplessness
- Thus, just as the battered woman believes that she is somehow responsible for the violent behavior of her partner, she also believes that he is capable of killing her, and that there is no escape.

Type	*Issue*	*Ruling*
Main - Subst...	Whether treachery attended the killing of Ben Genosa.	No

ANSWER

- Treachery is when one commits any of the crimes against persons by employing means, methods, forms in the execution thereof without risk to oneself arising from the defense that the offended party might make.
- She hit him with a pipe and subsequently shot him according to her testimony, but this is insufficient to establish the presence of treachery.
    - No showing of the victim's position relative to appellant's at the time of the shooting.
- When a killing is preceded by an argument or a quarrel, **treachery cannot be appreciated** as a qualifying circumstance, because the deceased may be said to have been forewarned and to have anticipated aggression from the assailant.
- The thought of using the gun occurred to her only at about the same moment when she decided to kill her batterer-spouse.
- In the absence of any convincing proof that she consciously and deliberately employed the method by which she committed the crime in order to ensure its execution, this Court resolves the doubt in her favor.

DISPOSITION
WHEREFORE, the conviction of Appellant Marivic Genosa for parricide is hereby AFFIRMED. However, there being two (2) mitigating circumstances and no aggravating circumstance attending her commission of the offense, her penalty is REDUCED to six (6) years and one (1) day of prision mayor as minimum; to 14 years, 8 months and 1 day of reclusion temporal as maximum. Inasmuch as appellant has been detained for more than the minimum penalty hereby imposed upon her, the director of the Bureau of Corrections may immediately RELEASE her from custody upon due determination that she is eligible for parole, unless she is being held for some other lawful cause. Costs de oficio. SO ORDERED.

SEPARATE OPINION/S

YNARES-SANTIAGO, *J, dissenting*	Votes to AQCUIT Marivic Genosa. Summary: The husband's threatening behavioral pattern (threats using bladed weapons) was sufficiently demonstrated and found to have bred Marivic's constant state of fear. These factors JUSTIFIED killing the deceased. Cycle of violence and constant fear = no opportunity beforehand to choose less fatal means of eliminating her suffering

	● Defense was able to establish the tension-building phase more than once (where the battered wife pacifies the husband or stays out of his way). She never tried to kill her husband before. ○ Marivic often requested for other's help, shelter, or company, when he would come home drunk or after an acute battering incident. ○ Generally, she often tried to ignore her husband's attitude, seek help to avoid it, or fight back just to prevent the abuse from taking place again. ● Acute battering incident stage and her husband's threats to kill her with the bolo/cutter were well demonstrated. ○ Physical abuses occurred at least 3x a week in 11yrs of the marriage: medical records of beatings showed bodily trauma even during pregnancy ● The tranquil period showed more than 5 occasions of Marivic seeking safety in her parent's house after violent fights, only to forgive him whenever he promised to change. ● BWS defense could not have been cunningly used on purpose. ○ Marivic only brought up BWS on automatic review, not in the lower courts. ● There was a basis for Marivic to fear a forthcoming attack or death because of a present danger/aggression posed on her life at the time she attacked him. (In other words, Marivic had reason to believe that he was going to kill her.) ○ He was verbally threatening to kill her while trying to get the gun. She was afraid he was going to kill her when he dragged her to the drawer where he kept the gun, and when he couldn't open the drawer, he wounded her wrist with a bolo, and brought out the cutter he used to threaten to cut her throat with (she only managed to run away every time he scared her with the cutter) ■ Physical assault + attempt to shoot her while she was 8mos pregnant = unlawful aggression ■ **Threatening behavior or communication can satisfy the required imminence of danger**. ○ She underwent treatment for hypertension due to domestically related emotional stress for 23 times, the latest one during pregnancy. ● Marivic could never be in a state of natural equanimity because she was proven to be constantly alert to the possibility of battery caused by 13-14 years of being a battered wife.

PEOPLE V. LUAGUE(1935)

Topic | Subtopic	ART 11. Justifying Circumstances | Defense of Honor	GR No. & Ponente	G.R No. 43588 | RECTO, J.
Plaintiff-Appellee	The People of the Philippine Islands	Defendants-appellants	Natividad Luague and Wenceslao Alcansare
Doctrine			

FACTS

The spouses Wenceslao Alcansare and Natividad Luague were charged with homicide in the Court of First Instance of Negros Occidental. The former was sentenced to eight years and one day of *prision mayor* to fourteen years, eight months and one day of *reclusion temporal,* and the latter was sentenced to six years and one day of *prision mayor* to twelve years and one day of *reclusion temporal*. Both were to indemnify jointly and severally the heirs of Paulino Disuasido in the sum of one thousand pesos, with costs. The spouses appealed for a review of judgement and prayed for reversal and acquittal.

In the morning of February 18, 1935, Natividad Luague was alone in their home in Lupuhan, Barrio Agpangi, Calatrava, Negros Occidental with her three small children as Wenceslao Alcansare set out to grind corn in Juan Garing's house situated several kilometers away.

- Paulino Disuasido arrived at their home and tried to rape Natividad though the latter tried to escape by making for their kitchen.
- Disuasido, bent on satisfying his desires, drew a knife on Natividad and began to touch her breasts and prepare to rape her. In doing so, he left the knife on the floor.
- Natividad, seeing her opening, picked the knife up and stabbed Paulino in the abdomen.
- Paulino escaped through the window after feeling himself injured and falling on the stones.
- Natividad ran away to the poblacion to surrender herself to the authorities and report the incident.

The prosecution alleges another version of events:

- Wenceslao Alcansare, thinking that Paulino importuned his wife with unchaste advances, decided to kill him out of jealousy.
- Wenceslao took his chance when Paulino passed in front of his house with his friend Olimpio Libosada. Natividad invited him in and asked if Paulino had a knife on him and and if he could lend it to her so that she may cut her nails.
- Natividad inquired as to where Paulino came from and upon answering that he came from the house of one Inting, she slashed him in the abdomen. In trying to fight back, Wenceslao hit him in the forehead with a stone. Wounded, Paulino fled therefrom.

The prosecution presented three witnesses:

- Pablo Alvarez (barrio lieutenant of Cabungahan): Alleged Natividad sought his help because Wenceslao was maltreating her and was jealous of Paulino and had resolved to assault him on sight. Further said that he saw Paulino & Olimpio go to the threshold of the house of the accused spouses & engaged w/ them in conversation.
- Angel Emia: testified that he saw the crime attributed to the two but had **made a previous statement disclaiming knowledge of who stabbed Paulino**.
- Olimpio Libosada: claimed to see what had transpired as he was accompanying Paulino

Main – Substantive	W/N Natividad Luague's act in mortally wounding Paulino Disuasido, unaided by coaccused Wenceslao Alcansare, constitutes an exempting circumstance defined in Art. 11 (1), of the Revised Penal Code?	YES

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARG.:
Natividad acted in self-defense. She stabbed Paulino because he was trying to rape her.	

RULING and RATIO DECIDENDI:

The Court ruled that the mortally wounding of Paulino by Natividad must be exempted from criminal liability as it became the only means left for her to protect her honor from so great an outrage.

The Court cited various cases and commentaries:
(1 Viada, 301, 5th Edition) - "Will the attempt to rape a woman constitute an aggression sufficient to put her in a state of legitimate defense? We think so"

- Rape is an outrage which impresses an indelible blot on the victim, for, as the Roman Law says: *quum virginitas, vel castitas, corrupta restitui non potest* (because virginity or chastity, once defiled, can't be restored)

February 21, 1911 Decision of the Supreme Court of Spain - This court in due homage to the principles of morality and in strict observance of the provision of law justly interpreted, has always held that one of the rights referred to in article 8, subsection 4, of the Penal Code, is that which assists a woman in defense of her honor when an attempt is made against it reasonably necessitating the use of violent means to repel the aggression or to avoid in time the imminent danger of its consummation;

The Court also ruled that the prosecution's theory was unsubstantial for the following reasons:

1. Natividad was a resident of Agpangi, not Cabungahan**. If she was going to seek help, it would be from the barrio lieutenant of Agpangi and not from Alvarez**. The fact that she went straight to the municipal authorities directly without assistance from the barrio lieutenant meant she knew where to go.
2. If it was true that Wenceslao planned to kill Paulino because of jealousy, it would be because Natividad returned the latter's advances. If so, it would be illogical that Wenceslao would make his wife kill Paulino, and that Natividad would actually do so. On the contrary, **if Wenceslao truly was jealous, he would kill or hurt Paulino himself, as would a majority of men would do in similar circumstances.**
3. If Alvarez indeed was informed of Wenceslao's plan to kill Paulino, it would be **extremely strange** that he went away unconcerned, as if nothing serious was impending. His conduct is so out of the ordinary that it is **devoid of probability**.
4. If the spouses truly planned to kill Paulino, they would have had weapons ready for the deed. Not a rusty bolo nor an outworn club was present in their home. **Natividad had to use Paulino's knife against him in defense.**
5. Angel Emia should not have been given credit for his previous statement disclaiming knowledge of who stabbed Paulino
6. Paulino did not say in his two statements before death that he was accompanied by anyone. **Libosada's testimony that he did would be inconsistent and strange**.
    a. Contradicts what Paulino said himself.
    b. If they were friends, why did he do nothing to help and defend Paulino in the most critical moment? Why did he not report the crime to authorities? His excuse for disappearing from the scene for fear of being implicated is frivolous.
    c. After the discarding of Emia's testimony, **nothing corroborates his testimony**. Makes it weak and unable to support a judgement of conviction.
7. The trial judge erred in giving importance to the testimony of the two policemen that surveyed the scene after the crime which stated that no blood was found in the kitchen thereby destroying the theory of self-defense by Natividad. There was no blood on the threshold either, thereby contradicting what the prosecution has alleged in their theory.

LEGAL BASES

Article 11, subsection 1, Revised Penal Code -
Art 11 Justifying Circumstances – The following do not incur any criminal liability:

1. Anyone who acts in defense of his person or rights, provided that the following circumstances concur:
    a. First, unlawful aggression
    b. Second, reasonable necessity of the means employed to prevent or repel it
    c. Third, lack of sufficient provocation on the part of the person defending himself.

FINAL DECISION	In resume, we are of the opinion that we should, as we do hereby hold that the accused Natividad Luague in wounding Paulino Disuasido to death, acted in legitimate self-defense, and that the other accused Wenceslao Alcansare **had no participation in said act**; wherefore, **reversing the appealed judgment**, we hereby acquit both accused, and order their immediate

	release, if in confinement, with costs de oficio.

PEOPLE v. JAURIGUE (1946)

Topic | Subtopic	ART 11. Justifying Circumstances | Defense of Honor	GR No. & Ponente	Adm. Matter 384 | De Joya, J.
Petitioner/s	THE PEOPLE OF THE PHILIPPINES, plaintiff and appellee	**Respondent/s**	NICOLAS JAURIGUE and AVELINA JAURIGUE, defendants. AVELINA JAURIGUE, appellant
Doctrine	The attempt to rape a woman constitutes an unlawful aggression sufficient to put her in a state of legitimate defense, inasmuch as a woman's honor cannot but be esteemed as a right as precious, if not more, than her very existence; and it is evident that a woman who, thus imperiled, wounds, nay kills the offender, should be afforded exemption from criminal liability, since such killing cannot be considered a crime from the moment it became the only means left for her to protect her honor from so great an outrage.		

FACTS

TL;DR Amado is a creepy stalker who has been harassing the defendant. The defendant was being touched by Amado (without consent) in a well-lit chapel with people, so she stabbed him because she couldn't take in anymore.

Avelina Jaurigue and Amado Capiña (the deceased) lived in Sta. Isabel, City of San Pablo, province of Laguna. Amado had been courting Avelina in vain. On one occasion, Amado even snatched Avelina's handkerchief bearing her nickname "Aveling" while it was being washed by her cousin.

FIRST INSTANCE: Sept 13, 1942: Avelina was feeding a dog under her house when Amado approached her and spoke to her of his love. She refused him flatly. He suddenly embraced and kissed her, and touched her breasts - Avelina's response ("a resolute and quick-tempered girl") was to slap Amado, give him fist blows, and kick him. She kept it to herself until the next morning when she informed her mother about it. Ever since, she brought around a long fan knife for protection.

SECOND INSTANCE: Sept 15, 1942: At about midnight, Amado climbed up her house and quietly entered her room. He felt her forehead with the intention of abusing her - she screamed for help, waking her parents who went to her side. Amado came out from where he had hidden under a bed in Avelina's room, kissed the hand of her father (Nicola Jaurigue) and asked for forgiveness. When Avelina's mother tried to beat Amado, her husband stopped her by saying Amado probably did not realize what he was doing. The morning after, the father Nicolas sent for the barrio lieutenant, Casimiro Lozada, and for Amado's parents. Amado's parents apologized, but Nicolas told them to stop the conversation because he was so angry he might not be able to contain himself.

THIRD INSTANCE: Sept 20, 1942: In the morning, Avelina heard that Amado was boasting about having slept with her and that she had even asked him to elope with her, and that if he didn't marry her, she would drink poison; and she heard about it again at 5 PM. At 8 PM, Nicolas went to the chapel of the Seventh Day Adventists across the provincial road from his house to attend religious services and Avelina joined shortly after.

HOW SHE KILLED HIM: Amado was seated on the other side, then went to Avelina's bench, then placed his hand on the upper part of her right thigh. Seeing this, Avelina pulled out the fan knife from her dress pocket. Amado seized her right hand to stop her, but she grabbed the knife with her left hand and stabbed Amado once at the base of the left side of the neck (wound 4 ½ inches deep) which was mortal.

Nicolas saw Amado bleeding and staggering towards the altar, and seeing his daughter, he approached and asked her "Why did you do that?" Avelina said "Father, I could not endure anymore". Amado died a few minutes after, and the barrio lieutenant also asked Avelina why she did that. Avelina surrendered herself and said "Kayo na po ang bahala sa aquin".

The barrio lieutenant Lozada told the Jaurigues to go home immediately, close their doors and windows, and not let anyone into the house for fear of retaliation from Amado's family. They followed, waited for the arrival of the municipal authorities, and they surrendered the knife and informed the policemen of what happened.

Main – Substantive	W/N defense of honor is a valid justifying circumstance in this case	NO

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
Killing in a place of religious worship is an aggravating circumstance (**not accepted by the Court b/c no evidence to prove she intended to kill him**)	

RULING and RATIO DECIDENDI:

1. If defendant and appellant had killed Amado Capina when he climbed up her house late at night (obviously for the purpose of raping her), she could have been perfectly justified in killing him
2. However, when Amado sat on the same bench as her near the door of the barrio chapel and touched her without her consent, there were electric lights, about 10 people in the chapel including her father and other dignitaries = there was no possibility of her being raped
    a. When she killed him, the means employed were evidently excessive so she cannot be exempt from criminal liability
3. HOWEVER: (1) the fact that she surrendered immediately, voluntarily, and unconditionally to the barrio lieutenant and followed the barrio lieutenant's orders + (2) she acted because of the grave offense committed against her + (3) she did not intend to kill as shown by the fact she only inflicted one wound = **mitigating circumstances in her favor**

LEGAL BASES

FINAL DECISION	The law prescribes the penalty of reclusión temporal for the crime of homicide; and if it should be reduced by two degrees, the penalty to be imposed in the instant case is that of prisión correccional; and pursuant to the provisions of section 1 of Act No. 4103 of the Philippine Legislature, known as the Indeterminate Sentence Law, herein defendant and appellant should be sentenced to an indeterminate penalty ranging from arresto mayor in its medium degree, to prisión correccional in its medium degree. Consequently, with the modification of the judgment appealed from, defendant and appellant Avelina Jaurigue is hereby sentenced to an indeterminate penalty ranging from two months and one day of arresto mayor, as minimum, to two years, four months, and one day of prisión correccional, as maximum, with the accessory penalties prescribed by law, to indemnify the heirs of the deceased Amado Capiña, in the sum of P2,000, and to suffer the corresponding subsidiary imprisonment, not to exceed 1/3 of the principal penalty, in case of insolvency, and to pay the costs. Defendant and appellant should also be given the benefit of ½ of her preventive imprisonment, and the knife marked Exhibit B ordered confiscated. So ordered.

PEOPLE V. APOLINAR (1938)

Topic | Subtopic	Art. 11: Justifying Circumstances (Defense of Property)	GR No. & Ponente	G.R. No. 1744 | Hontiveros, J.
Petitioner/s	People of the Philippines	Respondent/s	Anastacio Apolinar
Doctrine	Defense of property can only be invoked as a justifying circumstance when it is coupled with an attack on the person entrusted with said property.		

FACTS

Midnight of Dec 22, 1936 - Anastacio Apolinar ("Atong") was the occupant of a parcel of land owned by Joaquin Gonzales in Papallasen, La Paz, Umingan, Pangasinan. Atong was armed with a **shotgun** and was looking over the land. He observed that there was a man carrying a bundle on his shoulder. Believing that the man was a thief of palay, Atong called his attention, but the man ignored him. Thereafter, **Atong fired in the air and then at the person, who managed to flee.**

The person was later identified as Domingo Petras. Upon returning to his house, he told Angel Natividad (the barrio chief) that he had been **wounded in the back by a shotgun** for getting palay from the part of the land tilled by Atong. He showed his two wounds: **one in each side of the spinal column, which were circular and a little bigger than a quarter of an inch** (according to the medical report of Dr. Mananquil).

Dec 23, 1936 - Atong surrendered to the authorities immediately after the incident and gave a sworn statement before the Justice of Peace of Umingan. He admitted seeing a person coming from the water carrying a sack filled with palay and shouting to ask who he was. However, he received no response, and so he fired in the air. Upon asking again, the man still did not give any response, and instead turned around and started to flee. Only then did Atong fire at him.

Atong did not mention any aggression committed by Petras toward Bonifacio Mendones (barrio chief), which is now the basis of his defense before the Court of First Instance of Pangasinan. He, along with other witnesses, claimed that Petras attacked Mendones with a bolo, but no bolo has been presented before the Court.

Main – Substantive	W/N an individual can invoke defense of property as a justifying circumstance to exempt him from criminal liability	NO

RULING and RATIO DECIDENDI:

While it was found that Petras was indeed carrying the sack of palay from the land tilled by Atong, the Court emphasized that **the right to property is not of such importance as the right to life**. Moreover, defense of property as a justifying circumstance can only be invoked when it is coupled with an attack on the person entrusted with said property.

In the absence of any aggravating circumstance, the presence of extenuating circumstances of **obfuscation and voluntary surrender** can nonetheless be considered in his favor and entitle him to a reduction of the penalty by one degree to the next lower penalty (prision mayor), pursuant to Article 63, paragraph 5 of the RPC.

LEGAL BASES

Article 63(5) of the RPC - When the commission of the act is attended by some mitigating circumstance and there is no aggravating circumstance, the lesser penalty shall be applied.

FINAL DECISION	Considering the facts of the case, we decide that judgment must be **modified** by imposing on the defendant and appeallant an **indeterminate penalty** with a minimum of 2 years of prison correccional and a maximum of 8 years and one day of prison mayor. With this modification, we affirm all other respects of the appealed decision with costs against

	appellant. So ordered.

US V. BUMANGLAG (1909)

Topic | Subtopic	Art. 11: Justifying Circumstances (Defense of Property)	GR No. & Ponente	G.R. No. 5318 | Torres, J.
Petitioner/s	The United States	Respondent/s	Rafael Bumanglag et al. (Defendants) Gregorio Bundoc (Appellant)
Doctrine	The mere taking of personal property does not authorize the property owner to use lethal force. Without proof of actual or imminent unlawful aggression, the killing of a thief cannot be justified.		

FACTS

On the night of Jan 2, 1909 - Rafael Bumanglag, an inhabitant of the pueblo of San Nicolas, Ilocos Norte, missed **40 bundles of palay kept in his granary** situated in Payas, Barrio No. 16 of the said pueblo.

As he searched for them the following morning, he found them in an **enclosed field** planted with sugar cane, at a distance of about 100 meters from his granary. For the purpose of ascertaining who had done it, he left the palay there. Later in the night, Bumanglag, together with Bundoc, Ribao, and Tumamao, waited near the field for the person who might return to get the palay.

- Bundoc = Bumanglag's cousin
- Ribao and Tumamao = his neighbors and friends

A man, who turned out to be Guillermo Ribis, appeared and approached the palay, and attempted to carry it with him. However, at that instant, **Bumanglag, Bundoc, and Ribao assulted him with sticks and cutting and stabbing weapons**. They believed that Ribis was the author of several robberies and thefts that occured in the place. As a result of the struggle, **Ribis suffered serious wounds and bruises, fell down, and died instantly.**

The provincial fiscal then filed a complaint charging Bumanglag, Bundoc, and Ribao with **homicide**. The trial judge sentenced the three of them to the penalty of 14 years, 8 months, and 1 day of reclusion temporal, with the accessories, and to the payment of an indemnity of P1,000 to the heirs of the deceased, and the costs in equal parts. Only Bundoc appealed his conviction to the Supreme Court.

Main – Substantive	W/N an individual who assaults and kills a thief caught in the act of taking property (palay) can claim exemption from criminal liability under Article 11	NO

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
	During the fight with Ribis, they only beat him with sticks because he unsheathed the bolo he carried.

RULING and RATIO DECIDENDI:

The Court held that the killing of Ribis was **NOT justified** because **there was no prior unlawful physical aggression by the victim.**

Bundoc's claim that he and his codefendants only assaulted and killed Ribis to defend themselves from an attack the victim made with a bolo was not supported by evidence. **The bolo worn by the deceased was in its heath and hanging from his waist.** Hence, it can not be concluded that the deceased intended to assault his murderers with his bolo either before he was attacked by them or during the fight because **it would have been found unsheathed at the place where the fight occurred**. It is unreasonable to believe that he succeeded in sheathing his bolo before falling to the ground in a dying condition.

Hence, Bundoc is guilty of **homicide as co-principal by direct participation**, fully convicted, together with his codefendants already serving their sentence.

However, the Court considered the following mitigating circumstances as admissible:

- No. 7, Art 9 of the Penal Code **(No. 6, Art 13 of RPC)** = he acted with loss of reason and self-control upon seeing Ribis taking material possession of the palay (to the damage and prejudice of laborers who wish to provide for themselves and their families).
- Article 11 of the Penal Code = erroneous and quite general belief that it is legal to punish thieves who devote themselves to depriving his neighbors of the fruits of their labors

LEGAL BASES

Article 63(5) of the RPC - When the commission of the act is attended by some mitigating circumstance and there is no aggravating circumstance, the lesser penalty shall be applied.

FINAL DECISION	By virtue of the foregoing considerations, we are of the opinion that, the judgment appealed from **being reversed with respect to Gregorio Bundoc only**, the latter should be, and is hereby, sentenced to the penalty of six years and one day of prision mayor, to the accessories of article 61 of the code, to indemnify the heirs of the deceased jointly or severally with his codefendants, in the sum of P1,000, and to pay one-third the costs of both instances. So ordered.

**there is more helpful info in the section below!*

SEPARATE OPINION/S

MORELAND, *J,* & **CARSON**, *J, dissenting/ concurring*	Under all the circumstances, there is strong doubt of Bundoc's legal responsibility for the crime charged, and **he would be acquitted.** **Bundoc's testimony:** ● At 10:00PM that night, he saw Ribis enter the field and approach the palay. A little while after, Bumanglag called him and other others for help because a man was attacking him + had a bolo, while he only had a bamboo stick. ● He and his companions only took part in the fight to protect his cousin, and Ribis was killed because of the struggle that followed. ● He recognized the deceased as a resident of San Nicolas, who had bad character and was known as the author of various robberies and burglaries that occurred in the vicinity. ● The statements of the other defendants are substantially the same **Bumanglag's testimony:** ● Ribis came into the field, picked up the palay, and started to go away with it when Bumanglag told him to halt ● Ribis instantly dropped the bundle to the ground and immediately attacked him with a bolo, striking at him several times but failing to hit him because of the stalks of sugar cane that he interposed between himself and his assailant ● While Ribis was trying to kill him with the bolo and he was defending himself with a bamboo stick, he called to his companions for help. Between the three, they struck Ribis with several blows, from which he died immediately. The lower court, however, refused to believe the story of defendants because of certain alleged contradictory circumstances. Hence, they found them guilty of **homicide**. ● The defendants claim in their testimonies that the deceased attacked Bumanglag with his bolo, but when his body was taken possession of by the justice of the peace on the next day, **the bolo was still in its sheath** ● While the defendants stated and testified that they were not armed with any kind of weapons except bamboo sticks or clubs, the testimony of Barba (sanitary inspector of that district) shows that **some of the wounds upon the body of the deceased were made with sharp instruments** However, Moreland said that: ● On the claim that the bolo was still in its sheath: ○ No one watched the body during the interval between the time when the death occurred and when the body was first examined, and therefore **no one knows how it was handled or what was done with it** ● On the claim that the deceased's wounds were made with sharp instruments: ○ Barba stated that he had two mortal wounds: ■ One in the right side of the head, caused by a sharp instrument ■ One contusion at the base of the neck (the left side) not made with a sharp instrument ○ **He does not say which one of the wounds caused the death of the decedent, neither does he state the facts upon which he bases his claim that the wounds were made with sharp instruments** ■ Barba was not a physician or surgeon and had little experience with wounds — in no sense was he qualified as an expert. ○ It is well known, however, that a smooth edged and clean cut wound may be frequently produced by a wooden instrument or club, particularly where, as in this case, said instrument or club is extremely hard and has a sharp edge ○ The only wounds found were in his **head, neck, and face.** No wound was found on any other part of him, which was unlikely if the weapon used to kill him was a knife/bolo. ■ Should he have been hit in the head, the wound made would have been far more extensive and ghastly than any of those found

	The deceased was an **established criminal, a convicted robber, a leader of criminal bands, and an infamous desperado of exceptionally large stature and unusual physical strength.** ● On the evening before his death, he had robbed Bumanglag's granary and already took a portion of the palay. He left a portion behind (bc he was unable to carry them all) **It is not known who among the defendants killed the decedent or what blow caused his death.** All that is known is that in the struggle which occurred, resulting from the efforts of the three defendants to save Bumanglag, the decedent met his death. ● There is no proof that they sought or intendent to kill Ribas ● **The Court held that a bamboo stick was a weapon ordinarily insufficient to put someone's life in imminent peril** **[IMPORTANT]** Moreland believes that there is strong doubt of Bundoc's criminal responsibility: ● **On unlawful agression:** ○ While Ribas had a bolo at the time of the assault, it was found to be in its sheath when his body was examined the next day. However, it is unbelievable that a hardened desperado like him, who was caught red-handed by the man whose property he invaded, would fight with his bare hands while carrying a formidable weapon at his side. **It is then likely that he drew and unsheathed his bolo and attacked Bumanglag therewith.** ○ While he was attacked on his own premises and was defending his property, he tried retreating as far as safety permitted, interposing between himself and his assailant stalks of sugar cane to impede the blows aimed at him, and warding off the bolo thrusts with his bamboo stick. ○ **Not only was there unlawful aggression against Bumanglag, but there was also a wrongful invasion of his habitation and an attempt to commit a felony against his property.** ■ *While the premises where the assault occurred was not Bumanglag's habitation, the law makes no substantial distinction between the two for purposes of self-defense* ■ *Hence, if necessary to prevent the felony (taking of the palay) and if the deceased advanced upon him in a threatening manner and the defendant at the time had reasonable grounds to believe that the deceased intended to take his life or do him great bodily harm,* ***he was not obliged to retreat and was entitled to stand his ground, meet any attack made upon him, and even lawfully kill the person attempting his life.*** ● **On reasonable means:** ○ Given the circumstances (it was dark and they were facing an armed notorious criminal), it was unreasonable for the defendants to seize him merely with their bare hands as this would place them in great danger of being seriously wounded ○ Moreover, if they wanted to save Bumanglag from imminent danger, the aggressor must be dealt with quickly and summarily. **Under such circumstances, the law does not hold men to the standards of careful thought and calm judgment.** Lastly, there is neither claim nor evidence that any of the defendants were actuated in their defense of Bumanglag by **revenge, resentment, or other illegal motive.**

People v. Narvaez (1983)

Topic | Subtopic	Art. 11: Justifying Circumstances (Defense of property)	GR No. & Ponente	G.R. Nos. L-33466-67 | MAKASIAR, J.
Petitioner/s	PEOPLE OF THE PHILIPPINES	Respondent/s	MAMERTO NARVAEZ
Doctrine	As provided in Article 11 (1), acts in defense of his persons or rights also includes his property.		

FACTS

The case is an appeal from the decision of the CFI of South Cotabato Branch I in Criminal Cases:

- Crime of **MURDER** qualified by treachery with the aggravating circumstance of evident premediation offset by mitigating circumstance of voluntary surrender. Penalty - RECLUSION PERPERTUA
  - Criminal Case No. 1815 (Davis Q. Fleischer)
  - Criminal Case No. 1816 (Flaviano Rubia)

PART 1: FACTS ABOUT THE CRIMINAL CASE

- August 22, 1968, 2:30PM - Graciano Juan, Jesus Verano, and Cesar Ibanez, together with **Fleischer and Rubia (**the two deceased) were **fencing the land of George Fleischer**, father of the deceased Davis Fleischer)
  - The place was in a boundary of the highway and the hacienda owned by George located in Maitum, South Cotabato. At the area that was being fenced, there was a house and rice drier that was owned by **Mamerto Narvaez**, the accused and appellant.
  - The appellant was taking a rest in his house when he heard the walls of his house being chiselled, he arose and saw the fencing.
    - If the fencing continued, his house and bodega would be prevented access to his house and bodega of rice mill.
  - Narvaez addressed the group -*'Pare, if possible you stop destroying my house and if possible we will talk it over - what is good, ->* addressed to Rubia who is the compadre of Narvaez
  - Fleischer, angered, answered '*No, gademit, proceed, go ahead.'*
  - Narvaez lost his equilibrium and got his shotgun and shot at Fleischer, hitting him. When Fleischer fell down, Rubia ran towards the jeep. Narvaez knew that there was a gun there which led to him shooting Rubia as will. The 2 people shot died.
  - The appellant surrendered to the police thereafter, bringing his shotgun and claimed that he shot two people

This incident is intertwined with the long drawn battle between Fleischer and Co., (Fleischer was secretary treasurer and Rubia - assistant manager, while accused - one of the land settlers of Cotabato

Part 2: THE CIVIL CASE - ANTECEDENT FACTS / PREQUEL (G.R. No. L-26757 and L-45504)

- Narvaez was one of the people who came from northern and central Luzon who went to Mindanao in 1937 and settled in Maitum, a former sitio of Kiamba, which is now a municipality of South Cotabato . He was one of the among who urged Pres. Quezon to order the subdivision of the defunct Celebes Plantation and nearby Kalaong Plantation - 2000 hectares among the settlers
  - Fleischer and Co., (headed by George Fleischer, an American land owner in Negros Oriental filed a sales application covering the same area formerly leased and abandoned by Celebes Plantation covering 1,017.2234 hectares.
  - The subdivision was ordered and a public land surveyor did a land survey but was not submitted until 1946 due to WW2
    - Result: 300 hectares were set aside for the Sales application while the reset were subdivided into 5-6 hectares each to be distributed among the settlers
- Fleischer and Co., was open for disposition and public auction but they were also the only ones who bidded for the same sale of the land. The settlers protested the awarding of the bid and it was held in abeyance. An investigation was ordered by the Director of lands to Kiamba in the person of Atty. Jose Gozon. 10 days later there was an amicable statement signed by the reps of the settlers but was later repudiated by the same BUT the bid was still awarded to the company. They appealed to the Secretary of Agriculture and Natural Resources but affirmed in favor of the company.

- The settlers filed a civil case in the CFI of Cotabato (Civ Case No. 240) to annul the order of the Sec. of Agri and Natural Resources. The settlers lost the case in view of the amicable statement (they contested that they repudiated as result from threats and intimidation, deceit, misrepresentation, and fraudulent machination on part of the company.
  - The settlers were ousted from the land that they were occupying for 30 years. The appellant, to avoid trouble, dismantled his house (built in 1947, at a cost of P20k) and transferred to another house he has built near the highway.
    - Not far from the first house, 1st floor had a store that was rented by Ms. Talens. Other than the store, **there was a rice mill 15 meters east of the house, and a concrete pavement between the rice mill and the house for drying grains and copra**
- Another civil case (Civil Case No. 755) was filed to obtain an injunction or annulment of the order of the award with prayer for preliminary injunction.
  - During the pendency of the case - appellant agreed to be in a lease agreement with the company where by he agreed to lease an area of 100-140 sqm of Lot 38 from the company for P16 monthly. He signed the contract due to uncertainty and to avoid trouble until the ownership issue was resolved.
    - On June 25, 1968, Narvaez received a letter from the deceased Fleschier that he has not payed for 6 months. The agreement is terminated, and Narvaez has 6 months to remove his house, and other properties (Dec. 31, 1968), otherwise all will be demolished.
- On August 21, 1968, the 2 deceased and their laborers started fencing Lot 38. Some of the posts were placed right on the concrete drier of appellant which cut across diagonally its center + last post was adjacent to Navaez's house -> lost of accessibility since the door of the house and rice mill opens to Flescher's side. The fencing continued on the Aug. 22, 1968 with the installation of four strands of barbed wire to the posts.
  - Narvaez who was taking a nap after working on his farm all morning, was awakened by the noise and he saw the wall of his house was being chiseled by one of the laborers with a crowbar, Rubia was nailing the barbed wire, and Fleischer was commanding his laborers. The jeep was parked on the highway. The events that followed is in [PART 1 ABOVE]

Appellant now argues in this appeal that he was acting in ***self-defense of his person and of his rights***

ISSUE 1

Main – Procedural	**Whether the appellant acted in self-defense in accordance with Art. 11 (1) of the RPC?**	**NO/PARTLY. INCOMPLETE DEFENSE - 2nd requisite was not fulfilled**

RULING and RATIO DECIDENDI:

The appellant act in killing the deceased was not justifiable, therefore he should be held liable BUT he is credited with the mitigating circumstance of INCOMPLETE DEFENSE (Art. 13 (6) of the RPC)

- **Unlawful Aggression - YES**
  - The aggression referred to by the appellant is the angry utterance by deceased Fleischer with his words: "Hindi, sigue, gademit, avante," which was the reply to what appellant said to Rubia "Pare, hinto mona ninyo at pag-usapan natin kung ano ang mabuti". After which, Narvaez lost his senses took the gun from his bed and shot Mr. Fleischer, and shot Rubia in fear of that Narvaez will be killed by the gun placed in the jeep.
    - Fleischer angrily ordering the continuance of the fencing which would have resulted in teh further chiselling of his home as well as closure to the access to and from his house and mill which was in progress. -> Court ruled that it is AGGRESSION
      - The Court further ruled that it was UNLAWFUL AGGRESSION since Civil Case No. 755 (appeal) was still pending and the parties could have not known that the case would be dismissed due to res judicata. It is reasonable to believe that appellant was indeed hoping for a favorable judgement in the Civil Case and the lease was just to avoid trouble since they did not know who actually owned the land at the time.
      - The letter addressed to him which indicated the 6 month deadline had not yet lapsed but the area was already being fenced off and the wall of his house was being chiselled off already. Following Art. 536 and 539 of the Civil Code, the deceased had no right to fence nor close the accessibility

of appellant's home. Therefore, there is unlawful aggression.

- **Reasonable necessity of the means employed to prevent or repel it - NO**
  - Appellant shooting two people using his shotgun from his window killing 2 people was disproportionate to the attack
- **Lack of sufficient provocation on the part of the person defending himself - YES**
  - There was no provocation on his part since he was asleep at first and was awakened by the noise produced by the victims. His plea to stop the fencing was no provocation at all.

Therefore, since there was a lack in one of the elements to constitute as self-defense, appellant's act in killing the deceased was not justifiable BUT incomplete defense is ruled by the Court.

LEGAL BASES

ART. 11. Justifying circumstances.—The following do not incur any criminal liability:
Anyone who acts in defense of his person or rights, provided that the following circumstances concur:

- First. Unlawful aggression;
- Second. Reasonable necessity of the means employed to prevent or repel it;
- Third. Lack of sufficient provocation on the part of the person defending himself.

ART. 13. Mitigating circumstances.—The following are mitigating circumstances:

6. That of having acted upon an impulse so powerful as naturally to have produced passion or obfuscation.

Art. 536. In no case may possession be acquired through force or intimidation as long as there is a possessor who objects thereto. He who believes that he has an action or a right to deprive another of the holding of a thing must invoke the aid of the competent court, if the holder should refuse to deliver the thing.

Art. 539. Every possessor has a right to be respected in his possession; and should he be disturbed therein he shall be protected in or restored to said possession by the means established by the laws and the Rules of Court" (Articles 536 and 539, Civil Code of the Philippines).

ISSUE 2

Main – Substantive	**W/N the qualifying circumstances of treachery and premediation are present?**	**NO**

RULING and RATIO DECIDENDI:

Treachery

- Treachery cannot be appreciated due to the presence of provocation on the part of the deceased.
- As held in People v. Manlapaz - the element of unprovoked attack is lacking
- People vs. Canete - it must clearly appear that the method of assault adopted by the aggressor was deliberately chosen with a special view to the accomplishment of the act w/o risk to the assailant from any defense that the party assailed might have made. -> this does not apply if the attack was instantaneous

Premediation

- Not sufficiently established.
  - The testimony of Crisanto Ibanez (laborer of Fleischer and Co) which said that Narvaez's wife told him about the fencing and that Narvaez will break the deceased's head, was not sufficient to warrant appreciation of premeditation. There must be DIRECT evidence to show this circumstance through outward acts.
    - Moreover, the witness is biased since he was a laborer of David Fleishcer, therefore nullifying his credibility
  - Premediation is further negated by the appellant pleading the victims to stop the fencing just before the shooting

ISSUE 3

Side – Substantive	**W/N the mitigating circumstances of voluntary surrender and passion and obfuscation is appreciated?**	**YES**

RULING and RATIO DECIDENDI:

Voluntary surrender
- The trial court appreciated the voluntary surrender made by the appellant soon after the shooting

Passion and Obfuscation
- Passion and Obfuscation attended the commission of the crime
  - Since appellant awoke to find his house being damaged and losing accessibility to the highway, as well the event leading to this (transferring to his only house, 30 years of migrating earlier to this) must have aggravated his obfuscation that he lost momentarily all reason causing him to reach his shotgun and fire at his victims

ISSUE 4

Side – Procedural	**W/N the penalty must be modified?**	**YES**

RULING and RATIO DECIDENDI:

YES. Appellant is guilty of two crimes of homicide only, the killing not being attended by any qualifying nor aggravating circumstance, but extenuated by the privileged mitigating circumstance of incomplete defense - in view of the presence of unlawful aggression on the part of the victims and lack of sufficient provocation on the part of the appellant - & by 2 generic mitigating circumstances of voluntary surrender and passion & obfuscation.

- Art. 249 of the RPC - Penalty of homicide -> reclusion temporal. Pursuant to Art. 69, the penalty lower by one or two degrees shall be imposed if the deed is not wholly excusable by reason of the lack of some of the conditions required to justify the same.
- Since majority of the reqs of self-defense of property are present the penalty may be lowered by two degrees i.e. prison correccional. It can also be reduced to arresto mayor because of the presence of two mitigating circumstances and no aggravating circumstances.
- Civil liability must also be lowered because the victims not only contributed but they actually provoked the attack by damaging the appellant's properties and business. The moral and material suffering of appellant and family deserves leniency to his civil liability
- Furthermore, under Republic Act No. 5465, subsidiary imprisonment applies exclusively to unpaid fines, excluding civil liabilities such as reparations, indemnification, and court costs. Because this amendment benefits the accused, it may be applied retroactively to non-habitual delinquents under Article 22 of the RPC.

FINAL DECI-SION	Wherefore, finding appellant guilty beyond reasonable doubt of only two (2) homicides, mitigated by the privileged extenuating circumstance of incomplete self-defense as well as by two (2) generic mitigating circumstances of voluntary surrender and obfuscation, without any aggravating circumstance, appellant is hereby sentenced to suffer an imprisonment of four (4) months of arresto mayor, to indemnify each group of heirs of Davis Fleischer and of Flaviano Rubia in the sum of four thousand (p4,000.00) pesos, without subsidiary imprisonment and without any award for moral damages and attorney's fees. Considering that appellant has been under detention for almost fourteen (14) years now since his voluntary surrender on August 22, 1968, his immediate release is hereby ordered. No costs.

SEPARATE OPINION/S

ABAD SANTOS, J. *Dissenting*	I dissent. The self-defense of the Revised Penal Code refers to unlawful aggression on persons, not property.
GUTIERREZ JR, *J, dissenting/ concurring*	● The attack on the person defending his property is an indispensible element where an accused pleads for self-defense but what is basically defended is only property ● Defense of property is not of such importance as the right to life and defense property can only be invoked when it is coupled with some form of attack on the person. ● No evidence that an attack was attempted upon the person of the appellant. What was uttered by Fleischer isn't unlawful aggression which entitles the defendant to self defense. ● Since the appellant is guilty, the maximum sentence should be given plus the imdemnation of the heirs. Considering that the appellant has been under detention for over 14 years, he has served the penalty and should be released.

PEOPLE V. CHUA HIONG (1938)

Topic | Subtopic	**Art. 11: Justifying Circumstances (Defense of Property)**	GR No. & Ponente	**G.R. No. 1744 | Hontiveros, J.**
Petitioner/s	People of the Philippines	**Respondent/s**	Anastacio Apolinar
Doctrine	Defense of reputation through the use of libelous columns is valid when one uses such in order to debunk the claims made against him in a previous column.		

FACTS

Federico M. Chua Hiong wrote a "Seriously Speaking" column. This would cause him to be charged and later on **held liable for libel towards Cesario Goheco, his nephew.** In such a letter, he mentions that Cesario Goheco, who was his nephew, was to blame for the prosecution mania going against him. That he was the mastermind behind the letter of Benito Solipeo, who he believed was not real. That said letter was sent to a rope, as if to ask Federico to kill himself.

It is revealed later on that Cesario Goheco, his own nephew, wrote the column that Chua Hiong was defending himself from: "Doubtful Citizenship." In such a column, Cesario Goheco was questioning Chua Hiong's nationality, claiming that there was no way his mother was Tita Umandap, a Filipino woman, when Chua Hiong was born in China and Umandap had never left the Philippines.

ISSUE 1

Main – Substantive	**W/N the use of the libelous column in order to defend his reputation constitutes as reasonable means to defend himself.**	**YES**

RULING and RATIO DECIDENDI:

The Court found that it was ***natural for Chua Hiong to defend himself and debunk any doubts readers of his nephew's column would have in regards to his citizenship.***

He is a Filipino living in the Philippines, and his livelihood depends on enterprises that only Filipinos can engage in. Moreover, the column published only **reflected sides which were disfavorable to him** – thus, it cannot be said that such a column was justifiably written *under civic spiritedness*.

This would cause Chua Hiong to air his grievances through the column. He also mentioned that he is *ashamed* being Cesario's close kin, and that he did not necessarily with him all the necessary evils.

FINAL DECISION	We find that the libel in question is justified and the appellant is, therefore, **acquitted** with costs de officio.

People v Pantaleon V. Pelayo

Topic | Subtopic	Justifying Circumstances - Defense of Reputation	GR No. & Ponente	05152-CR
Petitioner/s	People, Alejandro Almendras	Respondent/s	Pataleon V. Pelayo
Doctrine	If A slandered B, B cannot invoke self-defense to make defamatory remarks against A. Such an act will be considered as an entirely independent act to which B may be held liable.		

FACTS

Pantaleon V. Pelayo shared with Atty. Clapano (*with the hearing of Banez, Mascarinas, and Parmisano*) that a Chinese operator named Lim Peng told him that, "I am giving Gov. Alejandro Almendras P500 as protection money every month, and when I could no longer afford the Governor's demand for P1,000, Lim Peng's place was raided (*non-verbatim*)."

On the following day, Pelayo (*accused*) delivered a privilege speech during the regular session of the City Council of Davao City wherein, although without directly mentioning the governor as receiving "tongs", the reference to the latter after a series of interpellations and answers during the speech, became obvious.

As a result, Pelayo was convicted with light oral defamation, sentencing him to 20 days of imprisonment, and Php1000 in damages.

Main – Substantive	W/N Pelayo is guilty of light oral defamation	YES

PETITIONER/S ARGUMENTS:

1. The words he uttered is covered by the rule of privileged communication
2. The words he uttered is a defense to what Gov. Almendras stated in a speech against him a few days before

RULING and RATIO DECIDENDI:

YES. Pelayo is guilty of light oral defamation.

1. The court doubted that Pelayo acted in a sense of duty, moral, legal, or social when he shared the matter to Clapano. If he was carried by that sense of duty as he claims, it was not necessary for him to give his information to Clapano who was not his superior nor the party to whom the information should be given. He could have made the revelation himself either in open session or by taking the necessary steps to have the matter investigated. As a member of the city council, Pelayo owes no legal or moral duty to Clapano. **In short, the act of sharing the information to Atty. Clapano, who is not his superior, is not covered by the rule of privilege communication.**
2. Although self-defense against libel or slander may be invoked as a legitimate defense, this case does not warrant such defense. Where the defender goes beyond more explaining his side and/or repairing, minimizing, or removing the effect of the damage by hitting back with equally if not more scurrilous remarks against the one who first made the imputation, his retaliation becomes an entirely independent act of his own of which he may stand to answer the consequences. **In short, a slanderous statement received by Pelayo did not entitle him to make a similar slanderous statement against Gov. Almendras. In doing so, he committed an entirely independent act which he may stand to answer the consequences.**

FINAL DECISION	The judgment of conviction appealed from is affirmed, **but the sentence imposed upon appellant is hereby modified** in the sense that he should pay a fine of P100.00 with subsidiary imprisonment not to exceed 15 days in case of insolvency; to pay nominal damage to the offended party in the sum of P200.00 & the costs of this action.

US v Ponciano Esmedia and Mena Esmedia (1910)

Topic | Subtopic	Justifying Circumstances - Defense of Relatives	GR No. & Ponente	L-5749, Trent
Appelle	US	Appellant	Ponciano and Mena Esmedia
Doctrine	The fact that the relative being defended gave provocation is immaterial if the accused believe in good faith that his relative is being attacked		

FACTS

Characters:
Gregorio Esmedia (*father-died*), Ponciano and Mena (*son-accused*)
Ciaraco Abando (*father-died*), Santiago (*son-died*)
Gregorio is the son-in-law of Ciaraco

Facts: The two families have a land dispute over a rice field. One day, Ciaraco instructed his son, Santiago, to let out the water in the rice field.

However, Gregorio saw this and had a quarrel with Santiago. Soon after, Gregorio drew a dagger and stabbed Santiago in the back. Santiago responded by taking his bolo and attacked Gregorio. Ciaraco, Ponciano, and Mena soon arrived at the scene.

Ponciano claimed that on his way to aid his father, Ciaraco and Santiago attacked him with bolos. He acted in self-defense and used his club to knock out both Ciaraco and Santiago. Then, Meda arrived.

As a result, Ciaraco died on the spot, Gregorio died four hours later, and Santiago died five days later. The CFI Antique convicted both Ponciano and Mena of double homicide.

ISSUE 1

Main – Substantive	W/N Ponciano and Mena is entitled to defense of relatives as a justifying circumstances	YES, only for Santiago

RULING and RATIO DECIDENDI:

YES, but only for the case of Santiago.

Both Ponciano and Meda honestly and in good faith that Santiago will continue his attack, and that they need to come and defend their father.

However, they are guilty for the death of Ciriaco. According to the witnesses (*Andrea Lactoson - wife and Julian Alagod - grandson*) Ciriaco was killed on his way to the rice field. Therefore, the Court concluded that when they attacked Ciriaco, the trouble was already over and they were not in danger or bodily harm given that Ciriaco was entirely unarmed. Ponciano and Meda must have just been under great excitement or in heat of passion (*arrebato y obcecacion*) when they killed Ciriaco.

Moreover, it was Santiago who provoked Ponciano and Mena; therefore, they are not entitled to kill Ciriaco who was not part of the provocation.

LEGAL BASES under the current Revised Penal Code*

Art 11 Par 2 Defense of Relatives
For Santiago: Reyes, p198: **The fact that the relative defended gave provocation is immaterial**
For Ciriaco: Requisite for Unlawful Aggression is absent in this case, since Ciriaco was unarmed, and did not participate in the provocation.

FINAL DECISION	**WHEREFORE**, the sentence appealed from is, therefore, affirmed; provided, however, that these two accused, Ponciano Esmedia and Mena Esmedia, be condemned to fourteen years eight months and one day of reclusion temporal, and to the accessory penalties; and, provided further, that they be declared **exempt from criminal responsibility for causing the death of Santiago Abando, which exemption relieves them from paying any indemnity to the heirs of the said Santiago Abando.**

Notes: Ciriaco Abando received two wounds on the top of his head (8 cm and 3 cm in length, and sustained a fracture of the skull. Another on the neck below the left war 3 ½ cm in depth and 3 cm in length

Santiago Abando received seven wounds,

1. One cross-wise of the head, back of the left ear, 8 centimeters in length and 1 centimeter in depth,
2. Top of the head, just above the first wound, 5 centimeters in length and a half centimeter in depth,
3. On the left part of the neck 4 centimeters in length, all of these three wounds having been caused by a cutting instrument;
4. On the top of the head, caused by some sharp instrument, 1 centimeter in depth and 8 centimeters in length;
5. On frontal region of the head, 2 1/2 centimeters in length and 5 millimeters in depth
6. In the back, 2 centimeters in length and 3 1/2 centimeters deep;
7. On the left hand, 4 centimeters in length, 2 1/2 centimeters wide, and 2 millimeters in depth, which had apparently been caused by some cutting instrument.

Gregorio Esmedia showed four wounds

1. On the front of the head, 5 by 6 centimeters in dimension;
2. Something caused by a cutting instrument, running across the head, 6 centimeters in length;
3. Apparently caused by a blow with some blunt instrument, on the breast;
4. 1 centimeter in depth, apparently caused by a cutting instrument, and also a bruise on the left arm.

PEOPLE v. Norma Hernandez (1959)

Topic | Subtopic	**Art. 11: Justifying Circumstances (Avoidance of a greater evil)**	**GR No. & Ponente**	
Petitioner/s	People of the Philippines	**Respondent/s**	Maria Norma Hernandez
Doctrine			

FACTS

Maria Norma Hernandez was convicted of slander by deed and sentenced to pay a fine of P300, to indemnify the offended party in the sum of P200 with subsidiary imprisonment in case of insolvency and to pay the costs

- Her parents Mariano Hernandez and Ramona Hernandez were originally charged alongside her, but they were acquitted by the Court of First Instance

What went down:

- **August 1954:** Vivencio, 19 y.o., began courting Norma
- **January 6, 1955:** Norma finally says yes and they begin talking about their marriage
    - Norma tells Vivencio to bring his parents to her home so they can discuss their marriage. Vivencio does so.
- **February of 1955:**
    - Vivencio and his parents visit Norma's house to ask for her hand in marriage. They brought with them 12 of Vivencio's aunts, 30 chickens and 3 goats
    - The parents agree and set the **wedding for March 19, 1955 in Taal, Batangas**
    - They also agree that Vivencio's parents would
        - Buy a wedding dress and pair of shoes for Norma
        - Buy 2 *vestidos* (dresses)
        - Advance P20 for fetching the sponsors in the wedding
        - Repair the roof of one Feliciano Martinez, another uncle of Norma
    - Within this same month, they also file their application for marriage and the consent of the parents in the municipal treasurer of Taal Batangas
- **March 5, 1955:** Marriage license was issued
    - Some time after this, Norma, Vivencio, and both of their parents go to the parish priest of Taal, Batangas to arrange the proclamation of the coming marriage of the two
    - Later on they went to the house of Isidora Lascano to order Norma's wedding dress
- **March 16, 1955:** Norma's wedding dress is brought to her house but is left on the balcony because there was no one home
    - Vivencio's father also gives P20 to Mariano as agreed upon
- **March 16-18, 1955:** Vivencio's parents do the following:
    - Cleaned the yard of Norma's house
    - Constructed a temporary shed to hold the wedding feast and put up a temporary stove
    - Slaughtered goats, pigs, and chickens
    - Served about 90 guests
- **March 19, 1955 (wedding day):**
    - In the morning they served about 70 guests
    - While the party was ongoing, Norma was nowhere to be found. They waited for her until 12 MN but she never showed up

Norma's version of events:

- Vivencio was really courting her but she never fell in love with him, she just accepted his proposal out of obedience to her parents and her uncle Agapito Morel.
- Before Vivencio and his parents brought the chickens to ask for her hand in marriage, she warned them not to. The other party insisted, to which she warned them not to regret what should happen later

- March 11, 1955 she left home, without telling her parents, for Mindoro and stayed with her cousin in Calapan. She stayed there until April 11, 1955, when her cousin fetched her because she was under arrest on account of the present case. In response, she denied receiving the wedding dress and claimed she only received a regular dress from Vivencio.
- In his own testimony, Mariano explained that on March 11, he did not fetch his daughter from Mindoro after learning that she left because he felt that he would kill her if he saw her.
    - The parents also denied that Vivencio's parents put up the temporary shed, prepared food for the wedding feast, and delivered the wedding gown

ISSUE 1

Main – Substantive	**W/N Norma Hernandez should be convicted of the crime slander by deed**	**NO**

RULING and RATIO DECIDENDI:

NO, Norma Hernandez did not commit slander by deed.

Note that the appellee, the People of the Philippines, actually recommended the reversal of the judgement and the acquittal of Norma. The following reasons were presented:

- Essential requisite of slander is **malice, which was not proven**
- **No malice in changing her mind** because she was simply exercising her right to not give consent to the marriage
- She **can freely refuse consent during the actual marriage**, even with a previous valid agreement to marry
- **No strained relations** between the complainant and the appellant and her parents → **no malice** because she was not motivated by spite or ill-will
- No marriage can be solemnized unless the consent of the parties is freely given; if the State penalizes her for not continuing the marriage then it is instrumental in compelling her to unwillingly enter a marriage
    - Contravenes the principle of ***"what could not be done directly could not be done indirectly"***
        - ***Latin version:*** Quando aliquid prohibetur ex directo, prohibetur et per obliquum
- Would be rank inconsistency to convict her for slander by deed because she desisted in continuing with the marriage
- Appellant had the right to avoid herself of the evil of going through a loveless marriage, **pursuant to Art. 11, par. 4 of the RPC**

Why the wedding dress is so important (not in the case)

- ***On Vivencio's side:*** It shows full compliance on their part with the agreements of the marriage. Since everything was almost complete, Norma leaving was to purposefully humiliate Vivencio's family.
- ***On Norma's side:*** the fact that she wasn't at home to receive the dress (even before March 16) shows that she already left to avoid the greater evil of being in a loveless marriage. She didn't just wait until the last second to humiliate the Lascanos

FINAL DECISION	Appealed judgement is hereby reversed and the appellant acquitted with costs de officio

REGINA v. DUDLEY [The Queen v Dudley and Stephens] (Dec. 9, 1884)

Topic | Subtopic	Art. 11: Justifying Circumstances | Avoidance of a Greater Evil	GR No. & Ponente	
Petitioner/s		Respondent/s	Thomas Dudley & Edward Stephens
Doctrine			

FACTS

- Thomas Dudley and Edward Stephens were English seamen cast away in an English yacht in the middle of a storm in the high seas (1600 miles from the Cape of Good Hope)
  - They were compelled to transfer to the open boat belonging to the yacht
  - People in the boat: Thomas Dudley, Edward Stephens, Brooks, Richard Parker
  - Only supplies in the boat: two 1lb. tins of turnips
  - 4th day: they ate a small turtle (lasted until the 12th day)
- On the 18th day (7th day of them not having food, 5th without water), Dudley proposed that lots should be cast who must be put to death to save the rest (will be eaten)
  - Brooks opposed; Parker was not consulted
  - No drawing of lots happened
- Dudley said that if there would still be no vessel in sight the next day, it would be better if Parker would be killed to save themselves from starvation
- On the 20th day (July 25th), Dudley killed Parker → all 3 (Dudley, Stephens, Brooks) ate Parker's flesh for 4 days
  - At the time of the killing, Parker was lying helpless at the bottom of the boat, weakened from famine
  - **NOTE:** during the commission of the act, there was no reasonable prospect of relief
- After 4 days, the boat was picked up by a passing vessel and the 3 were rescued

ISSUE 1

Main – Substantive	W/N Dudley and Stephens were guilty of murder	YES

PETIT ARGUMENT:	RESPONDENT/S ARGUMENTS:
	● Dudley and Stephens were not guilty of murder because they were compelled to do so under the **pressure of necessity** ● Necessity will excuse an act which would otherwise be a crime ● They were in a circumstance where no assistance could be given, and their only intention was to preserve their lives ● England has no jurisdiction to try the case (the boat where the crime happened may have been a foreign boat)

RULING and RATIO DECIDENDI:

- **YES,** they are guilty of murder. The act of a private person in taking the life of a fellow creature can only be justified by self-defense **which is not applicable in this case** → they were not protecting themselves against any act of Parker.
- The argument that Parker was in a much weaker condition and would have died before them anyway **does not stand** → there is that possibility of them being rescued the next day or not at all → the killing was an **unnecessary and profitless act.**
- [From Lord Hale] The necessity which justifies homicide is of two kinds (1) necessity of a private nature; (2) necessity which relates to public justice and safety.
- The present case is a case of private homicide, not one imposed upon men in the service of their Sovereign and in the defence of their country → **the killing was CLEARLY (WILLFUL) MURDER.** It is **not** more necessary to kill the weakest, youngest, and most unresisting among the people in the boat.

FINAL DECISION	The Court then proceeded to pass SENTENCE OF DEATH upon the prisoners.

TY v. PEOPLE (2004)

Topic | Subtopic	**Justifying Circumstances | Avoidance of a greater evil)**	GR No. & Ponente	G.R. No. 149275 | Tinga, J.
Petitioner/s	Vicky C. Ty	Respondent/s	People of the Phil
Doctrine	Fear of future or speculative injury does not satisfy the requirements of uncontrollable fear under Art. 12(5) RPC. State of necessity requires an actual, imminent evil. It also fails if the actor's own fault caused the evil.		

FACTS

Ty filed instant petition for review under Rule 45 assailing CA's decision (G.R. No. 20995). Case stemmed from filing of 7 informations (counts) for violation of B.P. 22 (Bouncing Checks Law)

Ty's mother, Chua Lao So Un, was confined at Manila Doctor Hospital from October 30, 1990 to June 4, 1992. Her total bill reached **Php 657,182.40**. His sister, Judy Chua, was also confined from May 13, 1991 to May 2, 1992 with a bill of **Php 418.410.55**. Both hospitalizations amounted to **Php 1,075,592.95.**

Ty signed an Acknowledgement of Responsibility for Payment in her mother's Contract of Admission, and later on a promissory note. She issued 7 postdated Metrobank checks (PDCs) with Php 30,000 each (installment from Nov 1992 to May 1993).

Upon presentment, all checks bounced for insufficient funds with an "Account Closed" advice. Hospital sent demand letters by registered email → not heeded —> 7 informations for violation of B.P. 22 filed. Cases were consolidated. Ty pleaded not guilty.

Ty's Defense

- She issued the checks because of an "uncontrollable fear of a greater injury."
    - To obtain release of her mother whom the hospital treated inhumanely and harshly
    - Mother was deprived of room facilities (AC, refrigerator, TV set) and inconveniences (cutting of telephone line, late delivery of food, refusal to change her gown and bedsheets)
- The hospital's suspending of medical treatment affected her mother's mental, psychological, and physical health that the mother thought about suicide if she weren't discharged from the hospital
- Trial court erred in finding her guilty when the evidence showed an absence of valuable consideration for the issuance of the checks, payee had knowledge of insufficiency of funds.
    - TC should not have applied law mechanically without due regard to principles of justice and equity

ISSUE 1

Main – Substantive	**W/N the petitioner is exempt under uncontrollable fear or by state of necessity**	**NO**

RULING and RATIO DECIDENDI:

Ty is neither exempt from uncontrollable fear nor state of necessity because the fear and evil she sought to avoid were rather speculative than real and imminent.

<u>On Uncontrollable Fear</u>

IF the evil sought to be avoided is merely expected or anticipated, state of necessity is inapplicable. The threat should be so grave and imminent that an ordinary person would have succumbed to it. Thus it must rest on an real, imminent, or reasonable fear for one's life or limb (not speculative or a remote threat of future injury). It must reduce actor to a mere instrument acting without volition and leaving no opportunity for escape.

The law prescribes presence of 3 requisites to be exempt under Art. 12(5)

1. Existence of uncontrollable fear: **ABSENT**
    - The evil sought to be avoided (mother's health deterioration / suicide) was merely anticipated and not actually present

2. Fear must be real and imminent: **ABSENT**
    - There was no showing that her mother's illness was so life-threatening that remaining in the hospital created a well-grounded apprehension of death

3. Fear of an injury is greater than or at least equal to that committed: **1 and 2 already FAILS, NO NEED**
    - She was not a mere instrument without will; was not deprived of volition or choice.
    - Her own testimony provide that the collateral or security hospital required prior to discharge of her mother may be in the form of PDCs or jewelry
    - If she was coerced to open account with the bank and issue the checks, she had the opportunity to leave scene to avoid involvement.

<u>On State of Necessity</u>

The law prescribes presence of 3 requisites to be exempt under Art. 11(4)

1. Evil sought to be avoided actually exists: **ABSENT**
    - The evil sought to be avoided (mother's health deterioration / suicide) was merely anticipated and not actually present
    - There was no showing that her mother's illness was so life-threatening that remaining in the hospital created a well-grounded apprehension of death

2. Injury feared be greater than one done to avoid it: **ABSENT**
    - Greater injury should have not been brought about by actor's negligence, imprudence, or willful inaction.
    - In this case, the problem with the hospital bills were because of the petitioner's failure and inaction to settle her family's accumulated obligations

3. No other practical and less harmful means of preventing it: **ABSENT**
    - Ty even admitted that she had the option to pledge jewelry of other forms of security + her counsel warned her against issuing the checks (had full knowledge)

LEGAL BASES

Art. 11(4) Art. 12(5)

ISSUE 2

Side – Substantive	**W/N the checks lack valuable consideration**	**NO**

RULING and RATIO DECIDENDI:

The PDCs were supported by valuable consideration under Sec. 24, Negotiable Instruments Law.

Valuable consideration is an obligation to give, do, or not to do in favor of the party who makes the contract

Sec 24 provides that every negotiable instrument creates a **prima facie presumption for valuable consideration** and every person whose signature appears on it is a party for value. This places the burden of proof on the drawer to present evidence to the contrary.

Sec 25 provides that valuable consideration consists of any right, interest, profit, or benefit accruing to one party, or any responsibility suffered or undertaken by the other. An **antecedent or pre-existing debt constitutes value.**

In Bridges v. Vann, consideration does not need to benefit the drawer personally. Consideration is sufficient:

1. it represents benefit conferred upon a third person, or
2. a detriment to the promisee at promissor's instance.

- In this case, the mother and sister availed of medical services of Manila Doctors' Hospital creating a legitimate obligation, which Ty assumed in signing the Acknowledgment of Responsibility for Payment. This constituted a benefit conferred on third persons, and detriment suffered by hospital.
- The argument that the debt was not hers because she was not the patient, and did not benefit personally = no defense
- The hospital gave up a subsisting obligation and accepted a new one from Ty = sufficient consideration.
    - Manila Doctor's had a valid claim against the mother and sister for over Php 1M, in exchange for Ty's payment structure of promissory note and PDCs
    - Exchanging its immediate right to cash against the original debtors, the hospital gave a subsisting legal right, which is a sufficient legal consideration

LEGAL BASES

Sec. 24, Negotiable Instruments Law

- Presumption of consideration. — Every negotiable instrument is deemed prima facie to have been issued for valuable consideration; and every person whose signature appears thereon to have become a party thereto, for value.

SEC. 25, NIL

- What constitutes. — Value is any consideration sufficient to support a simple contract. An antecedent or pre-existing debt constitutes value, and is deemed such whether the instrument is payable on demand or at a future date.

ISSUE 3

Main – Substantive	**W/N payee's knowledge of lack of funds exonerate the drawer**	**NO**

RULING and RATIO DECIDENDI:

B.P. 22 concerns the drawer's knowledge and not the payee's. It does not exonerate the drawer from criminal liability under it.

B.P. 22 is **malum prohibitum** (act that is wrong because it is prohibited by law, not bc it is immoral). It punishes the mere act of making, drawing, and issuing a bouncing check. It does not require deceit, malice, or intent for it to be an offense.

The 7 PDCs were dishonored for insufficiency of funds after presenting them on their due dates. There were demand letters and Ty didn't pay within 5 banking days, so the presumption of her knowledge is unrebutted.

What the law penalizes is the making of worthless checks, so even if Manila Doctors' Hospital knew the petitioner lacked the funds, such knowledge does not exempt her from criminal liability.

- Reliance on Magno v. CA is misplaced because there, the checks were warranty deposits in a lease arrangement, serving as collateral with no actual value behind. Here, the checks had an actual account for value (hospital bills)

LEGAL BASES

Sec. 2, B.P 22

- *Evidence of knowledge of insufficient funds.* - The making, drawing and issuance of a check payment of which is refused by the drawee because of insufficient funds in or credit with such bank, when presented within ninety (90) days from the date of the check, shall be prima facie evidence of knowledge of such insufficiency of funds or credit unless such maker or drawer pays the holder thereof the amount due thereon, or makes arrangements for payment in full by the drawee of such check within (5) banking days after receiving notice that such check has not been paid by the drawee.

ISSUE 4

Side – Substantive	W/N a fine is the proper penalty under A.C. No. 12-2000 and 13-2001	YES

RULING and RATIO DECIDENDI:

A fine rather than imprisonment is the proper penalty, but the SC modified CA's judgment by subjecting it to subsidiary imprisonment in case of insolvency under Art. 39, RPC.

A.C. No. 12-2000 adopted rulings in Vaca v. CA and Lim v. People — allowing fine instead of imprisonment in B.P. 22 cases.

- Where the circumstances of both the offense and offender indicate good faith / mistake of fact without taint of negligence, fine is preferred to redeem valuable human material and prevent unnecessary deprivation of liberty.

A.C. No. 13-2001 clarifies it does not remove imprisonment as an alternative penalty, instead it leaves it to the sound judicial discretion of the court.

Following **Abarquez v. CA**:

1) Imprisonment still is an alternative penalty
2) Judges may exercise discretion, considering the case's circumstances to decide whether a fine best serves justice or not
3) If only a fine is imposed and the accused cannot pay, subsidiary imprisonment under RPC can be applied

The court agreed with CA in removing the prison term because there was no evidence that she was not a first-time offender and that she had acted in bad faith.

Imprisonment was substituted with a fine equivalent to double the amount of each dishonored check = Php 60,000 per count (7 counts) totaling to Php 420,000 with subsidiary imprisonment in case of insolvency, alongside Php 210,000 as civil indemnity.

FINAL DECISION	WHEREFORE, the instant Petition is DENIED and the assailed Decision of the Court of Appeals, dated 31 July 2001, finding petitioner Vicky C. Ty GUILTY of violating Batas Pambansa Bilang 22 is AFFIRMED with MODIFICATIONS. Petitioner Vicky C. Ty ORDERED to pay a FINE equivalent to double the amount of each dishonored check. She is also ordered to pay private complainant, P210,000.00 representing the total amount of the dishonored checks. Costs against the petitioner.

PEOPLE V. DELIMA (1922)

Topic | Subtopic	**Art. 11 Justifying Circumstances – Fulfillment of Duty**	GR No. & Ponente	**GR No. L-18660 | J. Romualdez**
Petitioner/s	People of the Philippine Islands	**Respondent/s**	Felipe Delima
Doctrine	He who acts in fulfillment of a duty or in the legitimate exercise of a right, trade or office.		

FACTS

- Days after Lorenzo Napilon escaped from the jail where he was serving sentence, policeman Felipe Delima looked for him and found him in the House of Jorge Algeria.
    - Napilon was armed with a pointed piece of bamboo in the shape of a lance.
- Delima demanded Napilon's surrender but Napilon answered with a stroke of his lance.
    - Delima dodged it and fired his revolver to impose his authority, but the bullet did not hit Napilon.
- Napilon ran away, without parting with his weapon, so Delima went after him and again fired his revolver, this time hitting and killing Napilon.
    - Napilon was convicted for homicide and sentenced to *reclusion temporal* and the accessory penalties → appealed to the Supreme Court for the reversal of the judgment.

ISSUE 1

Main – Procedural	**W/N the killing was done in the performance of the duty, therefore Delima should be acquitted**	**YES**

RULING and RATIO DECIDENDI:

- Napilon was under the obligation to surrender and had no right, after evading service of his sentence, to commit assault & disobedience with a weapon in his hand.
    - This compelled Delima to resort to such an extreme means, which although it proved to be fatal, was justified by the circumstances.
- Art. 8 (11) of the Old Penal Code being considered, Delima committed no crime.

LEGAL BASES

Art. 8, No. 11 of the Old/Spanish Penal Code *(not in the case, just looked it up)*

- The following are not delinquent and are therefore exempt from criminal liability
    - He who acts in fulfillment of a duty or in the legitimate exercise of a right, trade or office.

FINAL DECISION	Article 8, No. 11, of the Penal Code being considered, Felipe Delima committed no crime, and he is hereby acquitted with the costs *de oficio*. So ordered.

PEOPLE V. BELBES (2000)

Topic | Subtopic	**Art. 11 Justifying Circumstances – Fulfillment of Duty**	**GR No. & Ponente**	**G.R. No. 124670 | J. Quisumbing**
Petitioner/s	The People of the Philippines	**Respondent/s**	Patrolman Domingo Belbes
Doctrine			

FACTS

- Feb. 16, 1990, 9pm → Pat. Belbes & Pat. Jose Pabon were assigned by the Bacacay Station Commander to maintain peace and order at the Junior and Senior Prom of Pili Barangay High School, Pili, Bacacay, Albay.
    - Two students (Riselle Banres + Juliana Basaysay) approached Teacher-in-Charge Mila Ulanca, Pat. Pabon, Pat. Belbes, and Elmo Bes while they were watching the dance.
    - The students told Mrs. Ulanca: *"Ma'am, it seems that there is somebody making trouble."*
    - Belbes (armed with an armalite rifle) and Pabon (armed with a .38 caliber revolver) left to respond
- Fernando Bataller, a graduating student of the high school, was drunk and in the company of Carlito Bataller and Rosalio Belista.
    - While Fernando was vomiting and holding on to the bamboo wall of the school's temporary building, the bamboo splits broke. Without warning, Belbes fired his gun.
    - Fernando slumped on the ground, bathed with his own blood, so the two patrolmen fled from the crime scene.
- Fernando was pronounced dead on arrival, suffering the following gunshot wounds according to the autopsy: head + chest (front) + chest (back).

Defense's/Belbes' Version of the Fatal Incident

- At 9pm, two female students reported that somebody was making trouble at the back of the temporary building, so Mrs. Ulanca requested for the patrolmen to see what happened.
- They came upon someone who was destroying the wall of the temporary building which was made of bamboo splits, and Belbes came to know it was Fernando Bataller who had some companions.
    - Fernando was more than 20 years old at the time and Carlito was about Fernando's age.
    - Fernando was drunk or a little bit tipsy, not vomiting but smelled of wine.
    - They approached Fernando and identified themselves as policemen, but Fernando did not mind them.
- Fernando allegedly stabbed Pabon with a knife.
    - Belbes saw the glint of the blade when Fernando thrust at Pabon, who were about 1 meter apart.
    - Pabon avoided the thrust by moving backward, w/ Fernando allegedly making 2 thrusts at Pabon.
- After Pabon retreated, Fernando allegedly stabbed Belbes.
    - Belbes was hit on his lower left shoulder, so he held Fernando's hand in an attempt to take the knife away + Belbes' firearm was slung over his shoulder.
    - Fernando freed himself & made another thrust, so Belbes moved to his left & fired a warning shot.
    - Meanwhile, Belista was allegedly aggressive and Carlo allegedly attempted to kick Belbes.
- Afterwards, Fernando allegedly grabbed Belbes' firearm, and was able to hold the barrel of the armalite.
    - Belbes and Fernando struggled over the firearm, so Belbes cannot recall how many shots were fired during this struggle.
    - Belbes testified that the armalite was semi-automatic, with one shot coming out for one squeeze of the trigger.
    - Fernando fell when the firearm went off, so Belbes then took the knife from Fernando.
- People gathered and asked that Fernando be brought to the hospital.
    - About an hour later, the police mobile car arrived wherein they went to the Police Station and Belbes turned the knife over to the Desk Officer,
- Pabon corroborated Belbes' testimony but on cross-examination, Pabon denied that Belbes fired a warning shot + Pabon did not mention aggression by Carlito & Belista + Pabon only recalled that the two companions ganged up on Belbes after Fernando was shot.

- RTC therefore found the defense weak and the prosecution's evidence sufficiently strong.
- Belbes was convicted of murder, sentenced to reclusion perpetua.

ISSUE 1

Main – Substantive	**W/N Belbes successfully established self-defense after admitting he fired the fatal shots**	**NO**

PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**
	Belbes argued that he was performing official duties when he responded to the report that somebody was making trouble. He claimed Fernando attacked Pabon with a knife, then stabbed him, grabbed his armalite, and that the firearm discharged during their struggle. He also questioned Carlito's credibility because Carlito was the victim's cousin and friend.

RULING and RATIO DECIDENDI:

- Once the accused admits inflicting the fatal injuries, the burden of evidence shifts to him.
  - He must establish the justifying circumstance by clear, satisfactory and convincing evidence + cannot rely merely on the weakness of the prosecution's evidence.
- For self-defense, Belbes must establish the ff.
  - He was not the unlawful aggressor.
  - There was a lack of sufficient provocation on his part
  - He employed reasonable means to prevent/repel the aggression
- The Court found no sufficient reason to reject Carlito's testimony → a single witness, if positive and clear, may sustain a conviction even for murder.
  - The relationship of a witness to the victim does not necessarily diminish credibility.
  - Trial court findings on witness credibility are generally accorded great respect because the trial judge observed the witness's demeanor first-hand.
- The Court found serious problems with Belbes' version of the incident, therefore his claim of self-defense could not prosper.
  - The alleged knife was not fingerprinted and had been mishandled.
  - Belbes' shoulder wound was medically examined more than 21 hours later + the examining doctor, Dr. Evelyn Amador, testified that a self-inflicted wound was a possibility.
  - If Belbes and Fernando had really grappled face-to-face, the victim being hit sideways was difficult to reconcile with Belbes' account.
  - Mrs. Ulanca testified that only about six seconds elapsed from the time Belbes left his seat until she heard the burst of gunshots + this testimony was not contradicted/rebutted.

ISSUE 2

Main – Substantive	**W/N the killing was covered by the complete justifying circumstance of fulfillment of duty**	**NO**

PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**
	Belbes argued that he was merely performing his official police functions in responding to the disturbance. He claimed that. In the absence of intent and voluntariness, he cannot be faulted for Fernando's death.

RULING and RATIO DECIDENDI:

- Court found an incomplete justifying circumstance under Art. 11(5), which provides that a person incurs

no criminal liability when he "acts in the fulfillment of a duty or in the lawful exercise of a right or office."
    - Two requisites → offender acted in the performance of a duty/lawful exercise of a right + offense committed was the necessary consequence of the due performance of such right/office
- Only the first requisite was present → Belbes admittedly acted in the performance of his duty.
    - HOWEVER, the killing was not a necessary consequence of performing that duty → Belbes exceeded his duty when he fired his armalite without warning.
    - The circumstance was an **incomplete justifying circumstance,** which mitigated his liability.
    - His offense could only be characterized as **homicide**, **not murder.**
- The Court also held that treachery was not established + treachery cannot be presumed, since it must be proved by clear and convincing evidence.
    - Two conditions must concur → the means ensured the offender's safety from defensive acts + such means was deliberately adopted.
    - No showing that the shooting was premediated or that Belbes deliberately employed a method ensuring execution without risk to himself.
    - Suddenness alone does not necessarily imply treachery.
- The Court rejected reckless imprudence resulting in homicide because the shooting was intentional
    - Belbes intended to fire at the victim, and in fact hit only the victim.

FINAL DECISION	the decision of the trial court convicting appellant Domingo Belbes of the crime of murder is hereby MODIFIED. Appellant is found guilty of the crime of homicide and sentenced to an indeterminate penalty of eight (8) years of prision mayor minimum, as minimum, to fourteen (14) years of reclusion temporal minimum, as maximum. He is also ordered to pay the heirs of the victim the amount of P50,000.00 as civil indemnity and P20,000.00 as moral damages, and to pay the costs.

PEOPLE V. BERONILLA (1955)

Topic | Subtopic	Art. 11 Justifying Circumstances – Fulfillment of Duty	GR No. & Ponente	G.R. No. | J. Reyes J.B.L.
Petitioner/s	The People of the Philippines	Respondent/s	Manuel Beronilla, Filipino Velasco, Policarpo Paculdo, Jacinto Adriatico
Doctrine	Persons, by the lawful order of their superior, are justified in their act, and exempt from criminal liability.		

FACTS (*mahaba facts ng case, sorry*)

Manuel **Beronilla**, Policarpo **Paculdo**, Filipino **Velasco**, and Jacinto **Adriatico** were convicted of **murder** for the execution of **Arsenio Borjal**, **evening** of April 18, 1945, in **La Paz, Abra**.

Arsenio Borjal was the **mayor** of La Paz, Abra during the outbreak of war, and during the Japanese occupation, up until March 10, 1943, when he moved to **Bangued** due to an **attempt upon his life** by known persons.

On December 18, 1944, Beronilla was appointed the **Military Mayor** of La Paz by **Lieutenant Colonel R.H. Arnold**, the regimental commander of the 15th Infantry, Philippine Army, operating as a **guerrilla unit** in Abra. When Beronilla was appointed:

1) He received a **memorandum** from Lt. Col. Arnold, **authorizing** them to **appoint a jury of 12 bolomen** to try persons accused of treason, espionage, or the aiding and abetting (of) the enemy; and
2) From the **HQ of the 15th Infantry**, a list of **all puppet gov't officials** of Abra (which included Borjal), with a **memorandum** instructing all MMs to **investigate said persons** and **gather complaints against them** from people of the municipality.

Sometime in March 1945, Borjal **returned** to La Paz with his family to **escape the bombing of Bangued**. At this time, the operations for the **liberation of Abra** were **in progress**. Pursuant to instructions, Beronilla **placed Borjal in custody** and asked La Paz residents to **file complaints against him (Borjal)**.

1) Charges of espionage, aiding the enemy, and abuse of authority were filed against Borjal.
2) A **12-man jury** was appointed by Beronilla, with Jesus Labuguen as **chairman**, Benjamin Adriatico, Andres Afos, Juanito Casal, Santiago Casal, Benjamin Abella, Servillano Afos, Mariano Ajel, Felimon Labuguen, Felix Murphy, Pedro Turqueza, and Delfin Labuguen as **members**.
3) Felix Alverne and Juan Balmaceda were named **prosecutors**.
4) Policarpo Paculdo as the **clerk of the jury**.
5) Lino Inovermo as the **counsel for the accused**. Later, Atty Jovito Barreras voluntarily appeared and served as **counsel for Borkal**.
6) Sgt. Esteban Cabanos **observed the proceedings** for several days, as per HQ of 15th Infantry instructions.
7) The trial lasted **19 days**, until April 10, 1945.
8) Borjal was **found guilty** of all counts charged, and he was sentenced to the **death penalty**.

Pursuant to **instructions of his superiors**, Beronilla **forwarded the records of the case** to the HQ of the 15th Infantry for review, which was then **returned** by Arnold to Beronilla. He mentioned that the case would be **best handled by "your government and whatever disposition you make of the case is hereby approved."**

Borjal was **executed** on April 18, 1945.

1) Jacinto Adriatico was the **executioner**;
2) Antonio Palope was the **grave digger**;
3) Fr. Luding of the Roman Catholic Church **administered the last confession** to Borjal;
4) Fr. Filipino Velasco of the Aglipayan Church performed the **last rites** over Borjal's remains.

Immediately after the execution, Beronilla reported the matter to Lt. Col. Arnold, who replied by **commending him for how he handled the trial**: "...I know that your trial was absolutely impartial and fair... I can only compliment you for your impartial but dependent way of handling the whole case."

Two years after, Beronilla, Paculdo, Alverne, Balmaceda, J. Labuguen, D. Labuguen, F. Labuguen, S. Afos, A. Afos, B. Adriatico, J. Casel, S, Casel, Ajel, Murphy, Abella, Turqueza, J. Adriatico, and Fr. Velasco were indicted by the CFI of Abra for **murder**, for **allegedly conspiring and confederating in the execution of Borjal**.

Soon after, Pres. Roxas issued Executive Proclamation No. 8, **granting amnesty for persons who committed acts penalized under the RPC in furtherance of the resistance to the enemy against persons aiding in the war efforts of the enemy**.

1) Jesus Labuguen, then a **master sergeant in the PH army**, applied for and was **GRANTED amnesty by the Amnesty Commission, AFP**.
2) The rest of the defendants applied for amnesty with the **Second Guerrilla Amnesty Commission**, who **DENIED** their application on the ground that the crime was inspired by **purely personal motives**.
3) Upon motion of the defense counsel...
    a) Jesus Labuguen's granted amnesty was **provisionally dismissed**;
    b) Juan Balmaceda was **discharged** from the information so he can be used as state witness (but he was not called to testify).
    c) Antonio Palope (grave digger) and Demetrio Afos (boloman): their cases were dismissed for lack of sufficient evidence.
4) Trial proceeded for the rest of the defendants.
    a) Members of the jury and A. Palope were acquitted on the ground that they **did not participate in the killing of Borjas**;
    b) J. Labuguen, F. Alverne, S. Afos, and L. Parado were also acquitted upon **insufficiency of evidence to establish their participation in the crime**; but
    c) The **defendants** were **convicted as conspirator and co-principals of the crime of murder**. While their crime falls within the provisions of the Amnesty Proclamation, they were **not entitled to its benefits** because the crime was committed after the expiration of the time limit fixed by the AP (i.e., Borjal was executed after the liberation of La Paz, Abra).

ISSUE #1

Main – Substantive	**W/N the execution of Borjal is due to the lawful order from Beronilla's superior.**	**YES**

RULING and RATIO DECIDENDI:

The records are ample to sustain the claim of the defense that the arrest, prosecution and trial of the late Arsenio Borjal were done pursuant to express orders of the 15th Infantry HQ, which instructed Military Mayors under its jurisdiction to **gather evidence against puppet officials** and to **appoint juries (of at least 12 bolomen) to try the accused**, and find them guilty by **two-thirds vote**. Borjal was in the list of civilian officials to be prosecuted.

ISSUE #2

Main – Substantive	**W/N the message by Col. Volckmann to Lt. Col. Arnold was relayed to Beronilla.**	**NO**

State: Col. Volckmann, the overall commander, sent a message to Lt. Col. Arnold, specifically calling attention to the **illegality of Borjal's conviction and sentence**. The prosecution claims that this was known by Beronilla.

RULING and RATIO DECIDENDI:

After careful examination of evidence, there is no satisfactory proof that Beronilla did receive the radiogram from Volckmann.

1) Pedro Molina, the messenger, could not state what papers were enclosed in the package sent to Beronilla.
2) Francisco Bayquen, who claimed to be present at the delivery of the message, cannot state its contents.
3) **Rafael Balmaceda**, a relative of Borjal, was Beronilla's **bodyguard**. He claims to have been present when

the message was delivered to Beronilla. **However, his testimony cannot be accorded credence**.

a) **He was not actually there when Beronilla received the package**. Otherwise, Beronilla would have given him his orders direct, as Balmaceda testified later at the trial.
b) Hard to believe that after learning of the contents, he would have relayed it to Borjal, or some member of Borjal's family, considering that they were **relatives**.
c) The testimonies of Balmaceda and Bayquen are **contradictory**. Balmaceda claims that the defendants decided to kill Borjal **early evening of April 18**, while Bayquen testifies that the agreement was made around **10AM**, shortly after Borjal's petition to be allowed to hear mass was denied by the accused.

If Beronilla **did** receive the message from Volckmann, **he would not have dared to immediately report the execution of Borjal <u>on the very same day</u>**.

ISSUE #3

Side – Substantive	**W/N the accused acted on their personal grudges against Beronilla.**	**NO**

State: the appellants held grudges against Borjal.

RULING and RATIO DECIDENDI:

No. The arrest and trial of Borjal were made upon express orders of the higher command.

1) They allowed him to be defended by counsel; one of them (Atty. Jovito Barreras) was Borjal's sister.
2) The trial lasted for 19 days.
3) The trial was suspended when doubts arose about its legality, and was not resumed until HQ authorized its resumption and sent an observer.
4) When the verdict of guilty was rendered and death sentence imposed, the records were sent to Arnold's HQ for **review**, and Borjal was **not punished until the records were returned**, with Arnold's statement that "whatever disposition you make of the case is hereby approved."

Thus, the Court is convinced that it was not for political or personal reason that the accused decided to kill Borjal.

ISSUE #4

Side – Substantive	**W/N accused-appellants shall receive the benefits of the Guerrilla Amnesty Proclamation No. 8.**	**YES**

RULING and RATIO DECIDENDI:

The evidence on record regarding the date of liberation of La Paz, Abra, is contradictory.

1) **The Military Amnesty Commission** (who decided the case of Jesus Labuguen), held that La Paz, Abra was liberated on **July 1, 1945**, according to its **records**.
2) **Judges Bocar and Hilario** (who took **cognizance** of the case), relied on **Dept. Order No. 25** of the **Dept of the Interior**, which set the liberation date of Abra on **April 4, 1945**, *fifteen days before Borjal's execution*.

The two dates are **not strictly contradictory**; but even if they are, appellants must be given the **benefit** of the Presidential directive to the Amnesty Commissions, that "**any reasonable doubt as to whether a given case falls within the (amnesty) proclamation <u>shall be resolved in favor of the accused</u>**."

FINAL DECISION	For the reasons stated, the judgment appealed from is reversed and the appellants are acquitted, with costs de oficio.

REYES COMMENTARY | ARTICLE 12 – Exempting Circumstances

- Exemption is based on the complete **absence of intelligence, freedom of action, or intent**, or on the **absence of negligence** on the part of the accused.
- Under the RPC, a person must **act with malice or negligence** to be **criminally liable**.

PARAGRAPH 1 – IMBECILITY AND INSANITY

Insanity

- A manifestation in language or conduct of disease or defect of the brain; a permanently diseased or disordered condition of the mentality of the person.
- There is a **complete deprivation of intelligence** in committing the act; one is **deprived of reason**, and acts with a **total deprivation of freedom of the will**.
- **Question**: W/N the crime was committed during a **lucid interval** (if Y, then no exemption).

Imbecility

- One advanced in age, but with a **mental development** comparable to that of a **child** (2-7yo).
- One is **deprived** completely of **reason** or **discernment** and **freedom of the will** at the time of committing the crime (*People v. Ambal*).
- **Question**: W/N the mental capacity of the accused is to the level of an "imbecile."

The Court shall order for one's **confinement** in a hospital or asylum, and he shall **not** be permitted to leave without first obtaining the permission of the Court. Before the Court **can grant permission**, it must first obtain the **opinion of the Director of Health** that he may be released without danger.

Three-way test to prove insanity

1. It **must be present** at the time of the commission of the crime.
2. It, as the **primary cause** of the criminal act, **must be medically proven**.
3. Its effect is the **inability to appreciate the nature and quality of the act's wrongfulness**.

Evidence

- It must be **shown medically**, unless there are extraordinary circumstances and there is **no other evidence available**.
- The burden of proof is on the **defense**. The **presumption** is always in favor of sanity.
- There must only be **clear and convincing evidence**. There is **no need** for proof beyond reasonable doubt because insanity is not an element of the crime.
- The evidence must refer to the insanity at the time **preceding the act** or the **very moment** of the act. Again, one is presumed to be sane when the act was committed.

Expert Testimony

- The report and evaluation of **medical experts** is **given more weight** than acquainted testimonies.
- They must have evaluated that the person was deprived of intelligence at the time the act was committed.

CONSIDERED UNDER “INSANITY”

1. **Schizophrenia** is covered if it is accompanied by **complete loss of intelligence** at the time of the act.
2. **Kleptomania** is considered when the *unlawful act* is due to an **irresistible impulse**. It is only considered ***mitigating*** if the kleptomania ***merely diminishes*** the exercise of willpower.
3. **Epilepsy *may*** be considered when the person is shown to have been under the influence of an epileptic fit when the crime was committed (*People v. Mancao and Aguilar*).
4. **Somnambulism**, where the acts of the person afflicted are automatic.
5. One suffering from **Malignant Malaria**. This is an illness that affects the nervous system, and causes complications such as acute melancholia and insanity, at times (*People v. Lacena*).

NO EXEMPTION ON GROUNDS OF “INSANITY”

1. A **mere abnormality of mental faculties**, especially if the offender has not lost consciousness of his acts.
2. During a **lucid interval**.
3. When the person can **recall** what happened during the act (*People v. Renegado*).
4. When the person can **distinguish between right and wrong**.
5. A **feebleminded** person is not exempted because he **can** distinguish between right and wrong.
6. Someone who is **crazy**. Crazy is used to describe a person or an act *unnatural* or *out of the ordinary*. To be exempt, one **must be so insane as to be incapable of criminal intent**.
7. **Pedophilia**. It is a sexual disorder; one could still distinguish between right and wrong (*People v. Diaz*).
8. A person with **amnesia**, unless it is shown by competent proof that the accused did not know the nature and quality of his action and that it was wrong.

MINORITY

1. **PARAGRAPH 2 – A child 15 years and below.**
2. **PARAGRAPH 3 – A child between the ages of 15 and 18, unless he acted with discernment** (and thus subject to RA 10630).

- The child in conflict with the law shall enjoy the **presumption of minority**. They shall enjoy the rights of a child in conflict with the law until proven to be 18 years old or older at the time the act was committed.

Periods of Criminal Responsibility

1. The age of **ABSOLUTE IRRESPONSIBILITY** – 15 years and below.
    a. **Exempted**. They are immediately released by authority and shall be subjected to a community-based **intervention program**, unless it is in their best interest to be placed in a **youth care facility**, or “Bahay Pag-asa.” The **minimum** age for children placed in these facilities is **12 years old**.
    b. Children ages **12-15 yo** who committed **SERIOUS CRIMES** (parricide, murder, kidnapping with illegal detention, rape, homicide, etc) shall be deemed a **NEGLECTED CHILD** under PD 603. They shall be mandatorily placed in a **special facility** within the YCF or “Bahay Pag-asa.”
2. The age of **CONDITIONAL RESPONSIBILITY** – 15 years and one day to 18 years.
    a. Exempt from criminal liability but are subjected to an **intervention program**, unless he/she acted with discernment, and thus are subject to **appropriate proceedings** in accordance with this Act.
3. The age of **FULL RESPONSIBILITY** – 17 years or over (adolescence) to 70 (maturity).

4. The age of **MITIGATED RESPONSIBILITY** – 15 years and one day to 18 years (when the offender **acts with discernment**); over 70 years old.
    a. Senility (over 70 years old) is only a **mitigated** responsibility.

Discernment

1. The **manner** of committing the crime.
    a. ***People v. Magsino***: the minor committed the crime in the **nighttime** in order to **avoid detection**, or taking the loot to another town to **avoid discovery**.
2. The **conduct** of the offender.
    a. ***Madali v. People***: the minor offenders warned the victim not to reveal their hideous act to anyone; otherwise, they would kill him. They knew, therefore, that killing the victim was a condemnable act and should be kept in secrecy.

Child in Conflict with the Law (CICL)

- A child who is alleged as, accused of, or adjudged as, having committed an offense under PH laws.

Petition for Involuntary Commitment

- Shall be filed by the Local Social Welfare & Development Officer (**LSWDO**), or in his absence, the **DSWS** if:
    1) The CICL (at least 12 years old) is determined by the LSWDO to be **dependent, abandoned, neglected, OR abused** by the parents, and it is in the best interest of the child to be placed in a youth care facility or "Bahay Pag-asa."
        a) **Dependent** – the child is ***without*** *a parent/guardian/custodian*, or whose P/G/C desires to be relieved of the child's care and custody, and is thus dependent upon the **public** for support.
        b) **Abandoned** – a child **without proper parental care/guardianship**; or when the child has been **deserted** for a period of **six continuous months**.
        c) **Neglected** – when the child's basic needs have been **deliberately unattended** or **inadequately provided**.
        d) **Abused** – they are **maltreated**, whether habitual or not.
    2) The child, aged 12-15, commits **either or a combination of the following offenses**: parricide, murder, infanticide, kidnapping and serious illegal detention (where victim is killed or raped), robbery with homicide or rape, destructive arson, rape, carnapping where driver/occupant is killed or raped, and offenses under RA 9165 punishable by more than 12 years of imprisonment.
    3) The child, aged 12-15, is a **second time offender or oftener**, and it is in their best interest to be placed in a YCF or Bahay Pag-asa.
- Procedure.
    1) The LSWDO of the LGU where the offense was committed, or the DSWS (in their absence), **files** the proper **Petition for Involuntary Commitment and Placement of the CICL under the IJISC**, within 24 hours from the time of the receipt of a report on the alleged commission of the offense.
    2) The Court where the petition has been filed shall **decide** on it within 72 hours from its filing.
    3) The Court will determine the **initial period of placement** of the child within the IJISC, which shall not be less than one year.

Non-Exemption from Civil Liability

- Children exempted from criminal liability **are not exempt from civil liability**.
- Parents are **jointly liable** for the civil liability, unless:

1) They prove that they were exercising **reasonable supervision** over the child at the time he/she committed the offense, and
2) Exerted **reasonable efforts and utmost diligence** to prevent/discourage the child from committing the offense.

PARAGRAPH 4 – ACCIDENTS IN LAWFUL ACTS

*4. Any person who, while performing a **lawful act** with **due care**, causes an **injury by mere accident** **without fault or intention** of causing it.*

ELEMENTS:	**lawful act** + **due care** + **mere accident** + **without fault/intention**

ACCIDENTS

➔ Something that happens **outside the sway of our will** or, **even if coming through some act of will**, lies *beyond the bounds of humanly **foreseeable circumstances***

Examples **not considered accidents:

- **Negligence**
- Repeated blows despite claiming it as an accident
- Threatening words preceding the accidental shooting + still aiming at the body instead of helping
- When accidental nature of the incident is not proven

ACCIDENTS VS. NEGLIGENCE (they are contradictory and cannot coexist):

ACCIDENT	NEGLIGENCE
• **Beyond what is humanly foreseeable** (whether it happens without or partly with human agency, the result is unusual/unexpected) • Presupposes lack of intention	• **Failure** to observe a **justifiably demandable degree of care/precaution/vigilance** for the protection of the interest of another person (that is, to prevent injury) • Plainly foreseeable
Ex. of ACCIDENT A. AAA was hunting and fired a shot at a chicken. The slug hit the chicken but also recoiled and struck AAA's relative. ○ The hunt was **lawful** ○ NOT negligence = the deceased was not in the direction of the shot ○ The recoil of the slug wasn't expected B. Chauffeur was driving at *moderate speed* on *proper side* of the road. A man *suddenly* crossed the street from the sidewalk w/o warning and was run over.	**Ex. of NEGLIGENCE** A. A brawl was ongoing, AAA tried to get attention of the persons fighting but was ignored. AAA willfully fired a gun and shot the ground but the bullet ricocheted and hit a bystander. ○ Consequence was foreseeable

LAWFUL ACT

Striking another w/ a gun in self-defense and it accidentally fires at + seriously injures assailant = LAWFUL

- *TRIAL COURT: Reckless imprudence b/c defendant shouldn't have struck while the gun was cocked*
- BUT SC SAYS: Striking instead of shooting was prudent and reasonable. Whether the gun was cocked or not, there was no other manner of striking the assailant w/ a gun.

Examples **not considered lawful:

- Drawing a weapon during a quarrel but not counted as self-defense = unlawful act.

PARAGRAPH 5 – COMPULSION OF AN IRRESISTIBLE FORCE

5. Any person who acts under the compulsion of irresistible force.

ELEMENTS:	compulsion is **physical force** + physical force is **irresistible** + force is from a **third person**

IRRESISTIBLE FORCE (from a 3rd person)

Uses **violence / PHYSICAL force**. Reduces person to a mere instrument incapable of committing a crime.

➔ Must be **compelling enough** to get a person to obey despite his resistance (he does it *without or against his will*).

➔ Must be **present, imminent, and impending** to induce **well-grounded fear** of death / serious bodily harm

➔ Leaves **no room for escape / self-defense** in equal combat

➔ Must be proved by evidence

Examples where there's **no irresistible force:

- Man threatened with a gun but he himself was armed with a rifle
- When there is an impulse / passion / obfuscation

PARAGRAPH 6 – UNCONTROLLABLE FEAR OF EQUAL/GREATER INJURY

6. Any person who acts under the impulse of an uncontrollable fear of an equal or greater injury.

ELEMENTS:	the evil is **greater / equal** to the act + the threat promises an evil of such **gravity & imminence**

UNCONTROLLABLE FEAR	IRRESISTIBLE FORCE
Uses threat / intimidation to compel	Uses violence / physical force

REQUISITES

1. Existence of an uncontrollable fear
2. Fear is real and imminent
3. Fear of injury is greater / equal to that committed

Others

- Duress should be based on **real imminent fear** for one's life/limb. Cannot be speculative / fanciful / remote.
- There must have been **no opportunity for escape / self-defense.**
- Threat of **future injury is not enough**.

PARAGRAPH 7 – FAILURE TO PERFORM AN ACT DUE TO LAWFUL / INSUPERABLE CAUSE

7. Any person who fails to perform an act required by law, when prevented by some lawful insuperable cause.

ELEMENTS:	act **required by law** + person **failed to perform** act + failure due to some **lawful / insuperable cause**

LAWFUL CAUSE

Ex.: AAA **confessed to a priest about a planned conspiracy** against the government. Filipinos who know of such must report such information. Priest cannot be compelled to reveal info he acquired from a confession made to him in his professional capacity = he is **exempt from criminal liability.**

INSUPERABLE CAUSE

Ex.: A detainee was required to be brought to a justice within 18hrs, otherwise, the public officer will be liable. In one case, the detainee was delivered after 3 days because he had to be brought by boat (there were no other means of transpo) = officer is **exempt from criminal liability.**

GENERALLY: Intent presupposes use of intelligence and freedom. In all exempting circumstances, intent is wanting in the agent of the crime (bec of **accidents, lack of freedom, or lack of intelligence**).

JUSTIFYING CIRCUMSTANCE	EXEMPTING CIRCUMSTANCE
There is NO CRIME.	There is a crime, but NO CRIMINAL LIABILITY.

— ABSOLUTORY CAUSES

The act committed is a crime, but there is NO PENALTY due to public policy / sentiment.

INSTIGATION VS ENTRAPMENT

INSTIGATION ("trap for unwary innocent")	**ENTRAPMENT** ("trap for unwary criminal")
• **Absolutory cause** • Criminal act NOT PUNISHABLE if INSTIGATED BY A PUBLIC AUTHORITY / DETECTIVE	• **NOT an absolutory cause** • Employing ways to capture lawbreaker • Offense already originates from the doer himself

(acquittal is required due to public policy) ● Accused is lured into committing the offense charged in order to prosecute him ● Without instigation, the accused would not have committed / intended to commit the offense	who commits the offense free from influence ● Authorities merely facilitate apprehension of criminal using schemes ● Paving the way for the crime merely furnishes evidence of conduct (especially habitual offenders)

**Others:

- If instigated by a private individual not performing an official function = both are liable.
- If crime is simply discovered = no entrapment / instigation.
- Assurance of immunity by a public officer = doesn't exempt from crim. liability

Other absolutory causes other than those in Articles 11 & 12:

- ART. 6 = spontaneous desistance before committing all acts of execution
- ART. 20 = accessories exempt from crim. liability
- ART. 124 = commission of a crime requiring confinement of patient is considered legal
- ART. 247 = Any legally married person who, having surprised his spouse in the act of committing sexual intercourse with another person, shall kill any of them or both of them in the act or immediately thereafter, or shall inflict upon them any serious physical injury, shall suffer the penalty of destierro.
  If he shall inflict upon them physical injuries of any other kind, he shall be exempt from punishment.
- ART. 266-C (in rape) = Effect of Pardon. - The subsequent valid marriage between the offended party shall extinguish the criminal action or the penalty imposed.
- ART. 280 = The provisions of this article shall not be applicable to any person who shall enter another's dwelling for the purpose of preventing some serious harm to himself, the occupants of the dwelling or a third person, nor shall it be applicable to any person who shall enter a dwelling for the purpose of rendering some service to humanity or justice, nor to anyone who shall enter cafes, taverns, inns and other public houses, while the same are open.
- ART. 332 = Persons exempt from criminal liability.-No criminal, but only civil liability, shall result from the commission of the crime of theft, swindling or malicious mischief committed or caused mutually by the following persons:
  1. Spouses, ascendants and descendants, or relatives by affinity in the same line;
  2. The widowed spouse with respect to the property which belonged to the deceased spouse before the same shall have passed into the possession of another; and
  3. Brothers and sisters and brothers-in-law and sisters-in-law, if living together.
- ART. 344 = In cases of seduction, abduction, acts of lasciviousness and rape, the marriage of the offender with the offended party shall extinguish the criminal action or remit the penalty already imposed upon him. The provisions of this paragraph shall also be applicable to the coprincipals, accomplices and accessories after the fact of the above-mentioned crimes.

— MITIGATING CIRCUMSTANCES

Nature of crime remains the same, but penalties are reduced due to **diminution** of freedom, intelligence, or intent, or the lesser perversity of the offender.

ORDINARY MITIGATING	PRIVILEGED MITIGATING
● Those enumerated in par. 1-10 of Art. 13 ● Can be offset by any aggravating circumstance ● Maintains penalty provided by law but may apply it at ITS MINIMUM PERIOD	● (See list below) ● CANNOT be offset by aggravating circumstance ● Lowers the DEGREE OF PENALTY by 1-2 degrees 1. **Child above 15-18yrs but acted w/ discernment** = entitled to privileged mit. circumstance of minority 2. Art. 69 = **Lack of conditions required to justify/exempt** liability ⇒ 1-2 degrees lower 3. Art. 64 (5) = **If 2+ mit. circ. & NO aggr. circ**. ⇒ penalty next lower to that prescribed by law

PEOPLE v. BONOAN (1937)

Topic | Subtopic	Exempting Circumstances | Insanity	GR No. & Ponente	G.R. No. 45130 | LAUREL, J.
Petitioner/s	The People of the Philippines	**Respondent/s**	Celestino Bonoan y Cruz
Doctrine	A demented person is exempted from criminal liability. He shall be confined and not permitted to leave without first obtaining the permission of the court.		

FACTS

Celestino Bonoan was charged with the crime of **murder** by the prosecuting attorney of the City of Manila.

In the **morning** of December 12, 1934, Bonoan met with **Carlos Guison** (*deceased*) on Avenida Rizal near a barbershop close to Tom's Dixie Kitchen. **Francisco Beech** was in the barbershop and overheard Bonoan say "I will kill you." Beech turned around and saw Bonoan **withdraw his right hand, which held a knife**. Guison replied "I will pay you." Bonoan replied that he will kill him, and he **stabbed Guison thrice on the left side**. Policeman **Damaso Arnoco** witnessed the assault and **rushed to the scene**; he **arrested Bonoan** and took possession of the knife. Guison was brought to PGH and **died two days later**.

- Wounds: "One stab wound at the **right epigastric region** penetrating 1 cm into the superior surface of the right lobe of the liver; and three non-penetrating stab wounds located respectively at the **posterior** and **lateral lumbar region**, and **left elbow**."

History of Arraignment of Case

1. On January 16, 1935, the case was called for arraignment, but the defense counsel objected on the ground that Bonoan was **mentally deranged** and was confined in the Psychopathic Hospital. The court issued an order requiring the Director of the Hospital to render a **report** on Bonoan's mental condition. Thus, **Dr. Toribio Joson** rendered his report.
2. The case was called for arraignment a second time on March 23, 1935, but Bonoan was still confined in the hospital. The court issued another order for a report on Bonoan's mental condition. Dr. Joson rendered the report. The prosecution and defense asked the court to summon other doctors for questioning on Bonoan's mental condition, or to place him under a competent doctor for closer observation.
3. The case was once again called for arraignment on June 28, 1935, **Dr. Jose A. Fernandez** stated that Bonoan was not in a condition to defend himself. Thus, the case was suspended indefinitely.
4. On January 21, 1936, Dr. Fernandez reported that Bonoan has been **discharged** from the hospital and could appear for trial; he was "considered a recovered case." **Bonoan pleaded not guilty**.

TC Ruling: Bonoan was **not insane** at the time the act was committed, on the theory that the insanity was **merely occasional or intermittent**, and not permanent or continuous.

ISSUE 1

W/N Bonoan was insane at the time of the commission of the crime charged.	**YES**

RULING and RATIO DECIDENDI:

US Courts proceed upon **three** different theories on insanity (on the evidence required).

1) Insanity as a defense in a confession and avoidance and thus must be proved beyond a reasonable doubt. Proof of insanity at the time of committing the crime should be **clear and satisfactory** to acquit the accused on the ground of insanity.
2) An affirmative verdict of insanity is governed by a preponderance of evidence.
3) The prosecution must prove sanity beyond a reasonable doubt. Although the presumption of sanity exists, it is the State's duty to prove its existence in the accused beyond a reasonable doubt.

In the Philippines, the court affirms the **first view**. When a defendant in a criminal case interposes the defense of mental incapacity, **the burden of establishing that fact rests upon him**.

- To ascertain a person's mental condition at the time of the act, it is **permissible** to receive evidence of the condition of his mind a reasonable period both before and after that time. **Direct testimony is not needed**, nor are **specific acts of derangement** essential to establish insanity as a defense.
- Therefore, to prove insanity, **circumstantial evidence** (if clear and convincing), will **suffice**.

The Court is of the view that "**continuity**" of insanity refers to the **continuity of a particular and isolated attack**, beginning with the demonstration of symptoms thereof prior to the commission of the crime charged, and ending with a positive diagnosis of insanity immediately following the commission of the act complained of.

The evidence below is weighed heavily upon the minds of the majority of the court, thus reaching a different conclusion than the TC.

1) Bonoan was confined in the insane department of the San Lazaro Hospital during the periods from April 11 to 26, 1922, and January 6 to 10, 1926, from ***dementia praecox***. These are long before the "murder" on December 12, 1934, but this shows that the recurrence of the ailment at the time of the occurrence of the crime is **not entirely lacking** of any reason.
2) All persons suffering from ***dementia praecox*** are to be regarded as having **mental disease** to the extent which **disqualifies them from legal responsibility** for their actions.
    a) Dr. Elias Domingo: when a person suffers from DP, during this period of excitement, **he has no control whatsoever of his acts**.
3) According to Dr. Celedonio S. Francisco (intern at the San Lazaro Hospital), Bonoan had an **"attack of insomnia"** for 4 days immediately preceding Dec 12, 1934. Insomnia is a symptom of, and may lead to DP.
4) Bonoan was arrested and taken to the police station on the same day of the crime. There were attempts to secure a statement from him, **but he was sent by the police dept to the Psychopathic Hospital** the next day. This is an **indication** that even the police authorities **doubted his mental normalcy**.
5) According to the report by Dr. Joson, Bonoan was suffering from a form of psychosis, called **manic depressive psychosis** (*see case for the full report*).
6) Dr. Fernandez's report: he is of the opinion that Bonoan is **sick**; that Bonoan is not safe to be at large.
    a) "He has a **peculiar personality make-up, a personality lacking in control**, … He will always have **troubles and difficulties** with this world of realities."

The testimony of policeman Arnoco is not necessarily proof of Bonoan's sanity during the commission of the offense. As held by **Dr. Sydney Smith** in his work on Forensic Medicine, that in the type of dementia praecox, "the crime is usually **preceded** by much **complaining and planning**. In these people, **homicidal attacks are common**, because of delusions that they are being interfered with sexually or that their property is being taken."

- Testimony: after Arnoco arrested Bonoan, he inquired what his reason was for killing Guison, which was that Guison owed him (Bonoan) **P55** and would not pay; Bonoan bought a knife in Tabora Station for 55c, and for two days he had been watching Guison in order to kill him.

LEGAL BASIS

Article 12(1) of the RPC – The following are exempt from criminal liability:

(1) An imbecile or an insane person, unless the latter has acted during a lucid interval.

When the imbecile or an insane person has committed an act which the law defines as a felony (*delito*), the court shall order his confinement in one of the hospitals or asylums established for persons thus afflicted, which he shall not be permitted to leave without first obtaining the permission of the same court.

FINAL DECISION	Thus, the court is of the view that Bonoan was **demented** at the time he took the life of Guison. The judgment of the lower court is **reversed**, and the defendant-appellant is **acquitted**, with costs *de oficio* in both instances.

	In line with Article 12(1) of the RPC, the defendant shall be kept in **confinement** in the San Lazaro Hospital or any other hospital for the insane. He shall remain there until the CFI of Manila shall otherwise order or decree.

PEOPLE V. AMBAL (1980)

Topic | Subtopic	Exempting Circumstances (Insanity_	GR No. & Ponente	G.R. No. L-52688 | Aquino, J.
Petitioner/s	People of the Philippines	Respondent/s	Honorato Ambal
Doctrine	Without proof that he lost his reason before commission of the crime, there is presumption of sanity; Test for criminal responsibility:1.) aware of the nature and consequences of the act 2.) ability to distinguish right and wrong at the time of the act		

FACTS

Honorato Ambal - husband of Felicula, 49 y/o
Felicula Vicente-Ambal - wife of Honorato 48 y/o, deceased
Dr. Balbas - municipal health officer, 6 month training in psychiatry in the National Mental Hospital
Dr. Llacuna - has undertaken 2 month observation of mental cases, treated around 100 cases of mental disorder

The incident

1. They had a 15 y/o marriage featured by quarrels and bickerings. Sometimes they did not stay in the conjugal abode.
2. They had a quarrel because Felicula failed to buy medicine for Honorato who had influenza.
3. They got into a heated altercation → Felicula told Honorato "mas maayo ka pang mamatay" or it would be better if you were dead.
4. The remark infuriated Honorato and impelled him to attack Felicula.

Morning of Jan. 20, 1977 (this was discussed first)

1. The Brgy. Captain found Felicula under flowering plants near Honorato's House, which was located in Barrio Balbagon, Mambajo, Camiguin. She asked for water and medical assistance.
1. Felicula was mortally wounded – sustained 7 incised wounds in diff. parts of her body.
2. She was placed in an improvised hammock and brought to the hospital but she died 40 mins. after arrival.
3. (same morning) Honorato entrusted his child to a neighbor and then went to the Brgy. Captain's house. Honorato informed the wife that he killed his own wife, Feling.
4. After his confession, he took a pedicab to the municipal hall and surrendered and confessed to a policeman.
5. The policeman confiscated Ambal's bolo (the bolo's tip was broken).
6. Ambal was bespattered with blood, his shirt was torn, and he looked weak.

Other facts:

- Jan. 27, 1977 - Honorato was charged with parricide; Case was elevated to CFI
- Mar. 5, 1977 - fiscal filed information for parricide against Honorato; Ambal pleaded not guilty
- Nov. 3, 1977 - Dr. Balbas found that Ambal was a "passive-aggressive, emotionally unstable, explosive or inadequate personality"
    - Balbas observed Honorato from Feb. 1 (12 days after the killing) to Nov. 3 and he did not show any mental defect and was normal.
    - Before and after the commission of the crime, he was normal
    - During the commission of the crime – exhibited Psychosis due to short frustration tolerance
- Dr. Llacuna found that Honorato suffered from a minor psycho-neurosis, a disturbance of the functional nervous system – not insanity.
    - Conclusion: not insane, normal but nervous, no mental disorder.
- Nov. 16, 1977 - Honorato testified that at the time of the killing he did not know what he was doing because he was not in full possession of his normal mental faculties
    - Pretended to not know he was charged w/ capital offense of having killed his wife
    - BUT
        - He admitted he knew his wife was dead
        - During time in jail, he mopped, cooked, worked, sent unescorted to go to the market

- Said his wife was irritable and quarreled with him.
- He remembered a lot of things: rode on a tricycle when he surrendered after the killing and what happened the week before the incident when he got sick

ISSUE 1

Main – Substantive	**W/N Honorato was insane**	**NO**

RULING and RATIO DECIDENDI:

The Court held the trial court's conclusion that from Ambal's behavior immediately after the incident, he was not insane and he acted like a normal human being.

- Insanity must be carefully distinguished from passion, eccentricity, mental weakness, depression because sane murders escape punishment through plea of insanity.
  - Art. 12 of the RPC exempts from criminal liability an imbecile or an insane person unless the latter has acted during a lucid interval.
- Imbecile v. Insane person
  - Imbecile - person marked by mental deficiency; no intervals of reason; no alteration of the mind; total lack of judgment
  - Insane - person who has unsound mind or suffers from a mental disorder; may have lucid intervals
- Insanity - definition
  - "a manifestation in language or conduct of **disease or defect of the brain**, or a more or less permanently diseased or **disordered condition of the mentality**, functional or organic, and **characterized by perversion, inhibition, or disordered function** of the sensory or of the **intellective faculties**, or by **impaired** or disordered **volition**"
- **The law presumes all acts to be executed voluntarily not unconsciously.**
  - It is upon the defendant to overcome the presumption of an ordinary state of mind/sanity.
  - **Without proof that he lost his reason before commission of the crime → presume normal condition**
- Criterion for insanity or imbecility (in the context of Art. 12 of RPC)
  - Imbecile - must be deprived completely of reason or discernment and freedom of the will at the time of committing the crime.
  - **Insanity as an exempting circumstance - there must be complete deprivation of intelligence or discernment in the commission of the act; offense was the direct consequence of his insanity**
- Test of criminal responsibility for criminal acts when insanity is asserted
  - **(1) capacity to understand the nature and consequences of the act charged**
  - **(2) the ability to distinguish between right and wrong at the time and with respect to the act**
  - Irresponsible impulse test - assuming defendant knew the nature is wrong, he lost the will to prevent him from doing the act → not guilty
- Latest rule
  - **Not criminally responsible if his unlawful act is the product of a mental disease/defect**
    - Mental <u>disease</u> relieving accused of criminal responsibility - condition capable of improvement/deterioration
    - Mental <u>defect</u> relieving accused of criminal responsibility - condition not capable of improvement/deterioration

In this case:

- Presumption of sanity was not overthrown
- Honorato was not bereft of reason/discernment/freedom of will when he mortally wounded his wife.
- **The fact that immediately after the incident he thought of surrendering to authorities is proof that he knew what he had done was wrong.**

FINAL DECISION	Ambal is guilty of parricide with the mitigating circumstance of voluntary surrender to the authorities.

	WHEREFORE, the trial court's decision is affirmed. Costs against the appellant.

People v Puno (1981)

Topic | Subtopic	Art. 12: Exempting Circumstances (Insanity)	GR No. & Ponente	**GR No. L-33211 | Aquino**
Plaintiff-appellee	People of the Philippines	**Accused**	Ernesto Puno y Filomeno
Doctrine	Evidence of insanity must refer to time preceding the act or to the very moment of execution + it must be clear and positive evidence		

FACTS

Sept 8, 1970 at 2 PM

- **Puno**, 28 yo jeep driver (native of Macabebe, Pampanga + third child out of 12 + married with two kids + finished 3rd yr HS + his father's a welder + his friends are drivers) **entered a bedroom** in the house of a 72 yo widow **Francisca Col "Aling Kikay" (AK)** (Little Baguio, Barrio Tinajeros, Malabon, Rizal)
- Puno to Aling Kikay (his neighbor): **"Mangkukulam ka, mambabarang, mayroon kang bubuyog"** -> repeatedly **slapped her** and **struck her several times with a hammer on her head til she died**
- Puno threatened witnesses Hilaria and Lina
- After, Puno went to his parents house (Barrio Tugatog, Malabon) and then reached his 2nd cousin Teotimo's house (Barrio San Jose, Calumpit, Bulacan) in evening (no record how he went as flooded that time)
- Lina told Malabon police despite threat
- Corporal Daniel B. Cruz found AK dead on her bed, bloody (blankets and pillows included) + took witnesses' statements (Puno is killer)
- Medico legal: AK had lacerated wounds on right eyebrow, **contusions on head by hard object (cause of death: intracranial traumatic hemorrhage)**
- Puno's father surrendered him to police
- Puno was brought to Natl Mental Hosp in Mandaluyong, charged with murder

October 21, 1970 - he was indicted for murder + aggravating circumstances (evident premeditation, abuse of superiority, disregard of sex)

Puno testimony 5 months after killing

- pretended he did not remember killing AK
- believes that there are "mangkukulam" "mambabarang" "mambubuyog" and their victims' feet might shrink or hands might swell or might have headache or swelling nose and ears (only cured by quack doctor) SO THE **MANGKUKULAM ETC NEEDS TO BE KILLED**

TESTIMONIES

Zenaida (Z) Gabriel (30 yo) (Puno's wife)

- night before murder: his eyes reddish, complained of headache
- next day: while feeding pigs, he told wife that a bumble bee was coming towards him **(Z didn't see any bee)**
- Puno took his mom's cord of the religious habit, but asked for a rope when Z told him not to use that -> used rope to tie his dog to a tree + repeatedly boxed the dog

Aida Gabriel (Z's elder sister)

- saw Puno boxing the dog, his eyes bloodshot, had ferocious facial expression

Teotimo Puno

- Night of Sept 8, Puno went to their house soaking wet (may baha) cuddling a puppy he called "Diablo"
- Teotimo's mother invited Puno to eat, he didn't but fed the puppy
- Ernesto introduced Teotimo to the puppy, sang an English song
- Teotimo told him to change his clothes, didn't want to but later wore Teotimo's father's clothes -> told him

Teotimo's father was dead already, Ernesto just looked at Teotimo

- Lying down, Ernesto sang again, emitted a moaning sound -> fell asleep -> awaken by noises of people wading flood (he thought they were his fellow *cursillistas*)

Witnesses "Puno's eyes were reddish, his look baleful and menacing"

1. Hilaria de la Cruz (23 yo) in the bedroom with AK - Puno told them "Huag kayong magkakamaling tumawag ng pulis at sabihin ninyo na umalis kayo ng bahay at hindi ninyo alam kung sino ang pumatay sa matanda."
2. Lina Pajes (27 yo), tenant in adjoining room - Puno said "Pinatay ko ang iyong matanda. Huag kayong tumawag ng pulis. Pag tumawag kayo ng pulis, kayo ang paghihigantihan ko."

The Defense presented 3 psychiatrists, they testified that Puno acted with discernment. In their report

- Puno out patient + had relapse but relieved of symptoms July 1970
- Medical condition: he's quiet + manageable , fairly clean, without undue display of emotion, talks to copatients but evasive to doctors and other personnel, knows he's accused of murder but refuse to elaborate on it
- "The **seeming ignorance of very simple known facts and amnesia** of several isolated accounts in his life **do not fit the active pattern of a schizophrenic process**. It may be found in an acutely disturbed and confused patient or a markedly retarded individual of which-he is not... However, persons who recover from an acute episode of mental illness like schizophrenia **may retain some residual symptoms** impairing their judgment but **not necessarily their discernment of right from wrong** of the offense committed."

Dr. Araceli Maravilla

- Puno was an out patient who could very well live with society but had "schizophrenic reaction"
- Puno knew what he was doing, had psychosis, slight destruction of the ego
- Puno admitted to her that financial problem was one cause of his restlessness, sleeplessness, irritability
- Puno was already cured on July 24, 1970

Dr. Reynaldo Robles

- Puno was brought by his parents to hospital on July 28, 1962 bec he laughed alone, had eccentricities like kneeling, praying, making his body rigid
- Puno suffers from "schizophrenic reaction" but his symptoms not socially incapacitating and he could adjust to his environment
- agreed with Dr. Maravilla's testimony

Dr. Carlos Vicente

- Puno acted with discernment and he could distinguish right from wrong
- Puno not suffering from any delusion and not mentally deficient (he wouldn't reach 3rd yr HS otherwise)

Trial Court: Puno was sane, knew killing was wrong, that he would be punished as shown by threats made to witnesses. If Puno was a homicidal maniac, he would also kill those two. Singling out AK shows he thought she was a witch. Puno convicted of Murder -> death penalty + indemnity to heirs

Judge Villaluz: Convinced Puno is sane and has full grasp of what's happening based on latter's behavior in court

To claim insanity, evidence must refer to time preceding the act or to the very moment of execution + must be clear and positive evidence

- Art 12 RPC: Insanity means accused must be **deprived completely** of reason or discernment and freedom of the will **at the time of committing the crime**
- Mere abnormality of the mental faculties will not exclude imputability

Main – Substantive	**W/N Puno was sane when he committed the killing**	**YES**
PETITIONER/S AR.:	**RESPONDENT/S ARGUMENTS:**	

	Defense: Trial court erred in not sustaining the defense of insanity and in appreciating evident premeditation, abuse of superiority and disregard of sex as aggravating circumstances + Puno was insane when he killed AK as he had chronic schizophrenia (psychosis that deprives a person discernment and freedom of will) since 1962 (suffering from it on the moment of killing)

RULING and RATIO DECIDENDI:

Puno was not legally insane when he killed AK. Psychiatrists' findings reveal that he was not completely deprived of reason and freedom of will.

People v Fausto y Tomas: Accuse confined in mental hospital for 13 days due to paranoid type schizophrenia. ~1 yr later, he killed doctor for not certifying his reemployment. Court rejected plea of insanity and convicted him of murder.

Abuse of superiority - trial court correct
"an attack made by a man with a deadly weapon upon an unarmed and defenseless woman constitutes the circumstance of abuse of superiority which his sex and the weapon used in the act afforded him and from which the woman was unable to defend herself"

Evident premeditation - evidence DOES NOT SHOW

1. the time when the offender determined to commit the crime
2. an act manifestly indicating that the culprit had clung to his determination and
3. a sufficient interval of time between the determination and the execution of the crime to allow him to reflect upon the consequences of his act

Premeditation elements

1. The person carefully and deliberately conceived the crime and decided to carry it out.
2. The person continued to maintain that decision for some period of time before actually committing the crime.

Disregard of sex - not aggravating, no evidence about intention to disrespect her sex or womanhood

“Dwelling and disregard of the respect due to the victim on account of her old age should be appreciated as generic aggravating circumstances.”

Mitigating circumstances:

- voluntary surrender
- mental illness (mild psychosis or schizophrenic reaction) - diminished his will power
- mistaken belief re killing mangkukulam being for public good - impaired his control

FINAL DECISION	WHEREFORE, the death penalty is set aside. The accused is sentenced to reclusion perpetua. The indemnity imposed by the trial court is affirmed. Costs de oficio. SO ORDERED.

SEPARATE OPINION/S

Makasiar, *dissenting* + **Fernardo** concur with this dissent	Puno was mentally ill (chronic schizophrenia of the paranoid type) when he killed AK. Noye’s Modern Clinical Psychiatry: "Symptomatically, the schizophrenic reactions are recognizable through odd and bizarre behavior apparent in aloofness, suspiciousness, or

	periods of impulsive destructiveness and immature and exaggerated emotionality, often ambivalently directed and considered inappropriate by the observer. The interpersonal perceptions are distorted in the more serious states by delusional and hallucinatory material” Schizophrenia is chronic mental disorder - inability to distinguish between fantasy and reality, and often accompanied by hallucinations and delusions (usually in ages 15-30 July 28, 1962 first examination and treatment of appellant aside from concerns by parents, Punon said he could see God, AK is bewitching her he didnt kill AK, he killed “mangkukulam” as defense (victim was mere consequence of his delusion) Social recovery ≠ cure from disease (records show improvement but not totally cured) between July 24, 1970 when appellant suffered from his last attack or relapse and September 8, 1970 when he committed the alleged crime, barely 1 month and 15 days had elapse (chronic schizophrenia patients dont recover fully in 2 months tine. he may simpky in remission not fully recovered

PEOPLE v. DUNGO (July 31, 1991)

Topic | Subtopic	Art XII: Exempting Circumstances | Insanity	GR No. & Ponente	GR No. 89420
Plaintiff-appellee	People of the Philippines	Accused	Rosalino Dungo
Doctrine			

FACTS

Charged with **murder**

Prosecution's version:

- Between 2 and 3 in the afternoon
- A male person, identified as the accused, went to the place **Mrs. Belen Macalino Sigua (deceased)** was holding office at the Department of Agrarian Reform, Apalit, Pampanga
- After a brief talk, he drew a knife from the envelope he was carrying and stabbed Mrs Sigue multiple times
- After, he went out the DAR office with bloodied clothes and carrying the bloody weapon
- **Prosecution witness statement:**
    - Sometime about a month before the attack, the accused inquired from the husband, **Rodolfo Sigua,** about the number of documents he was required to submit
    - Husband tried to explain the procedures of the DAR, but accused just said **"never mind, I could do it my own way".**

Defense's witnesses:

- **Andrea Dungo (wife of accused)**
    - Husband worked in farming before he left for Lebanon to work
    - Also worked in Saudi Arabia but couldnd't finish two-year contract b/c he got sick
    - Couldn't resume farming– instead, the couple operated a small store
    - Wife testifies unusual behavior two weeks prior to incident:
        - In deep thought always
        - Maltreating their children which he didn't do before
        - Demanding payment from customers who had already paid
        - Chasing any child when the children quarreled
        - Would tell her his feet and head were on fire when they weren't
        - after the stabbing, accused told Andrea **"that is the only cure for my ailment. I have a cancer in my heart."**
        - Accused surrendered to a barangay official.
        - **The same day, the accused went to Manila.**
- **Dra, Sylvia Santiago and Dr. Nicanor Echavez of the National Center for Mental Health**
        - testified that the accused was confined in the mental hospital
        - concluded that Rosalind Dungo was psychotic or insane long before, during and after the commission of the alleged crime
        - classified under **organic mental disorder secondary to cerebro-vascular accident or stroke**

- **Accused (Rosalino Dungo)**
        - testified that **he was not aware of the stabbing incident nor of the death of Mrs. Belen Sigua**
        - claimed that **he only came to know that he was accused of the death of Mrs. Sigma when he was already in jail**

Trial court convinced that the accused was sane during the perpetration of the act:

1) **act of concealing the fatal weapon indicates a conscious adoption of a pattern to kill the victim**
2) **apprehended and arrested in Metro Manila (indicates that he embarked on a flight to evade arrest**

ISSUE 1

Main – Substantive	**W/N the accused was insane during the commission of the crime charged?**	**NO**

RULING and RATIO DECIDENDI:

FOREIGN JURISDICTION- three major criteria for insanity

1) *delusion test- manifested by **false belief** for which there is no reasonable basis; insane person believes in a state of things which no rational person would believe*
2) *irresistable impulse- by reason or duress, a person has **lost the power to choose between right and wrong, and avoid the act in question b/c his free will has been destroyed***
3) *right and wrong test- incapable of **distinguishing between right and wrong***

IN THE PHILIPPINES:

Vagaries of the mind can only be known by **outward acts:** we read the thoughts, motives, and emotions of a person and. through which we **determine whether his acts conform to the practice of people of sound mind**

- **Defense witnesses concluded that accused was suffering from insanity classified under organic mental disorder secondary to cerebrospinal-vascular accident**
    - allegedly, accused suffered from **psychosis** which was organic
    - **however,** Dr. Enchavez disclosed that the manifestation of the symptoms may be **treated with medication**
        - although the **defect of the brain is permanent**, the **manifestation of insanity is curable**

DID THE ACCUSED HAVE LUCID INTERVALS?

- undisputed: a month or a few weeks prior to the commission of the crime, the **accused confronted the husband of the victim concerning the actuations of the latter, complained against the requirements of the DAR office**
- not usual for an insane person to confront a specified person who may have wronged him
- was also supposed to be suffering from impairment of memory
- **testimony of defense witness:**
    - appellant **could have been aware of the nature of his act at the time of commitment**
    - shouted **“Napatay ko si Mrs. Sigua!”** at the particular moment—> shows awareness

Because insanity is a **complete deprivation of intelligence,** the testimony of the expert witness that the **accused knew the nature of what he had done makes it doubtful that he was insane when he committed the act charged.**

In the defense of insanity, doubt as to the fact of insanity should be resolved in the favor of sanity.

- the burden of proving the affirmative allegation of insanity rests on the defense
- requires **proof beyond reasonable doubt**
    - **clearly and satisfactorily proved to acquit an accused on the ground of insanity**

FINAL DECISION	PREMISES CONSIDERED, the questioned decision is hereby AFFIRMED without costs.

People v. Yam-id (1999)

Topic | Subtopic	Art. 12: Exempting Circumstances (Insanity)	GR No. & Ponente	
Petitioner/s	People of the Philippines	Respondent/s	Erlindo Yam-id "Ely"
Doctrine			

FACTS

Julius Cantutay was a resident of Saksak, Pinamungajan, Cebu
Danilo Tejamo- Uncle (neighbor)
Ancieta Tejamo - Aunt (Danilo's wife) (sister of Julius' father)
Erlindo Yam-id - accused-appellant and neighbor of Julius
Jerry Tejamo- 6 yr old Cousin

April 1, 1994, at around 2PM
Julius was sent by his grandmother to Bgy. Tutay to deliver benignity to his aunt. Jerry Tejamo was with Julius

While on the way to his aunt's house, they passed by Erlindo's house, where Arlindo greeted them "Good Evening"

- Erlindo then, right after, suddenly unsheathed a bolo and chased after Julius and Jerry.

Jerry was overtaken by Julius, and Julius stopped a bit to wait for Jerry. Erlindo caught up with Jerry

Erlindo stabbed Jerry with the bolo on the left portion of his back

- Erlindo then held Jerry by the hair and hacked him on the nape
- As a "coup de grace", Erlino stabbed Jerry on the right side of his back and he died on the spot
- Erlindo then knelt over the body and SUCKED THE BLOOD FROM HIS NECK

Scared af, Julius ran towards Jerry's house to get to Jerry's father, Danilo.

- Danilo was sleeping, so Julius narrated the incident to Ancieta.
- Ancieto woke Danilo and they both ran to the site of the incident.

Before they reached the location, they were met with Erlindo who was still holding the bolo

Danilo asked where his son was and Erlindo answered "I will kill all of you"— then hacked Danilo with the bolo

- Danilo was able to dodge the attack but fell down

Erlindo struck at Danilo again and he got hit on the bridge of his nose. While Danilo tried to stand, Erlindo hacked him again and Danilo was hit on the head.

Danilo stopped moving, and Erlindo took hold of Danilo's collar. BUT inexplicably, the tip of the bolo hit Erlindo's stomach and blood oozed from the wound (yes Erlindo yung nasugatan. Not a typo).

Erlindo then ran to his house and threw the bolo. Danilo then regained consciousness and sought treatment

Erlindo's story
He denied killing Jerry and pleaded self-defense for his assault on Danilo.

Claimed that due to a land dispute between Erlindo's family and Danilo's in-laws, Danilo tried to kill him by firing at his house. In retaliation, Erlindo hacked Danilo at the forehead but Danilo shot him— hitting below the navel and caused a prolapse

TC did not give credence to this version of the story

In this automatic review though, Erlindo made a complete turn-around and admitted to killing Jerry— BUT pleads insanity

- With regard to his conviction for frustrated homicide, he seeks reversal on the ground that his intent to kill was not proven

ISSUE 1

Main – Substantive	**W/N Insanity can be appreciated as an exempting circumstance in this case?**	**NO**
PTTNR ARGUMENT:	**RESPONDENT/S ARGUMENTS:**	
	PAO contends that the accused was suffering from schizophrenia— inability to distinguish between fantasy and reality, often accompanied by hallucinations and delusions Dr. Antonio Yapha, who treated Erlindo's wounds, testified that he did not find an entrance for the alleged gunshot wound inflicted by Danilo. ● A wound caused by a .38 caliber slug would not result in a prolapse Further proof of his insanity is the gruesome act of sucking Jerry's blood by the accused	

RULING and RATIO DECIDENDI:

In considering insanity as a defense, the starting premise is that the law presumes all persons to be of sound mind and that acts are done consciously.

- Whoever invokes insanity as a defense has the burden of proving its existence

In this case, the defense failed to discharge its burden of proving that the accused was insane at the time of the commission

The only intimation of insanity is the non-medical opinion of the PAO that the accused was suffering from schizophrenia because he sipped Jerry's blood

There was no medical certificate and no testimony to substantiate the claim.

- Court is not aware that PAO has the expertise to diagnose clients.

While Erlindo's acts are typically not expected of a normal person, we have to be careful in distinguishing between insanity and passion or eccentricity

The State should guard against sane murderers escaping punishment through a general plea of insanity

For insanity to be appreciated as an exempting circumstance, it must be **present immediately before or at the very moment** the crime is committed

There was no evidence to prove insanity, and it was only invoked on appeal, giving the Court the impression that it was merely an afterthought

ISSUE 2

Side – Substantive	**W/N premeditation attended the commission of the crime**	**NO**

RULING and RATIO DECIDENDI:

Requisites for premeditation to be appreciated

1. The time when the accused determined to commit the crime
2. An act manifestly indicating that the accused clung to his determination

3. Sufficient lapse of time between determination and execution (reflection period)

Prosecution failed to present any evidence to show any or even all of the above elements
The bad blood that allegedly exists between the accused's family and Danilo's in-laws does not prove evident premeditation.
It was teacher that qualified the killing of Jerry

- Treachery exists when an adult person illegally attacks a child of tender years and causes his death

++ not too important note but the penalty of death imposed on Erlindo was reduced to reclusion perpetua as there was neither an aggravating nor a mitigating circumstance

FINAL DECISION	WHEREFORE, the appealed decision is hereby MODIFIED, finding accused-appellant GUILTY of MURDER in Criminal Case No. TCS-2381 and sentencing him to suffer the reduced penalty of RECLUSION PERPETUA. He is likewise ordered to indemnify the parents of the victim the sum of Fifty Thousand (P50,000.00) Pesos and to pay actual damages in the amount of Forty Thousand (P40,000.00) Pesos. In Criminal Case No. TCS-2382, accused-appellant is found guilty of ATTEMPTED HOMICIDE instead and sentenced to two (2) months and one (1) day of arresto mayor, as minimum, to two (2) years, four (4) months, and one (1) day of prision correccional, as maximum. SO ORDERED.

PEOPLE V. BELONIO (2004)

Topic | Subtopic	Art. 12: Exempting Circumstances (Insanity)	GR No. & Ponente	G.R. No. 148695. May 27, 2004.
Appellee/s	PEOPLE OF THE PHILIPPINES	Appellant/s	RANDY BELONIO y LANDAS
Doctrine	Insanity exists when there is a complete deprivation of intelligence in committing the act.		

FACTS

Setting of the crime: January 6, 2000 in the evening, in Talisay City, Negros Occidental

FACTS (As testified by Jennifer Carampatana)

1. On Jan 6, 2000, a wake was held for her grandmother in their house at Brgy. Zone 14.
2. At about 10:00, Her first cousin Ramon (Ramy) Tamayo arrived with his wife.
3. Jennifer invited Ramy to talk outside of their house.
4. Ramy went to a store a few meters away to buy cigarettes. The store had a small opening where the storekeeper could attend to customers.
5. Ramy was blocking the space to pay when the accused Randy Belonio arrived.
6. Randy forced his way in front of the opening and bumped on Ramy. He gave Ramy a long, hard look.
7. Randy came over and sat on the other side of the bench that Ramy was sitting on. He borrowed the latter's cigarette lighter and asked him where he came from and why he was there.
8. Ramy replied normally, saying that he was there for his grandmother's wake and that he was from Hda. Bubog. Randy stood up and walked away.
9. After 3 minutes, Randy returned, wearing long sleeves to conceal an improvised knife in his hand.
10. Ramy was sitting cross-legged facing sideways towards Jennifer, and could not see Randy approaching.
11. Suddenly, Randy stabbed Ramy on the chest.
12. Jennifer ran towards her house to ask for help, and she heard a second thudding sound of a stabbing blow.
13. Randy fled toward the back of the barangay hall and hid in a neighboring house, where the Barangay officials and the policemen apprehended him.

Autopsy Findings

1. Stabbed wound, 1.7 cm. in length, sutured sharp on one (1) and (inferior portion) and blunt on the other end (superior portion) located at the 4th intercostal space; 'Dr. Pama explained that the wound is just above the left nipple and it penetrated downward hitting the left side on the heart;
2. Stabbed wound at the sternal. The wound is situated just above the site of the first wound.

The first wound was fatal as it damaged the heart.

Belonio's Defense

- Belonio admitted to the killing but invoked the exempting circumstance of insanity under Art 12, Par. 1 of the RPC.
- He presented expert witness Dr. Antonio Guazon who evaluated Belonio 9 months after the incident.
    - Diagnosed Belonio with Schizophrenia, Chronic Undifferentiated. He said that it may have been triggered by substance abuse of shabu and marijuana.
    - He claimed that Belonio was from an impoverished and dysfunctional family, spent his youth as a "street urchin" in Manila, suffered hallucinations, and killed 3 people without knowing what he was doing.
- Argued that no normal person would bump another person (+a person he didn't know), ,give him a hard look, and stab him for no reason. Thus, he claimed he was not in the right and normal frame of mind.
- He argued that Dr. Guazon (57 y.o.) was older and more experienced than Dr. Servando (37 y.o.).

Prosecution's Defense

- Presented Dr. Ester Regina Servando (government psychiatrist). Her psychiatric evaluation result

concluded that: “patient was noted to be evasive, suspicious, and manipulative but no psychotic features were observed upon evaluation. . . .”

ISSUE 1

Side – Substantive	**W/N the trial court erred in failing to appreciate the exempting circumstance of insanity under Art 12 of the RPC?**	**NO**

RULING and RATIO DECIDENDI:

The moral and legal presumption is that one acts with free will and intelligence, and that a felonious or criminal act has been done with deliberate intent, that is, with freedom and intelligence. Whoever, therefore, invokes insanity as a defense has the burden of proving its existence. Insanity exists when there is a complete deprivation of intelligence in committing the act.

- The defense utterly failed to prove that Randy was insane. The testimony or proof of appellant’s insanity must relate to the time preceding or the very moment of the commission of the offense charged.
- Randy’s acts tend to establish that he was well aware of what he had just committed, and was capable of distinguishing right from wrong. Otherwise, he would not have attempted to escape and go into hiding.
    - Concealed the dagger
    - Targeted strike from a blind spot
    - Fled the scene to hide in a house

- The Supreme Court affirmed the trial court’s preference for Dr Servando’s testimony over Dr. Guanzon
    - Dr Servando, as a government official, enjoyed the presumption of regularity in the performance of duty.
    - She did not know Randy whereas Dr Guanzon knew Randy and he was being paid for his services
    - Dr Servando administered written psychological tests confirming Belonio was manipulative and evasive. Dr Guanzon only relied on testimonies of Belonio’s relatives.

LEGAL BASES

ISSUE 2

Main – Substantive	**W/N the qualifying circumstance of treachery and the special aggravating circumstance of recidivism were duly established**	**YES**

RULING and RATIO DECIDENDI:

On Treachery

For treachery to be appreciated, two elements must concur: (1) the means of execution employed gave the person attacked no opportunity to defend himself or retaliate; and (2) the means of execution was deliberately or consciously adopted.

- Belonio deliberately concealed the dagger under his long sleeves, approached Ramy while he was seated facing sideways engaged in conversation, and thrust the blade into his chest without warning. This ensured execution without risk to himself arising from any defense the victim may make.

On Recidivism Belonio was also previously convicted by final judgment of Homicide which is also a Crime Against Persons.
LEGAL BASES

FINAL DECISION	**WHEREFORE,** the assailed Decision in Criminal Case No. 00-20595 convicting the appellant of the crime of murder and sentencing him to DEATH is AFFIRMED. The award for loss of earning capacity is INCREASED to P1,362,545; moral damages is REDUCED to P50,000; actual damages is DELETED but temperate damages of P25,000 and exemplary damages of P25,000 are awarded. In accordance with Section 25 of R.A. 7659 amending Section 23 of the Revised Penal Code, let the records of this case be forthwith forwarded, upon finality of this decision, to the Office of the President for possible exercise of the pardoning power. Costs against appellant. **SO ORDERED.**

PEOPLE v. Mirana (2018)

Topic | Subtopic	Art. 12: Exempting Circumstances (Insanity)	GR No. & Ponente	G.R. No. 219113 | J. Martires
Petitioner/s	PEOPLE OF THE PHILIPPINES	Respondent/s	ROLAND MIRAÑA y ALCARAZ
Doctrine			

FACTS

Roland Mirana was found guilty beyond reasonable doubt in the crime of murder.

June 17, 2008, 6:00am, Brgy San Ramon, Lagonoy, Camarines Sur, Philippines: the aFccused was armed with a **bolo**, with intent to kill and with abuse of superior strength, and **hacked Dominga Agnas De Globo (Dominga), 73 y/o woman**.

Version of the Prosecution:
Dominga was known to be **"may inggay"** *(I assume maingay?)* by her relatives and neighbors, living on her own but slept frequently at the house of **Alberto Mirana** (**her first cousin)** because **the accused had been harassing her by throwing stones.** She believed she was being threatened because she once reprimanded him after she caught him **stealing fruits** from her property.

Alberto returned home from the fiesta and found the victim in his house trembling while praying. She told him she was scared because the accused chased her with a bolo. Alberto invited her to sleep in his house and report it to the barangay, but the victim refused because the appellant was her relative. Left -> went to brother's house -> did not heed advice to report -> returned to her house to wait for the call of her son (working abroad).

June 17, 2008, 6:00am: Armando Orce (neighbor) was at a coconut plantation when he **heard a woman cry out followed by a loud cry of a man.** He ran in that direction -> saw a woman lying on her side on the ground in front of the door to his house (the victim) -> saw accused's father crying at the back of their house, facing the accused.

When the police came, the accused confessed to the crime and pointed at the bolo (which he washed afterward) -> arrested.

Ramiro (son of victim) went home, visited the accused in the mental hospital, and asked what he did -> victim said that he killed her.

June 20, 2008: he was transferred to the Bicol Medical Center Mental Hospital based on the report that he was being violent to himself and others in jail.

Version of the Defense:
In the morning of June 17: Imelda (mother of accused) found out of the killing. She said she did not know any personal enmity between the two.

- Noticed that accused started exhibiting odd behavior after the latter's nose was bitten by a cousin/
- Accoused would smile without anyone in front of him
- He would call a chicken late at night
- **Kept saying to himself that the victim was a witch**
- After the incident, accused just sat inside their house, staring blankly.

Mercy (accused's sister) noticed that her brother kept smiling, could not sleep, and **kept saying that the victim was a witch.** He even claimed he saw the witch in their backyard.

During trial, accused claimed not to know/recall the events, identity of the victim, and treatment at the mental hospital.

- **RTC:** No defense of insanity: while the behaviors are abnormal, it cannot be equated with a total deprivation of will or an absence of the power to discern, to accept insanity.

- **CA:** affirmed the decision

Main – Substantive	W/N Insanity could be appreciated in the accused's favor	No, but should be liable for homicide only

RULING and RATIO DECIDENDI:

The defense failed to prove accused-appellant's insanity at the time of the commission of the crime.

Every person is presumed sane (burden of proof on defendant).

For it to prosper, proof that the accused was completely deprived of intelligence (relating to the time immediately preceding or simultaneous to the commission of the offense) must be presented.

Imelda and Mercy's testimonies failed to prove the accused mental condition immediately ***before, during, and immediately after*** *he committed the crime.*

- unusual behaviors such as smiling to oneself and calling a chicken late at night are not proof of a complete absence of intelligence, because not every aberration of the mind or mental deficiency constitutes insanity.
- 'Crazy' =/= legal terms: 'insane', 'unsound mind', 'non compos mentis'. 'Idiot', 'lunatic'

Dr. Escuader's testimony:

- Testified she conducted a psychiatric interview with the accused
- Showed that the accused is fit for trial
- Accused has history of mental illness **(schizophrenia)**.

Dr's testimony failed to prove mental condition:

- Dr. Escuader's testimony was to prove that the accused was fit to stand trial.
- She was not the one who conducted initial examination when the accused was committed to mental hospital. It was Dr. Belmonte who was not presented as a witness.
- **Her testimony does not specifically pertain to the mental condition of the accused at the time of commission of the crime.**
- History of mental illness does not exempt the accused from criminal liability, it must be related to the time of the commission of the crime.

Accused's actions immediately after the incident negate absence of intelligence that he killed the victim.

- He told the police officers that he was responsible for the hacking, pointed at the bolo, indicated that he had already washed the weapon.
- Shows that he had the foresight to wash the bolo and later confess to the crime. Shows that the accused was **capable of discernment during the time of the incident.**

Regarding abuse of superior strength [can't be appreciated = charge of murder flawed]

- No proof of qualifying circumstance of abuse of superior strength.
- Age and gender of victim insufficient to prove abuse of superior strength.
- No evidence that the accused sought the advantage of strength (no witness testimony)

FINAL DECISION	WHEREFORE, the 7 August 2014 Decision of the Court of Appeals in CA-G.R. CR.-H.C. No. 06183 is AFFIRMED with MODIFICATION in that accused-appellant Roland Miraña y Alcaraz is found GUILTY beyond reasonable doubt of the crime of Homicide under Article 249 of the Revised Penal Code, as amended; and is hereby sentenced to serve the indeterminate penalty of eight (8) years of prision mayor, as minimum, to fourteen (14) years, eight (8) months, and one (1) day of reclusion temporal, as maximum. Further, accused-appellant is ordered to pay the heirs of the victim the following amounts: P50,000.00 as moral damages, and P73,397.95 as actual damages. The award of damages shall earn interest at the rate of six percent (6%) per annum from the date of finality of the judgment until fully paid.

PEOPLE v. TANEO (1933)

Topic | Subtopic	**Exempting Circumstances | Somnambulism**	**GR No. & Ponente**	**G.R. No. 37673 | AVANCEÑA, C.J.**
Petitioner/s	The People of the Philippine Islands	**Respondent/s**	Potenciano Taneo
Doctrine	One who commits a crime while sleepwalking engages in acts that are **not voluntary**, and thus bears no criminal liability.		

FACTS

Potenciano Taneo was charged with **parricide**, and was sentenced by the trial court to *reclusion perpetua*.

1. **Taneo** lived with his **wife** in his **parents' house** in **Dolores**, Ormoc, Leyte. There was a **fiesta** being celebrated, and **visitors** were entertained in the house, including **Fred Tanner** and **Luis Malinao**.
2. Early in the afternoon, Taneo went up to his room to **sleep**. While sleeping, **he got up**, left the room with a **bolo** in his hand, and upon meeting his wife who tried to stop him, **he wounded her in the abdomen**. He then **attacked Tanner and Malinao**, and tried to attack his **father**, after which he **wounded himself**.
3. The wife, 7 months pregnant, **died 5 days later**. The baby also **died** as it was **asphyxiated** in the womb.

On the day before the incident, Taneo had a **quarrel** over a glass of "tuba" with **Enrique Collantes** and **Valentin Abadilla**. They invited him to come down and fight, but he was stopped by his wife and mother. **On the day of the incident**, Taneo was **sad and weak**, and had a **severe stomachache**, which prompted him to go to bed.

Taneo states that when he **fell asleep**, he **dreamed** that **Collantes** was trying to **stab him with a bolo** while **Abadilla** was **holding his feet**. He got up, and as it seemed that his enemies were inviting him to come down, he took his bolo and left the room. At the **door**, he met his wife who told him she was wounded. **He fancied his wife really wounded (i.e., he really wounded her) and after wounded himself**. As it *seemed* that enemies were multiplying around him, **he attacked everyone who came his way**.

W/N Taneo is guilty for the crime of parricide.	**NO**

RULING and RATIO DECIDENDI:

The defendant acted while in a **dream** and his acts were **not voluntary** in the sense of entailing criminal liability.

1) There is a lack of motive known to the Court; they cannot probe into his conscience and find one.
2) He attacked people whom he **dearly loved** (his wife and father). He also did **not** have any **dispute** with Tanner and Malinao to prompt his violence.
3) **Dr. Serafica**, an **expert witness**, states that he acted while in a **dream**, under the influence of **hallucination** and that he was **not in his right mind**.
4) He did not dream that he was defending himself from his wife, but that **he was defending himself from his enemies**. Thus, believing that his wife was really wounded, in desperation, **he stabbed himself**.

LEGAL BASIS – N/A

FINAL DECISION	The Court reversed the judgment of the TC, finding Taneo **NOT CRIMINALLY LIABLE** of parricide. He is ordered to be confined in the Government **insane asylum**, whence he shall not be released until the director thereof finds that his liberty would no longer constitute a menace, with costs de oficio. So ordered.

People v Doqueña (1939)

Topic | Subtopic	Art. 12: Exempting Circumstances (Minority)	**GR No. & Ponente**	G.R. No. 46539 | Diaz
Plaintiff/appellee	People of the Philippines	**Defendant/appellant**	Valentin Doqueña
Doctrine	Discernment (ability to understand right from wrong that may be determined by attitude before, during, after the act and even during trial)) in Art. 12 is different from premeditation or lack of intention as mitigating circumstance under Art 13		

FACTS

Doqueña is a minor convicted for homicide in CFI Pangasinan

- killed Juan Ragojos (stab in the breast with a knife)
- Sual, Pangasinan
- court said he acted with discernment
- he was sent to Training School for Boys (til he was the age of majority)

Nov 19, 1938 - **Doqueña was 13y,** 9m, 5d old. It was **1-2 PM.**

- **Ragojos and Epifanio Rarang** were **playing volleyball** (yard of the intermediate school in Sual, Pangasinan)
- Doqueña intervened, caught the ball, tossed it at Ragojos (**hitting him on the stomach**)
- **Ragojos** chased him then **slapped him on the nape**
- Doqueña turned against **Ragojos** with a threatening attitude so the latter **punched him on the mouth** + went back to Rarang to continue playing
- Doqueña took offense so he looked for a **stone** to attack the other since **Ragojos was taller + more robust**
- Couldn't find one so he **borrowed a knife** from his cousin Romualdo Cocal
- Rarang heard Doqueña asked for the knife so he told Cocal not to give it as he might attack Ragojos
- Doqueña was able to get the knife (was in his cousin's pocket)
- Doqueña went to Ragojos, challenged him to give him another blow with his fist -> Ragojos said he doesn't want to bec he knows he's bigger than Doqueña
- Ragojos, ignorant abt Doqueña's intention, continued playing and as he was stopping the ball with his teo hands, Doqueña stabbed him in the chest

Other findings: Doqueña was grade 7, one of the brightest students in the school, captain of a company of the cadet corps so court was convinced he acted with discernment + conscious of the nature and consequences of his act (he also testified in his own behalf during trial)

ISSUE 1

Main – Substantive	**W/N Doqueña (minor) acted with discernment when he committed homicide and therefore not exempted from criminal liability**	**YES**

PETITIONER/S ARGUMENTS:	**DEFENSE ARGUMENTS:**
	What to consider in determining whether a minor acted with discernment: ● facts and circumstances which gave rise to the act committed by the minor ● minor's state of mind at the time of commission of crime ● time the minor might have had at his disposal for the purpose of meditating on the consequences of his act

	● degree of reasoning the minor has at the time of commission

RULING and RATIO DECIDENDI:

The Court ruled against the defense.

SC discussed that the defense confused discernment with premeditation or lack of intent.
Discernment = minor's mental capacity to understand the difference between right and wrong (not just his ability to reflect on or plan the consequences of his acts)

What to consider in determining whether a minor acted with discernment:

- his mental capacity to understand the difference between right and wrong (determined by taking into consideration all the facts and circumstances accorded by the records in each case, the very appearance, attitude, comportment and behavior of said minor (before, during, after the commission of act and even during the trial)

LEGAL BASES

RPC
Article 12. Circumstances which exempt from criminal liability. - The following are exempt from criminal liability:
...
3. A person over nine years of age and under fifteen, unless he has acted with discernment, in which case, such minor shall be proceeded against in accordance with the provisions of article 80 of this Code.

When such minor is adjudged to be criminally irresponsible, the court, in conformity with the provisions of this and the preceding paragraph, shall commit him to the care and custody of his family who shall be charged with his surveillance and education; otherwise, he shall be committed to the care of some institution or person mentioned in said article 80.
...
Circumstances which Mitigate Criminal Liability
Article 13. Mitigating circumstances. - The following are mitigating circumstances:
1. Those mentioned in the preceding chapter, when all the requisites necessary to justify the act or to exempt from criminal liability in the respective cases are not attendant.
2. That the offender is under eighteen years of age or over seventy years. In the case of the minor, he shall be proceeded against in accordance with the provisions of article 80.
3. That the offender had no intention to commit so grave a wrong as that committed.
4. That sufficient provocation or threat on the part of the offended party immediately preceded the act.
...
6. That of having acted upon an impulse so powerful as naturally to have produced passion or obfuscation.
...

FINAL DECISION	Wherefore, the appealed order is affirmed, with the costs to the appellant. So ordered.

PEOPLE V. NAVARRO (1955)

Topic | Subtopic	**Art. 12: Exempting Circumstances (Minority)**	GR No. & Ponente	**No. 11846-R, *De Leon J.***
Petitioner/s	People of the Philippines, *plaintiff/appellee*	Respondent/s	Luisa Navarro, *defendant/appellant*
Doctrine	1) **Exempting Circumstances apply even to Special Laws -** A minor over 9 years old and under 15 years, who has acted without discernment in the commission of an offense punishable **even by a special law** is exempt from responsibility by the Code by reason of his age. 2) Computation of age for minors exempt from criminal liability should only be **up until the commission of the crime**, not the date of the trial.		

FACTS

Luisa Navarro - 13 years, 11 months, 3 days old on July 28, 1952 (Then a **6th Grade** pupil)

Arrest of Luisa in Quiapo:

- On July 28, 1952, Luisa Navarro was asked by her elder sister to look after her sis' **sidewalk store** in front of **Quiapo Market**, Manila
  - She (Luisa) was approached by **Rogelio Mendoza** and **P. Santos** - agents of the Price Enforcement Division of the PRISCO
  - Agent Santos asked the price of **one (1) tin of Hershey's cocoa** and Luisa said **PHP1.20** only
  - Santos paid the amount and took 1 tin, then **arrested Luisa for selling cocoa 11 centavos more** than the ceiling price.

Trial and Appeal

- Luisa is found guilty in trial of violating **EO No. 447 in connection with RA 509 (Anti Profiteering Law)** and sentenced to be committed to the care and custody of the **Philippine Training School for Girls** in Mandaluyong
  - She will be then and there confined until she reaches the age of majority
- Appellant's counsel and OSG urge a reversal of the decision claiming:
  - (1) provisions of **Article 12, Par. 3 of the Revised Penal Code (Exempting Circumstances)** should be applied in her favor (even if it is a special law)
  - (2) the question of whether **appellant acted with or without discernment (which is one of fact)** should be resolved.

ISSUE 1

Main – Substantive	**W/N Article 12, Par 3 of the RPC (on Exempting Circumstances) can be applied to violations of special laws (e.g. Anti-Profiteering Law)**	**YES**

RULING and RATIO DECIDENDI:

YES**, court rules **Art. 12, Par 3,** of RPC **can apply although she is charged with violating** an executive order promulgated pursuant to **a special penal law (RA 509)

- **a) Revised Penal Code is suppletory to the provisions of Special Penal Laws**
  - While Art. 10 of RPC says "offenses which are or in the future punishable under special laws are not subject to the provisions of this code", it adds that "**This Code (RPC) shall be supplementary to such laws unless the latter provide the contrary"**
  - There is nothing in RA509 preventing suppletory application of RPC
  - This is supported by Legislative Intent and prior Supreme Court cases.
    - SC ruled previously that Art 100 and 39 of the RPC apply to violations of Act No. 3992 (Motor Vehicle Law)
    - In People v. Tamayo, Article 91 of RPC was applicable to violations of Revised Administrative Code
- **b)** If a minor who is over 9 years old and under 15 years who incurs criminal responsibility **is exempt for crimes malum in se under the RPC**, **then they should also be exempt for offenses malum prohibitum under special laws** (since malum in se is more evil than malum prohibitum)
  - While intent is immaterial in crimes mala prohibita (it is enough that the prohibited act was voluntarily committed) and exemptions from criminal liability are based on lack of **intelligence, intent, and**

spontaneity – exemptions rest not just on lack of intent but lack of intelligence (so it still applies) and the State has the burden of proving whether or not there was **discernment** in the action of the minor.

LEGAL BASES

Republic Act No. 509 as amended by Republic Act No. 608 and 728 - *Anti-Profiteering Law*
Art. 12, Par. 3 of RPC - *Exemptions from Criminal Liability (for minors, unless with discernment)*

- A person over nine years of age and under fifteen, **unless he has acted with discernment,** in which case, such minor shall be proceeded against in accordance with the provisions of article 80 of this Code.

ISSUE 2

Side – Substantive	W/N appellant (Luisa Navarro) in thai case has acted with or without discernment	WITHOUT DISCERNMENT

RULING and RATIO DECIDENDI:

*Applicant acted **WITHOUT DISCERNMENT***

- ***Discernment is an exemption to the exemption from criminal liability** of a minor (under 15, but over 9)*
  - Discernment is more than mere understanding between right and wrong, it means the mental capacity to **fully appreciate consequences of his actions** (People v. Doquena)
- *Application:*
  - In her answers to the investigators, Luisa says *"when I sold it for 1.20, he bought without bargaining for price; I used to sell for 1.10 but the man did not ask for a reduction"*
  - Moreover, she admits that she knows the ceiling price of commodities
  - However:
    - Being young as she is, the manner which appellant frankly and unhesitatingly answered shows she is **unaware of the real price of one tin of cocoa** and **what the word ceiling really means** (court thought she perhaps thinks ceiling price means the price displayed at their store, not the regulation price)
    - The records also show **she is not a merchant, she did not know the laws** and regulations on price control
    - Her appearance has sufficiently convinced us that on the date of the commission of the act, **she was really young and lacking intelligence.**
- *On appellant's age computation:*
  - Appellant testified she was born on Aug. 25, 1938, which makes her **13 years, 11 mos, 3 days** at the time of commission of the supposed crime
  - **The age of the accused for the purpose of determining whether she falls within the exempting circumstances should be computed only up to the commission of the crime, not the date of the trial** – Luisa is still within the exemption

ISSUE 3

Side – Substantive	W/N "Ignorance of the law excused no one" bar her from exemptions	NO

RULING and RATIO DECIDENDI:

Lower court argues that Ignorance of the law excused no one and good faith is not a defense
Court rules:

- The principle of ignorance of the law excuses no one should not be applied with equal full force in the case of minors. Our laws should treat minors differently due to lack of intelligence.
- Same reason why civil law considers minors without capacity to act (to sign contracts/express consent etc.)
- It will be **absurd** and **unfair** to apply laws the same way to minors and courts/legislature are presumed not to intent absurdity or absurd consequences from the law.

FINAL DECISION	WHEREFORE, the decision appealed from should be, as it is hereby, **REVERSED.** In conformity with the recommendations of the OSG, appellant Luisa Navarro is hereby committed to the care and custody of her family who shall be charged with her surveillance and education pursuant to Par. 2, Article 12 (3) of the Revised Penal Code, with costs de oficio. So ordered.

People v Bindoy (1931)

Topic | Subtopic	Art. 12: Exempting Circumstances (Accident)	**GR No. & Ponente**	G.R. No. 34665 | Villamor
plaintiff-appellee	PEOPLE OF THE PHILIPPINE ISLANDS,	defendant-appellant/s	DONATO BINDOY
Doctrine	Absent an intention to do an unlawful act, an individual is exempted from criminal liability for an injury that was done merely accidental		

FACTS

Bindoy was convicted of homicide by CFI Occidental Misamis. “Bindoy willfully, unlawfully, and feloniously attacked and with his bolo wounded Emigdio Omamdam, inflicting upon the latter a serious wound in the chest which caused his instant death, in violation of article 404 of the Penal Code."

~ May 6, 1930 afternoon
Calunod, Baliangao, Occidental Misamis

- There was a **disturbance in a tuba wineshop** in the barrio market started by some of the tuba drinkers
- Faustino Pacas' wife refused to drink more. Bindoy threatened to injure her if she did not.
- Tibay and Bindoy exchange some words
- Pacas stepped in to defend his wife, attempting to take away from Bindoy the bolo he carried.
- **Disturbance attracted the attention of Emigdio Omamdam, who lived near** the market w/ fam so he went to look
- Bindoy and Pacas were struggling for the bolo.
- Bindoy succeeded in disengaging himself from Pacas wrenching the bolo from the latter's hand towards the left behind the accused, **with such violence that the point of the bolo reached Emigdio Omamdam's chest, who was then behind Bindoy** (wound tallies with size of the point of Bindoy’s bolo)
- no evidence that Emigdio took part in the fight
- no indication that the accused was aware of Omamdam's presence in the place (as per witnesses, the latter passed behind the combatants when he left his house to satisfy his curiosity
- no disagreement or ill feeling between Bindoy (nephew) and Omamdam (uncle)
- **Bindoy did not try to wound Pacas**, he was just defending his possession of the bolo (lawful act) (IMPORTANT AS IF HE WAS TRYING TO WOULD PACAS THEN IT WILL BE UNDER “WRONGFUL ACT DONE DIFFERENT FROM WHAT INTENDED” = may criminal liability pa rin!)
- defendant alleges that it was caused accidentally and without malicious intent
- Widow was told by husband before his death that Bidoy caused the wound

Pacas and wife testified that Bindoy stabbed Omamdam

Defense witness Cenas

- saw Pacas and Bindoy struggling for possession of the bolo and when the latter let go, Pacas pulled so violently that if flews towards his left side -> hit Omamdam in the chest (he passed behind Bindoy)
- went to Omamdam’s home where Omamdam told him the wound was an accident and that Bindoy did not aim at him and he didn't aim at Bindoy and it was a mishap

ISSUE 1

Main – Substantive	**W/N Bindoy’s act is accidental and thus, he should be exempted from criminal liability**	**YES**

RULING and RATIO DECIDENDI:
Court ruled in favor of Bindoy. There was no evidence to rebut the testimony of the witness of the defense. The testimony of Pacas and wife did not contradict the others (there is no question that Bindoy caused the wound). Bindoy is saying it was an accident. If it was indeed that Bindoy was trying to hurt Pacas, then the outcome would be different (there would be criminal liability) since the former would be committing felony even if the wrongful act done is different from what he intended) US v Carlos - “In many criminal cases one of the most important aids in completing the proof of the commission of the crime by the accused is the introduction of evidence disclosing the motives which tempted the mind of the guilty person to indulge the criminal act." “In view of the evidence before us, we are of opinion and so hold, that theappellant is entitled to acquittal according to article 8, No. 8, Penal Code.”

FINAL DECISION	Wherefore, the judgment appealed from is reversed, and the accused Donato Bindoy is hereby acquitted with costs de oficio. So ordered.

US v. Tanedo (1910)

Topic | Subtopic	Art. 12: Exempting Circumstances (Accident)	GR No. & Ponente	**G.R. No. 5418.** **MORELAND, J**
Petitioner/s	United States	**Respondent/s**	Cecilio Tanedo
Doctrine	It is uniformly held that if life is taken by misfortune or accident while in the performance of a lawful act executed with due care and without intention of doing harm, there is no criminal liability.		

FACTS

Cecilio Tanedo is a landowner. Feliciano Sanchez (deceased) is about 20 years old. He lives with his mother and uncle in a small shack on the side of a stream near Tanedo's malecon, for a month or so during the rice-harvesting season.

January 26, 1910:

- In the morning, Cecilio Tanedo, together with his laborers, went to work on a malecon (dam) on his land. He brought a shotgun and a few shells with the intention of hunting wild chickens afterwards.
- He stayed with his workers for about an hour. Then he walked a short way across a stream to check how the change he had made to the macelon affected the flow of water from the rice field on the other side. He took his shotgun with him.
- On the other side of the stream was the shack. Tanedo asked the uncle where he could find a good place to hunt wild chickens. The uncle was lying on the floor in the interior of the shack sick of fever.
- Feliciano was working at something under a mango tree near the shack. Although the question was meant for his uncle inside, Feliciano answered it himself and pointed generally toward the part of the forest where the shack stood.
- *At this point there is a contradiction between the testimonies.*
    - Uncle's testimony: Feliciano and Tanedo mutually invited each other to hunt wild chickens and that Tanedo accepted the invitation.
    - Tanedo's Testimony: He did not invite Feliciano to go hunting with him. He remained under the mango tree "tying something."
- When he arrived at the place, **he saw a wild chicken and shot it. But after the shot, he heard a human cry.**
- He picked up the chicken and went near the place where he heard the noise. He saw that he wounded a man.
- A few minutes later, Tanedo left the woods carrying the dead chicken and returned to his workers at the dam.
- He called Bernardino Tagampa, one of the workers, and the two were gone for some time. Tanedo said he told Tagampa because he was his friend and that he was a relative of the deceased.
- Their stories differ. Tagampa says they went a short way toward the woods and came back. Feliciano says they went to the body and moved it into the cogon grass so it would not be easily seen. What was certain was that the body was hidden in the cogon grass.
- That evening, Tanedo and Tagampa took the body from the cogon grass and carried it about 1,700 to 1,800 meters from where it fell. They buried it in an old well, covered it with straw and earth, and burned straw on top to hide it.
- Tagampa said he helped because he was afraid of Tanedo, though he admits Tanedo never threatened or forced him.
- Prior to the trial, he denied all knowledge of the death of the deceased or the whereabouts of the body. On the trial, however, he confessed his participation in the death of the deceased and told the story.

ISSUE 1

Main – Substantive	**W/N Tanedo is criminally liable**	**NO**

RULING and RATIO DECIDENDI:

It is uniformly held that if life is taken by misfortune or accident while in the performance of a lawful act executed with due care and without intention of doing harm, there is no criminal liability.

Elements: **lawful act** + **due care** + **mere accident** + **without fault/intention**

Lawful Act: He was engaged in the commission of a lawful act when the accident occurred → Hunting wild chickens

Due care: In this case there is absolutely no evidence of negligence upon the part of the accused.

Mere Accident: Only one shot was fired; killing both the chicken and the young man.

Without fault/intention: Neither is there any evidence of the intention of the accused to cause the death of the deceased.

- The deceased was a tenant on land belonging to a relative of the accused. There was no enmity and no unpleasant relations between them.
- There appears to have been no motive whatever for the commission of the crime.
- The only possible reason that the accused could have for killing the deceased would be found in the fact of a sudden quarrel between them during the hunt.
- That idea is wholly negatived by the fact that the chicken and the man were shot at the same time, there having been only one shot fired.

The only thing in the case at all suspicious upon the part of the defendant are his concealment and denial.

When accidental killing is the defense, the accused need not prove it by a preponderance of the evidence. Because the accused admits the killing but denies intent, the State must prove it was intentional. If the evidence as a whole leaves reasonable doubt on whether the killing was accidental or intentional, the jury should acquit. (State v. Legg)

LEGAL BASES

Article 8, subdivision 8, Penal Code:
"He who, while performing a legal act with due care, causes some injury by mere accident without liability or intention of causing it."

Section 57 of the Code of Criminal Procedure is as follows:
"A defendant in a criminal action shall be presumed to be innocent until the contrary is proved, and in case of a reasonable doubt that his guilt is satisfactorily shown he shall be entitled to an acquittal."

FINAL DECISION	We are of the opinion that the evidence is insufficient to support the judgment of Conviction. The judgment of conviction is, therefore, reversed, the defendant acquitted, and his discharge from custody ordered, costs de oficio. So ordered.

Pomoy v. People (2004)

Topic | Subtopic	Art. 12: Exempting Circumstances (Accident)	GR No. & Ponente	G.R. No. 150647 Panganiban, J.
Petitioner/s	Roweno Pomoy	Respondent/s	People of the Philippines
Doctrine	To claim the exempting circumstance of Accident, the elements of accident must be present: 1. The accused was at the time performing a lawful act with due care, 2. The resulting injury was caused by mere accident. 3. On the part of the accused, there was no fault or intent to cause the injury. The discharge of a semi-automatic pistol due to the ensuing grappling between an officer and a suspect for control of the gun could be covered under the exempting circumstance of accident, provided that the officer had NO COMPLETE CONTROL over the firearm.		

FACTS

A petition for Review under Rule 45 seeking to set aside the decision & resolution of the CA that affirmed with modifications the ruling of the RTC of Iloilo City finding Pomoy guilty of the crime of Homicide.

Victim: Tomas Balboa (Master Teacher)
Accused/petitioner: Roweno Pomoy (Police Sergeant)
What happened?: Pomoy was bringing Balboa to the Investigation room in the main building, afterwards there were gunshots heard and Balboa was dead.

- Allegedly, according to the defense, there was an accident as Balboa reached for Pomoy's holstered gun, grappling ensued, the gun came loose from its holster, and Balboa was shot.

Version of the Respondents:

- At the Concepcion College of Science and Fisheries in Concepcion Iloilo, Tomas Balboa was a master teacher working there.
- On 4 January 1990, ~7:30 in the morning, policemen arrived at the College to arrest Balboa.
  - They arrested him due to an alleged connection with a robbery that took place in the municipality (of San Dionisio) in December 1989.
  - Now arrested, Balboa and the policemen passed by Concepcion Elementary School. Balboa's wife, Jessica, who was in a party with other school administrators, asked Balboa why he is being arrested, Balboa responded that he does not know why.
    - Balboa told his wife he is going with the police officers to find out why.
- Balboa was taken to the Headquarters of the (already defunct) 321st Philippine Constabulary Company at Camp Jalandoni, Sara, Iloilo.
  - He would be detained there alongside another suspect, Edgar Samudio.
- ~2 in the afternoon, Roweno, a police sergeant, directed Balboa to come out and that they will go to the "investigation room."
  - The investigation room is in the main building of the compound.
  - Roweno was armed with a .45 caliber pistol tucked in a holster hanging off his belt. The gun was noted to be fully in the holster and only the handle was sticking out.
- **When Roweno and Balboa reached the main building and were near the investigation room, 2 gunshots were heard. When people came to verify where the shots came from, Roweno was holding the pistol and Balboa was lying in a pool of blood 2 feet away.**
  - The Commanding Officer of the HQ arrived and disarmed Roweno and ordered that Balboa be brought to the Hospital.
  - Dr. Palma, who was visiting at the time, assessed Balboa's body and confirmed that he was dead.
- Upon request by Jessica, the medico-legal officer of the NBI, Region VI, Iloilo city, conducted an autopsy:
  - 2 gunshot wounds, one of the chest and one on the abdomen/chest (hypochondriac region), entered the body and exited the back side.
  - Cause of death: hemorrhage, massive secondary to gunshot wounds on chest and abdomen.
  - Given the trajectory/ballistics of the bullet within the body, it was surmised that the assailant would have

been in front of the victim to the left side for one of the shots, and for the other the assailant would have pointed the gun's nozzle to the right side of the victim.

Defense through Defense Witnesses:

Erna Basa (lone eye witness of the incident)

- She was working in her office in the camp until she heard some noise and an exchange of words.
- She opened the door to see what was going on and saw Roweno and Balboa grappling each other for the gun. **Erna was inside the room about 1 meter away from the door, Pomoy and Balboa were grappling while about 2-3 meters away from the door**.
- **The events happened quickly and Pomoy's gun was pulled out of its holster and then there was an "explosion", it is not clear who fired the gun.**

Eden Legaspi

- **She was inside the investigation room, while inside she heard a commotion outside.**
- (it seems that Erna and Eden were in the same room), upon hearing the commotion, Erna stood up and opened the door and saw two persons grappling for possession of a gun. Two successive shots were heard.
- Eden did not leave from where she was seated but instead stood up. After the shots one of the two men fell down.

Accused-Petitioner Roweno Pomoy:

- He is a 30 y/o PNP member of the Iloilo Provincial Mobile Force Company then attached to the defunct 321st PC Company. He was one of the investigators.
- **At the time of the incident, as he was holding the door knob of the investigation room and about to open it, Balboa who was 2 meters away suddenly approached him and tried to grab the handle of his gun.**
- In response, Pomoy quickly grabbed the handle with his left hand, then let go of the doorknob and grabbed the handle with his right hand too. Balboa was not able to grab the handle.
- Pomoy then used left hand to parry Balboa, but then he suddenly felt someone grab his right hand which was still on the handle. They grappled with each other with Pomoy's left hand fighting Balboa and Balboa's right hand reaching for the gun. In ~2-3 seconds the gun was drawn from the holster and both of them were holding the gun.
- They grappled some more and in about 5 seconds the gun was fired. Balboa was at Pomoy's right side the whole time. The gun was already chambered and cocked when Pomoy left his house and it was locked when fired. After the gun fired they were separated and Balboa fell.
    - (Personal note, just to make it clear, I think he meant the gun was already loaded with live bullets, BUT the gun's safety was on. This pistol is not a revolver but a semi-automatic)
- After Balboa fell, Sgt. Alag shouted "Stop that!", Capt. Rolando Maclang (commanding officer) arrived, got the gun, and ordered that the case be investigated.

Pomoy upon Cross Examination:

- According to Pomoy, Balboa was a suspect in a robbery case in the town of San Dionisio, before 4 January 1990 he had the chance to invite and interrogate Balboa but Balboa denied any robbery.
    - After Lunch on 4 January, Capt. Maclang called Pomoy to conduct the interrogation, he took Balboa from the stockade but did not tell him that he was to be investigated in the investigation room in the Main Building.
    - The Main building was ~50 metres away from the stockade, it houses the administrative offices, the offices of the CO, officer of the operations division, and signal division.
- He could not tell whether Balboa was able to hold any portion of his gun from the barrel to the hammer which was cocked(so maybe Balboa was only able to grab the handle lang)
- Sgt. Alag did not actually approach them but rather looked at them and then reported it directly to the CO, no one talked with Pomoy afterwards and he was not told anything.

Dr. Salvador Mallo Jr.

- Rural Health Physician of Sara who conducted Balboa's autopsy
- Found 2 entrance wounds.
- He was only able to find power burns/marks on the victim's T-shirt.
- He also found a deformed slug in the pocket of the victim's jacket.

Ruling of the CA

- The CA anchored its ruling, dismissing the claim that the death of Balboa was a result of an "accident" on the ff:
    - The Victim was not successful in grabbing the gun, Pomoy was in control of the gun when the shots were fired
    - The gun had been cocked prior to the incident and before the gun went off, it was Pomoy who released the safety lock
    - Location of the gunshot wounds implies there was no grappling.
    - Citing *People v. Reyes*: A revolver is not prone to accidental firing, even if it were cocked while handing the gun over, considerable pressure is needed on the trigger to fire it.
    - Balboa was shot twice, thus Pomoy's theory of accident loses merit and instead gives credence to the theory that such shooting was intentional or that there was a determined effort to kill Balboa.
        - Even if the first shot was accidental, for the 2nd shot to hit Balboa on another vital part, at a different location, at a different angle, establishes that there was an intent to cause Balboa's death.
- The CA debunked the alternative plea of Self-Defense
    - Pomoy failed to prove unlawful aggression
- CA modified the RTC's ruling, disagreeing that the aggravating circumstance of abuse of public position was present for there was no proof that Pomoy had a premeditated plan to kill Balboa and thus no abuse of his public position to commit the crime.

ISSUE 1

	W/N the shooting of Tomas Balboa was a result of an accident	**YES**

RULING and RATIO DECIDENDI:

When determining whether an accident attended the incident, the court must take into account the dual standards of lack of intent to kill and absence of fault or negligence, ultimately what has to be determined here is **"Was Pomoy in control of the .45 caliber pistol at the very moment the shots were fired?"**

Pomoy had NO CONTROL over the gun

- Based on Erna's testimony, she witnessed the grappling happening. She noted that there were two hands on the gun's handle while it was still in its holster, and eventually the gun was released from its holster due to the grappling and then she heard a gunshot. Where the nozzle was pointing it was not clear due to all the grappling, but at the end it was Pomoy who had possession of the gun and Balboa during the scuffle was also able to grab the barrel of the gun with his right hand.
- **The Court holds that Pomoy did not have full control over the gun and that under such circumstances, it would be difficult for Pomoy to be able to release the safety, aim, and fire the gun intentionally.**
    - **The Court dismisses the CA's interpretation that Balboa's hand was OVER Pomoy's hand that was holding the gun's handle as that would imply Pomoy had full control of the gun.**

Release of the gun's safety lock and firing of the gun are BOTH ACCIDENTAL.

- The court notes that the grappling that ensued was both a frenzy, fierce, and vicious**, it is not impossible, and in fact may be the only logical conclusion, that the scuffle accidentally released the safety lock.**
- **Two shots being fired does not disqualify the possibility of an accident because the gun in this case was not a revolver but a semi-automatic pistol that automatically chambers the next round upon firing.**

- What could have happened is that the first shot tilted Balboa's body and the second shot fired off as Balboa was falling down, only then releasing his hold.
- CA's reliance on *People v. Reyes* is misplaced as the gun in this case was not alleged to have exploded while handing it over, but rather that the gun accidentally fired while in a scuffle. Also a .45 calbre semi-automatic pistol has a different mechanism than a revolver which is admittedly more prone to accidental firing.

Frontal location of wounds does not negate the alleged grappling

- In this case where Pomoy and Balboa were grappling for possession of the gun, **it is not impossible for the direction of the nozzle to continuously change directions, so much so that the bullet's trajectory becomes unpredictable and erratic.**
    - It is established in this case that neither party's positions were steady and that the nozzle was not aimed or pointed at any particular target.

Presence of all the elements of Accident

- Elements of accident:
    - Accused was at the time performing a lawful act with due care
    - The resulting injury was caused by mere accident
    - On the part of the accused, there was no fault or intent to cause the injury.
- Pomoy was performing his duties as an investigating officer, fetching Balboa for a routine interrogation
    - It is also a lawful performance of duty for an officer to prevent anyone from snatching his service weapon, especially from someone who can use it to escape or kill.
- Pomoy cannot be faulted for negligence as he exercised all necessary precautions to prevent his service weapon from causing accidental harm (gun is "locked" (I think they meant safety), gun was in the holster)
- There was no proof that Pomoy had any intent to cause Balboa harm or to kill him.

Pomoy's subsequent conduct is NOT conclusive of guilt

- It was noted that Pomoy was visibly dumbfounded, that he was mum, pale, and trembling. The CA ruled that these were conclusive of Pomoy's guilt.
- The Court says otherwise as these reactions are understandable. One moment he was calmly escorting a person, the next he was looking at his bloodied body. He was simply in a state of shock.

LEGAL BASES

Article 12. Circumstances which exempt from criminal liability. — The following are exempt from criminal liability:

'4. Any person who, while performing a lawful act with due care, causes an injury by mere accident without fault or intent of causing it.'

ISSUE 2

	W/N Pomoy was able to prove self-defense	**No/unnecessary**
PETITIONER/S ARGUMENTS:		**RESPONDENT/S ARGUMENTS:**
Granting arguendo that he did intentionally shoot Balboa, he only did so to protect his life and limb from real and imminent danger.		

RULING and RATIO DECIDENDI:

- Self Defense is inconsistent with the exempting circumstance of accident, in which there is no intent to kill.
    - Self-Defense implies an intent to kill to defend oneself from imminent danger.
- Evidently, the fatal shots in this case did not arise out of any intent to kill for the purpose of self defense, but rather they were merely a result of a spontaneous and accidental result of both parties' attempts to

gain control of the gun.

- Death of the victim was due to accident

FINAL DECISION	WHEREFORE, the Petition is GRANTED and the assailed Decision REVERSED. Petitioner is ACQUITTED.

US v. CABALLEROS (1905)

Topic | Subtopic	Exempting Circumstances | Irresistible Force / Uncontrollable Fear	GR No. & Ponente	G.R. No. 1352 | MAPA, J.
Petitioner/s	The United States	Respondent/s	Apolonio Caballeros, et al.
Doctrine	Any person who performs an act by reason of **irresistible force** is **exempt** from criminal liability. Also, **confessions** which do **not** appear to have been made freely and voluntarily, without force, intimidation, or promise of pardon, can not be accepted as proof on a trial.		

FACTS

Roberto Baculi and **Apolonio Caballeros** were charged by the CFI of Cebu for the **murder/assassination** of four American school-teachers: Louis A. Thomas, Clyde O. France, John E. Wells, and Ernest Eger. They either took part as **principals/accomplices**, or in the **burial** of the corpses to conceal the crime.

ISSUE 1

W/N Robert Baculi took part in the crime.	NO

Baculi confessed to having **assisted in the burial**, but that he did so because he was **compelled** by the murderers. This is corroborated by **Teodoro Sabate's testimony** (*witness for the prosecution*).

1) He (Sabate) was **there** when the Americans were killed, but **Baculi was not. He was in his banana plantation**, on his property, gathering some bananas.
2) When Baculi heard the shots, he **began to run**. He was seen by **Damaso** and **Isidoro** (the murderers); **they struck Baculi with the butts of their guns and forced him to bury the corpses**.

ISSUE 2

W/N Apolonio Caballeros took part in the crime.	NO

There is **no proof** that he took part in the crime. **Baculi** and Teodoro **Sabate** *testified* that Caballeros did **NOT** take part in the burial, nor was he ever near the burial place.

Caballeros' **confession** of his supposed liability and guilt to **Enrique Calderon** (*an official of the division of information of the Constabulary*) **cannot be considered legal proof**, because Calderon testified that **Baculi** was the **only ONE** who voluntarily made a confession to him.

Meliton Covarrubias (*prosecution witness*), stated that Caballeros and Baculi made their confessions through the **promise** that **nothing would be done to them**. **Confessions which do not appear to have been made freely and voluntarily, without force, intimidation, or promise of pardon, can not be accepted as proof on a trial.**

Other: The fact that Caballeros and Baculi **did not report to the authorities** the perpetration of the crime, they **cannot be held liable for doing so**, because this is **not punished** under the Penal Code.

FINAL DECISION	The defendants are acquitted, with the costs *de oficio* in both instances. So ordered.

U.S. v. Exaltacion (1904)

Topic | Subtopic	**Exempting Circumstances | Irresistible Force / Uncontrollable Fear**	GR No. & Ponente	**[G.R. No. 1481. February 17, 1904.] TORRES**
Petitioner/s	THE UNITED STATES	**Respondent/s**	LIBERATO EXALTACION ET AL.
Doctrine	Individuals who sign documents supporting a rebellion under duress, threat of death, or while held captive by armed bands incur no criminal liability for rebellion, especially when their immediate report to lawful authorities upon release corroborates their lack of voluntary intent.		

FACTS

Liberato Exaltacion and Buenaventura Tanchinco were charged with rebellion against the US Govt for swearing allegiance to the Katipunan Society (overthrow the US govt by force of arms).

- Don Pablo Tecson (provincial governor of Bulacan) testified that the 2 defendants were arrested in March 1903.
- Police forces captured docs from Contreras's encampment (general of the bandits, situated in Langca, Meycauayan), where they found documents signed by the defendants. It contained an oath taken in the name of God, and that they will carry out the superior orders of the Katipunan and never disobey them until their death in the defense of the mother country.
- **Defendants claim that they signed the documents under compulsion, under fear of death at the hands of the thieves by whom they had been captured**
  - Don Tomas Testa who was a former president in Langca was kidnapped
  - Tanchinco was captured in the fields when he was going to work on his farm by three armed men, unknown to him, who asked him if he was an agent or friend of President Testa. Upon his denial, they compelled him to sign a document. He was captured at Kaibiga, Novaliches
  - On the day following his release, having been unable to pay the $300 which was demanded of him, he reported to the president, Tomas Testa.
  - Liberato Exaltacion testified that he was captured near Meycauayan by 5 persons, unknown, dressed as policemen and armed with guns or revolvers; that these men bound him and took him into the forest and there compelled him by threats of death to sign the document; then they allowed him to go upon promise to return.
  - Both the accused testified that as soon as they were released they presented themselves to the president, Don Tomas Testa, in the presence of witnesses, and subsequently went to Bonifacio Morales, a lieutenant of volunteers, and reported to him the fact that they had been captured.

ISSUE 1

Main – Substantive	**W/N the defendants' defense that they were compelled by fear of death in signing the oath to Katipunan falls under exempting circumstances?**	**YES**

RULING and RATIO DECIDENDI:

The facts, established by the evidence, that the defendants were kidnapped by brigands who belonged to the Contreras band, and that they signed the said documents under compulsion and while in captivity, **relieve them from all criminal liability from the crime of rebellion of which they are charged**.

The conduct of the defendants in presenting themselves first to the local president of Meycauayan and subsequently to Lieut. Morales, as soon as they were released by the bandits, is corroborative of their testimony, and is the best demonstration of their innocence.

FINAL DECISION	The guilt of the defendants of the crime defined and punished by Act No. 292 not having been established at the trial beyond a reasonable doubt, we are of the opinion that the judgment below

	must be reversed and the defendants acquitted with the costs de oficio. The judge below will be informed of this decision and a copy of the judgment entered herein will be furnished him for his information and guidance. So ordered.

U.S. v. Vincentillo (March 18, 1911)

Topic | Subtopic	Art. 12: Exempting Circumstances (Insuperable cause)	GR No. & Ponente	G.R. No. L-6082 | CARSON, J. (En Banc)
Plaintiff-Appellee	THE UNITED STATES	Defendant-Appellant	ISIDRO VICENTILLO
Doctrine	An executive officer who makes a lawful warrantless arrest and detains the offender is not guilty of arbitrary or illegal detention when a delay in bringing the detainee before a judicial magistrate is caused by physical impossibility, extreme distance, weather conditions requiring sea transportation by boat, and the total absence of local judicial officers in the municipality.		

FACTS

- Defendant Isidro Vicentillo was the duly elected **Municipal President** of a remote island/coastal municipality.
- The **complaining witness** (*unnamed*) committed an open violation of a local municipal ordinance **in the direct presence of Vicentillo**, acting in defiance of local municipal authority.
- Exercising his authority as Municipal President (which vested in him all the **usual powers of a police officer** (he had the lawful authority) to effect **warrantless arrests** for offenses committed in his presence, Vicentillo **arrested** the complaining witness **on the spot without a warrant**.
- The arrested man was **detained for a total of three (3) days** before he could be formally brought before a Justice of the Peace.
  - At the time of the arrest, **neither the local Justice of the Peace nor his auxiliary was present in the municipality**. There was no certainty as to when either judicial officer would return.
  - To bring the prisoner before a judicial officer for formal investigation and trial, it was necessary to transport him **by boat** across the sea to reach the **justice of the peace of either of the two adjoining municipalities**.
- During these three days, the police officers acting under Vicentillo's orders **attempted with all practicable dispatch** to forward the prisoner to an adjoining municipality by boat.
  - Due to changing weather conditions, sea state, and local boat navigation factors, the prisoner had to be sent first to one adjoining municipality and subsequently to another adjoining municipality where a Justice of the Peace was available.
    - First attempt: the written criminal complaint entrusted to the escorting policeman was either lost or stolen.
    - Unclear why the prisoner was not sent to the same municipality on both occasions, but in the absence of proof it was assumed that in this respect, the officers in charge were controlled by local conditions
- ***Note**: there was an "**extremely meagre record**" - can't verify reasons as to delay (only the facts re travel)*
- **Trial Court Ruling**: The CFI convicted Isidro Vicentillo of the crime of **illegal and arbitrary detention** for holding the prisoner for three days, sentencing him to pay a fine of 625 pesetas with subsidiary imprisonment in case of insolvency. The trial judge emphasized the **trivial nature** of the underlying municipal ordinance violation.
  - *Pesetas: national currency of Spain from 1868 until it was replaced by the euro. 625 pesetas = approx ₱323,371.42 now*
- Vicentillo appealed his conviction to the Supreme Court.

ISSUE 1

Main – Substantive	W/N Municipal President Isidro Vicentillo possessed lawful authority to execute a warrantless arrest against the complaining witness.	YES

PROSECUTOR'S ARGUMENTS:	APPEALANT'S ARGUMENTS:
Emphasized the **minor and trivial nature** of the underlying municipal ordinance violation.	As Municipal President, he was **vested with all the powers of a police officer** and had the legal right and duty to make a warrantless arrest because the complaining witness committed an open violation of a local municipal ordinance **directly in his presence** and in defiance of local authority.

RULING and RATIO DECIDENDI:

- **YES**. Municipal President Isidro Vicentillo had full legal authority to make the warrantless arrest.
- The offense with which the complaining witness was charged was committed by him **in the direct presence of**

Municipal President Isidro Vicentillo.

- In the exercise of his official functions as municipal president, Vicentillo **possessed all the usual powers of a police officer to make warrantless arrests for offenses committed in his presence**.
- Even though the offense was very minor, making an arrest was still **legally justified** under the circumstances. Because the local community was remote, lacked a judge at the time, and had no guarantee of when one would return, the authorities acted reasonably.
- Arresting the offender and sending them immediately to a judge in a neighboring town was **necessary** (or at least **expedient)**—to show the community that the law and order still applied and were strictly enforced, even when local judges were away.

LEGAL BASES

- **U.S. v. Fortaleza**: Establishes that municipal presidents possess the legal status and authority of police officers to execute warrantless arrests for offenses committed in their presence.

ISSUE 2

Main – Substantive	**W/N Municipal Pres. Vicentillo is criminally liable for arbitrary or illegal detention for detaining an arrested person for 3 days prior to bringing him before a Justice of the Peace.**	**NO**

PROSECUTOR'S ARGUMENTS:	**APPEALANT'S ARGUMENTS:**
Detaining the arrested person for three days without bringing him immediately before a judicial magistrate constituted **arbitrary and illegal detention** punishable under the Penal Code.	He acted in the lawful performance of his official duties, and the three-day delay was due to an **insuperable cause and physical impossibility**, as neither the local Justice of the Peace nor his auxiliary was in the municipality, requiring long sea travel by boat to neighboring municipalities under adverse weather and local navigation constraints.

RULING and RATIO DECIDENDI:

- **NO**. Municipal President Isidro Vicentillo is **not criminally liable** for arbitrary or illegal detention.
- While the law requires an arresting officer to **bring a detainee before a magistrate as soon as "practicable"**, the three-day delay in this case was **fully justified by a lawful and insuperable cause**.
- Neither the local Justice of the Peace nor his auxiliary was in the municipality, and reaching a Justice of the Peace in adjoining municipalities required a long and hazardous boat journey subject to local weather and sea conditions.
- The prisoner was dispatched with all practicable speed, and the initial delay was compounded when the written complaint was lost or stolen in transit.

Where delay in delivering a prisoner to judicial authorities is dictated by **physical impossibility, geographical isolation, lack of local magistrates, and transportation difficulties**, the arresting officer is protected by the **exempting circumstance of insuperable cause**.

LEGAL BASES

- **Art. 12, Par. 7, RPC (Article 8, Old Penal Code)**: The following are exempt from criminal liability: (7) "Any person who fails to perform an act required by law, when prevented by some lawful insuperable cause."

FINAL DECISION	The judgment of the lower court convicting and sentencing the defendant must be **reversed** and he is hereby **acquitted** of the offense with which he is charged, with the costs in both instances de oficio.

People v. Bandian (September 30, 1936)

Topic | Subtopic	Art. 12: Exempting Circumstances (Insuperable cause)	GR No. & Ponente	G.R. No. 45186 | DIAZ, J (En Banc)
Plaintiff-Appellee	The People of the Philippine Islands.	Defendant-Appellant	JOSEFINA BANDIAN
Doctrine	Extreme physical debility, illness, hemorrhage, and dizziness resulting from an unexpected childbirth constitute a lawful or **insuperable cause** that legally excuses her from the failure to retrieve or care for a newborn infant, thereby negating any willful intent or culpable negligence. = exempt from criminal liability		

FACTS

- **Summary**
  - Pregnant woman wanted to pee (or poop?) in a bush > gave birth instead > left baby there because she experienced extreme debility > neighbor helped her home > baby found dead (@ bush) > doctor assumed woman abandoned baby there to hide affair with another man *(he watched too many kdramas)* > lower courts agreed with the doctor (she was then convicted of parricide) > SC ruled in her favor (insuperable cause)
- **Characters**:
  - **Josefina Bandian** (Defendant-Appellant) was a 23-year-old primipara (first-time mother), uneducated, and had suffered from *continuous fever* throughout her pregnancy. She lived with her common-law husband.
  - **Luis Kirol**: Josefina's *common-law husband* with whom she lived maritally for one year; uneducated; a laborer earning 25 centavos a day *(now approx ₱170)* who eagerly awaited the birth of their child(!).
  - **Valentin Aguilar**: Josefina's *neighbor* who *witnessed* her entering and emerging from the thicket.
  - **Adriano Comcom**: *Neighbor* called by Aguilar to *assist* in Josefina's profuse hemorrhage.
  - **Dr. Emilio Nepomuceno**: President of the Sanitary Division of Talisayan, Oriental Misamis. - assumera ng taon
- On the morning (about 7:00 AM) of January 31, 1936, Josefina went to the nearby **thicket** about 4 to 5 brazas from Josefina's house in the municipality of Talisayan, Province of Oriental Misamis **to respond to a call of nature**. While there, she **experienced sudden, involuntary childbirth**.
  - The thicket was commonly used by local residents to respond to calls of nature.
  - *Note: not mentioned why she couldn't do her business at home, maybe no indoor plumbing? Idk*
  - ***Thicket**: dense growth of bushes, shrubs, or small trees growing closely together*
  - ***Braza**: a traditional Spanish unit of length representing a fathom or an outspread arm's reach (approx 5.48 to 5.68 feet each). 4 to 5 brazas: about 21.92 to 28.40 feet*
- Neighbor **Valentin Aguilar** saw Josefina go to the thicket. Then, he saw her emerge from the thicket with her **clothing heavily saturated with blood** in both front and back. She was **staggering, dizzy, and visibly unable to support herself**. Aguilar rushed to her aid, supported her, and helped her **walk up to her house**, placing her in **bed**. When asked what happened, Josefina could only reply that she was "very dizzy."
- Aguilar summoned neighbor **Adriano Comcom** to assist and asked him to **gather bamboo leaves** to stop Josefina's **severe uterine hemorrhage**. Walking about 5 brazas away along a path near the thicket, Comcom found the **body of a newborn [dead] infant lying on the ground near a path adjoining the thicket**.
- Comcom **brought the infant to Josefina's house**. Upon being asked, Josefina acknowledged the child was hers.
- At 2:00 PM that same day, **Dr. Emilio Nepomuceno** arrived and found Josefina in bed, still **bleeding profusely**. ***Her bed, the floor of her house and beneath it, directly under the bed,*** were ***full of blood.***
- Dr. Nepomuceno CLAIMED (basically assumed tbh...) Josefina **gave birth in bed** (bcs there was so much blood daw), **threw the baby into the thicket to kill it** & **hide her *dishonor*** from Luis Kirol *(because he didn't know she had an affair + was preggy by another man's child DAW)*.
  - *she had an affair w/ a former lover daw, PERO that relationship was 3 years before the incident + it was known by Luis + they lived maritally for a year na + Luis knew she was preggy = so she had no reason to be ashamed of the pregnancy*
- He testified that she ALLEGEDLY admitted this to him. **Josefina *denied* making such admission**.
- There was **no evidence that the baby was killed by human hands**. Dr. Nepomuceno admitted that the wounds found on the infant's body were **inflicted by bites from roaming pigs** that frequented the thicket.
- The trial court adopted Dr. Nepomuceno's uncorroborated (+contradicted by the very witnesses for the prosecution and by the appellant) theory, convicted Josefina Bandian of **Infanticide**, and sentenced her to reclusion perpetua.
- On **appeal**, the Solicitor General argued she was guilty instead of **Abandonment of a Minor** under **Article 276,**

paragraph 2 of the RPC (the abandonment having resulted in the death of the minor allegedly abandoned)

- Josefina appealed to the SC.

ISSUE 1

Main – Substantive	**W/N Josefina Bandian is criminally liable for Infanticide or Abandonment of a Minor for leaving her newborn child in the thicket.**	**NO**

RULING and RATIO DECIDENDI:

- **NO**. Josefina Bandian is not criminally liable for Infanticide or Abandonment of a Minor.
- To be punishable, the crimes of Infanticide and Abandonment of a Minor must be **committed willfully and consciously**, or at least be the result of a **voluntary, conscious, and free act or omission**.
  - Even in cases where said crimes are committed through mere **imprudence**, the person who commits them, under said circumstance, must be in the **full enjoyment of his mental faculties, or must be conscious of his acts**, in order that he may be held liable.
- Josefina Bandian had **no motive or reason to kill or abandon her child** to conceal dishonor. Her affair with a former lover ended three years prior, her common-law husband, Luis Kirol, knew she was pregnant, believed the child was his, and **both were eagerly expecting the birth**.
- There was no evidence that the infant was killed by human hands; Dr. Nepomuceno himself affirmed that the wounds on the infant's body were **inflicted by bites from roaming pigs in the thicket**.
- Because her acts **lacked voluntariness, consciousness, and criminal intent**, she cannot be held guilty of Infanticide or Abandonment of a Minor.
- SC: "it will clearly appear how far from the truth were Dr. Nepomuceno's affirmation and conclusions." 👏

ISSUE 2

Main – Substantive	**W/N Josefina Bandian's failure to retrieve her newborn child from the thicket is exempt from criminal liability under Article 12, Paragraph 7 (insuperable cause) and Article 12, Paragraph 4 (accident without fault) of the RPC.**	**YES**

RULING and RATIO DECIDENDI:

- **YES**. Josefina Bandian's failure to take her child from the thicket is completely exempt from criminal liability under **Article 12(7)** (insuperable cause) and **Article 12(4)** (accident without fault) of the RPC.
- Her failure to retrieve her newborn child from the thicket was **not voluntary or negligent**
- Her total physical debility and dizziness constituted a **lawful or insuperable cause** under Article 12(7) of the RPC, preventing her from rescuing her child. Furthermore, under Article 12(4) of the RPC, giving birth in the thicket while **performing a lawful act with due care** and the subsequent injuries to the child by roaming pigs were **mere accidents** occurring **without any fault, negligence, or intention on her part.**
- Summary (what the court considered): Lawful act (peeing/pooping -> labor) + no cause to be ashamed of her pregnancy + she continuously had fever during her pregnancy + extreme debility after giving birth (not abandoned due to imprudence) + had profuse hemorrhage + unexperienced with childbirth + uneducated
  = lawful or insuperable (par 7) + it all happened by mere accident, with no fault/intention on her part (par 4)

LEGAL BASES

- **Article 12(4&7) of the RPC**: "The following are exempt from criminal liability: ... (4) Any person who, while performing a lawful act with due care, causes an injury by mere accident w/o fault or intention of causing it... (7) Any person who fails to perform an act required by law, when prevented by some lawful insuperable cause."

FINAL DECISION	"Taking into account the foregoing facts and considerations, and granting that the appellant was aware of her involuntary childbirth in the thicket and that she later failed to take her child therefrom, having been so prevented by reason of *causes entirely independent of her will*, it should be held that the alleged errors attributed to the lower court by the appellant are true; and it appearing that under such circumstances said appellant has the **fourth and seventh exempting circumstances** in her favor, she is hereby **acquitted** of the crime of which she had been accused and convicted, with costs de oficio, and as she is actually confined in jail in connection with this case, it is ordered that she be

	released immediately.”

PEOPLE v. LUA CHU (1931)

Topic | Subtopic	**Art. 12: Exempting Circumstances (Instigation and entrapment)**	**GR No. & Ponente**	**G.R. No. 34917 || VILLA-REAL, J.**
Petitioner/s	THE PEOPLE OF THE PHILIPPINE ISLANDS	**Respondent/s**	LUA CHU and UY SE TIENG
Doctrine	Mere deception by the public officer will not shield the criminal if the offense was committed by the latter free from the influence or the instigation of the former.		

FACTS

Mid-November 1929: Uy Se Tieng (Uy) wrote to his correspondent in Hong Kong to send an opium shipment.

Nov. 4, 1929: Cebu Customs Secret Service Chief Juan Samson returned from a Europe vacation and called upon Cebu Port Collector of Customs Joaquin Natividad at his office, and Natividad asked him how much his trip cost. The Chief said he spent Php 2,500. Natividad took Php 300 from a drawer in his table and said:

> *"This is for you, and a shipment will arrive shortly, and you will soon be able to recoup your travelling expenses."*

Samson took the money, left, and put it in a safe in his office till he could deliver it to the Cebu Provincial Treasurer.

Nov. 11, 1929: Natividad called Samson and told him that the aforementioned "shipment" was of opium, that it was about to arrive, and that its owner would see Samson at his house.

- Uy went to Samson's house and told him he came, as per Natividad's order, to talk to him about the opium.
- He told Samson that the shipment had 3,000 tins of opium, that he agreed to pay Natividad Php 6,000 (Php 2 / tin), and that the opium was in Hong Kong since early Oct. awaiting a ship going directly to Cebu.

Nov. 22, 1929, 6:00 PM: A guy named Nam Tai loaded 38 cases consigned to Uy Seheng (marked "U.L.H.") on the steamship "Kolambugan," built in Hong Kong by the Cebu-based shipping company "Naviera Filipina."

- The same day, Natividad told Samson that the opium was aboard the Kolambungan, and that Samson would get Php 2,000, Natividad Php 2,000, and certain customhouse employees Php 2,000.

End of November: Natividad informed Uy that the Kolambungan returned to Hong Kong due to engine trouble and remained there till Dec. 7, with the 30 cases never leaving the ship as the captain needed it for ballast.

Dec. 14, 1929: Kolambungan arrived in Cebu. Samson had one of his men watch the ship while examining manifests. Natividad had Samson unload the cargo and told him to tell Uy to pay the Php 6,000.

Dec. 16, 1929, morning (*says "Nov." instead of "Dec." in the case, though...*): Natividad told Samson that Uy had the papers ready to withdraw cases marked "U.L.H." from the customhouse. Samson then told Natividad that it'd be better for Uy to go to his house to talk with him.

- Uy went to Samson's house that evening and was told that he must pay Php 6,000 before taking the opium from the customhouse. Uy showed the bill of lading and, leaving, said: "I will tell the owner, and see whether we can take the money to you tomorrow."

Dec. 17, 1929: Samson informed Constabulary Col. Francisco about EVERYTHING. The colonel instructed the provincial commander, Capt. Buenconsejo, to discuss the capture of the opium owners with Samson. The Captain and Samson agreed to meet at Samson's house that evening.

- That afternoon, Samson went to the Provincial Fiscal's office, reported the case, and asked the stenographer to take down the conversation he'd have with Uy that night in the presence of The Captain.
- The fiscal didn't have a good stenographer, so Samson got Jumapao of the Rodriguez & Zacarias law firm.

Dec. 17, 1929, evening: the Captain, Lieutenant Fernando, and Jumapao hid behind a wood-strip curtain hanging from the window overlooking the house's entrance at the ground floor.

- As Uy arrived, Samson asked if he brought the money. Uy said he didn't, saying that the opium's owner Lua Chu (Chu) was afraid of him. Samson told him to tell Chu to not be afraid, and that he may come to Samson's house.
- Samson pointed out a back door entrance to the garden and asked Uy where the opium was, and Uy answered 3,252 tins. [bro was NOT responsive to the question, very wrong...]
- At 10:00 PM, the same day, Uy returned with Chu, who said he wasn't the sole owner of the opium, and that a man from Manila named "Tan" and another from Amoy were also owners.
- Samson asked Chu when he'd get the opium, who said that Uy was in charge of that. Upon being asked if he had the Php 6,000, Chu answered in the negative, but promised to deliver it when the opium was in Uy's warehouse.
- Samson took Chu aside and asked, "I say, old fellow, why didn't you tell me about this before bringing the opium here?" To which Chu said, "Impossible, sir; you were not here, you were in Spain on vacation."
- Samson asked him how he brought the opium in, Chu said, "I was in a cockpit one Sunday when the collector called me aside and said there was good business, because opium brought a good price, and he needed money." Note: the Captain overheard EVERYTHING.
- It was then agreed that Uy would take the papers with him at 10AM next morning.

Dec. 18, 1929, 10:00 AM: Uy and one "Uy Ay" arrived at Samson's house, and as Uy was handing certain papers to Uy Ay, the Captain (who was hiding) appeared, arrested them, and took the papers consisting of bills of lading and an invoice written in Chinese relating to said bills.

- The Captain took the Uy's to Constabulary HQ, notified the fiscal, then went with Samson to Chu's home to search it and arrest him. In the pocket of a coat owned by Chu, hung on the wall, were 5 letters written in Chinese relating to the opium.
- The Captain and Samson took Chu to Constabulary HQ then went to the customhouse to examine the "U.L.H."-marked cases. In cases No. 11 and 18, they found 3,252 opium tins worth Php 50,000, hidden in a quantity of dry fish.

Dec. 18, 1929, afternoon: The Captain approached Chu and asked him to tell the truth about the opium's owner.

- Chu answered: "Captain, it's useless to ask me any questions, for I'm not going to answer them. The only thing I'll say is that whoever the owner of this contraband may be, he's not such a fool as to bring it in here without the knowledge of those," as he pointed towards the customhouse.

Very-side Issues:

- The trial court didn't err in not permitting the presentation of the admin. proceeding records of Natividad and Samson, who were dismissed from the service, since they can't serve to impeach Samson as a witness regardless of the result of those proceedings.
- The trial judge's refusal to order Samson, principal gov't. witness, excluded from the courtroom is within his power; no abuse of discretion.

ISSUE 1

Side – Substantive	**W/N the trial judge erred in admitting the transcript of the stenographic notes of Uy and Chu's statements as evidence.**	**NO**

RULING and RATIO DECIDENDI:

No, since they contain admissions made by themselves, and the stenographer (Jumapao) attested during trial that they were faithfully taken down. Their contents are corroborated by the unimpeached witnesses who heard the statements. The testimony of the Constabulary officers (the Capt. and Lt.) and the Customs Secret Service Chief are to be believed, as they did their duty.

Aside from this, Uy and Chu do NOT deny their participation in the illegal importation of opium, but Chu pretends he's just a guarantor to secure the gratuity payment which Natividad, Collector of Customs, had asked of him for

Samson and certain customs employees.

- This is contradicted by what he said to Samson that Dec. 17 evening, overheard by the Captain, where he said he was one of the owners of the illegally imported opium.

ISSUE 2

Main – Substantive	**W/N Samson INSTIGATED Uy & Chu into the sale of the opium.**	**NO**

RULING and RATIO DECIDENDI:

No. The defense tried to show that, basically, Samson was the mastermind all along, not Uy. Juan Samson denies this, and his conduct in getting the opium into the port of Cebu bears him out.

- Doctrine: "A public official who induces a person to commit a crime for purposes of gain, does not take the steps necessary to seize the instruments of the crime and to arrest the offender, before getting the profit he had in mind."
- In other words: The public official who conceives of the crime and induces someone to it, and only seizes the criminal instrument and arrests the offender AFTER they secure profit from it, is criminally liable for instigation. Otherwise, if they did so BEFORE securing their profit, they engaged in lawful entrapment.

Samson DID smooth the way for the introduction of the opium into the Phils., but that was AFTER the accused already planned its importation and order, leaving only the introduction through the Cebu customhouse to be managed, and he DID NOT help them successfully carry it out, but rather assured the seizure of said drug and the arrest of the accused smugglers.

16 Corpus Juris, p. 88, sec. 57: "**ENTRAPMENT AND INSTIGATION**. — ...[T]he general rule is that **it is no defense to the perpetrator of a crime** that **(a) facilities** for its commission were **purposely placed in his way**, or **(b)** that the **criminal act was done at the 'decoy solicitation'** of persons **seeking to expose the criminal**, or **(c)** that **detectives feigning complicity** in the act were present and **apparently assisting** in its commission. ...Mere deception by the detective will not shield the defendant, if the **offense was committed by him free from the influence or the instigation of the detective**."

Samson neither induced nor instigated Uy and Chu to import the opium; he just PRETENDED to have an understanding with Natividad, who'd promised them that he'd remove all difficulties in the way of their enterprise (as far as the customhouse was concerned), **NOT to gain** the Php 2,000 **BUT to assure the seizure** of the opium **and the arrest** of the "surreptitious importers." Ergo, this was simply ENTRAPMENT.

FINAL DECISION	Wherefore, we are of opinion and so hold, that the mere fact that the chief of the customs secret service pretended to agree to a plan for smuggling illegally imported opium through the customhouse, in order the better to assure the seizure of said opium and the arrest of its importers is no bar to the prosecution and conviction of the latter. By virtue whereof, finding no error in the judgment appealed from, the same is hereby affirmed, with costs against the appellants. So ordered.

US v Phelps (1910)

Topic | Subtopic	Article 12 - Exempting Circumstances *(Instigation and Entrapment)*	GR No. & Ponente	GR No 5728; Trent, J.
Plaintiff-appellee	The United States	Defendant-appellant	James O. Phelps (Alias Phillips)
Doctrine	A testimony by a government employee is discredited when it is obtained through encouraging or inducing a person to commit a crime in order to prosecute them.		

FACTS

James O. Phelps was charged and found guilty in the CFI of Jolo, Moro Province with the violation of Act No. 1761.

- He was sentenced to one month's imprisonment and to pay a fine of P250, and in case of insolvency to suffer the corresponding subsidiary imprisonment at the rate of P2.50 a day, and to pay the costs.
- *Act 1761 restricts and regulates the sale and use of opium pending its ultimate prohibition except in cases of medicinal use.*

Prosecution only presented one witness for the case: **Homer G. Smith**, an employee of the Bureau of Internal Revenue (Around this time, he was using another name: Lockwood).

- **According to Smith**:
  - The first time he ever saw the accused was in the **International Saloon in Jolo** in the month of April, 1909 (says "1009" in the case). At the time, two or three men were sitting together.
  - He **heard the accused say** that he (Phelps) on some occasions **liked to smoke opium**
  - A few hours after leaving the saloon, **he asked the accused** if he smoked opium, to which the accused answered **yes, he smoked sometimes**.
  - Smith then asked the accused **what opportunities** he had for smoking opium, to which the accused answered **"good opportunities**"
  - Smith then said to the accused "**I wish to smoke opium**"
  - Upon the invitation of the accused, he looked him up that night and was told that the accused was not able to prepare a room for smoking because the Chinamen were afraid. He then asked the witness to see him the following night.
  - On the following night, the accused again could not find a suitable place.
  - Upon another agreement to meet and when they went together to a certain house in the barrio of **Tulay**, a certain Chinaman (who was also charged in a criminal case) prepared the opium and pipe for smoking.
  - The accused gave **P2** and Smith gave **P1** to the Chinaman in payment for the opium and pipe
  - The accused smoked **two pills of opium** in the house of this Chinaman
  - On receiving the pipe which was prepared for smoking he took the piper and the pan containing the opium and went directly to the **justice of the peace** and swore out a **warrant** for the arrest of the accused and the said Chinaman.
- **According to the accused, James O. Phelps** (30 years old):
  - Smith, then going by Lockwood, **came to his house** one night in **Jolo**
  - Smith said that he was accustomed to smoking opium and asked Phelps **if he knew any Chinaman** in the town who could assist him **in obtaining opium to smoke**
  - Phelps answered that **he did not**
  - Smith asked if the **Chinaman** (same one charged in the criminal case), who was **Phelps' servant**, would **look for someone** to furnish Smith with a pipe until he became acquainted in town
  - On the following night, Smith again came to Phelps' house, and after being there for about 20 minutes became very **nervous**, saying it was necessary for him to have some opium
  - Phelps said Smith should go to the **hospital**, but as Smith was working for the quartermaster *(military role responsible for managing supplies, logistics, or navigation)* and was looking for a position as clerk, he would probably not be given such a position if they learned he smoked opium.
  - He again asked to have the Chinaman assist him.
  - Believing Smith was acting in good faith and was really sick, Phelps told the Chinaman to do so.
  - By agreement, he and Smith went to the **house of the Chinaman in Tulay** where this Chinaman prepared the pipe and gave it to Smith.

- Smith gave the Chinaman P2 and then left without the accused noticing whether he smoked or not
- Phelps was **arrested** around 40 minutes later.
- Phelps **called for the doctor** to examine him about 1 and ½ hours after he left the Chinaman's house

- The Chinaman **corroborated** Phelps' testimony on every material point, that after repeated demands from Smith, he prepared some opium and a pipe and gave it to Smith.
- The **Chief of Police of Jolo** (a sergeant in the US Cavalary) testified that upon making the arrests, both the Chinaman and Phelps **did not have an opportunity to talk together** before they went to the justice of the peace where the preliminary investigation was held.
- **Doctor DE Krafft** (of the US Army) **examined Phelps** about 1 and ½ or two hours after he left the Chinaman's house. It was found that Phelps was a strong, robust man presenting **no appearance of an opium smoker**. As he stated, "I am sure that he did not use any opium that day."

ISSUE 1

Main – Procedural	**W/N the testimony of Smith, a government employee having induced a person to commit a crime, is sufficient to sustain a conviction under Act no. 1761?**	**NO**

RULING and RATIO DECIDENDI:

- The prosecution did not contend that the appellant Phelps sold or had in his possession any opium. Nor was it contended that he had in his possession any of the prohibited paraphernalia used in smoking this drug. He was only charged with having **smoked** opium this one time in the house of the Chinaman, relying solely on Smith's testimony
  - In Jolo, Smith obtained employment to hide his true mission and assumed the name Lockwood for this same purpose, engaged in gambling, and admits having visited the house of the appellant three times for the purpose of making arrangements for himself and the accused to smoke opium.
  - He was an employee of the Bureau of Internal Revenue and secretly acted in this capacity in Jolo
- His testimony would have been more reasonable if, by the same means, he had induced the appellant to sell opium or exhibit in his possession either opium or any of the prohibited paraphernalia. Mere possession of the drug or any prohibited paraphernalia is violation of the law within itself.
  - The means mentioned : visited the appellant 3 times for the purpose of making arrangements for himself and the accused to smoke opium. He stated to the accused that he (Smith) wanted to smoke, then urged the accused to have the Chinaman to make arrangements so they both could smoke. He then went to the house of the Chinaman with the accused and paid the Chinaman for the preparation of the opium.
  - According to Smith, he not only suggested the commission of this crime, but he (Smith) also stated that he desired to commit the same offense and would pay his part of the expense necessary for the commission of the prohibited act.
- The courts should condemn, not encourage, the behavior of a government agent who helps commit (instigate/induce) a crime instead of helping the defendant reform. Furthermore, when witness Smith's actions are weighed against the defendant's testimony (which is backed by the Chinaman and the doctor) Smith's testimony becomes insignificant and certainly does not deserve credit..
- **When an employee of the government, as in this case, induces a person to commit a crime in order to prosecute them, such conduct discredits the employee's claims (is reprehensible).**

FINAL DECISION	The court is of the opinion and so hold that the appellant is **not guilty** of this crime. The judgment of the lower court is **reversed** and the appellant **acquitted**, with costs *de oficio*.

ARTICLE 13 – Mitigating Circumstances

Paragraph 1 – Justifying and Exempting Circumstances (*where not all requisites are present*)

- This includes **self-defense**, defense of **relatives**, defense of **stranger**, state of **necessity**, performance of a **duty**, **obedience** to order of superior, **minority** (15-18), **accident**, and **uncontrollable fear**.
- **NOT APPLICABLE to Insanity**, as there is no middle ground between insanity and sanity, between the presence and absence of intelligence.

1) Incomplete self-defense, defense of relatives, and defense of strangers.
- Here, **unlawful aggression must be present**.
- When **one** requisite is present = **Ordinary Mitigating Circumstance** under Article 13(1).
- When **two requisites** are present = **Privileged Mitigating Circumstance** under Article 69.

2) Incomplete avoidance of a greater evil.
- The **evil sought to be avoided** must actually exist.
- Missing either: a) the injury feared be greater than that done to avoid it, and b) that there are no other practical and less harmful means of preventing it.

3) Incomplete performance of duty.
- When the second requisite is **missing** (injury caused being a necessary consequence) = mitigating.

4) Minority
- When a minor ages 15-18 acts **with discernment** = mitigating circumstance.

5) Accident
- If the person acted with **no due care** and **with fault**, the case will fall under Art. 365, which punishes a felony by **negligence** or **imprudence**. *The penalty is **lower** than that of an intentional felony*.
- If the act is **unlawful** and done **with intention** = intentional felony; there is **no** mitigating circumstance.

6) Uncontrollable fear
- When one of the two requisites is not present = mitigating circumstance.

Paragraph 2 – Under 18 or Over 70

- Repealed by RA 9344, which provides that a minor ages 15-18 is **exempt** from criminal liability, generally.
    - If **with** discernment = **privileged MC** and the minor shall undergo **diversion programs**.
    - If **without** discernment = the minor shall be subjected to an **intervention program**.
- Basis: there is a **diminution of intelligence**, which is a condition of voluntariness.

How is **discernment** determined?
- Discernment is the **capacity** of the child to understand the difference between **right and wrong**, and the **consequences** of the wrongful act.
- The task of determination shall account for **the ability of the child to understand the moral and psychological components of criminal responsibility and the consequences of the wrongful act**.
- There is **no presumption** that a minor acted with discernment.

Intent and Discernment

- Intent refers to the **desire of one's act**; while discernment refers to the **moral significance** the person ascribes to the said act.
- The person ***may not intend*** for something to happen, but is ***aware of the consequences***.
    - A person may ***not intend*** to shoot another, but is ***aware*** of the consequences of his negligent act, which may cause injury to the other in negligently handling an air rifle (*Guevara v. Hon. Almodovar*).
- But, an **allegation of "with intent to kill" is sufficient allegation of discernment** (*People v. Neito*).

Over 70 Years Old

- This is only a **generic/ordinary** mitigating circumstance.
- They must be over 70 years old **at the time of the act**.
- If death penalty, their sentence is lowered to **life imprisonment**.

Paragraph 3 – Offender had no intention to commit so grave a wrong as that committed.

- Facts must prove that there is a **notable and evident <u>disproportion</u>** between the **means** employed to execute the criminal act and its **consequences**.
    - Example: during a quarrel, the husband **punched** his wife, causing a **rupture of her hypertrophied spleen** from which she died (*People v. Rabao*).
- The intention is judged by **external acts**.
    - It is judged by the **weapon used**, which **part of the body** was injured, the **injury inflicted**, and the **manner** it was done.
    - Example: a person used a **lethal weapon** and aimed it at a **vital body part (head, chest)**, in which death could be **reasonably anticipated**; it is thus **presumed** that the accused **intended** the natural consequence of his wrongful act.
    - When there is **brute force used**, intention is presumed (*People v. Yu*).
- The intention must be at the **exact moment the crime is committed**, even if there was no intent at the start.
    - The original intention was to **rob**, but they ganged up on the victim, employing **deadly weapons** and inflicting **mortal wounds** on his **neck**. **<u>At that precise moment, there was intent to kill the victim</u>** (*People v. Boyles*).
    - In contrast, in *People v. Abueg*, the accused were unaware that the deceased was behind the door of the house they intended to rob, and so would be **hurt** when they opened the door. There is **no clear evidence of a desire to kill the deceased**.
- In **murder**, a mitigating circumstance is appreciated based on the **manner of commission**, and not on the state of mind of the accused.

No Mitigating Circumstance when…

1) If the murder is qualified by **treachery**, then there is **no mitigating circumstance**.
2) When there is **no intent to kill**, but then **physical injuries** were inflicted (*the crime is physical injuries*).
3) **<u>Felonies by negligence</u>**. Here, the intent in felonies is *replaced* by <u>negligence, imprudence, lack of foresight, or lack of skill</u>. Hence, there is **no intent that may be considered as diminished**.

PARAGRAPH 4 - 'That sufficient provocation or threat on the part of the offended party immediately preceded the act'

- **Provocation:** any unjust or improper conduct or act of the offended party that: **excites, incites, or irritates**
- **Requisites:**
  - **Sufficient** provocation
  - Provocation **originates** from the offended party
  - Provocation must be **immediate** to the crime committed by the person provoked
- **Sufficient provocation** refers to provocation adequate enough to excite the person into committing the act.
  - Must be **proportionate** to the gravity of the crime committed

When there is sufficient provocation	When there is no sufficient provocation
Thrusting a bolo and threatening to kill a person, as well as hacking at his bamboo walls (Romera v. People)	Asking for an explanation for the accused's derogatory remarks against certain ladies is not sufficient provocation to be incited to kill (People v. Laude)
Forcing your way through an orderly line and persisting despite being ordered out (US v. Carrero)	Pointing at the accused while he was walking in New Luneta, further stating that "Don't you know we are watching for honeymooners here?" is insufficient provocation for the accused to stab the deceased (People v. Nabora)
Begging for pardon by a wife after the husband sees an unknown person jump out of their bedroom window (People v. Marquez)	Ordering by the deceased for the arrest of the accused for a misdemeanor. The performance of a duty is not a source of provocation. (US v. Abijan)
Challenging one to a fight (US v. Cortez) **EXCEPTION:** When the defendant seeks out the deceased **even though the latter is already at home**. In this case, the defendant was already willing and ready to fight (US v,. Mendac)	**Blowing of horns, cutting of lanes, and overtaking cannot be considered as sufficient provocation** (People v. Court of Appeals et al., GR No. 103613)
Kicking and cursing at the accused (US v. Firmo)	Heated exchange with the accused is not sufficient provocation to elicit being shot by said accused (PO2 Cruz v. People)
Kicking the accused on the chest prior to their commission of the crime (People v. Macariola)	

- **Provocation must originate from the offended party**
  - If the provocation that excited the offended party DID NOT COME from the deceased and came from others (e.g the latter's mother), then the provocation cannot be appreciated as a mitigating circumstance in favor of the accused (People v. Reyes, GR No. L-33154)
  - If the accused and another party was already fighting and the deceased merely stepped in to separate them, and the deceased did not give the accused any reason to attack him, the provocation by the other person cannot be taken as a mitigating circumstance (US v. Malabanan)

- **An act that is not considered an unlawful aggression may be considered a provocation sufficient to mitigate the crime**
    - **The victim, before being killed, challenged the accused's family with a bolo and an Indian *pana***. The victim went home but the accused grabbed a bolo, pursued the former, and killed him. While there was no unlawful aggression, the Court considered that there was sufficient provocation to mitigate the crime. (Pepito v. CA)
    - **The victim, prior to being shot, was being drunk, shouting for food, and was armed with a bolo**. The appellant Barangay Chairman, upon being called, responded to the incident and shot the victim. The Court ruled that though the victim was shot in retaliation for injury or threat, and self-defense cannot be invoked, the appellant can be given the benefit of the mitigating circumstance as **there was sufficient provocation from the victim immediately before the act.** (People v. Ubaldo)

- **Difference between sufficient provocation as requisite of incomplete defense and as a mitigating circumstance**
    - Sufficient provocation through the lens of incomplete defense: **Absence of sufficient provocation from the person defending himself**
    - Sufficient provocation as a mitigating circumstance: **Presence of sufficient provocation on part of the accused**
        - **EXCEPTION:** Provocation by the deceased in the first stage of the fight is not a mitigating circumstance if he was killed by the accused after fleeing. (People v. Alconga)

- **Provocation must be immediate to the commission of the crime**
    - There should be no interval of time between the provocation by the offended party and the commission of the crime. When there is an interval of time between the two, the conduct of the offended party **could not have been sufficient** to excite the accused to commit the crime as the latter would **have had time to regain his reason and exercise self-control**.

- **Threat immediately preceded the act**
    - If A threatened B with bodily harm, and because of the threat, A immediately attacked and injured B, **there is the mitigating circumstance of a threat immediately preceding the act**
    - **For the threat to only be a mitigating circumstance:** *it must not be offensive and positively strong*
        - If it is, then it is unlawful aggression which may give rise to self defense (US v. Guysayco)
    - **Vague threats are not sufficient**
        - Mere utterance of "If you do not agree, beware" without further proof that the victim will follow through with the threat is not sufficient
        - **If** the threat was "Follow us if you dare and we will kill you", then there is sufficient threat.
- **Basis of paragraph 4**
    - The mitigating circumstance of Article 13 (4) is based on **diminution of intelligence and intent**.

PARAGRAPH 5 - 'That the act was committed in the immediate vindication of a grave offense to the one committing the felony (delito), his spouse, ascendants, descendants, legitimate, natural, or adopted brothers and sisters, or relatives by affinity within the same degree'

- **REQUISITES of Paragraph 5**

1. There is a **grave offense done** to the one committing the felony, his spouse, ascendants, descendants, legitimate, natural or adopted brothers and sisters, or relatives by affinity within the same degree;
2. The felony was done **in vindication** of such grave offense. A lapse of time is *allowed* between the vindication and the commission of the grave offense.

- **Applies to grave offense committed against surviving spouse of deceased relative**
  - The *relationship created by affinity* created between the surviving spouse and the blood relatives of the deceased spouse **survives the death of either party to the marriage that created the affinity.**
  - If A (surviving husband of B) was killed by C, B's brothers will be entitled to the mitigating circumstance of **vindication of grave offense** if they cause serious physical injuries to C immediately after learning of A's death.
- **A lapse of time is allowed between the grave offense and the vindication**
  - '**Immediate' is not an accurate translation of the Spanish 'proxima'.** The fact that the accused was slapped by the deceased a few hours before the former killed the latter was considered as a mitigating circumstance of vindication even though the grave offense (slapping) was not immediate. The **influence of the act,** because of its *gravity and the circumstances* in which it was done, lasted until the crime was committed (People v. Parana)
  - The appellant was credited the mitigating circumstance after killing the victim who attempted to rape his wife and attacked the same. **The law speaks of immediate vindication of a grave offense, but it should be understood to mean 'proximate'** (People v. Babor).
  - The killing of a paramour by the husband **one day after the adultery** is *still considered proximate* (People v. Palaan)
  - Even if the abduction of the daughter of the accused and the killing of the deceased was separated by two or three days, the Court held that the mitigating circumstance of vindication can be considered in favor of the accused as though there was a gap between the grave offense and vindication, **the offense lasted while the daughter's whereabouts were unknown and the marriage of the deceased to the former remained unlegalized**. *There was no interruption from the time of the commission of the offense to its vindication*. (People v. Diokno)
- **Interval of time negating vindication**
  - Approximately **nine months** before the killing, the deceased boxed the accused several times in the face resulting in the former's conviction for less serious physical injuries. The accused killed the deceased in the pendency of the latter's appeal. **The killing cannot be considered as being proximate vindication of the first offense** (People v. Lumayag)
  - The deceased uttered "Nag-iistambay pala dito ang magnanakaw" or "Hindi ko alam na itong Civil Service pala ay istambayan ng magnanakaw." at **11:00 am, and was killed at 5:00pm** by the accused. The mitigating circumstance of vindication in this case does not avail. (People v. Benito)
  - The deceased was stabbed **two months** after being heard saying that the accused's daughter was a flirt. The mitigating circumstance of vindication does not avail as the accused **had time to recover his serenity** AND the **vindication cannot be considered to be proximate** to the alleged insult (People v. Lopez).
- **Distinction between provocation and vindication**

Provocation	Vindication
Provocation is made directly **only to the person who committed the felony**	Grave offense **may be made against the offender's relatives**
Provocation **does not need to be a grave offense**	There must be a **grave offense** committed *against* the

	accused or his relatives
Provocation or threat **must immediately precede the act** (**no interval of time** between provocation and the crime committed)	The vindication of the grave offense **may be proximate.** There **can be some interval of time** between the offense and the crime of the accused.

- This greater leniency for vindication is due to the fact that **it concerns the honor of a person** which is a **heavier consideration** compared to mere spite against the person giving provocation.

- **Basis to determine the gravity of offense in vindication**
    - The gravity of the offense for it to qualify under vindication must be determined by the court
        - **Factors considered:**
            1. Social Standing of the accused
            2. Place where the offense happened
            3. Time when the insult was made
        - Ex. **US v. Ampar -** An old man was insulted in a fiesta when he asked for roast pig. The old man killed the one who insulted him later on and the court ruled that ordinarily, the insult would have been a mere trifle to an average person. However, the **matter was serious** to the **old man** as he was the butt of the joke in **front of so many people**. Hence, the mitigating circumstance of vindication was applied to his case. In this case, **the age of the accused** and **the place of the insult** was considered by the court.
- **What are considered as grave offenses?**
    - Remark of the injured party *before the guests* that the accused lived at the expense of his wife (People v. Rosel). **Place where the insult was made was considered.**
    - Accusation of the offended party that the accused was a Japanese spy, following the **recent occupation of Manila by the American forces** (People v. Luna). **Time when offense happened was considered**
    - When a person, who was **making an attempt at the accused's wife,** was killed by the husband in the act, the husband is deemed to have acted **in vindication of a grave offense against his and his wife's honor.** (US v. Alcasid, US v. Davis)
    - Injured party **insulted the father of the accused** saying **"Pshe, ichura mong lalake"**, and the accused attacked the injured party after. The accused was considered to have acted in **vindication of a grave offense against his father**. (People v. David)

- **The provocation should be proportionate to the damage caused by the act and adequate to stir one to its commission**
    - The provocation must be proportionate to the damage caused by the act. The remark of the injured party that the accused's daughter was a flirt **does not** warrant and justify the slaying of the injured party (People v. Lopez)
- **Grave offense must be directed to the accused**
    - A **general remark** that the Civil Service Commission is a hangout of thieves cannot be considered as a grave offense **even if the accused felt alluded to** due to his criminal and administrative charges. The insult could not have been known to refer to the accused unless explicitly said. Therefore, **vindication of a grave offense does not apply**. (People v. Benito)

- **Vindication of a grave offense is incompatible with passion or obfuscation**
    - The two cannot be counted separately and independently as mitigating circumstances.

- **BASIS OF PARAGRAPH 5:** Diminution of **voluntariness**

PARAGRAPH 6 - 'That of having acted upon an impulse so powerful as naturally to have produced passion or obfuscation'

- **Requirements:**
    1. Accused **acted upon impulse**
    2. **Impulse is so powerful** that it naturally produced **passion or obfuscation in him.**
- **Why is passion or obfuscation mitigating?**
    - A person loses reason and self control when he is greatly excited, **diminishing the exercise of his will power** (US v. Salandanan)

- **When can Paragraph 6 be applied?**
    - Passion and obfuscation may only be applied as a mitigating circumstance if the same arose only from *lawful sentiments*
        - **THUS:** Even if there was passion and obfuscation on the part of the offender, there is **no mitigating circumstance when**:
            - The act is committed in a ***spirit of lawlessness***
            - The act is committed in **spirit of *revenge***

- **Requisites of the mitigating circumstance of passion or obfuscation**
    - There is an **unlawful act** that is **sufficient to produce such a condition of the mind**
    - The said act that produced obfuscation was **not far removed from the commission of the crime** by a considerable length of time, during which the perpetrator could recover his normal equanimity (evenness of mind, composure).

- **The act of the offended party must be unlawful or unjust**
    - Crimes of passion or obfuscation must be provoked by prior unjust or improper acts by the injured party

Unlawful and Unjust Acts	Not Unlawful and Unjust Acts
A wife visiting her uncle and refusing to come home until her uncle arrives (US v. Ortencio) **Jealousy of husband + refusal = sufficiently improper**	The victim teasing the accused – saying that the accused was ugly and he looked like a killer, and challenging him if he "knows how to kill" (People v. Aporado) **The teasing may have hurt the accused's ego but it was not an unlawful act.**
Attempting to steal a carabao (People v. Ancheta et al.) **The owner shooting the would be thief is considered to have acted in passion or obfuscation**	
The deceased creating trouble during the wake of the accused's departed father (People v. Samonte) **The accused's guilt in killing the deceased is**	A common law wife refusing to return home with the accused was acting *well within her rights*. The accused had no right to compel her to come home. (People v.

mitigated as the deceased's conduct was unlawful AND sufficient to infuriate the accused.	Quijano) **The refusal may be provocative, but is insufficient to create passion and obfuscation in the mind of the accused.**
The deceased boxing the accused's four year old son (People v. Castro) **The accused acted upon the natural instinct to protect his son.**	

- **Exercise of a right or fulfillment of duty is *not* a proper source of passion or obfuscation**
    - The accused's act of killing the deceased due to the latter trying to take the former's carabao to the barrio lieutenant due to the non-payment for the crops destroyed by the accused's animal is not mitigated by passion and obfuscation, as the **deceased's act is perfectly legal and proper** (People v. Noynay, et al)
    - The mother of the child had the **perfect right** to reprimand the accused for the latter making their bedroom into a rendezvous for the accused and her lover. Thus, the deceased killing the child **cannot fall under passion and obfuscation.**
- **The act must be sufficient to produce passion and obfuscation**
    - If the cause of the crime was only trivial and slight, like a worker failing to come to the *hacienda* for work, or when a person is seen taking fruit from a claimed tree, **the obfuscation is not mitigating (**US v. Diaz, People v. Bakil)
- **The act producing obfuscation must not be far removed from the commission of the crime so as to allow the accused enough time to recover his equanimity (**evenness of mind, composure)
    - No uniform rule on what a "considerable length of time" is. The act producing obfuscation and the crime must not be so far apart that the accused could have already calmed down and would be able to reflect on the consequences of his actions.
    - Ex.
        - **More than 24 hours between alleged insult and commission of crime** = no mitigating circumstance (People v. Sarikala)
        - **Several hours between the cause of passion/obfuscation and commission of crime** = no mitigating circumstance (People v. Aguinaldo)
        - **Half hour between the previous fight and the killing of the deceased** = no mitigating circumstance (People v. Matbagon)
        - **One month and five days between being slapped and made to kneel, and the killing of the deceased** = no mitigating circumstance (People v. Mojica)
        - **Period long enough to pause and reflect between publication of articles assailing the accused's integrity and the crime** = no mitigating circumstance (People v. Pareja)
- **The crime committed must be the result of a sudden impulse of natural and uncontrollable fury**
    - Obfuscation cannot be mitigating if the crime was **planned** and **calmly meditated**
    - Obfuscation is also not mitigating if the fury was **deliberately fomented** by the accused
- **Passion and obfuscation may build up over time**
    - Passion and obfuscation is not necessarily felt **seconds before the commission of the crime**.
    - May build up over time to the point that it can no longer be repressed, **resulting in the commission of the crime**.
    - Ex. Victim threatened to molest the daughter of the accused, and further accused him of having incestuous relations with his mother ***in public and in full view of his immediate superior.*** The

passion may **linger** and **build up over time** as repressed anger *enough to obfuscate reason and self-control* (People v. Oloverio)

- **Passion or obfuscation must arise from lawful sentiments**
    - Passion and obfuscation arising from lawful sentiments:
        1. Impulse from sudden revelation of unfaithfulness of one's common law wife through discovering her and her lover, a common acquaintance, in bed with one another. The resulting killing is mitigated by **passion and obfuscation** (US v. De la Cruz)
        2. Obfuscation resulting from being left after years of common dwelling and the harsh treatment received by the accused from her common-law husband a short time before she stabbed him. (People v. Yuman)
        3. Rage from the flat rejection of the accused's proposal that the deceased come back to live with him and stop engaging in prostitution as well as additional insults **can be considered as lawful sentiments** (People v. Bello)
- **For the mitigating circumstance of passion or obfuscation to apply, the crime must not have been committed in the spirit of lawlessness or revenge**
    - If the accused attacked an eight year old child for screaming, **his guilt cannot be mitigated by passion or obfuscation** as he acted in the spirit of lawlessness. Besides this, the screams of the child are not considered to be provocative enough to generate an impulse of **natural and uncontrollable fury.** (People v. Cabarrubias)
    - If the **accused killed the child of another woman** because she was scolded for making the bed of the master her and her lover's rendezvous, then she is considered to have been acting **in the spirit of lawlessness and revenge**, rather than passion or obfuscation (People v. Caliso)
    - Marcelo **hacked at Jose two times** for shooting the former's brother, Carlito. If Marcelo stopped after the first swing, he could have availed of the mitigating circumstance of passion or obfuscation. By the second swing, **Marcelo was considered to have acted in the spirit of revenge** (People v. Bates)
- **The offender must act under the impulse of special motives**
    - If the offender acted because of the **natural excitement** due to a fight or a beating, the impulse in that state is considered by law to **strong enough to produce sufficient obfuscation to mitigate liability**.
        - Ex. Two people were wrestling and after being separated, one of them stabbed the other as he was entering a vehicle. The aggressor is not considered to have lost his entire reason or self-control as the excitement from the fight **does not constitute** a mitigating circumstance.
    - **Example of special motives**
        - The accused killed P because the latter failed to deliver his letter to A, upon which he pinned his hopes of settling the case against him amicably. The failure to deliver by P is a **prior unjust and improper act** sufficient to produce **great excitement and passion**. Thus, the failure of P was e**nough to confuse the accused's reason** and impel him to kill. (People v. Mil)
    - **Obfuscation arising from jealousy**
        - If the killing of the deceased arose from rivalry for the hand of a woman, **passion or obfuscation is mitigating**
- **The cause of the passion or obfuscation must come from the offended/injured party**
    - The two sons, believing that S would further wound their father, killed S in defense of their father. Under this great excitement, the two sons also killed C who was just near the scene. **Passion and obfuscation** *cannot* mitigate their liability for the killing of C as **he was not the one that caused the provocation** that produced the passion or obfuscation in the two sons. (US v. Esmedia)
- **The passion or obfuscation may arise from causes that exists ONLY in the honest belief of the accused**

- The defendant killed the deceased due to the belief that the latter caused his dismissal from work**. This belief was enough to confuse his reason at the time of the crime** (US v. Ferrer)
- The defendant believed that the deceased **cast a spell** upon their mother, **causing serious illness**. This belief was so powerful a motive that it produced **passion or obfuscation** (US v. Macalintal, People v. Zapata)
- The defendant **believed** that the **victims threw stones** at his minor daughters, with o**ne of the victims even burning one of his daughters' hair**. The defendant was entitled to the mitigating circumstance of passion because he suffered a *diminution of intelligence and intent* due to his belief. (Bongalon v. People)

- **Vindication or obfuscation cannot be considered when the person attacked was not the one who gave cause therefor**

- **Provocation and obfuscation arising from one and the same cause should be treated as only one mitigating circumstance.**
  - The alleged maltreatment of the appellants gave rise to both provocation and obfuscation. As both only had one cause, the two mitigating circumstances **cannot be considered as two distinct and separate circumstances** and must be treated as one (People v. Pagal)

- **Vindication of a grave offense cannot coexist with passion and obfuscation**
  - Both circumstances *cannot* be counted separately or independently
    - **EXCEPT:** when there are other facts that are closely connected
      - Ex. When the deceased saw the accused coming, after having eloped with the latter's daughter, there are two facts which are **closely connected:**
        1. **Elopement -** a very grave offense to a family with old customs
        2. **Refusal by the deceased to deal with the accused -** Stimulus strong enough to produce passion in the accused

        Two mitigating circumstances of vindication and passion were considered in favor of the accused as the elopement of the deceased's with the accused's daughter was considered a **grave offense** against the family (vindication), and the deceased **ran away instead of meeting** the accused and asking for forgiveness (passion)

- **Passion and obfuscation is compatible with the lack of intention to commit so grave a wrong**
  - When the appellant boxed a nine-year old child because the latter had boxed his four year old son, and the nine-year old child died, the **appellant could avail of both mitigating circumstances**. The appellant's act was due to an **impulse of a father** to protect his son regardless of fault and was blinded with rage. Furthermore, the appellant **only boxed the nine-year old onc**e, which is in line with his statement that he only **meant to chastise the child, not kill him** (People v. Castro)
- **Passion or obfuscation is incompatible with treachery**
  - **Treachery** requires deliberate thought to choose the means that would minimize the risk to the accused, which **requires reason**. Passion or obfuscation **diminishes and even leads to the loss of reason and self-control** and thus a person acting under either **should not be able to deliberately employ a means of attack to prevent self defense.** (People v. Domingo, citing People v. Germina)
- **Passion and obfuscation cannot co-exist with evident premeditation**
  - Premeditation requires calm thought and reflection upon the resolution to carry out criminal intent **during the space of time sufficient to arrive at a composed judgement.** Passion and obfuscation makes a person irrational and excited, thereby being **completely opposite to premeditation. (**People v. Pagal)

- **Passion or obfuscation distinguished from irresistible force**

Passion or Obfuscation	Irresistible force
Mitigating circumstances	Exempting circumstances
Does not require physical force	Requires physical force
Exists in the offender/accused himself	Must come from a third party
Must arise from lawful sentiments	Is unlawful by itself

- **Passion or obfuscation distinguished from provocation**

Passion or Obfuscation	Provocation
Produced by an impulse that may be caused by provocation	Comes from the injured party/victim
Exists for as long as the influence of the act persists until just before the crime	Must immediately precede the crime

- **Basis for paragraph 6:** An offender acting due to passion or obfuscation suffers a **diminution of intelligence and intent**

PARAGRAPH 7 – VOLUNTARY SURRENDER OR GUILTY PLEA

7. That the offender had voluntarily surrendered himself to a person in authority or his agents, or that he had voluntarily confessed his guilt before the court prior to the presentation of the evidence for the prosecution.

1. Voluntary surrender to **a person in authority OR his agents**
2. Voluntary confession of guilt before the court **PRIOR TO PRESENTATION OF EVIDENCE FOR PROSECUTION**

***IF both are present, should be treated as 2 independent circumstances, even if technically in the same subsection*

➔ REQUISITES OF VOLUNTARY SURRENDER

1. Offender had NOT BEEN ACTUALLY ARRESTED
2. Offender surrendered himself to a person person in authority or his agents
3. Surrender was VOLUNTARY

- **Requisite of voluntariness** → *Spontaneous* + shows interest of the accused to surrender unconditionally, either b/c he acknowledges his guilt OR wishes to save authorities the trouble / expenses of the search.
- **"Spontaneous"** → Inner impulse without external stimulus. Determined through conduct after the crime.

**Spontaneity is still there even if there's fear of retaliation from victim's relatives.

PERSON IN AUTHORITY → Public officer with jurisdiction and power to govern / execute laws, whether as an individual or member of a governmental corp., board, or commission. ***Barrio captains / brgy chairmans are included.*

***AGENT* OF A PERSON IN AUTHORITY** → Charged w/ maintenance of public order through direct provision of the law or appointment by a competent authority. ***Includes any person coming to aid of persons in authority*.

Examples:

Voluntary surrender	NOT voluntary surrender
● When there's **no proof the warrant was served OR he was not found**, yet he surrendered. ● Helped bring victim to the hospital and didn't resist arrest. ● Stabbed someone but ran to municipal bldg., threw away bolo, raised hands, and didn't resist after admitting crime. ● Fled to hotel after the crime to hide from the victim's companions chasing him. When police came, he readily surrendered. ● Shot someone, then posed in a call as an anonymous tip and went as a witness, but then told investigators he was surrendering.	● Took 2 and a half years after warrant was issued for him to surrender. He didnt surrender to spare the State of the search, he was tired of living as a fugitive. ● Refused to surrender then **only stood down when they realized there was no chance of escape**. ● Went to police station just to clarify why police were looking for him, but then he denied any involvement. ● Went to the station to report the crime but did not intend to assume responsibility. ● Merely accompanied police to the crime scene but didn't actually surrender or admit his complicity.

Also, take note that:

- ➢ Mere filing of info / **issuance** of a warrant of arrest doesn't automatically make a surrender "involuntary".
  - Surrender doesn't have to happen before an arrest is ISSUED. Just has to be that the accused wasnt ACTUALLY ARRESTED YET.
- ➢ No required **time or place** of surrender
  - But if surrender takes too long, like several years after the order, the court will assume the accused is just tired of being on the run
- ➢ Surrender **must be by reason of the crime** being prosecuted.
- ➢ Surrender **through an intermediary** is appreciated as mitigating.
- ➢ If the accused was **actually arrested before the "surrender"**, then there was no voluntary surrender.
- ➢ Surrender of **weapons** ≠ voluntary surrender
- ➢ **Non-flight** ≠ voluntary surrender
- ➢ **Intent to surrender w/o actual surrender** ≠ voluntary surrender

➔ REQUISITES OF PLEA OF GUILTY

**NOT mitigating in culpable felonies and crimes in special laws

1. Offender **spontaneously confessed his guilt**
2. Confession **made in OPEN COURT** (the court **competent to try the case**)
   a. Extrajudicial confession is not voluntary confession
   b. Conditional plea of guilty is NOT mitigating.
   c. Accused may plead guilty to a lesser offense, with consent of offended part & prosecutor.
3. Confession made **PRIOR to presentation of evidence for prosecution**
   a. Plea of guilty must be made before trial begins, even if he initially pleaded not guilty, although in some cases:
      i. The plea was changed to guilty during this period, so death penalty was changed to life imprisonment.
      ii. Accused was willing to plead guilty to lesser offense and the prosecutor amended the charges and information, so the plea was mitigating.
   b. Plea of not guilty at preliminary investigation is no plea at all.
   c. Changing plea to guilty on appeal is NOT mitigating.

Requisites of plea bargaining: (*Discretionary upon court, not demandable by the accused.)*

1. Consent of offended party
2. Consent of prosecutor
3. Plea of guilty to lesser offense included in the offense charged
4. Approval of the court

Why plea of guilty is mitigating → it is an act of repentance and respect for the law indicating moral disposition favorable to the accused person's reform.

PARAGRAPH 8 – PHYSICAL DEFECT OR DEAF / DUMB

8. That the offender is deaf and dumb, blind or otherwise suffering some physical defect which thus restricts his means of action, defense, or communication with his fellow beings.

- Physical defect **must restrict means of action, defense, or communication.** (ex.: stutterer, armless, cripple), showing restricted freedom of action and *diminution* of voluntariness.
- Educated and non-educated deaf-mute / blind persons are considered on equal footing.

PARAGRAPH 9 – ILLNESS

9. Such illness of the offender as would diminish the exercise of the will-power of the offender without however depriving him of consciousness of his acts.

➔ REQUISITES

1. Illness **diminishes willpower,** but
2. Illness **does NOT deprive offender consciousness** of his acts

Examples of illnesses considered mitigating:

- Illness of the mind not amounting to insanity
    - Intelligence and intent are diminished, but not absent
- Mistaken belief of killing "witches" for public good
- Mild behavioral disorder / illness of nerves or moral faculty

PARAGRAPH 10 – OTHER SIMILAR CIRCUMSTANCES

10. And, finally, any other circumstance of a similar nature and analogous to those above mentioned.

Similar / analogous circumstances that are mitigating

- Over 60yrs old with failing sight → **similar to 70yrs old** in par. 2
- Outraged feeling of the owner of an animal taken for ransom → **analogous to vindication of a grave offense**
- Outraged feeling of a creditor → **passion / obfuscation**
- Impulse of jealousy → **passion / obfuscation**
- Manifestations of Battered WIfe Syndrome → **illness diminishing willpower**
- Esprit de corps ("spirit of the body/group") → **passion / obfuscation**
    - Mass psychology cases, such as one where soldiers killed the deceased because of the lieutenant's urge for vengeance
- Voluntary restitution of stolen property or immediate reimbursement → **voluntary surrender**
- Extreme poverty & necessity → **incomplete justification based on state of necessity**
- Testifying for prosecution → **analogous to plea of guilty**

NOT mitigating

- Husband killed in parricide was "bad" or quarrelsome → **NOT similar to any art. 13 paragraphs**
- Yielding to arrest without resistance → **NOT automatically voluntary surrender**
    - (unless he was the one who suggested beforehand to go to the police, and made no attempt to flee despite opportunity to do so)
- Killing the wrong man → **NOT mitigating**
- Running amuck as a deeply rooted cult among Moros → **NOT mitigating**

MITIGATING CIRCUMSTANCES PERSONAL TO THE OFFENDERS

***only mitigates liability of principals / accomplices / accessories to whom these circumstances are attendant*

Circumstances that arise from

1. Offender's moral attributes
2. His relations with offended party, or
3. Any other personal cause.

CIRCUMSTANCES NEITHER EXEMPTING NOR MITIGATING

- Mistake in blow / aberratio ictus
- Mistake in identity of victim, even if the wrong done is different from that which is intended
- Entrapment of the accused
- Accused is over 18yrs old
- Performance of righteous action no matter how meritorious

AGGRAVATING CIRCUMSTANCES

Those that increase penalty (without exceeding maximum penalty provided by law)

Based on greater perversity of the offender manifested in the act, shown by:

1. Motivating power
2. Place of commission
3. Means and easy employed
4. Time
5. Personal circumstances of the offender or offended party

KINDS

A. **GENERIC AGGRAVATING**
    - Applies to ALL crimes
    - Increases punishment to the maximum PERIOD of prescribed penalty
    - Can be offset by ordinary mitigating circumstance

B. **SPECIFIC AGGRAVATING**
    - Applies only to particular crimes provided expressly by law / jurisprudence
    - Doesn't change character of the offense
    - Increases penalty like generic aggravating.
    - Can be offset by ordinary mitigating circumstances.

C. **QUALIFYING AGGRAVATING**
    - Changes nature / designation of the crime
    - Must be provided in definition of the offense
    - Warrants increase of penalty even to the next highed degrees
    - CANNOT be offset by ordinary mitigating circumstances
    - If one of the aggravating circumstances is qualifying, the rest are deemed generic

D. INHERENT AGGRAVATING

- Necessarily accompanies the offense as an element of the crime
- No longer considered in determining penalty

E. SPECIAL AGGRAVATING

- Under special conditions, increases penalty
- CANNOT be offset by ordinary mitigating circumstances

Some comparisons:

Qualifying	vs.	Generic
Can change the name of the crime itself and the deserving penalty.		Increase penalty to maximum PERIOD only
CANNOT be offset by ordinary mitigating circumstances		Can be offset by ordinary mit/ circumstance
Must be alleged in the information.		Not alleged = generic only

Qualifying	vs.	Special qualifying
May impose penalty even to next higher degrees but not necessarily death penalty.		Distinctly applicable to qualified rape punishable with **supreme penalty of death** In lieu of death penalty (enacted by RA 9346): reclusion perpetua or life imprisonment w/o parole
Need not be preceded by the words "aggravating / qualifying" or "qualified by" to be considered qualifying. Being specified in the Information is enough.		

AGGRAVATING CIRCUMSTANCES (AC) THAT DO NOT INCREASE PENALTY

1. AC that are specially punishable by law OR included in the law defining a crime and prescribing a penalty
2. AC inherent to a crime as a necessary element (like premeditation in robbery)

AGGRAVATING CIRCUMSTANCES PERSONAL TO THE OFFENDERS

Circumstances that arise from

1. Offender's moral attributes
2. His relations with offended party, or
3. Any other personal cause.

AC consisting of the act itself and the means employed aggravate liability only of those who had knowledge / cooperation.

AC must be proved as fully as the crime itself in order to increase penalty.

PEOPLE V URAL (1974)

Topic | Subtopic	**Mitigating Circumstances - No intention to commit so grave a wrong**	**GR No. & Ponente**	G.R. No. L-30801 , Aquino, J
Petitioner/s	People of the Philippines	**Respondent/s**	Domingo Ural
Doctrine	**Lack of intent to commit so grave a wrong offsets the aggravating circumstance of murder**		

FACTS

- An appeal of defendant Domingo Ural (will hereby be called Ural) wherein the CFI of Zamboanga de Sur convicted him of murder, sentencing him to reclusion perpetua and ordering him to indemnify the heirs of Felix Napola for P 12K pesos.
- Testimony of Brigido Alberio (26 yo, former detention prisoner who had been accused of murder but set free on bail)
    - Alberio decided to sleep in the Buug municipal building where there would be more security after failing to reach his residence in Barrio Upper Lamari, Buug, Zamboanga Del Sur.
    - Upon arrival at the municipal building at around 8 PM, he saw Ural boxing the detention prisoner, Felix Napola (Napola). As a result of the blows, Napola collapsed on the floor while Ural stepped on his prostrate body.
    - Ural went out of the cell and after a short while returned with a bottle. He poured the contents on Napola's body.
    - Ural ignited the body and Napola screamed in agony. Napola shouted for help but nobody helped him.
    - Alberio left the municipal building after seeing the heinous crime. Before he left, Ural cautioned him 'You better keep quiet of what i have done'. Alberio was not able to sleep that night.
    - He hitchhiked in a truck hauling iron ore and went home.
- Doctor's Testimony.
    - Dr Luzonia Bakil, the municipal health officer, certified that Napola sustained second segree burns on the arms, neck, left side of the face, and 1/2 of hte body including hte back.
    - The dermis and epidermis were burned. Without medical intervention, the death would ensue from infection. Since there was water in burnt area, secondary infection would set in and will cause complications.
    - Napola died on Aug 25 1966, medico legal says "burn" was the cause of death.
- Trial Court said that hte prosecution should have presented Rufina Paler, the victim's widow, who was present in teh court and a vital witness who could prove the victim's dying declaration.
- Prosecution's Testimony.
    - Around 9 PM of July 31, 1966, Ural was in the municipal jail on guard duty.
    - He heard a scream for help from Napola, so he entered his cell and found Napola's shirt in flames.
    - With the help of Ernesto Ogoc and Siton, Ural removed Napola's shirt BUT Ural did not summon a doctor because, according to Napola, the burns were not serious.
    - Felicisima Escareal, Ogoc's common-law wife, who was branded by hte trial court as 'a complete liar', testified that she heard Napola's scream for help and saw that his shirt was burning but did not know how it happened. She said that Ural and Siton removed the shirt of Napola and put out the fire.
    - Teofilo Matugas, a policeman said that he was relieved as guard by Ural at 8:30 PM and denied seeing Alberio in teh municipal building that time.
- Trial Court Verdict:
    - Trial Court held that Ural's denials cannot prevail over the testimony of Alberio.
    - It observed that Ural's alleged act of removing Napola's burning shirt was an indication that he was belatedly alarmed by the consequences of his evil act, but would not mean that he was not hte incendiary.

ISSUE 1

Main – Substantive	**W/N** Ural is guilty of murder, and if he is, will the mitigating circumstance of 'no intention to commit so grave a wrong as that committed' apply?	**YES to both**

RULING and RATIO DECIDENDI:

- While preliminarily, Article 4 applies, wherein criminal liability shall be incurred by any person committing a felony although the wrongful act done be different from that which he intended. Since Ural caused the burns of Napola that ultimately led to complications which led to his death, he is found liable for murder by means of fire (incendio). He took advantage of his public position to commit hte crime therefore merits no judicial leniency
- The trial court, however, **failed to appreciate the mitigating circumstance that Ural had no intention to commit such a grave wrong.**
    - It was manifest from the facts that Ural had **no intent to kill Napola.**
    - Ural **merely wanted to maltreat him because of Napola's drunkenness** and that he was a nuisance while in the detention cell.
    - When Ural realized the consequences of the actions, he allowed Napola to secure medical treatment at the municipal health unit.
- **Lack of intent to commit a so grave a wrong offsets the aggravating circumstance of abuse of his position.**
- Thus, the punishment appropriate is reclusion perpetuated which is the medium penalty for murder.

LEGAL BASES

Par 3 Art 13 RPC - *Mitigating circumstances.* - The following are mitigating circumstances: "That the offender had no intention to commit so grave a wrong as that committed. "

Par 1 Art 4 RPC - *Criminal liability.* - Criminal liability shall be incurred: 1. By any person committing a felony *(delito)* although the wrongful act done be different from that which he intended.

FINAL DECISION	Finding no error in the trial court's judgment, the same is affirmed with costs against the appellant. SO ORDERED.

PEOPLE v. LEONOR (1999)

Topic | Subtopic	Mitigating circumstances | Sufficient provocation	GR No. & Ponente	G.R. No. 125053 | J. Davide, Jr.
Petitioner/s	People of the Philippines	Respondent/s	Christopher Caña Leonor
Doctrine	A **lack of intent** to commit so grave a wrong **does not mitigate** in homicide cases where the accused used a **deadly weapon** in inflicting **mortal wounds** on **vital organs** of the victim. A **sufficient provocation** to mitigate an offense must be **proportionate** to the gravity of the retaliatory act.		

FACTS

Christopher Caña **Leonor** was charged by the RTC of Paranaque with the crime of **robbery with homicide**.

OSG Version of Facts

1) Morning of May 15, 1995, **Dr. Maria Teresa Tarlengco** (*deceased*) was in her **clinic** on the **3rd floor** of the **Hermanos Building** in Paranaque.
2) **Leonor** entered and inquired about the **cost of tooth extraction**.
3) When Dr. Tarlengco **quoted her fee**, Leonor said that he would come back; he then left in a hurry.
4) Minutes later, Leonor came back. He was told to **take a seat** and **wait** (in the Waiting Area).
5) While Dr. Tarlengco was **preparing** her dental instruments, Leonor **barged in and demanded money**.
6) Dr. Tarlengco said **there was money on the table**. Upon hearing this **Leonor stabbed her, grabbed her watch, and ran away**.
    a) **Dr. Ronaldo Baluyot**: the stab wound on the **chest** was caused by a **single bladed fan knife**.
7) Dr. Tarlengco struggled out of the clinic and saw Leonor run out of the building; she **shouted** for help.
8) **Reynaldo Baquilod**, the building's **security guard**, heard the shouting. He **chased** Leonor until **Daang Hari Street**, where he was joined by **traffic policeman Luis Galeno**.
9) Baquilod & Galeno **caught up** with Leonor; they took from him **P900 cash and a Titus wrist watch**.
10) Leonor: "*Sir, hindi ko naman gusto po ito. Ginawa ko lang ito dahil kailangan ng pamilya ko*."
11) **PO3 Mateo Interia** was instructed to investigate the clinic, where they saw a **bloodied *balisong* (fan knife)** at the **ground floor** of the building.
12) Dr. Tarlengo was able to **talk to her dad**. // In the private room of the hospital, she **died**.

Expenses incurred: P8,718 for hospital expenses; P2,500-3,500 to Funeraria Malaya; P22,500 for her casket; P8,250 to Manila Memorial, Inc.; P5,000 for masses; ~P10,000 for food served in the wake.

Leonor Version of Facts

1) 6AM: he left Calauag, Quezon and boarded a **Jam Transit bus bound for Manila**; he had P800 and a fan knife in his pocket. He was to fetch his family for the town fiesta to be held on May 25, 1995.
2) His **head** and **two molars** were aching.
3) He alighted at Alabang and took a bus bound for Bicutan Extension.
4) Upon reaching Bicutan Extension, he **looked for a dentist** to have his aching teeth pulled. He found Dr. Tarlengco's clinic (in a building on General Santos Avenue).
5) He asked her how much the extraction cost was, and was told it would be **P150 per tooth**. Leonor **negotiated P100**, but the Dr. rejected his offer.
6) Before he could leave the building, Dr. Tarlengco **stopped him and agreed to the offer**.
7) Leonor sat on the dentist chair while Dr. Tarlengco prepared the instruments for extraction.
8) Just as she was about to inject anesthesia, she said that **she changed her mind and would charge P150 per tooth**.
9) Leonor then **parried/pushed her right hand away, which angered her**. She **cursed** at Leonor.
10) As he was **about to leave**, Dr. Tarlengco **cursed and pushed him**, at which moment he blacked out.
11) When his senses came back, he saw the dentist was in **pain**, and he saw **blood spurting**.
12) Leonor realized that he **stabbed the dentist**. In shock, he stepped back, lost grip of his knife, and ran out of

the clinic and the building.

13) When he looked back at the clinic, he saw Dr. Tarlengco shouting for help. A security guard had his shotgun aimed at Leonor, and he ran after the latter.
14) While running away, Leonor came across Police Officer Galeno, who grabbed him and asked what happened. // Leonor replied: "*Sir, nakadisgrasya ako*."
15) Galeno brought Leonor to the Police HQ along the Coastal Road in Paranaque. **Four policemen took turns in mauling and kicking him**, and one even **took money** from his wallet.
16) During the investigation, Leonor **admitted to stabbing Dr. Tarlengco**, but he **denied** taking the money and the watch from her.

Testimonies

1) **Leopoldo Leonor Leonidas** (uncle) revealed that around **noon** of May 15, 1995, while he was at home, he received a **telephone call** from Leonor saying that he stabbed someone.
2) **Renato Leonor** (dad) testified that when he went to Leonor's detention cell, he could **hardly recognize** him because he was bloodied. He remembers Leonor **complaining of toothache** before he left for Manila.
3) **Dr. Alfredo Besa**, a **dentist**, examined Leonor; he determined that **2 teeth were due for extraction**. He said that people complaining of toothache were usually **irritable**, but he admits that none of his patients have ever killed a person or brought a fan knife to a clinic.

MAIN ISSUE

W/N the mitigating circumstance of a lack of intent to commit so grave a wrong as that committed, can be appreciated in this case.	**NO**

Leonor Arguments: that he did not intend to commit so grave a wrong as the act committed; that there was sufficient provocation by Dr. Talengco (the offended party) immediately preceding the offense; that he acted upon an impulse so powerful as to have produced in him passion and obfuscation; that he voluntarily surrendered and confessed as to having committed homicide.

RULING and RATIO DECIDENDI:

A **lack of intent** to commit so grave a wrong **does not mitigate** in homicide cases where the accused used a **deadly weapon** in inflicting **mortal wounds** on **vital organs** of the victim, as in this case.

The **sufficient provocation** to mitigate an offense must be **proportionate** to the **gravity of the retaliatory act**. In this case, Dr. Tarlengo merely **pushed him** and **cursed at him**. This **does not justify retaliation with a knife**.

There was **no voluntary confession**. The mitigating circumstance contemplated by law is a **plea of guilty *made spontaneously and unconditionally*** in open court before the presentation of evidence for the prosecution. Leonor made no such plea.

There was **no passion or obfuscation**, as according to Leonor, he **momentarily blacked out** and instantly found his knife on Dr. Tarlengco's chest. **There should be loss of self-control, not consciousness**.

ISSUE 2

W/N Leonor had indeed committed the offense charged and the prosecution had proved it beyond reasonable doubt.	**YES**

RULING and RATIO DECIDENDI:

Christopher **admitted that he stabbed Dr. Tarlengco**. The burden of evidence to prove otherwise **shifts to him**. He had to prove a justifying or exempting circumstance to avoid criminal liability, and he **miserably failed to do so**.

ISSUE 3

W/N Leonor shall be charged for robbery with homicide.	**YES**

RULING and RATIO DECIDENDI:

Geraldine Tarlengco and Joseph Sumalbar identified the items recovered from Leonor **as Dr. Tarlengco's belongings**. This is **consistent** with the corroborative testimonies of Galeno and Baquilod.

The unexplained possession of stolen articles gives rise to a **presumption of theft** unless it is proved that the owner of the articles was deprived of her possessions by **violence** or **intimidation**, in which case, the **presumption** becomes one of **robbery**.

The **dying declaration** of Dr. Tarlengco to her father established that not only was a **robbery committed**, there being **violence** and **intimidation** against her, but that **homicide was perpetrated** on the occasion of the robbery.
***the case mentions requisites for a dying declaration, but sir does not usually ask for info outside of the topic.*

FINAL DECISION	RTC Decision is modified. Leonor is found guilty beyond reasonable doubt as principal of the crime of **robbery with homicide**, hereby sentenced to suffer the penalty of **reclusion perpetua**, and pay the heirs of the victim, actual damages, moral damages, and attorney's fees.

U.S. v. Ampar, 37 Phil. 201 (1917)

Topic | Subtopic	Art. 13: Mitigating Circumstances (Immediate vindication of a grave offense)	GR No. & Ponente	G.R. No. L-12883
Plaintiff-Appellee	THE UNITED STATES	Defendant-appellant	CLEMENTE AMPAR
Doctrine			

FACTS

Clemente Ampar (accused of murder) - "man of three score and ten" → 70 years old
Modesto Patobo (deceased)

There was a fiesta in the barrio of Magbaboy, San Carlos, Occidental Negros

- During the serving of roast pig, Clemente Ampar went to the kitchen and asked Modesto Patobo for some of it.
- Patobo responded with *"There is no more. Come here and I will make roast pig of you"*
- As a result Clemente was enraged and provoked, so while Modesto was squatting down, the former came up behind him and struck him on the head with an ax → which led to Modesto's death the following day.

Trial Court took into consideration the qualifying circumstance of a (treachery)
But it also gave the accused the benefit of the mitigating circumstance that the act was committed in the immediate vindication of a grave offense to the one committing the felony.

ISSUE 1

Main – Substantive	W/N the court correctly applied the mitigating circumstance (of immediate vindication of a grave offense)	YES

RULING and RATIO DECIDENDI:

There was a question on whether the remarks of Patobo could properly be classed as a grave offense

The SC of Spain had two rulings before

1. It held the words *"gato que arañaba a todo el mundo,"* *"ladrones,"* and "*era tonto, como toda su familia"/"A cat that scratched everyone", "thieves", and "he was a fool, like his whole family"* **as not sufficient to justify a finding of this mitigating circumstance.**
2. But it also held the words *"tan ladron eres tu como tu padre"/ "you are as much a thief as your father"* to be a grave offense

→ Essentially, this classification shows that some remarks could be classified as a grave offense – and that if there is a grave offense, a mitigating circumstance could be availed of

The offense in consideration here would've been considered as a mere trifle to an average person, but in this case, it was evidently a serious matter to the old man as it made him the butt of the joke in the presence of a lot of people. Thus, the lower court correctly awarded the benefit of the mitigating circumstance, and correctly sentenced him to the minimum degree of the penalty provided for the crime of murder.

FINAL DECISION	Judgment of the trial court sentencing the defendant and appellant to seventeen years four months

	and on day of cadena temporal, with the accessory penalties provided by law, to indemnify the heirs of the deceased, Modesto Patobo, in the amount of one thousand pesos, and to pay the costs is affirmed, with the costs of this instance against the appellant. So ordered.

People v. Pajares, 210 SCRA 237 (1992)

Topic | Subtopic	**Art. 13: Mitigating Circumstances (Immediate vindication of a grave offense)**	**GR No. & Ponente**	**G.R. 96444**
Plaintiff-appelle	PEOPLE OF THE PHILIPPINES	**Accused-Appellant**	LEANDRO PAJARES y FLORENTINO
Doctrine	This mitigating circumstance under paragraph 5 of Article 13 of the RPC was not appreciated due to the lapse of about ten hours between the grave offense and the killing. Such an interval is more than sufficient to enable the offender to recover his serenity. The SC rejected Pajares's claim because about ten hours had passed since his brother's mauling.		

FACTS

Leandro Pajares (accused)

- **Charged and convicted** with the crime of Murder by RTC
- Also charged with the crime of frustrated homicide against Renato Perez

Diosdado Viojan (deceased)

October 11 1985 (at about 11:30 PM)

This was from Renato's testimony

- Renato Perez & Diosdado Viojan were on their way to a store in Gomez St., Paco, Manila to buy something. They were walking abreast with each other, and Viojan was at his right side and a bit ahead of him.
- **Pajares** then suddenly appeared from behind and hit Viojan with a baseball bat at the back of his head.
- Viojan ran away but fell down near the store of Alex Blas. Perez tried to help Viojan, but he too was attacked with the baseball bat hitting him at the back below the left shoulder.
- Perez then grappled with the appellants for possession of the baseball bat but failed to do so because the accused's companions (Rudy Dokling, Popy, Inggo, and Lauro Duado) mauled him until he lost consciousness.
- He was brought to PGH by Eugene Panibit and Joselito Perez where he was treated for the injuries.
- On cross examination, he said that he has known the appellant for less than a year even though they both live in zone 89.
- Also testified that him and the deceased Viojan belonged to an adversary of the group of the accused (so like opposing gangs/frat(?)/ group si Viojan+Renato kay Pajares)

Accused's defense:

- Denied the allegations of the prosecution. He said that he knew the deceased by the name "Dado" since they met once at the store before
- At the time of the incident, he was inside the store of Alex Blas with about eight (8) other people watching TV, hence he did not see who hit Diosdado Viojan and Renato Perez
- After the commotion, he went home and slept
- At about 3:30 AM the next day he was arrested inside their house.
- At police, he was coerced to admit his participation in the crime since a gun was poked at him. He signed and identified it as his own but also alleged that he signed without being allowed to read the contents thereof
- He likewise averred that during investigation the investigating policemen molested him like "pinipitik-pitik" his ears with rubber band or chopping his neck with karate chops
- On cross examination, he also testified that his house is about five (5) houses away from the store/ scene of crime, and denied any knowledge about any quarrel between his brother and the deceased Viojan.

1. Accused was found GUILTY beyond reasonable doubt for the crime of **murder** of **Diosdado Viojan by mauling him and hitting him with a baseball bat at the back of the head** +
2. GUILTY beyond reasonable doubt of the **crime of Slight Physical Injuries**

→ Hence this appeal – said the trial court gravely erred in imposing the penalty of reclusion perpetua upon him

- He said that hours before the clubbing incident, his younger brother, Roberto Pajares, was mauled by the group of diosdado Viojan. **This mauling was a big insult and something truly offending to him and his family.**
- **Hence,** the appellant's mauling of Viojan was a vindication of the grave offense committed against his family, which is a mitigating circumstance under Art 13 par 5 of the RPC
- He also claims that he was just 19 years old at the time he committed the offense, so the penalty should be lower.

OTHER TESTIMONIES (i dont think it's that relevant but ill still put here)

- **Cpl. Benigno Dong** (Zamora police department station no. 6) - testified that when they went to the house of appellant to invite the latter and his brother to the station for questioning, Pajares verbally admitted to the participation in the incident. → then he admitted that he placed Pajares under arrest after it, BUT the booking sheet and arrest report has not been accomplished yet
- **Salud Manguba** (Forensic Chemist of NBI) - testified that she examined a baseball bat for the presence of blood. She submitted the biology report that shows the absence of blood on the baseball bat.
- **Pat. Conrado G. Bustillo**s - testified that after he received a call from PGH, he went to the morgue of the said hospital to investigate the dead on arrival case of Viojan. A close examination of the body of the latter showed that he suffered a fracture at the back of the skull. Thereafter, he proceeded to the scene of the crime to make an ocular inspection where he was informed that there was another victim by the name of Renato Perez. Pat. Bustillos further testified that Renato Perez was investigated at the Homicide Section and that the latter executed a sworn statement
- **Dr Norman Torres** (resident physician at PGH) - testified that on Oct 12, 1986, Vijan was brought to the emergency room for head injury, left occipital region. The victim was in critical condition necessitating immediate surgery. Victim died while undergoing surgery.
- **Dr. Prospero Cabanayan** (legal officer of the NBI) - testified that he conducted an autopsy on the body of Viojan, indicating that the cause of death was "hemorrhage, meningeal, severe, traumatic". Also averred that a single forceful blow against the head using a blunt instrument like a baseball bat could have caused the injury

Article 13, Paragraph 5 of RPC

That the act was committed in the immediate vindication of a grave offense to the one committing the felony (delito), his spouse, ascendants, descendants, legitimate, natural, or adopted brothers or sisters, or relatives by affinity within the same degrees.

ISSUE 1

Main – Substantive	**W/N the mitigating circumstance of immediate vindication can be applied in favor of the appellant**	**NO**
	RESPONDENT/S ARGUMENTS:	
	• He said that hours before the clubbing incident, his younger brother, Roberto Pajares, was mauled by the group of diosdado Viojan. **This mauling was a big insult and something truly offending to him and his family.**	

RULING and RATIO DECIDENDI:

NO.

Re: guilt

Appellant's sole defense is alibi. He already claimed that he was inside the store, watching TV when the incident occurred. Alex Blas advised him to go home so as not to be involved in this incident. However, the latter was not presented to corroborate the appellant's testimony.

- alibi is the weakest defense an accused can concoct. In order for it to propser, it must be so convincing as to preclud any doubt that the accused could have been physically presnt at the place of the crime or its vicinity at the time of the commission.
- Facts present that appellant was within the vicinity of the scene of the crime
- There was also the positive identification of Renate Perez that Pejares was the perpetrator. This positive identification cannot be overcome by the mere denial of the accused. **This established the guilt of the accused beyond moral certainty.**

Re: immediate vindication of a grave offense

- Court did not appreciate the mitigating circumstance in his favor.
- While it may be true that appellant's brother, Roberto Pajares, was mauled by the companions of the deceased at about 11:30 AM of October 11, 1985 as shown in the entry in the Police Blotter (Exhibits "A" to "A-3", Original Records of Criminal Case No. 85-40579, pp. 30-33) and by appellant's brother himself (Exhibits "G", "Q" and "A" Nos. 7-9, Ibid., p. 219)**, it must be emphasized that there is a lapse of about ten (10) hours between said incident and the killing of Diosado Viojan.**
- **Such interval of time was more than sufficient to enable appellant to recover his serenity**
- Hence, the mitigating circumstance of immediate vindication of a grave offense cannot be appreciated in his favor.

FINAL DECISION	IN VIEW OF THE FOREGOING, the decision appealed from is AFFIRMED with modification that the indemnity is increased to P50,000.00 in accordance with the policy of this Court on the matter. SO ORDERED.

US V. HICKS (1909)

Topic | Subtopic	Art. 13: Mitigating Circumstances (Passion or obfuscation)	GR No. & Ponente	G.R. 4971 | TORRES, J.
Petitioner/s	UNITED STATES	Respondent/s	AUGUSTUS HICKS
Doctrine	The only causes which mitigate the criminal responsibility for the loss of self-control are such as originate from legitimate feelings, not those which arise from vicious, unworthy, and immoral passions.		

FACTS

- For 5yrs, Augustus Hicks (Afro-American) and Agustinal Sola (Christian Moro) illicitly lived together in Cotabato, Moro Province,
- Trouble arose between them in November 1907, causing **Agustina to leave Hicks' house**, and live with her brother-in-law, Luez Corrales.
- She, then, contracted **new relations with another named Wallace Current**, a corporal in the army, who lived with her.
- **Dec. 21, 7:30PM:** Hicks with a soldier (Lloyd Nickens) went to the house of Sola and Current. Hicks conversed with Sola, and when Current appeared, they talked and shook hands.
- Hicks: "Did I not tell you to leave this woman alone?"
  Current: "That is all right, she told me that she did not want to live with you any longer, but if she wishes, she may quit me, and you can live with her."
  Hicks: "God damn, I have made up my mind."
- Current saw Hicks drawing a revolver from his trousers' pocket and caught him.
- Hicks snatched his hand roughly away ("Don't do that.").
- **Hicks drew his revolver and fired at Sola, while Current hid himself between partitions**
- The bullet struck Sola in the left side of the breast, and she died more than an hour later.
- Edward Robinson, also in the house, rendered assistance and wrested the weapon from the hand of accused
- Hicks immediately fled and gave himself up to the chief of police.
- When once in jail, he threw **eight revolver cartridges that were with him** out of the window.
- **Hicks' allegation:**
  - When he snatched his hand back from Current, he fell backward but managed to support himself on his two hands, and when he got up again the Current threatened him with a revolver thrust into his face; he also drew his revolver, Edward Robinson caught him from behind, when his revolver went off, the bullet striking the deceased.
- **Witnesses Wallace Current, Edward Robinson, Luez Corrales, and Lloyd Nickens:** the shot that struck the deceased was not due to an accident but to a willful and premeditated act on the part of the aggressor with intent to deprive the victim of her life
- **Testimony of Charles Gatchey and Eugenio R. Whited**:
  - Hicks asked leave from Gatchey from his work, and when drinking gin with Whited, Hicks repeatedly say that her (Sola) time had come and that he would rather see her dead than in the arms of another man
- **Police** found on a table in Hicks' house several loaded cartridges, and an oil and cloth to clean the revolver.
- Hicks was charged with crime of murder and sentenced to the penalty of death and indemnity of P1,000.

ISSUE 1 **NOT THE TOPIC**

Main – Procedural	W/N the qualifying circumstance of treachery & aggravating circumstance of premeditation are present in this case.	YES
RULING and RATIO DECIDENDI:		

- Means, manners, and forms were employed in the attack that directly and specially insured the consummation of the crime without such risk to the author thereof
- Premeditation is manifest and evident by reason of open acts as by testimony of Gatchey and Whited
- Circumstances prove that **the accused, deliberately and after due reflection had resolved to kill the woman who had left him for another man,** and in order to accomplish his perverse intention with safety, notwithstanding the fact that he was already **provided with a clean and well-prepared weapon and carried other loaded cartridges** besides those already in his revolve, **entered the house in a proper manner, disguising his intention and calming her** by his apparent repose and tranquility, **behaving himself properly as he had planned to do so beforehand.**

ISSUE 2 TOPIC

Main – Procedural	**W/N the mitigating circumstance of passion or obfuscation attended this case.**	**NO**

RULING and RATIO DECIDENDI:

No mitigating circumstance is present.

- Loss of reason and self-control produced by jealousy as alleged by the defense, inasmuch as the **only causes which mitigate the criminal responsibility for the loss of self-control are such as originate from legitimate feelings, not those which arise from vicious, unworthy, and immoral passions.**

FINAL DECISION	The same should be affirmed, as we do hereby affirm it with costs, provided, however, that the death penalty shall be executed according to the law in force, and that in the event of a pardon being granted, the culprit shall suffer the accessory penalties of article 53 of the Penal Code unless the same be expressly remitted in the pardon. So ordered.

US V. DE LA CRUZ (1912)

Topic | Subtopic	**Art. 13: Mitigating Circumstances (Passion or obfuscation)**	GR No. & Ponente	**G.R. 7094 | CARSON, J.**
Petitioner/s	UNITED STATES	Respondent/s	HILARIO DE LA CRUZ
Doctrine	Catching a woman in a relationship with the accused, in her underclothes with another is a sufficient impulse in the natural and ordinary course to produce the violent passion and obfuscation which the law regards as a special reason for extenuation.		

FACTS

- In the heat of passion, Hilario De La Cruz killed the deceased who had been his *querida* (concubine/lover) upon discovering her *in flagrante* (caught in the very act) in carnal communication with a mutual acquaintance.
- **Trial Court** was of the opinion that its commission was not marked by either aggravating or extenuating circumstances.

ISSUE 1

Main – Procedural	W/N the mitigating circumstance of passion or obfuscation attended this case.	YES

RULING and RATIO DECIDENDI:

- **SC of Spain**: Having caught a woman, with whom he is living in concubinage, in her underclothes with another party as the immediate cause of the crime, by producing in the accused strong emotion which impelled him to the criminal act and even to attempt his own life, were **a sufficient impulse in the natural and ordinary course to produce the violent passion and obfuscation which the law regards as a special reason for extenuation.**
- **US v. Hicks *is not applicable in this case.*** The cause of the alleged "passion and obfuscation" of Hicks was the convict's vexation, disappointment and deliberate anger engendered by the refusal of the woman to continue to live in illicit relations with him, which **she had a perfect right to do**; his reason for killing her being merely that she had elected to leave him.
- **In this case,** the impulse upon which defendant acted and which naturally "produced passion and obfuscation" was not that the woman declined to have illicit relations with him, but **the sudden revelation that she was untrue to him, and his discovery of her in flagrante in the arms of another**.

FINAL DECISION	Modified by a finding that the commission of the crime was marked with the extenuating circumstance set out in subsection 7 of article 9, and by the reduction of the penalty of fourteen years eight months and one day of reclusion temporal to twelve years and one day of reclusion temporal, the judgment of conviction and the sentence imposed by the trial court should be and are hereby affirmed, with the costs of this instance against the appellant.

PEOPLE v. JAVIER (1999)

Topic | Subtopic	Mitigating Circumstances | Illness	GR No. & Ponente	G.R. No. 130654 | Acting C.J. Romero
Petitioner/s	People of the Philippines	Respondent/s	Eduardo Basin Javier
Doctrine	A person who was aware of his acts and has admitted to the killing cannot be appreciated the mitigating circumstance of illness.		

FACTS

Eduardo Javier was charged with the crime of **parricide** by the RTC of La Union.

1) **Eduardo** Javier and **Florentina Javier** (*deceased*) were married on December 18, 1954. In their **41 years** of marriage, they had **ten children**. They lived in Tubod, Sto. Tomas, La Union with **Alma Javier** (daughter).
2) 2-3AM June 15, 1996, **Consolacion Javier Panit**, who lived near her parents' house about **10 to 15 meters away**, heard her mother (Florentina) shout: "*Your father is going to kill me*."
3) Consolacion **rushed out of her house** and met her sister, Alma, who was weeping; she told Consolacion that **their parents were quarrelling**.
4) They then went to their **brother Manuel**'s house, about **70 to 80m away** from the parents' house.
5) Consolacion, Alma, and Manuel **proceeded to their parent's house**.
    a) Manuel entered first, who found **Florentina's lifeless body on the floor** (drenched in her **own blood**), while Eduardo was **wounded in the abdomen**.
    b) He told Consolacion to get a **tricycle** to bring their father to the hospital.
    c) Eduardo **confessed** to Manuel that he killed Florentina, and then allegedly stabbed himself.
6) **SPO1 Rotelio Pacho**, the **desk investigator** at the Sto. Tomas Police Station in La Union, received a **call for assistance** from the **barangay captain of Tugod, Sto. Tomas**, as Eduardo allegedly killed his wife.
    a) Police authorities came to the house and saw Florentina's lifeless body on the floor, covered in her own blood.
    b) He testified that Manuel told him of his father's confession; Manuel also **surrendered the bolo** covered with **blood**, which was found in the bedroom.
7) The **medical findings** show that Florentina suffered **multiple injuries** and her **neck** was **almost cut off** from her body.

Eduardo's testimony: he killed Florentina **because he could not sleep for almost a month**; he claimed that when the killing took place, **his mind went totally blank** and **he did not know what he was doing**; he claims he was **insane** at the time of the incident.

- TC **rejected** his claim of insanity, for failure to prove that he was actually insane at the time of the incident.
    - **No medical record was presented**, **nor** was a **psychiatrist** presented to validate the defense.
- Argument: he should be meted a **lower penalty** because at the time of the incident, he was suffering from **loss of sleep** for a **prolonged period of time**, which caused him to commit the crime; he also contends his **suspicion** that his wife was having an **illicit relationship** with another man. // **illness + suspicions**.

NOTE: The mitigating circumstances were **not alleged during trial**, and only during appeal.

ISSUE 1

W/N the mitigating circumstance of illness can be appreciated in this case.	**NO**
Javier Argument: prior to the incident, he had been suffering from insomnia for around a month.	
RULING and RATIO DECIDENDI:	
Requisites 1) The illness must **diminish** the **exercise** of the **will-power** of the offender. 2) Such illness should **not deprive** the offender of **consciousness** of his acts. This mitigating circumstance cannot be appreciated in this case. 1) Javier **already admitted** to the killing. 2) There was **no medical finding** presented regarding his mental condition at the time of the killing. The Court **cannot rely** on **bare allegations**, nor on **mere presumptions and conjectures**. 3) No clear and convincing evidence was shown that Javier was suffering an illness which diminished his exercise of will-power at the time of the killing. 4) In fact, it is clear that Javier was **aware** of his acts. a) He **remembered killing** her with the use of **his bolo**; he **mangled her neck twice** in the bedroom. b) He **remembers** attempting to commit **suicide**, by **wounding himself** with the **same bolo**. c) He **remembers** being brought to the **hospital**. d) Since he remembers all of this, it shows that he was in full control of his mental faculties.	

ISSUE 2 ***(not the main mitigating circumstance topic)***

W/N the mitigating circumstance of passion and obfuscation can be appreciated.	**NO**
RULING and RATIO DECIDENDI:	
Requisites 1) There should be an act both unlawful and sufficient to produce such condition of mind; 2) The said act which produced the obfuscation was not far removed from the commission of the crime by a considerable length of time, during which the perpetrator might recover his moral equanimity. These elements were **not proven to be present** in this case. Javier even stated in his testimony that **he was not jealous of his wife**. ● He, in his testimony, did not account how he killed his wife nor did he explain the cause why he was prompted to kill his wife.	

FINAL DECISION	The RTC decision is affirmed with modification that accused-appellant should suffer the penalty of *reclusion perpetua*.

Canta v. People (2001)

Topic | Subtopic	Analogous circumstances	GR No. & Ponente	MENDOZA, J - G.R. No. 140937
Petitioner/s	EXUPERANCIO CANTA	Respondent/s	PEOPLE OF THE PHILIPPINES
Doctrine	Surrender is considered voluntary and mitigating if done before an actual arrest takes place.		

FACTS

TLDR: Canta stole Narciso's cow while it was in the custody of another, by pretending the cow was his own lost cattle. He falsified a certificate of ownership, and exhausted means to make his story believable, though he surrendered the cow to the municipal hall even without a charge against him yet.

Narciso Gabriel acquired a newborn cow from his half-sister Erlinda Monter **in Mar 10, 1984.**
Erlinda took care of the cow for some time, then Narciso gave custody to...

- Oct 24, 1984 - Mar 17, 1985 → Generoso Cabonce
- May 17, 1985 to Mar 2, 1986 → Maria Tura
- **Mar 3 - 14, 1986** → Gardenio Agapay
    - **Mar 13, 1986:** Agapay took the cow to graze in a mountain 40m away from his hut**. It was gone the next morning (14th).**
    - He found hoof prints leading to the house of Filomeno Vallejos who told Agapay that **Exuperancio Canta took the cow**.

Canta admitted to taking the cow but **claimed that it was his, and that it was lost on Dec. 3, 1985.** Canta claimed he got the cow **from an agreement** with Pat. Villanueva that Canta will get a baby cow of an older cow he had to care for, if there were 2 offsprings.

- The cow in question is his share. It was allegedly born in December 1985, and in December 1986 (a year after).
- Narciso showed his own cert. of ownership dated Mar. 9, 1986, describing the 2yr old female cow that all 4 caretakers identified as the one they took care of.

In Mar 14, 1986, his uncle told him he saw Canta's cow in Agapay's care.

- Canta tested to see if this was indeed his cow by bringing its mother and checking if the cow in question would suckle from the mother cow. It did, so he concluded it was his.
- He brought the cow to his father Florentino.
- Maria Tura tried to get the cow as told by Narciso, but Florentino said Narciso should come so they can settle who owns the cow. (Narciso didn't come.)
- **Canta brought the cow to the municipal hall as instructed by his fathe**r,

Canta showed **2 certificates of ownership** dated Feb 27, 1985 and Mar. 17, 1986.

- The certificate dated on Feb 27 was denied by municipal treasurer, and it was apparently issued by Franklin Telen, the **janitor at the treasurer's office who was also Canta's friend**.
- Telen testified that the certificate was initially dated Mar. 24, 1986, **then <u>he antedated it to Feb 27, 1985 upon Canta's insistence that the cow was really his</u>**.

RTC Leyte found Canta guilty of violating P.D. No. 533 (**Anti-Cattle Rustling Law of 1974**), sentenced to minimum of 10yrs 1day of prision mayor to 12yrs 5mos 11days of reclusion temporal medium as maximum.

ISSUE 1

Main – Substantive	WN there was proof beyond reasonable doubt of Canta's criminal intent in taking the disputed cow	YES

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
First, Canta had good faith in taking the cow: 1. The disputed cow suckling from the mother is proof of ownership 2. The cowlicks of the subject cow match those of the cow in his	

certificate of ownership 3. He immediately turned over the cow to the brgy captain after taking it, and to the police after dispute arose 4. He sued Narciso for violating PD 533 Second, even if his Cert of Ownership wasnt in order, he was not criminally liable and it was a mistake of fact.	

RULING and RATIO DECIDENDI:

The crime is committed if the following elements concur:
(1) a large cattle is taken;
(2) it belongs to another;
(3) the taking is done without the consent of the owner;
(4) the taking is done by any means, methods or scheme;
(5) the taking is with or without intent to gain; and
(6) the taking is accomplished with or without violence or intimidation against person or force upon things.

All are present in the case.

1. **The cow belongs to Narciso**.
    a. The mother cow argument doesn't hold, since cows frequently latch onto alien cows anyway.
2. **Canta took the cow w/o consent**
3. **Canta falsified his certificate of ownership of large cattle**
    a. Telen admitted he antedated the cert upon Canta's insistence
    b. This largely negates his claim of good faith and honest mistake.
4. **Canta adopted schemes to take the cow, manifesting intent to gain**
    a. The argument on the cowlicks has no value. Naturally, Canta would make sure the drawings match the cow after he took it from Agapay
5. **No violence against persons or force upon things attended the crime**.

LEGAL BASES

P.D. No. 533, §2(c) defines cattle-rustling as
. . . the taking away by any means, methods or scheme, without the consent of the owner/raiser, of any of the abovementioned animals whether or not for profit or gain, or whether committed with or without violence against or intimidation of any person or force upon things.

ISSUE 2

Main – Substantive	**WN there is a mitigating circumstance analogous to voluntary surrender**	**YES**

RULING and RATIO DECIDENDI:

Canta was not actually arrested, and no complaint was filed yet when he surrendered the cow to the authorities / the municipal hall.

There being one mitigating circumstance and no aggravating circumstance in the commission of the crime, the penalty to be imposed in this case should be fixed in its minimum period. Applying the Indeterminate Sentence Law, in relation to Art. 64 of the Revised Penal Code, petitioner should be sentenced to an indeterminate penalty, the minimum of which is within the range of the penalty next lower in degree, i.e., prision correccional maximum to prision mayor medium, and the maximum of which is prision mayor in its maximum period.

FINAL	WHEREFORE, the decision of the Court of Appeals is AFFIRMED, with the modification that

DECISION	petitioner Exuperancio Canta is hereby SENTENCED to suffer a prison term of four (4) years and two (2) months of prision correccional maximum, as minimum, to ten (10) years and one (1) day of prision mayor maximum, as maximum. SO ORDERED.

Reyes Commentary – Article 14 (Aggravating Circumstances)

- Imposes a **heavier penalty** (up to the maximum).
- To be appreciated, it must be alleged in the information/complaint.
- If not alleged, it can be considered in the **award for damages**.

Paragraph 1 – Advantage of one's public position.

- The position **must actually be taken advantage of**.
- *People v. Ural*: he was able to commit the act because he was a police officer who had access to the cell where the prisoner was confined.
- If it was not for his public position/authority, he would not have been able to commit the crime.
- This also includes **failure in official duties**.
- This is **not aggravating** if the public position is an **integral element of**, or **inherent**, to the offense.
    - E.g. in **malversation** or **falsification of a document**.

Paragraph 2 – The crime is committed <u>in contempt of</u> or <u>with insult</u> to the public authorities.

1) The public authority is **engaged** in the **exercise** of his **functions**;
2) The public authority **is not the victim**;
3) The offender **knows** him to be a public authority;
4) His presence **did not prevent** the offender from committing the crime.

- A "public authority" or a "person in authority." This **does not include "agents" of public authorities**.

Paragraph 3 – With insult or in disregard of respect due to the offended party on account of RANK, AGE, or SEX; crime is committed in the DWELLING of the offended party.

- There must be **deliberate intent** to insult or offend the person due to his rank, sex, or age.

1) Disregard of **rank**.
    a) When the victim is of a **higher social position** than that of the offender.
    b) Ex: the killing of a **judge** because he was strict, and because of resentment that the accused harbored against him.
2) Disregard of **age**.
    a) Applies in cases where the victim is of **tender age** and **old age**.
3) Disregard of the **female sex**.
    a) This is **not applicable** in cases of **passion/obfuscation**, when there **exists a relationship** between the offender and offended (ex. they are divorced).
    b) This is **absorbed** in **treachery**.
4) **Dwelling**
    a) The **building** or **structure** that is **exclusively** used for **rest and comfort**.
    b) This includes **dependencies**, the **foot of the staircase**, and the **enclosure** under the house.
    c) Why? The home is a **sacred place**; it is a **sanctuary worthy of respect**.
    d) This is **not appreciated** when the dwelling owner **gave provocation** (that is in ***close relation*** to the commission of the crime; in close proximity).
        i) If the provocation is done in close proximity to when the crime was committed = no AC. If it was **not done in close proximity**, this can be **appreciated**.
    e) Applies even if the **offender did not enter the dwelling**, but the **victim was inside** the dwelling.
    f) Applies even if the killing happened **outside the dwelling**, but the crime **began inside** the dwelling.
    g) Applies in **abduction** and **illegal detention**.

h) In **adultery**: applies even if both the husband and wife live together; **however, if the paramour also lives in the dwelling, this is not appreciated**.

PEOPLE V. RODIL (1981)

Topic | Subtopic	Art. 14: Aggravating Circumstances (Insult to Public Authorities)	GR No. & Ponente	L-35156 & J. Makasiar
Petitioner/s	People of the Philippines	Respondent/s	Floro Rodil
Doctrine	There is an aggravating circumstance (insult to public authorities) when the crime is committed in the presence of the Chief of Police, who is a public authority.		

FACTS

1 PM of April 24, 1971: Victim GUILLERMO MASANA w/ Philippine Constabulary soldier VIRGILIO FIDEL, Philippine Coast Guard serviceman RICARDO LIGSA, and Patrolman FELIX MOJICA of Indang, Cavite were having lunch inside a restaurant in front of the Indang market

- While eating, they saw RODIL blowing his whistle outside the restaurant → Lt. MASANA approached RODIL in civilian clothing (w/ FIDEL) and asked him if he had a license of the gun on his waist
- Instead of answering, RODIL moved 1 step backward and attempted to draw his gun → FIDEL immediately grabbed RODIL's gun from his waist and gave it to Lt. MASANA, then MASANA told RODIL to go inside the restaurant, occupied a table separate from the other 3 companions, then MASANA placed RODIL's gun on the table inside the restaurant
- MASANA then pulled out a piece of coupon bond paper and wrote the receipt for the gun, then asked RODIL to countersign → RODIL refused to do so, and asked MASANA to instead return the gun to him → MASANA rejected, told him they would talk over the matter in the municipal building
- When MASANA was about to stand, RODIL pulled out a double-bladed dagger and stabbed MASANA several times (on chest and stomach) = MASANA died several hours later

While stabbing happened, the other 3 companions were all seated at a separate table about 1 ½ meters away from MASANA and RODIL's table → the 3 stood up to assist MASANA but Chief of Police PRIMO PANALIGAN who was also at the restaurant was quicker than any of them and embraced/grabbed RODIL from behind and wrested the dagger from RODIL

- After, Chief of Police brought the accused to the municipal building of Indang, Cavite while companions of MASANA brought him to V. Luna Hospital in QC where he died

RODIL'S SIDE: Rodil and his wife were at the restaurant for lunch from Mandaluyog, Rizal → saw 3 persons eating and to his left saw MASANA drinking beer alone → MASANA approached him, asked him if he was FLORO RODIL and if he was a member of the anti-smuggling unit (RODIL said yes) and so MASANA invited him to join his table

- During the conversation, MASANA told RODIL to not report any matter about smuggling to the PC → RODIL said he didn't report → MASANA asked RODIL for his ID, which RODIL showed w/c his picture and that he was an officer of the Anti-Communist League of the PH
- MASANA said the ID was fake and tried to take it away → RODIL refused to give his ID card, so MASANA got mad but RODIL still refused → MASANA pulled a gun from his waist and hit RODIL on the head w/ gun handle 2x → when MASANA was about to hit him for a 3rd time, RODIL parried the right hand of MASANA, pulled his dagger and stabbed the officer 2-3 times and pushed him away and ran out of the hospital
    - He ran to the municipal building b/c intended to surrender, but met Chief of Police who asked him why he was bloody → was accompanied by a policeman to a clinic for first aid, brought back tot he municipal building and detained before being transferred to PC HQ

ISSUE 1

Side – Substantive	W/N Rodil was acting in self-defense	NO
PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**	

	After he refused to give his ID, Masana hit him with the handle of the gun
RULING and RATIO DECIDENDI:	
<u>NO:</u> unclear how refusing to give ID provoked MASANA to the extent of initiating aggression knowing RODIL was already unarmed, and agent of authority is not authorized to use force except in extreme cases. Further, MASANA was unarmed because he was on leave and in civilian clothing. HENCE, RODIL had every reason to be restful and enraged because gun was not returned to him and because he might be prosecuted = so the accused likely initiated the aggression, rather than MASANA. The claim of being hit 2x also improbable because MASANA was right-handed → before the stabbing, the 2 were facing each other so RODIL wouldn't be hit on the right side of his head/right ear lobe (where the scars were) b/c it should've been on the left side of the body. Moreover, MASANA parried the thrust of RODIL with such force that RODIL bumped his head on the edge of the table causing blood to ooze from the injury on his head according to the testimony. NOT from the 2x hit on the head. He also never informed the Chief of Police of self-defense; he only made the claim before the municipal judge. No credence b/c it was clearly an afterthought, versus the straightforward testimonies of the witnesses.	
LEGAL BASES	

ISSUE 2

Side – Substantive	**W/N the crime was homicide or murder**	**Homicide**
PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**	
RULING and RATIO DECIDENDI:		
<u>Homicide, not murder</u> because no treachery (no means directly and specially tending to insure the killing without risk to himself). Also not a complex crime of homicide with assault upon an agent of a person in authority b/c victim was in civilian clothing so does not allege that RODIL knew he was an agent of a person in authority — it would have been essential that RODIL clearly had knowledge to be a complex crime.		
LEGAL BASES		

ISSUE 3

Side – Substantive	**W/N there was an aggravating circumstance**	**YES**
PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**	

RULING and RATIO DECIDENDI:
YES: obviously MASANA identified himself as a PC officer to the accused who was merely a member of the Anti-Smuggling Unit = RODIL is inferior in rank and status to MASANA. People having a higher rank deserve to be respected, so rank may be an aggravating circumstance when there is a difference in social/official status. (If it were complex crime of murder with assault and not merely murder, then the aggravating circumstance cannot be appreciated b/c it was inherent in the assault — but here, he was only accused of murder so aggravating circumstance should be considered.) In this case, even if a PC lieutenant is not a public authority (which Court says must be reexamined), there was a chief of police who *is* a public authority or person in authority anyway.
LEGAL BASES

FINAL DECISION	WHEREFORE, HAVING BEEN FOUND GUILTY BEYOND REASONABLE DOUBT OF HOMICIDE AGGRAVATED BY CONTEMPT FOR OR INSULT TO A PUBLIC AUTHORITY OR DISREGARD OF THE RESPECT DUE THE OFFENDED PARTY ON ACCOUNT OF HIS RANK, APPELLANT FLORO RODIL IS HEREBY SENTENCED TO SUFFER AN INDETERMINATE TERM OF IMPRISONMENT RANGING FROM 12 YEARS OF PRISION MAYOR AS MINIMUM TO 20 YEARS OF RECLUSION TEMPORAL AS MAXIMUM. THUS MODIFIED, THE JUDGMENT APPEALED FROM IS HEREBY AFFIRMED IN ALL OTHER RESPECTS.

PEOPLE v. DANIEL (1978)

Topic | Subtopic	Aggravating circumstances | Dwelling	GR No. & Ponente	G.R. No. L-40330 | J. Munoz Palma
Petitioner/s	People of the Philippines	Respondent/s	Amado Daniel "Amado Ato"
Doctrine	For the aggravating circumstance of dwelling to be appreciated, the place of dwelling need not be one that the victim owns. Be he a lessee, a boarder, or a bed-spacer, the place is his **home** the sanctity of which the law seeks to protect and uphold.		

FACTS

Margarita Paleng accused **Amado Daniel** of **rape**. Armed with a **sharp instrument** and by means of **force** and **intimidation**, Amado had **carnal knowledge** of Margarita **in her own room**; Baguio City.

Margarita is a **13yo** native of Balangabang, Tublay, Mountain Province. At the time of the incident, she was in a **boarding house**; she was a **first year HS student** in Baguio Eastern High School.

1) At about 3PM on September 20, 1965, she arrived in Tublay using a **Dangwa bus**. Since it was **raining hard** and the bus was **parked** several meters away from the bus station, she **waited** inside the bus.
2) After around **3mins**, Daniel went to her and started **molesting** her by asking for her name and getting her bag. Margarita tried to get the **attention** of the bus driver and conductor, but they were **afraid** of Daniel.
3) Despite the rain, she **left the bus** and rode a **jeep**, parked around **100m away**. Daniel **followed her closely**, and when the jeep started to go, **Daniel also rode and sat beside her**.
4) When the jeep reached **Guisad**, she exited the jeep, and Daniel followed suit. He tried to carry her bag, but despite her not allowing him, **he was adamant in following her**.
5) When she reached her boarding house, **she opened the door**, and when she was about to **close** it, Daniel **dashed in and closed the door behind him**.
6) He pulled an **8in dagger** out and **threatened** her: "*If you talk, I will kill you*."
7) Margarita was **stunned in silence** because of her **fear**.
8) Daniel then **held her hair** with his **left hand** and **forced** her to lie down in bed.
9) With his **left hand**, he placed a **handkerchief** on Margarita's **mouth**; with his **right hand**, he held the **dagger** on Margarita's **neck**.
10) Daniel **unbuttoned** his **pants** and put the **dagger** down on the **bed**.
11) Margarita **tried** to **break free** from Daniel, but to no avail. She is 4'8 and weighed 95-100 pounds, while Daniel is 5'7 and weighed about 126 pounds; he was a **22yo** farmer.
12) Daniel held his penis, used his thigh to separate her legs, tried, but failed, to remove her panty.
13) He guided his penis and inserted it inside the vagina after prying open the part of her panty covering up her private part. **He succeeded in having carnal knowledge of Margarita**.
14) Margarita **lost consciousness**; when she **recovered/awoke**, Daniel was already **gone**.
15) In the **following morning**, Margarita's father came over; she told him what happened. He brought her to the **Baguio General Hospital** where she was examined. They then went to the **Police Department** and were accompanied by the Chief of Police to the **Health Center**.
16) Wounds: hymen, vaginal orifice, vaginal wall-tight and vaginal folds, vaginal smear.
17) **Dr. Micu** concluded that Margarita was a **virgin** before the rape incident.

Daniel Defense: they were **acquainted**, having rode the bus together often; the incident was with her **consent**, and that it was the **second time** he had carnal knowledge with her (the first occurred in a **shack**); he **promised** Margarita that **he would marry her**. **HOWEVER, the Court finds:**

1) No reason for Margarita to fabricate her story; this would only bring **embarrassment** to her and her family.
2) As an almost 13yo (12 years, 10 months), marriage was impossible as she was not of marriageable age. And thus the insinuation that this complaint was filed because Daniel had not married the girl, despite his promise, is **preposterous**.
3) Even if she was in a **public place**, she **did not ask for help** because Daniel was not doing anything against

her; she would not have thought that he had intentions to rape her.

4) When she got to her boarding house, she went **straight to her room**, when Daniel barged in. She was simply **taken by surprise** by the forced entry, and thus she was not able to ask for help. She assumed a **silent, fearful attitude**, which is normal for 12yo girls like Margarita.
5) A lie detector is **not conclusive**. It depends on the circumstances of when it was taken.

MAIN ISSUE

W/N the aggravating circumstance of Dwelling can be appreciated in this case.	**YES**
RULING and RATIO DECIDENDI:	
Although Margarita was merely **renting a bedspace** in a boarding house, her room constituted for all intents and purposes a "dwelling" as used in Article 14(3) of the RPC. It is **not necessary** under the law for the victim to **own** the place where he lives. Dwelling must be a **building** or **structure** that is used exclusively for **rest and comfort**.	
LEGAL BASIS	
Article 14(3) of the Revised Penal Code: The following are aggravating circumstances: 3. That the act be committed with insult or in disregard of the respect due to the offended party on account of his rank, age, or sex, or that it be committed in the dwelling of the offended party, if the latter has not given provocation.	

ISSUE

W/N Daniel is guilty of rape.	**YES**
RULING and RATIO DECIDENDI:	
In rape, the **force need not be irresistible**. It must merely be **sufficient** for the accused to consummate his evil purpose. Rape is committed when **intimidation** is used on the victim and the latter **submits herself against** her **will** because of **fear** for her **life** and personal **safety**. In this case, **Daniel was armed with a dagger and threatened her life**. This **naturally weakened any resistance Margarita could have mustered up**.	

FINAL DECISION	PREMISES CONSIDERED, We **affirm** the judgment of **conviction** of Amado Daniel for the crime of **rape** as charged, and We sentence him to suffer the penalty of **reclusion perpetua** and order him to indemnify Margarita Paleng by way of moral damages in the amount of Twelve Thousand Pesos (P12,000.00) and pay the costs.

PEOPLE V. BERMAS (1999)

Topic | Subtopic	Art. 14: Aggravating Circumstances (Nighttime)	GR No. & Ponente	G.R. No. L-76416 | Ynares-Santiago, J.
Petitioner/s	People of the Philippines	Respondent/s	Rustom Bermas y Betito and Galma Arcilla
Doctrine	Nighttime can be an aggravating circumstance if the offender purposely sought it out or took advantage of it to facilitate the crime or ensure immunity from capture. However, it is absorbed in cases of treachery, meaning it cannot be counted separately as an additional/separate aggravating circumstance.		

FACTS

Victims: Catalino Bellen, Arturo Abion, Teodoro Cas, Antonio Abion, Renato Abion, Jesus Lotera and Expedito Bonaobra

- Catalino and Teodoro were killed, while Arturo was mortally wounded. Renato, Jesus, and Expedito sustained serious gunshot wounds, which too would have caused the deaths of Jesus and Expedito had it not been for the intervention of timely medical assistance.
- They were tending to their fishing nets when **bursts of gunfire** from a **high-powered automatic rifle** shattered the air

Accused: **Rustom Bermas** (a Brgy Councilman + Spotter w/ 8-hour shifts at a local mining firm) **and one John Doe** (who was later identified as **CIC Galma Arcilla** (of the 255th Philippine Constabulary Company of the AFP stationed at Cale, Tiwi, Albay)

- Arcilla knew Bermas and Bonaobra. He also had a previous altercation with Santiago Abion, Jr.
- Bermas was found guilty beyond reasonable doubt for **Murder with Multiple Frustrated Murder** and **Attempted Murder.** Meanwhile, Arcilla was found guilty beyond reasonable doubt of Multiple Murder **with Multiple Frustrated Murder.** Both were sentenced to **reclusion perpetua.**

PROSECUTION'S VERSION OF THE "NAMANDAY MASSACRE":

April 20, 1987 at around **8:30 in the evening** at the **sea of Namanday, Albay**:

- Bonaobra (brgy captain of Cawayan) and the other victims were on board a fishing boat **(*Sagrada Familia)*,** owned by **Jose Abion.** They intended to catch fish that night and brought with them **2 pressure gas lamps, a fishing net, rope, and a pole used for the net.**
- Subsequently, a small paddled boat *(sibiran or sibid-sibid)* with **two men on board** approached the fishing boat. The *sibiran* proceeded to the prow of the fishing boat and went around it **four times.**
    - As the *sibiran* circled the fishing boat the second time, Bonaobra and Renato recognized **Bermas** as the one **paddling the sibiran.**
    - Thereupon, Bonaobra ordered Arturo Abion to remove the shade of the gas lamp so that they could recognize his campanion. After the shade was removed, the sibiran went around the fishing boat two more times. **Bermas' companion could not be recognized because his face was covered with a mask and only his eyes could be seen.**
- Bonaobra asked Bermas if he and his companion were going to catch fish,and he said yes. Bermas also told him that they were looking for somebody, and asked him who owned the fishing boat. Bonaobra informed him that it was Jose Abion's. Bermas and his companion then pretended to paddle away.
- **When the *sibiran* was about 7 meters away from the fishing boat, Bermas' companion fired his armalite rifle at Bonaobra and his companions.**
    - They heard 2 volleys fired at them, and they laid down but could not avoid the attack. The fishing boat and one of the pressure gas lamps was hit.
    - After 5 minutes, Arturo Abion (Renato's father) said that one of them must find a way for them to leave that place. Renato crawled towards the prow of the fishing boat and turned off the remaining pressure gas lamp. He then loosened the rope tied to the boat's anchor. After that, he lost consciousness.
- The fishing boat was carried away by the currents towards the **shore of Galicia, Rapu-Rapu.** Jose, Rudy and Santiago Abion found them the following morning.
    - Arturo Abion and Catalino Bellen were already dead
    - Antonio Abion, Renato Abion, Jesus Lotera and Bonaobra were seriously wounded
    - Teodoro Cas' body was missing (later found on April 23, 1985 in Guinangayan, Albay)
- Rudy and Jose transferred those injured to a *kumpit* (a small fishing boat run by a motor) and brought them to Albay Provincial Hospital. On their way, **they asked Bonaobra who shot them, and he answered that it was Bermas and his companion.**

- Meanwhile, Santiago Abion brought the fishing boat to Sitio Cagbulacao where Station Commander Saliao took the bodies of Arturo and Bellen for autopsy. When Saliao left, Santiago emptied the fishing boat of sea water.
    - In the process, he found **2 slugs inside the fishing boat**, one already deformed and the other still round in shape. He took the slugs and gave them to his brother Jose 5 days later, who brought both to the police station.
- Autopsy results and causes of death:
    - Arturo Abion = shock due to hemorrhage of wound in left lower lateral thigh
    - Catalino Bellen = brain injury; hemorrhage secondary to stabbed wound (approximately 6 cm. left lower back, with intestines protruding)
    - Teodoro Cas = severe brain injuries

BERMAS' VERSION:

- On the day of the incident, he reported for work at 6:00AM. After his shift, he met with his friends and they decided to drink.
- They started drinking at past 5:00PM at his house, and they left past 7:00PM to buy at Mecaller's store, where they stayed until 9:00PM.
- From the store, they proceeded to a boat or *sampan* which was docked at the pier, where they consumed the whiskey they bought. While they were there, nobody went out to buy any more liquor. **They stayed there until past 1:00 AM, after which they parted ways.**

ARCILLA'S VERSION:

- As a member of the AFP, he was issued an **Armalite M-16, Cal. 5.56 automatic rifle** by the Philippine Constabulary (PC) through Sgt. Madrilejos. At the time of the incident, **his rifle was with Sgt. Lodor,** to whom he usually entrusts it whenever he goes home to see his family.
    - **He allegedly went home on April 17, 1985 because his wife was sick, and he stayed there until April 24.**
- On the day of the incident, at around 8:00 PM, he was at his house in Santicon, San Antonio, Malilipot, Albay, **drinking with his friends** Benito Bobiles, Filoteo Bobiles, and Florencio Berchez to commemorate the death anniversary of Benito's father
    - They celebrated in Arcilla's house because he could not leave since he had to tend to his sick wife and do household chores
    - The only times Arcilla and his companions went out during the drinking session were when they had to attend to their personal needs
    - They drank from 6-11PM, after which his visitors went home and he went to bed
- He insists that he is innocent because:
    - None of the 12 prosecution witnesses identified him as the masked man who fired at the victims
    - The automatic rifle used in the felony is not the firearm issued to him
    - He was not in possession of the rifle at the time of the commission of the crime
    - Bermas, together with Vibal and Dayto, threatened the Abion Family with death before the commission of the crime
    - Bermas has a brother who is a member of the PC as well as a constant companion who are both PC soldiers similarly armed with automatic Armalite rifles, and such firearms could have been the ones used by Bermas and his masked companion in the perpetration of the felony

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TESTIMONIES:

- **Vicente De Vera** (ballistician of the Philippine Constabulary Crime Laboratory Service)
    - The 2 fired bullets recovered from the fishing boat were fired from the Armalite rifle M16
    - Sgt. Marilejos further testified that **a rifle caliber M16 with the same serial number had been issued to Galma Arcilla**
- **Santiago Albion**
    - Oct 13, 1984 - He and his wife, Nelly, went to a public dance at Namanday, Bacacay, Albay, where he saw Bermas, Arcilla, and Ursabin drinking gin about 5 arms length away
        - *The prosecution also narrated that Arcilla was involved in a fistflight, where he boxed Leopoldo Abion on the chest. When Daniel Abion (his brother) arrived, Arcilla went out of the dance hall. However, Daniel was able to hit Arcilla's face with a piece of wood.*
    - The following day, Daniel went to Santiago's house, who warned him that he was being suspected by Arcilla as the person who had mauled him. However, **Daniel admitted that he was the one who mauled Arcilla after the latter had beaten up Leopoldo.**

- Oct 15, 1984 - 6 armed men barged into Santiago's house and asked Nelly (who was then pregnant) where her husband was. Nelly was so scared that she suffered a miscarriage.
    - Santiago was not there because he went to the house of his brother Rudy. However, he saw the armed men because he peeped through the window, and he recognized one of them to be Ursabin.
- April 4, 1985 - Santiago bought cigarettes, and on the way home, he saw Bermas, Daybo, and Sibal. He passed by his cousin (Salvador's) house, and later, the three individuals entered the house. **Bermas pounded his palm on the table, hit the wall, pointed his finger at Santiago, and uttered *"babalonan co an mga baraca pag oli co"* (I will bring the baraca when I go home)**
    - "Baraca" is the appellation of the Abion family

- **Cpl. Teodoro Berango**
    - He was informed that Arcilla and Bermas had a drinking spree on the day of the crime at Liguan, Rapu-Rapu, Albay, which is only 2 kilometers away from Namanday, Bacacay, Albay.
- **Gracia Dagcel**
    - Sometime in April 1989, Capt. Mapalo and other persons went to her house at Liguan, Rapu-Rapu, Albay to apprehend her for illegal possession of firearms. On that occasion, Arcilla (then a constable in the Philippine Constabulary) wore a mask.
- **Sgt. Rodolfo Madrilejos**
    - The gun issued to Arcilla had the same parts intact, and was never fired after it was retrieved and taken from Sgt. Lodor

(the discussion re: nighttime is in issue #3)

ISSUE 1

Main – Substantive	**W/N Arcilla is innocent**	**NO**

RULING and RATIO DECIDENDI:

<u>All the circumstances clearly yield a fair and reasonable conclusion pointing to Arcilla as the malefactor who fired the high-powered automatic rifle at the victims.</u>

The evidence is replete with enough proven details to sustain Arcilla's guilt of the crime of murder on the basis of circumstantial evidence.

- While the witnesses may not have identified the masked man who fired the automatic rifle, direct evidence is not the only matrix whence a trial court may draw its conclusions and findings of guilt.
- A judgment of conviction based on circumstantial evidence can be sustained when the circumstances form an unbroken chain which leads to a fair and reasonable conclusion pointing to the accused, to the exclusion of all others, as the malefactor

TRIAL COURT FINDINGS:

- **After the fist fight during the dance in Namanday, Arcilla kept on looking for an opportunity of revenge against the Abions**
    - **<u>Bermas was Arcilla's usual confederate and companion.</u>** During that night, he arrived to get even with the Abions, but nothing happened because Daniel had already left.
- Arcilla and a group of men forced open the window of the house of Santiago Abion with the tip of a gun
- Being a PC enlisted man with authority to possess a firearm, and a healthy and well-built fellow in the prime of his life, he will never allow himself to be outdone and controlled by anybody, such as a simple family of fishermen of the same barangay as him
    - He was also a trained sharpshooter as a member of the PC Command
- **At the time of the multiple killing using an Armalite rifle, he availed of the mantle of darkness to mask himself beyond recognition and look for the family with whom he sought revenge. Thus, before firing, he asserted for himself that, indeed, the Albions were there.**
    - It was clearly shown during and immediately before the commission of the crime when the accused himself asked the people on the boat that they were looking for somebody else and inquired further as to who owns the 'basnigan' in question. When he was informed that it was owned by Jose Abion, the outburst of bullets from the armalite of the accused commenced, inflicting deaths and injuries upon the victims.

ON THE FIREARM:

- He alleged that an Armalite Caliber 5.56 with a different serial number was the one under his custody, but this was belied by the records and testimony of the issuing officer (what was indeed issued to him was the Armalite rifle M-16)
- He said that he entrusted the gun to Sgt. Lodor at his house, rather than at the headquarters, which is only 100 meters away from his place of work and is a safer place to keep the rifle
    - As per Arcilla's testimony, it was Sgt. Lodor who informed him that he was a suspect in the crime and that the armalite rifle issued to him was the one involved during the shooting. Hence, if it were true that the same gun was deposited and was in the custody of Sgt. Lodor, the latter would not confront him.
- Of the 375 ammunitions issued to him, he was only able to return 191. He attributed the missing 184 to an alleged encounter with dissidents at Bantayan, Tabaco, Albay, which was not borne out by records nor supported by witnesses from the 255th PC Company.
    - Records show that the ammunitions were left in a locker and supposed to be returned to the issuing officer when required
- The accused further maintained that some parts of the armalite rifle issued to him were replaced by other parts coming from a different armalite to tamper the evidence leading to his involvement in the crime. However, he failed to show or present any person interested for that matter.

<u>On the date in question, Arcilla was on leave.</u>

- He presented an alibi that from 6-11PM, he was in his barangay attending to his sick wife and was hosting a drinking party at his house, which was vouched for by his neighbor friends
- **However, he has not shown proof that it would be physically impossible for him to be at Namanday where the offense was committed, as it could be easily traveled via a motorboat within a few hours, if need be.**

He also said he had never gone to Liguan, Rapu-Rapu, Albay, except once in 1982, but this was disproved by abundant evidence that he has been seen before, during, and after the incident in this place with Bermas and other companions drinking liquor. He even led a raiding party to serve a search warrant to the family of Gracia Estevez Dagcel, who testified that Arcilla and other military men served her a search warrant, and <u>he was wearing a mask with a hood for purposes of avoiding recognition for himself (but he was recognized on that occasion).</u>

- In all these pretensions, the Court ultimately found that the accused had committed abundant falsities in his claim to exculpate himself as shown by his perjured testimonies in Court under oath

ISSUE 2

Main – Substantive	**W/N Bermas is inncocent**	**NO**

RESPONDENT/S ARGUMENTS:

In professing his innocence, he claims that he has no motive to kill the victims because he has no quarrel with the Abion Family and that conspiracy was not proven

RULING and RATIO DECIDENDI:

The trial court gave credence to Bonaobra and Renato Abion's assertion that they saw Bermas paddling the *sibid-sibid* which approached the prow of their basnigan.

Moreover, it equally bears stressing that **proof of ill-motive to commit the crime becomes irrelevant with the positive identification of the accused**. Therefore, attributing the motive of vengeance is unnecessary where he was positively identified as one of the malefactors. Nonetheless, even if the Court delved into the motive, there would be evidence:

- Bermas, together with Vibal and Dayto, barged into Santiago Abion's house where he pounded the table, hit the wall and pointed his finger at Santiago uttering the threat "Babalonan co an mga baraca pag oli co."
- **The threat came to fruition several days later on that fateful night when the victims were mercilessly strafed with an Armalite rifle by Arcilla while they were on board their basnigan**

He further insists that "his paddling of the banca to and from the scene of the incident is insufficient proof of conspiracy."

- In conspiracy, direct proof of a previous agreement to commit a crime is not necessary; it may be deduced from the mode and manner in which the offense was perpetrated, or inferred from the acts of the accused
- Records show that with the armed Arcilla on board, Bermas maneuvered their sibid-sibid up close to the victims' basnigan. He watched in stolid silence, nary raising a whimper of protest even when Arcilla commenced firing at the victims. After the carnage, he calmly paddled the banca away from the crime scene.
- *A person found in conspiracy with the actual perpetrator of the crime by performing specific acts with such closeness*

*and coordination as the one who executed the criminal act is **equally guilty as the latter,** because in the eyes of the law, each conspirator is a co-principal and is equally guilty with the other members of the plot.*

ISSUE 3

Main – Substantive	**W/N the perpetration of the felonies was qualified by treachery and evident premeditation**	**YES (only for treachery)**

RULING and RATIO DECIDENDI:

A deliberate, unexpected, and sudden attack under circumstances which render the hapless victim unable and unprepared to defend himself or to afford him any chance to escape by reason of the suddenness and severity of the assault constitutes treachery (alevosia).

[RELEVANT TO THE TOPIC]

The mere fact that the offense was committed at night will not suffice to sustain a finding of nocturnity. By and of itself, nighttime is not an aggravating circumstance. It becomes so only when: **it is specially sought by the offender; or it was taken advantage of by him; or it facilitates the commission of the crime by insuring the offender's immunity from capture.**

In this case, other than the time of the occurrence of the felony, **nothing else suggests that it was consciously resorted to by accused-appellants to facilitate the commission of the crime or that it was availed of for the purpose of impunity.**

- Records show that the scene of the crime was well-illuminated by 2 pressure gas lamps that were in the basnigan, and that Bonaobra even ordered Arturo Albion to remove the shade (pantalla) of the gas lamp so they could recognize Bermas' companion.

Be that as it may, nocturnity is absorbed in treachery and can not be appreciated as a generic aggravating circumstance. Likewise, abuse of superior strength is absorbed in treachery, hence, it cannot be appreciated as an independent aggravating circumstance when treachery is already present. However, the generic aggravating circumstance of disguise must be appreciated in this case, as Arcilla wore a hood at the time he strafed the victims with his Armalite rifle to conceal his identity.

While the Court is convinced that treachery attended the commission of the felonies, **evident premeditation has not been proven.** There was no showing that prior to the commission of the offenses, the accused-appellants resolved to kill the victims nor was there proof that their acts were the result of a cold and dispassionate calculation on their part.

ISSUE 4

Side – Substantive	**W/N the trial court erred in convicting the accused-appellants of the complex crime of multiple murder and multiple frustrated murder**	**YES**

RULING and RATIO DECIDENDI:

The cases do not fall under any of the two instances of complex crimes (i.e., a single act constitutes two or more grave or less grave felonies or when an offense is a necessary means for committing the other).

The evidence on record discloses that 2 volleys were fired at the victims. Thus, it can not be said that there was a single act of firing a firearm, although it is not disputed that one high-powered automatic rifle was used in the crime. The recovery of 2 slugs inside the fishing boat further confirms that several shots were fired.

FINAL DECISION	WHEREFORE, with the modifications that — 1. The civil indemnity awarded to the heirs of the victims be increased to P50,000.00 consistent with current jurisprudence; 2. The accused-appellants are hereby sentenced to suffer: (a) the penalty of Reclusion Perpetua for each of the three (3) crimes of murder for the killing of Catalino Bellen, Arturo Abion and Teodoro Cas; (b) Four (4) years, Two (2) Months and One (1) Day of Prision Correccional, as minimum, to Twelve (12) Years and One (1) day of Reclusion Temporal, as maximum, for each of the three (3) crimes of frustrated murder for the shooting of Antonio Abion, Jesus Lotera and Expedito Bonaobra; and (c) Four (4) months and One (1) day of Arresto Mayor, as minimum, to Six (6) years and One (1) day of Prision Mayor, as maximum, for attempted murder for the shooting of Renato Abion;

	3. The award for loss of earning capacity of the three deceased victims be reduced to (a) P299,970.00 for Catalino Bellen; (b) 258,030.00 for Teodoro Cas; and, (c) P209,970.00 for Arturo Abion; The challenged judgments are hereby AFFIRMED in all other respects.SO ORDERED.

U.S. v. Manalinde (1909)

Topic | Subtopic	**Art. 14: Aggravating Circumstances (Evident Premeditation)**	GR No. & Ponente	**G.R. No. 5292, J. Torres**
Petitioner/s	U.S.	**Respondent/s**	The Moro Manalinde
Doctrine	The person having been deprived of his life by deeds executed with deliberate intent, the crime is considered a premeditated one as the firm and persistent intention of the accused from the moment, before said death.		

FACTS

- Between 2 and 3PM on January 19, 1909, Moro Manalinde, using a kris (wavy blade), inflicted a wound on the head of Juan Ingal, a Spaniard who was seated on a chair in the doorway of Sousa's store in Cotabato Moro Province. Ricardo Doroteo, a clerk in the store and was seating behind the counter, heard the noise and the cry of the wounded man and ran to the assistance of the man now lying on the ground
- Manalinde then approached a Chinaman named Choa who was passing along the street and was putting down his load in front of a store. Manalinde attacked Choa using the same weapon, inflicting a severe wound on his left shoulder. The latter fell to the ground.
    - Both wounded men were taken to the hospital, where Choa died within an hour. No record showed the result of the wound inflicted on Ingal.

—

- The Moro, who came from the rancheria of Dupit, entered the town carrying his weapon wrapped in banana leaves, in the meantime, escaped by running away from the town.
- In view of the above, a complaint was filed by the provincial fiscal with the district court charging Manalinde with the crime of MURDER and sentenced him to the penalty of death.

—

- Context why he did the killings:
    - When Manalinde was arrested, he pleaded guilty and confessed that he had perpetrated the crime herein mentioned, stating that his wife had died about 100 days before and that he had come from his home in Catmandu by the order of Datto Rajamundah Mupuck
        - Mupuck directed him to go juramentado[1] in Cotabato in order to kill somebody because Mupuck wanted to avenge against a lieutenant and a sergeant. If Manalinde was successful, he would give him a pretty woman in return, but if he was captured, he was to say that he was following the order of Maticayo, Datto Piang, Tambal and Inug.
        - He traveled for a day and a night from his home and upon reaching the town, attacked a Spaniard and a chinaman.

[1]a juramentado was a dedicated, premeditated, and sometimes highly skilled warrior who prepared himself through a ritual of binding, shaving, and prayer in order to accomplish brazen attacks armed only with edged weapons.

ISSUE 1

Main – Substantive	W/N the crime of murder, as defined in art. 403 (now art. 248) of the Penal Code, was committed on the person of the Chinaman Choa?	YES

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
	● Manalinde pleaded guilty and confessed to the crime herein mentioned.

RULING and RATIO DECIDENDI:

Yes. It appears beyond doubt that the crime of murder was committed.

- The deceased was unexpectedly and suddenly attacked, receiving a deep cut on the left shoulder the moment he had just put down the load that he was carrying and was about to start for the door f the store in front of which he stopped for the purpose of entering therein.
- Due to the wound, he was unable to defend himself and flee from the danger, making him fall to the ground and die in an hour's time.
- Choa's death was consummated with deceit and treachery (aleviosa), one of the qualifying circumstance in the article qualifying murder.

ISSUE 2

Main – Substantive	W/N the excuse that he went *juramnetado* by the order of the Mupuck, makes him free of crime that he had committed?	NO

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:
	● He went juramentado by order of the said datto and on that account killed only two persons, whereas if he had taken the oath of his own volition he would have killed many more, because it is the barbarous and savage custom of a juramentado to kill anyone without any motive or reason whatever

RULING and RATIO DECIDENDI:

No. Manalinde following the order given by Mupuck does not exculpate him from the crime of murder.

- His argument that if he had taken the oath of his own volition, he would have killed many more, can not in under any circumstances be accepted or considered under the laws of civilized nations.
- Such acts of ferocity must be restrained especially as the very people who up to the present time have been practicing such acts are well aware that the established authorities in this country can never allow them to go unpunished,

ISSUE 3 (most relevant to the topic)

Main – Substantive	W/N the aggravating circumstances of (1) reward and (2) ***premeditation*** were present?	YES

RULING and RATIO DECIDENDI:

1. Reward
    a. Promise of reward was shown by the accused's admission that Datto Mupuck promised him a pretty woman for success.
2. ***Premeditation***

a. Manalinde deliberately considered and carefully and thoughtfully meditated over the nature and the consequences of the acts which, under orders received from the said datto, he was about to carry out. To that end, he provided himself a weapon, concealed it by wrapping it up and started a journey of a day and a night for the sole purpose of taking the lives of 2 men of which he did not know nor had any trouble.
b. The nature and the circumstances which characterize the crime, the perversity of the culprit, and the material and moral injury are the same, and the fact that the victim was not predetermined does not affect nor alter the nature of the crime.

Note: Premeditation can not necessarily be considered as included merely because an offer of money, reward or promise was made, for the latter might have existed without the former, the one being independent of the other.

FINAL DECISION	For the above reasons and in view of the fact that no mitigating circumstance is present to neutralize the effects of the aggravating ones, it is our opinion that the judgment appealed from should be affirmed with costs, provided however, that the penalty imposed on the culprit shall be executed in accordance with the provisions of Acts Nos. 451 and 1577, and that in the event of a pardon being granted he shall likewise be sentenced to suffer the accessory penalties imposed by article 53 of the Penal Code. So ordered.

People v. Sangalang (1974)

Topic | Subtopic	Art. 14: Aggravating Circumstances (Treachery)	GR No. & Ponente	G.R. No. L-32914, J. Aquino
Petitioner/s	THE PEOPLE OF THE PHILIPPINES	Respondent/s	LAUREANO SANGALANG
Doctrine	The victim, being unarmed and defenseless, was killed by the accused without any risk to the perpetrators arising from any defense which the victim would have made. This satisfies the aggravating circumstance of aleviosa/treachery.		

FACTS

- At around 6AM of June 9, 1968, Ricardo Cortez left his nipa hut at Sitio Adlas, Barrio Biluso, Silang, Cavite to gather tuba from a coconut tree nearby. Flora Sarno, his wife was left inside the hut
- When he was atop of the coconut tree, he was struck by a volley of shots and fell to the ground
- Flora heard the 3 successive shots coming south from the hut. When she went outside, she saw, at a distance of about 25 meters, 5 men that were armed with long firearms who were firing at his husband. Ricardo was already lying on the ground and was 5 meters away from the assailants
    - She recognized Laureano Sangalang as one of the 5 men as she and her brother, Ricardo Sarno, knew him since childhood. She also recognized the others as Conrado Gonzales, Irineo Canuel, Perino Canuel and Eleuterio Cuyom
    - She ran towards the place where his husband has fallen and shouted “Bakit ninyo pinagbabaril ang aking asawa.” The men fired at her, she was able to run to her Nipa hut, shots can still be heard but after the lapse of 5 minutes, the armed men left.
- On the same event, Ricardo Sarno, was inside his own nipa hut (10 meters away from Flora’s hut) drinking coffee with his family who were eating breakfast. Ricardo heard several shots and when he went outside, he saw his brother-in-law being shot by Sangalang and the others. Sangalang was using a Garand carbine in shooting. He saw his sister trying to approach the fallen man and her fleeing from the gunshots. Ricardo wanted to join her but was likewise fired upon by the five men. He went back to his hut instead.
- Sarno saw his sister sitting inside her hut, followed her after she left the hut and went to see her dead husband. Ricardo reported the killing to the chief of Police.
- The necropsy report showed that Cortez sustained 23 gunshot wounds (14 entrance wounds and 9 exit wounds).
- Flora and Ricardo were interrogated by the police who identified the assailants because from time to time, they used to pass by her place. Sangalang was later arrested for the charge of murder. The others have not been apprehended
    - After trial, the CFI of Cavite rendered a judgement convicting Sangalang of murder sentencing him to reclusion perpetua.

Alibi of Sangalang

- He admitted that knew the deceased and his wife. However, on June 8, 1968, he was with Crispulo Mendoza. They went to the house of Julian Gatdula in Dapitan St., Sampaloc, Manila and arrived at 6 o’clock. Sangalang wanted to borrow money to Gatdula to pay for the matriculation fees of his children.
    - Gatdula said that he had no money at that time and advised him to wait until the morning. They allegedly slept in the house of Gatdula and Gatdula was able to give P200 at about 10AM on June 9. Sangalang and Mendoza went to the Central Market in Manila and Quiapo. They returned to Cavite at 7PM of June 9 (text said June 5?). Gatdula and Mendoza corroborated his alibi.
- The trial court rejected this alibi. The accused and his witnesses did not interpose the alibi when he was being investigated by the police.

ISSUE 1

Side – Substantive	W/N the inconsistencies of Flora and Cortez weakens the	NO

	credibility of their testimonies and the accused's alibi should be accepted instead?	

PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**
	● His alibi impugns the credibility of the prosecution's eyewitnesses. Their testimony were riddled with inconsistencies

RULING and RATIO DECIDENDI:

- Sangalang and his witnesses did not interpose the alibi when he was being investigated by the police.
- The inconsistencies, which were not glaring, strengthen their credibility and show that their testimonies were not rehearsed. Inconsistencies can be attributed to deficiencies in observation or recollection but do not indicate a willful attempt to commit falsehood.
- The controlling fact is that Flora and Sarno knew the 5 assailants
- Even if the motive was not proven by the prosecution, there was no indication that the eyewitnesses were impelled by a malicious desire to falsely incriminate him.

ISSUE 2

Main – Substantive	**W/N the aggravating circumstance of aleviosa was present?**	**YES**

RULING and RATIO DECIDENDI:

- Cortez was atop of a coconut tree, unarmed and defenseless with no expectation of being assaulted. He did not give immediate provocation.
- The deliberate, surprise attack shows that Sangalang and his companions employed a mode of execution which insured the killing without any risk to them arising from any defense which the victim could have made.
    - Therefore, the qualifying circumstance of treachery was present and this act is classified as murder.
    - Treachery absorbs the aggravating circumstance of band and premeditation was not proven.

FINAL DECISION	Finding no error in its judgment, the same is affirmed with costs against the appellant. SO ORDERED.

PEOPLE V. TORREFIEL (1996)

Topic | Subtopic	Aggravating Circumstances - Ignominy	GR No. & Ponente	G.R. 115431, HERMOSISIMA, JR. J.
Petitioner/s	The Madlang People of the Philippines!!!	Respondent/s	Jose Torrefiel
Doctrine	*Nothing in this case points towards ignominy...*		

FACTS

TLDR: A group of men, led by Jose Torrefiel, entered the house of the Mangilog family armed with a bolo and handguns. For no reason, they killed both the father (Leopoldo) and the son (Reynaldo).

WHERE: Barangay Naligusan, Ibajay, Aklan
TRIAL COURT: Held Jose Torrefiel guilty of 2 counts of murder and 1 count of robbery.
COURT OF APPEALS: Affirmed the ruling.

FACTS:

1. On **May 26, 1989 at 5:00 AM**, Realidad Mangilog woke up early to prepare breakfast. Her husband Leopoldo Mangilog and her son Reynaldo were about to join her downstairs. Someone knocked at the door.
2. Leonardo opened the door – then, **Jose Torrefiel armed with a bolo and a handgun entered followed by** *Masiano Masgong, Hilario Masgong, Alex Francisco, Saturnino Suyod, and Noel,* **all armed with long firearms**
3. The group greeted Leopoldo "*How are you 'Tay?*" – He replies "*as usual*"
    a. He served the newcomers coffee, but they were not satisfied.
    b. Realidad then asked Hermogenes Calizo, their errand boy, to buy coffee from the store.
4. The group **did not touch or taste the coffee.** Instead, **Jose Torrefiel, Casiano Masgong, and Satur Suyod aimed their guns and started shooting Leopoldo to death.** Simultaneously, the members who were outside the house also **shot and stabbed Reynaldo** who was taking a bath inside the bathroom outside of the house.
5. Afterwards, Torrefiel ransacked the house, taking P500.00 cash, wrist watch, kitchen wares, grocery items, chickens, and guitar.
6. Before the accused left, they **fired their guns at random –** they were blaming the victims to be responsible for why the military was chasing them.
    a. They said the fish was okay and could be ready to be butchered (?) → random alibi.

CLAIM: Torrifiel had an alibi – he was at the house of the Barangay Captain of Agbalogo, which was 1.5 hours away from Barangay Naligusan. He said he went on vacation on May 22, 1989 and attended the fiesta in Agbalogo on May 25.

ISSUE 1

MAIN - Substantive	W/N the lower court erred in finding the accused-appellant guilty of the murder of Teopoldo and of robbery.	NO

RULING and RATIO DECIDENDI:

NO.
The Court found that an alibi *cannot* prevail over positive identification of the accused. It should be proven that it was physically impossible for him to be at the scene of the crime – which in this case, Torrifiel failed to prove.

- Torrifiel only lived **150 meters away from the Mangilogs.** He would commonly visit them for coffee, and Leopoldo would even visit Torrifiel's house. **They clearly knew each other – and Realidad (the mother) clearly identified him on the day of the crime.**

- Two other witnesses **also confirmed his presence.**
    - Maquirang saw Torrifiel and his group, while tending to his carabao at 5 AM, heading towards the house of the Mangilogs. He's seen their group before, thus in no way could mistaken their identity.
    - Calizo saw Torrifiel come face to face in the same morning, because he was living in the same house. He was the boy who Realidad sent out to get coffee.
- **It would only take him 1 ½ hours to travel from Agbalogo, Ibajay, Aklan from Naligusan, Makato, Aklan.** Thus, it wouldn't be impossible for him to be at the Mangilog's house at 7 AM in the morning.

ISSUE 2

MAIN - Substantive	**W/N the lower court erred in finding the accused-appellant guilty of the murder of Reynaldo, who was outside of the house and killed by his gang members.**	**NO**

RULING and RATIO DECIDENDI:

NO.

The Court **found that there was a conspiracy present.** There is no need for a prior agreement, and the Court may infer if there exists one solely by the acts of the accused immediately prior, during, and after the crime.

- Reynaldo **arrived together with his group at the scene of the crime, fully armed.**
- Three of them **simultaneously shot Leopoldo to death (while he was serving coffee),** while an *undetermined number* **shot and stabbed Reynaldo to death (while he was taking a bath).**
- The final statement that the victims were responsible for the military men chasing them.

Clearly, there was a **concerted effort on the part of the accused – a common design to kill the victims.**

ISSUE 3

MAIN - Substantive	**W/N abuse of superior strength, aid of armed men, and evident premeditation can be appreciated as aggravating circumstances.**	**PARTIALLY YES**

RULING and RATIO DECIDENDI:

(I'm not sure where ignominy is found here icl.. erm...)

FINAL DECISION	***Decisions of the Trial Court are AFFIRMED with MODIFICATION – Torrifiel sentenced to suffer the penalty of RECLUSION PERPETUA.***

People v. Alfanta Y Alo (1991)

Topic | Subtopic	**Art. 14 Aggravating Circumstances | Ignominy**	GR No. & Ponente	**GR No. 125633 | Vitug,** *J.*
Petitioner/s	People of the Philippines	**Respondent/s**	ROLANDO ALFANTA y ALO,

FACTS

- Summary
  - On August 26, 1995, in Makati City, Rolando Alfanta entered a house where Nita Fernandez (the victim) was sleeping.
  - Armed with a bolo/knife, Alfanta pulled her outside, punched her, and forced her into a vacant/abandoned house where he sexually assaulted her.
  - While Alfanta fell asleep, Fernandez managed to grab his knife and a bolo, stabbed and hacked him, and then fled to a military signal office to report that she had killed a man.
    - Alfanta claimed that he and the victim were lovers or live-in partners, and that the sexual intercourse was consensual.

- **Nita Fernandez (victim) -** *raped, escaped because she hacked him with his bolo while he was sleeping*
  - Aug. 26, 12mn: While asleep in the residence of a friend at AFOVAI Fort Bonifacio, Makati City, a man whom she had not seen before suddenly entered the house where she was sleeping, **pulled her, boxed her jaw and put his hand on her mouth,** and told her that **if she will not obey him, he will kill her** (he was armed with a **bolo** → she was afraid so she's doing whatever is asked)
  - She resisted, but could not do anything. Then she was forced to climb a fence and to go to a vacant house.
  - She was told to undress, then the man embraced her and kissed her.
  - She was told to lie down and separate her legs → man inserted his penis into her vagina. She was told to lie face down → inserted penis into her anus. The man was inserting his penis and fingers in and out of private parts. All the time, she was shouting for help, but nobody responded. (pero she also said that she was told not to shout because he will kill her)
  - She was told to lie beside him as he was going to take a rest. Told her not to tell what happened to others saying that '*lahat ng nirape ko ay pinatay ko dahil sa ayokong may magsumbong.*'
  - Noticing that the man was already sleeping, she suddenly **got the knife at the waist of the man** and stabbed the man on his chest → knife broke
    - She grabbed the bolo and hacked the man several times.
  - She got dressed, got the bolo, and ran to the signal office of soldiers and confessed that she killed a man.
    - Did not bring the knife because it was broken.
    - Soldiers went to the place and found the man still alive → brought to the hospital.
      - During cross-examination, she was with the soldiers when they went back.
  - Claims that she does not know the man, but he was not a complete stranger. She saw him pass by the front of the house of her friend where she was sleeping on the same day.
  - Upon cross-examination:
    - On Aug. 26, 6pm, she went to friend's house (Patrick) because she brought mongo and because she and Patrick's wife (Inday), are friends + it was near her son's residence
    - She was not able to go back to Pasig (where she worked) because it was already late at night and was told to sleep at Patrick's house.
    - Earlier that evening, at 9:00, she saw the accused pass by in front of the house.
    - She slept in the sala, while Inday and her son in a room.
    - The door of the house was closed, but was not locked. In entering the house where she slept, one has to reach the sala first.
    - She shouted when she was awakened by the man, but nobody heard her because they were sleeping

and at the same time the accused placed his hand on her mouth.
    - Basically similar facts:
        - Accused had a bolo
        - She was boxed on her chest.
        - At the garage, which was not lit, she was told to undress. When he was assaulting her, she cried. Accused in NOT her sweetheart. She said she will still hack him even if not her sweetheart.
- **Defense (Alfanta y Alo) -** *in a relationship raw with the victim then she hacked him out of nowhere and made up the rape story out of fear of retaliation*
    - On August 26, 1995, while at AFOVAI Village, Municipality of Makati, fixing the fence of the house of General Icarma together with other laborers, somebody told him that his wife was waiting for him in the house of Captain Pascua.
    - At 10:00 o'clock that evening, he went to the house, knocked, called the caretaker. Fernandez (live-in partner daw for almost a year) came out angry because she had been waiting for him.
    - Moved the quarrel/talk outside so as to not disturb the child and neighbors → talked then slept in the terrace of the house by a Colonel (nakalock kasi kaya di nakapasok)
    - Fernandez suddenly hacked him and he does not know why she did it. He believes that Fernandez concocted the story of rape because of fear that he will file a case against Fernandez for hacking him.
    - **Cross-examination:**
        - He and Fernandez became sweethearts in Feb 1995, but they were not living together.
        - On August 26, 1995, when the incident in question happened, he went to Capt. Pascua's place after finding out that Fernandez was looking for him. Other people were there (inc. Ablon)
        - He brought Fernandez to another place to sleep in because he was ashamed to stay at Ablon's house (who offered to accommodate them). He insisted to stay there because it was too late for Fernandez to go back to Pasig (baka pagalitan siya ng anak ni Fernandez daw) → climbed the wall to reach the house → slept on the terrace
        - He did not notice that Fernandez was carrying a bolo because he was preoccupied with 'banig, pillow and blanket.
        - While he was sleeping Nita hacked him with a kitchen knife. When hacked, he just said 'aray'. The bolo was not used in hacking him. After stabbing him, Fernandez left and went to the Military Police leaving the kitchen knife.
        - After he was stabbed, he asked the assistance of Ablon. Ablon was the one who called for the Military Police. When asked why Fernandez stabbed him, he said that it was because he hurt her by holding her hand and pushing her on her chest when Nita insisted on leaving → because he hurt her, he did not file a complaint against her for hacking him.
- **Dr. Noel Minay, Medico Legal Officer (NBI)**
    - August 27, 1995, 5:45PM: He performed a **physical examination** and **medico genital examination** on the victim.
    - Found mark <u>swelling on the left lower jaw</u> or on the mandibular area left portion; and, upon examination of the hymen, he found that the <u>labia majora and minora gaping</u>, similar to the appearance of a woman who had just given birth; or a normal appearance as a result of <u>several sexual intercourses</u> that had been performed.
- **Lilia Hogar of Women's Desk Unit, Makati Police Station**
    - After the bolo was handed to her by the soldiers of the Signal Village, she conducted an investigation
    - When Nita woke up at 12:00 midnight on August 26, 1995, Nita saw a man standing beside her. Nita was punched on the left portion of the face and was ordered to go outside, instructed to climb over a fence on the other side of the house. After climbing the fence, Nita was told to undress, was boxed on her breast and was told to lie down in a vacant house owned by Pascua, wherein she was raped.
    - She also interviewed the accused → Nita was not telling the truth because they were sweethearts.
- History:
    - RTC Makati: charged Alfanta y Alo of **rape** with two aggravating circumstances (**<u>nighttime and ignominy</u>**) and sentenced him to death penalty

RESPONDENT ARGUMENTS
● He and the complainant were live-in partners for a year. ● In the house where the victim was sleeping, there were at least three persons (the caretaker of the house Patrick Ablon, his wife Rubylin and the couple's son) who could have responded to any shout for help from the victim ● The door of the house was purposely left unlocked to allow him entry ● When the victim was made to climb a fence she could have escaped but did not

Type	*Issue*	*Ruling*
Main-Substantive	W/N the trial court has erred in finding and convicting the accused of the crime of rape?	No

ANSWER

- Complainant's testimony is straightforward, categorical, relatively free from serious flaw
  - No ulterior motive shown that she wants to falsely charge the accused
  - No woman in her right mind will cry rape, allow examination of her private parts, or subject herself and her family to the humiliation concomitant to the prosecution of the case, unless the story were true.
- The "sweetheart theory" of accused-appellant does not hold.
  - There was no evidence presented to confirm said relationship.
  - If she was his partner, she will not hack him, especially in the manner she did (stabbed then hacked) → shows complete anger
- Even if there were other people in the house, it was close to midnight and they were sound asleep. Victim's mouth was also covered. It would be unreasonable to expect the victim to act with equanimity of disposition and to have the courage (to shout or fight back) and intelligence to disregard the threat (to kill her) made by accused.
- There was no real opportunity to flee when the victim climbed the fence because she was within striking distance of the bolo-wielding accused.

Type	*Issue*	*Ruling*
Main-Substantive	W/N the trial court has erred in taking into consideration the aggravating circumstances of nighttime and ignominy?	No

ANSWER

- On Nighttime: There is no doubt that appellant has specially taken advantage of the cover of darkness to facilitate the commission of the crime without being recognized.
- On **Ignominy**:
  - Accused inserted his penis and finger inside her (vagina, anus).
  - While it may be normal for couples, there was still ignominy as there was no consent.
- Not a qualified rape pubishable by reclusion perpetua to death (use of weapon - bolo)
  - Not properly impleaded in indictment → only treated as aggravating circumstance
- **LEGAL BASIS**

  - Nighttime would **not** be an aggravating circumstance **unless**:
    - it is specially sought by the offender,
    - It is specially taken advantage of by him,
    - It facilitates the commission of the crime by insuring the offender's immunity from capture.
  - Ignominy
    - Pertains to the moral order [and] adds disgrace and obloquy to the material injury caused by the crime.
  - People vs. Saylan
    - The trial court held that there was ignominy because they did it in 'the same position as dogs do' i.e.,

entry from behind. The appellant claims there was none because said position is not new and is used by couples. The SC held that there may be no ignominy if the act was performed by consenting partners, but not otherwise.

- The crime of rape is committed by having carnal knowledge of a woman under any of the following circumstances:
  - By using force or intimidation;
  - When the woman is deprived of reason or otherwise unconscious; and
  - When the woman is under twelve years of age or is demented.
- The crime of rape shall be punished by reclusion perpetua
  - Whenever the crime of rape is committed with the use of a deadly weapon or by two or more persons, the penalty shall be reclusion perpetua to death.
    - When victim becomes insane or a homicide is committed

DISPOSITION

WHEREFORE, the decision of the trial court finding accused-appellant Rolando Alfanta **guilty** beyond reasonable doubt of the crime of rape is **AFFIRMED WITH MODIFICATION** by hereby **lowering the penalty** therein imposed from death to reclusion perpetua. An award of P50,000.00 for moral damages is likewise ordered to be paid by accused-appellant Rolando Alfanta to the victim Nita Hernandez in addition to the sum of P50,000.00 by way of indemnity ex delictu granted by the trial court. SO ORDERED.

People v. Camano (1982)

Topic | Subtopic	**Article XV Alternative Circumstances** | Intoxication	**GR No. & Ponente**	**G.R. Nos. L-36662-63,** ***Concepcion, Jr., J.***
Petitioner/s	People of the Philippines	**Respondent/s**	Filomeno Camano
Doctrine			

FACTS

Quick Facts:

- **Place:** Barrio of Nato, Municipality of Sagnay, Province of Camarines Sur
- **Time:** around 4-5PM
- **Accused:** Filomeno Camano
- **Weapon used:** a bolo, referred to as a "palas" in Bicol
    - Sharp bladed and pointed instrument about 2 feet long including the black handle, tapering to the end; 1 ½" in width
- **Victim:** Godofredo Pascua and Mariano Buenaflor (BOTH DECEASED)

Autopsy report

- **Pascua's Wounds (2 total mortal wounds):**
    a. Wound stab 3" along at left side, 3" below left axilla (armpit), a little bit posteriorly, cutting the skin, subcutaneous tissues, muscles one rib, pleura of left lung, pericardium, penetrating the ventricles of the heart, Media stinum, the right lung and exit to the right chest. One inch opening
        - This wound caused instant death due to severe hemorrhage

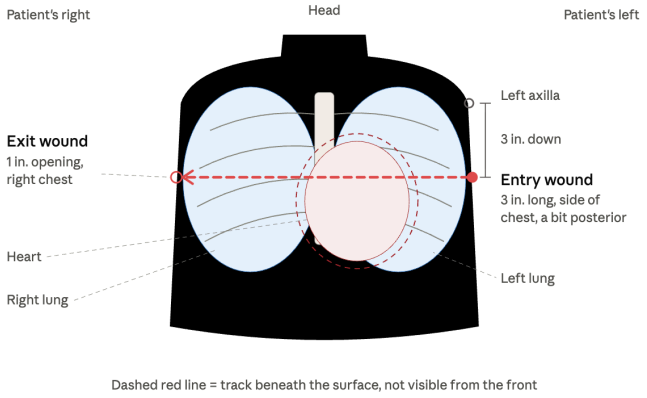
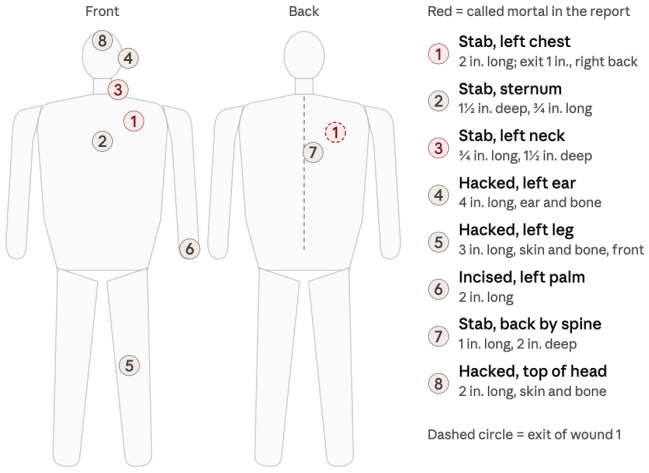


Image generated by Claude so take it with a grain of salt!

    b. Wound incised, one inch along at the left arm
    c. ***Was stabbed while walking alone along the street almost in front of the store of Socorro Buates***
- **Buenaflor's Wounds (8 total)**
    a. WOUND STAB, Two (2) inches long at the **left side of chest above the nipple**, running to the right side a little posteriorly and superiorly with an exit at the back of one (1) inch opening. Penetrating the skin, subcutaneous tissues, pericardium the suricles of the heart, the left lung towards the right side of back.
    b. WOUND STAB at **sternum** one and one-half (1-1/2) inches deep three-fourth (3/4) inch long penetrating the skin and the sternum.
    c. WOUND STAB **left side of neck** three-fourth (3/4) inch long one and one-half (1-1/2) inches deep.
    d. WOUND HACKED, **cutting left ear and bone** four (4) inches long.
    e. WOUND HACKED, **left leg three** (3) inches long cutting skin and bone of anterior side.
    f. WOUND INCISED **left palm** two (2) inches long.
    g. WOUND STAB, one (1) inch long two (2) inches deep at the **back near spinal column**.

h. WOUND HACKED, two (2) inches long **at dome of head cutting skin and bone.**



i.

*j. **Was leaning at the gate of his house, in a kneeling position, with both arms on top of the fence and his head stooping down. Hacked on the head first, then once he fell and rolled to the ground, Camano continued to hack him until he lay prostrate on the ground, face up.***

ISSUE 1

Main – Procedural **Main – Substantive** **Side – Procedural** **Side – Substantive**		**YES/NO/UNDECIDED**

PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**
RULING and RATIO DECIDENDI:	
LEGAL BASES	

ISSUE 2

Main – Procedural **Main – Substantive** **Side – Procedural** **Side – Substantive**		**YES/NO/UNDECIDED**

PETITIONER/S ARGUMENTS:	**RESPONDENT/S ARGUMENTS:**
RULING and RATIO DECIDENDI:	

LEGAL BASES

FINAL DECISION	WHEREFORE, with the modification of the penalty imposed upon the appellant, as above indicated, the judgment appealed from should be, as it is hereby, AFFIRMED in all other respects. With costs against the said appellant. SO ORDERED.

SEPARATE OPINION/S

SURNAME, *CJ/J, dissenting/concurring*	
SURNAME, *CJ/J, dissenting/concurring*	
SURNAME, *CJ/J, dissenting/concurring*	

US V. INDANAN (1913)

Topic | Subtopic	Art. 17: Principals (Principals by Inducement)	GR No. & Ponente	G.R. No. 8187 | J. Moreland
Petitioner/s	United States	Respondent/s	Panglima Indanan
Doctrine	The inducement to the crime must be intentional on the part of the inducer and must be made directly for the purpose in view.		

FACTS

Commission of the Crime

- Indanan was the headman (*local leader*) of Parang at the time of the commission of the crime.
  - Mar. 24, 1912 → Indanan ordered Induk to bring Sariol to his house
- Mar. 25 → Induk brought Sariol to the house where Indanan accused Akiran & Suhuri to tie Sariol
  - Sariol remained there with his hands tied behind his back until night when Indanan ordered him to be taken to the cemetery and killed, asserting that he had an order to that effect from the governor
  - Indanan ordered Akiran to take his bolo with which to assist in the killing
- Sariol was taken to an isolated spot in the cemetery where he was there killed
  - Kalyakan struck the first blow with his bolo while Akiran joined in & assisted
- On returning to the house, Unding told Indanan that Sariol had been killed
  - Indanan said that it was all right and he appeared to be very much pleased

Testimony of the Witnesses

- It appears from the testimony of Kalyakan, Suhuri and Akiran that Indanan had a very powerful influence over them → any order issued by him had the force and efficacy of physical coercion.
  - Constantly referred to his position as headman as their reason for following his orders

ISSUE 1

Main – Substantive	**W/N the domination of Indanan over the persons who killed the deceased makes him responsible for whatever they did in obedience to such orders**	**YES**

RULING and RATIO DECIDENDI:

Art. 13(2) declares those to be the principals in a crime "who directly force or induce others to commit it"

- Viada: one is induced to commit a crime either by command or for a consideration
  - OR by any other similar act which constitutes the real & moving cause of the crime + which was done for the purpose of inducing such criminal act + was sufficient for that purpose
- In case the obedience of the inferior does not exempt him from criminal responsibility as the physical author of the crime, he who directly induced him to the criminal act is considered by the law as a principal.
- Acts of inducement do not consist in simple advise/counsel given before the act is committed or in simple words uttered at the time the act was committed
  - Inducement condemned by the moral law → such advice or words have a great dominance & great influence over the person who acts

** Case proceeds to talk about Spanish cases, then talks about Philippine SC decisions applying the principles; tbh in my opinion it's not relevant enough to put in the digest pero feel free to read them if u want!*

In the present case...

- Words and facts of Indanan had the effect of a command BUT there does not seem to have existed any official relation between Indanan & the persons whom he induced to kill Sariol
  - Those he induced held no official position under him & legally owed him no obedience
- **However**, according to tradition & custom, the headman seems to have been a person whose word was law and commands were to be obeyed
- Indanan also told those who committed the crime that he had a warrant from the governor authorizing the acts committed & urged upon them that all must obey the commands of gov't

    - Indanan knew the representation was false & intentionally made it as an additional factor going to insure obedience to his orders
- Even if there is a lack of any element sufficient to bring the acts of Indanan within the definition of inducement by command, there would still remain all of the elements necessary to qualify the crime as murder by inducement.
    - Inducement offered by the accused is of such a nature and made in such a way that it becomes the determining cause of the crime + was offered with the intention of producing that result.
- Inducement was offered by Indanan directly to persons interested with the intention of moving them to do his bidding → such presentation was the moving cause of the fatal act
    - Personal commands were entirely sufficient to produce the effects & such commands may be considered the moving cause of the crime BUT there is still no doubt that the false representation was also was of material influence in effective the death
        - A conviction is sustainable upon either theory
- There was present premeditation qualifying the crime as murder + aggravating circumstances of despoblado *(deserted, isolated)* & nocturnity

FINAL DECISION	We are the firm conviction that the judgment of the court below is well founded, and we accordingly affirm the same, with costs.

People v Valdez (2000)

Topic | Subtopic	Arts. 21-88: Penalties (Complex Crimes)	**GR No. & Ponente**	**GR No. 127753 | Buena**
Plaintiff/appellee	People of the Philippines	**accused-appellant**	Domingo Valdez y Dulay
Doctrine	When the law prescribes a penalty composed of **two indivisible penalties**, there being **one aggravating circumstance**, the **greater penalty shall be applied**. *(But the unlicensed firearm as an aggravating circumstance was not appreciated here as its retroactive effect is unfavorable to the accused)*		

FACTS

Review of RTC Branch 45: Anonas, Urdaneta, Pangasinan convicting Domingo Valdez y Dulay guilty of two crimes:

1. murder (death penalty) + 2. illegal possession of Firearms and Ammunition (reclusion perpetua)

9PM | October 31, 1995 | Sitio Laclac, Barangay San Roque, San Manuel, Pangasinan

- Marcelo Valdez was under his nipa house talking with his son Labrador Valdez. His other housemates were upstairs preparing to sleep (his wife, son Rolando, daughter-in-law Imelda Umagtang and an 8yo boy named Christopher Centeno)
- **Labrador was lying sideways on a carabao sled, facing his father** at the eastern side of the house (they were around less than 2 meters from each other)
- 2 consecutive gunshots were fired coming from the western side of the house
    - first shot landed on the **left forefinger and thumb of Labrador** + second shot hit him **2 inches from the left shoulder, below the neck which exited at the right side just below his breast**
- The assailant immediately ran away towards the west direction.
- Marcelo immediately called for help; Labrador managed to walk upstairs towards the kitchen
- Gunshots + cry for help alerted Imelda and her common-law husband Rolando; went to the kitchen where they saw Labrador bathe in blood
- **When asked who shot him, Labrador said it was Domingo**
- Labrador died before getting to the hospital (tagal maghanap ng jeep so sad)

November 1, 1995 - Dr. Asuncion Tuvera of San Manuel Rural Health Unit conducted the autopsy

A. External findings:
    a. Chest
        i. gunshot wound at the left sternal line 2 inches below the left clavicle, 2 cm in diameter penetrating
        ii. gunshot wound at the right enterior axillary line at the level of the lumbar area.
    b. Extremities
        i. lacuated wound on the left thumb and index finger with fracture of the phalanges.
B. Internal findings:
    a. Chest
        i. fracture of the 3rd enterior left rib. Abdomen placuated wound of the liver.
C. Cause of death: Cardio respiratory arrest secondary to severe hemorrhage secondary to gunshot wound on the chest and lumbar area.

- Domingo was charged before the trial court with two separate information for murder and illegal possession of firearm to which he pleaded not guilty -> FOUND GUILTY -> Domingo questions conviction

W/N trial court erred in their decision. NO (on murder) but modified penalty + set aside illegal possession of firearms

RULING and RATIO DECIDENDI:

Domingo's conviction should be upheld.
The elements of murder concur in this case.

- he shot the victim twice
- wounds sustained by the deceased were caused by bullets

- because of the wounds, the victim suffered "Cardio respiratory arrest secondary to severe hemorrhage secondary to gunshot wound on the chest and lumbar area"

Domingo's defense	Court ruling
ALIBI: That day, he was hauling and transporting 27 cavans of palay with Reymante and Conrado Centino (6 to 9 PM) to the house of Mrs. Juanita Centino (Conrado's mother). They ate at Conrado's house and drank wine; went home around 11 PM. Corroborated by Reymante, Conrado, and Mrs. Centino	Domingo's defense is weak and **cannot prevail against a positive and explicit identification of him** not only **by Marcelo** but also **by the victim** himself. The appellant **must show that it was impossible for him to be at the place where the crime was committed AND he was so far away that he could not have been physically present** at the place of the crime or its immediate vicinity at the time of its commission. The distance between the nipa house and Centinos' house was **~1km (30 min walk or 20 min ride)**
LIGHTING: Marcelo could not have positively identified Domingo as there was only a single kerosene lamp lighting the area and he was already 70yo; impossible to identify him in few seconds.	The appellant shot the victim at a distance of ~2m from the kerosene lamp. The place was properly illumined. Both Marcelo and the victim identified him. **Marcelo recognized Domingo at the second shot being ~3m away from him, less than a meter from the victim, ~2m from the lamp; the lamp illuminated the whole ground of the nipa hut.**
SWORN STATEMENT NO MENTION OF DOMINGO: Lilia Valdez (wife of deceased) failed to mention in her sworn statement that she heard her husband say Domingo's name. She just brought it up in the court room (like afterthought).	Court reviewed the records and found it was in the sworn statement. As early as Nov. 1 (**day after killing**), **Marcelo, Lilia, Imelda alluded to Domingo as the killer** before P.O. Avelino Sandi Jr. Lilia testified she was around 25-30 meters away from the victim's location; she heard the gunfire and summons of her in-laws; rushed to her husband, saw him bloodied, asked what happened -> Domingo shot him daw
IMELDA'S TESTIMONY NO PROBATIVE VALUE: Appellant debunks the probative value given to Imelda's testimony that she heard the victim say that it was appellant who shot him because such it was not directed to her but to Rolando	There is **no rule that a person who hears something cannot testify on what she heard.** Hearsay evidence, whether objected to or not, possesses no probative value unless the proponent can show that the same falls within the exception to the hearsay rule. The statement of the deceased uttered shortly after being wounded by the gunfire is a "**dying declaration**," which **falls under the exception to the hearsay rule** -> must be proven by testimony of those who heard it
DYING STATEMENT INADMISSIBLE: "dying declaration" under Sec 37, Rule 130 ROC cannot be admitted because "when the said statements were uttered, the declarant was not conscious of his imminent death" Imelda and Lilia said the deceased did not himself say he was dying.	Elements for admissibility of a dying declaration 1. made by the deceased under consciousness of his impending death 2. deceased was at time competent as a witness 3. declaration concerns the cause and surrounding circumstances of the declarant's death 4. offered in a criminal case wherein the declarant's death is subject of inquiry. All these are present. **Consciousness of his impending death is shown by the extent and seriousness of the wounds inflicted upon him.**

The killing was attended by **treachery** when the deceased was **shot at his back while lying on a carabao sledge conversing with his father**, in a **sudden and unexpected** manner giving him **no opportunity to repel it or defend himself** against such attack, and without any provocation on his part.
Aggravating circumstances of evident premeditation, abuse of superior strength, and nighttime, lack of factual basis.

On unlicensed firearm: it WAS considered a separate crime but an amendatory law (which makes the unlicensed firearm just an aggravating circumstance in homicide/murder) was passed AFTER the crime + favorable to the accused, it was given retroactive effect -> no separate charge (FAVORABLE)

"Article 248 of RPC penalizes murder with reclusion perpetua to death. Since the killing was committed with the use of an unlicensed firearm, it is considered an aggravating circumstance. Pursuant to Article 63 RPC, when the law prescribes a penalty composed of two indivisible penalties, such as reclusion perpetua to death, there being one aggravating circumstance, the greater penalty (death) shall be applied. However, the **aggravating circumstance of use of an unlicensed firearm cannot be appreciated in this case because its retroactive application would be unfavorable to the accused**. Thus, we could only impose the penalty of reclusion perpetua in line with the ruling in People vs. Nepomuceno, Jr." (UNFAVORABLE)

FINAL DECISION	WHEREFORE, the assailed judgment is hereby MODIFIED as follows: 1. In Criminal Case No. U-8719 for **MURDER**, the **penalty** imposed on accused-appellant DOMINGO VALDEZ Y DULAY is **reduced to reclusion perpetua**. In addition to the death indemnity of P50,000.00, the P200,000.00 moral damages awarded by the trial court to the heirs of Labrador Valdez y Madrid is reduced to P50,000.00, and the P23,500.00 awarded as actual damages is likewise reduced to P19,000.00, the amount actually proved. 2. In Criminal Case No. U-8720 for **ILLEGAL POSSESSION OF FIREARMS**, the sentence imposed on accused-appellant DOMINGO VALDEZ y DULAY is SET ASIDE and ANNULLED and the case is **DISMISSED**, the act charged therein being considered merely as an aggravating circumstance pursuant to P.D. 1866, as amended by Rep. Act No. 8294. SO ORDERED.

PEOPLE v. DUCOSIN (YEAR)

Topic | Subtopic		GR No. & Ponente	
Petitioner/s		Respondent/s	
Doctrine			

FACTS

ISSUE 1

Main – Procedural Main – Substantive Side – Procedural Side – Substantive		YES/NO/UNDECIDED

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:

RULING and RATIO DECIDENDI:

LEGAL BASES

ISSUE 2

Main – Procedural Main – Substantive Side – Procedural Side – Substantive		YES/NO/UNDECIDED

PETITIONER/S ARGUMENTS:	RESPONDENT/S ARGUMENTS:

RULING and RATIO DECIDENDI:

LEGAL BASES

FINAL DECISION	

SEPARATE OPINION/S

SURNAME, *CJ/J*, *dissenting/concurring*	
SURNAME, *CJ/J*, *dissenting/concurring*	
SURNAME, *CJ/J*, *dissenting/concurring*	